

SOLICITATION, OFFER, AND AWARD

1. This Contract is a Rated Order under the Defense Priorities and Allocations System (DPAS) - Code of Federal Regulations - at 15 CFR 700.

RATING

PAGE OF PAGES

2. CONTRACT NUMBER	3. SOLICITATION NUMBER	4. TYPE OF SOLICITATION ☐ SEALED BID (IFB) INVITATION FOR BID ☐ NEGOTIATED (RFP) REQUEST FOR PROPOSAL	5. DATE ISSUED	6. REQUISITION/PURCHASE NUMBER
7. ISSUED BY	CODE	8. ADDRESS OFFER TO (If other than item 7)		

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid" and "bidder".**SOLICITATION**

9. Sealed offers in original and _____ copies for furnishings the supplies or services in the Schedule will be received at the place specified in item 8, or if hand carried, in the depository located in _____ until _____ local time _____ (Hour) _____ (Date)

CAUTION - LATE Submissions, Modifications, and Withdrawals: See Section L, Provision Number 52.214-7 or 52.215-1. All offers are subject to all terms and conditions contained in this solicitation.

10. FOR INFORMATION CALL:	A. NAME	B. TELEPHONE (NO COLLECT CALLS)			C. EMAIL ADDRESS
		AREA CODE	NUMBER	EXTENSION	

11. TABLE OF CONTENTS

(X)	SECTION	DESCRIPTION	PAGE(S)	(X)	SECTION	DESCRIPTION	PAGE(S)
		PART I - THE SCHEDULE				PART II - CONTRACT CLAUSES	
	A	SOLICITATION/CONTRACT FORM			I	CONTRACT CLAUSES	
	B	SUPPLIES OR SERVICES AND PRICES/COSTS				PART III - LIST OF DOCUMENTS, EXHIBITS AND OTHER ATTACHMENTS	
	C	DESCRIPTION/SPECIFICATIONS/WORK STATEMENT			J	LIST OF ATTACHMENTS	
	D	PACKAGING AND MARKING				PART IV - REPRESENTATIONS AND INSTRUCTIONS	
	E	INSPECTION AND ACCEPTANCE			K	REPRESENTATIONS, CERTIFICATIONS AND OTHER STATEMENTS OF OFFERORS	
	F	DELIVERIES OR PERFORMANCE			L	INSTRUCTIONS, CONDITIONS, AND NOTICES TO OFFERORS	
	G	CONTRACT ADMINISTRATION DATA			M	EVALUATION FACTORS FOR AWARD	
	H	SPECIAL CONTRACT REQUIREMENTS					

OFFER (Must be fully completed by offeror)**NOTE:** Item 12 does not apply if the solicitation includes the provisions at 52.214-16, Minimum Bid Acceptance Period.

12. In compliance with the above, the undersigned agrees, if this offer is accepted within _____ calendar days (60 calendar days unless a different period is inserted by the offeror) from the date for receipt of offers specified above, to furnish any or all items upon which prices are offered at the set opposite each item, delivered at the designated point(s), within the time specified in the schedule.

13. DISCOUNT FOR PROMPT PAYMENT (See Section I, Clause Number 52.232-8)	10 CALENDAR DAYS (%)	20 CALENDAR DAYS (%)	30 CALENDAR DAYS (%)	CALENDAR DAYS (%)
14. ACKNOWLEDGMENT OF AMENDMENTS (The offeror acknowledges receipt of amendments to the SOLICITATION for offerors and related documents numbered and dated):	AMENDMENT NUMBER	DATE	AMENDMENT NUMBER	DATE
15A. NAME AND ADDRESS OF OFFEROR	CODE	FACILITY	16. NAME AND THE TITLE OF PERSON AUTHORIZED TO SIGN OFFER (Type or print)	
15B. TELEPHONE NUMBER	☐ 15C. CHECK IF REMITTANCE ADDRESS IS DIFFERENT FROM ABOVE - ENTER SUCH ADDRESS IN SCHEDULE.		17. SIGNATURE	18. OFFER DATE
AREA CODE NUMBER EXTENSION				

AWARD (To be completed by Government)

19. ACCEPTED AS TO ITEMS NUMBERED	20. AMOUNT	21. ACCOUNTING AND APPROPRIATION
22. AUTHORITY FOR USING OTHER THAN FULL OPEN COMPETITION UNDER THE UNITED STATES CODE AT: ☐ 10 U.S.C. 3204(a) ☐ 41 U.S.C. 3304(a) ()	23. SUBMIT INVOICES TO ADDRESS SHOWN IN (4 copies unless otherwise specified)	ITEM
24. ADMINISTERED BY (If other than Item 7)	25. PAYMENT WILL BE MADE BY	CODE
26. NAME OF CONTRACTING OFFICER (Type or print)	27. UNITED STATES OF AMERICA (Signature of Contracting Officer)	28. AWARD DATE

IMPORTANT - Award will be made on this Form, or on Standard Form 26, or by other authorized official written notice.AUTHORIZED FOR LOCAL REPRODUCTION
Previous edition is unusable**STANDARD FORM 33 (REV. 12/2022)**
Prescribed by GSA - FAR (48 CFR) 53.214 (c)

Section A - Solicitation/Contract Form

Small Business Indefinite Delivery Indefinite Quantity (IDIQ) Contract for Environmental Remedial Action for Sites in Hawaii, Guam, and Other Areas within the Naval Facilities Engineering Systems Command Pacific Area of Responsibility

Product Service Code: F108

Section B - Supplies or Services & Prices or Costs

Additional Information/Notes

Small Business Indefinite Delivery Indefinite Quantity (IDIQ) Contract for Environmental Remedial Action for Sites in Hawaii, Guam, and Other Areas within the Naval Facilities Engineering Systems Command Pacific Area of Responsibility. A Task Order for the minimum guarantee of \$5,000 for the entire contract will be issued concurrently with the award of the basic contract. Once the value of task orders placed exceeds the minimum guarantee amount, the minimum guarantee task order shall be modified to deobligate the funds from the task order. The total maximum value of the contract is \$245,000,000.00 including options (if exercised).

Allowed Per Order

Minimum: 1,000.00 Dollars, U.S.

Maximum: 100,000,000.00 Dollars, U.S.

Government Minimum/Maximum to Order

Minimum: 5,000.00 Dollars, U.S.

Maximum: 245,000,000.00 Dollars, U.S.

Item	Supplies/Service	Estimated Quantity	Unit	Unit Price	Amount
0001	BASE YEAR (MM/DD/YYYY - MM/DD/YYYY) ENVIRONMENTAL REMEDIAL ACTION CONTRACT Small Business Indefinite Delivery Indefinite Quantity (IDIQ) Contract for Environmental Remedial Action Contract for Sites in Hawaii, Guam, and Other Areas within the Naval Facilities Engineering Systems Command Pacific Area of Responsibility. A Task Order for the minimum guarantee of \$5,000 for the entire contract will be issued concurrently with the award of the basic contract. Once the value of task orders placed exceeds the minimum guarantee amount, the minimum guarantee task order shall be modified to deobligate the funds from the task order. The total maximum value of the contract is \$245,000,000.00 including options (if exercised). Pricing Arrangement: Cost Plus Fixed Fee	1	Task		
Option Line Item 0002	FIRST OPTION PERIOD (MM/DD/YYYY - MM/DD/YYYY) Duration: 12 months Pricing Arrangement: Cost Plus Fixed Fee	1	Task		
Option Line Item 0003	CLIN 0003 SECOND OPTION PERIOD (MM/DD/YYYY - MM/DD/YYYY) Duration: 12 months Pricing Arrangement: Cost Plus Fixed Fee	1	Task		
	CLIN 0004 THIRD OPTION PERIOD				

Option Line Item 0004	(MM/DD/YYYY - MM/DD/YYYY) Duration: 12 months Pricing Arrangement: Cost Plus Fixed Fee	1	Task		
Option Line Item 0005	CLIN 0005 FOURTH OPTION PERIOD (MM/DD/YYYY - MM/DD/YYYY) Duration: 12 months Pricing Arrangement: Cost Plus Fixed Fee	1	Task		
Option Line Item 0006	CLIN 0006 EXTENSION OF SERVICES (MM/DD/YYYY - MM/DD/YYYY) Duration: 6 months Pricing Arrangement: Cost Plus Fixed Fee	1	Task		

Section C - Description/Specifications/Statement of Work

PART 1.0 GENERAL DESCRIPTION AND PERSONNEL REQUIREMENTS

- 1.1 PERFORMANCE OBJECTIVE
- 1.2 SCOPE OF WORK
- 1.3 PERSONNEL REQUIREMENTS

PART 2.0 CONTRACT MANAGEMENT

- 2.1 PROGRAM MANAGEMENT
- 2.2 CONTRACT MANAGEMENT PLAN
- 2.3 CONTRACT MANAGEMENT SYSTEM
- 2.4 MONTHLY STATUS REPORTS

PART 3.0 GENERAL REQUIREMENTS FOR CTOs

- 3.1 CTO BASIC REQUIREMENTS
- 3.2 SPECIFICATIONS AND STANDARDS
- 3.3 OPTIONAL REQUIREMENTS
- 3.4 AS-BUILT RECORDS
- 3.5 INSTALLATION REGULATIONS
- 3.6 SCHEDULING
- 3.7 LAYOUT OF WORK
- 3.8 EXISTING WORK
- 3.9 GOVERNMENT FURNISHED MATERIALS
- 3.10 FACILITIES AND SERVICES
- 3.11 RESTRICTIONS ON EQUIPMENT
- 3.12 SANITATION
- 3.13 SECURITY REQUIREMENTS.
- 3.14 CONTRACTOR AND SUBCONTRACTOR PERSONNEL LIST
- 3.15 INCLEMENT WEATHER
- 3.16 EMERGENCY RESPONSE
- 3.17 MUNITIONS RESPONSE PROGRAM
- 3.18 CONTRACTOR LICENSING REQUIREMENTS FOR WORK OUTSIDE THE UNITED STATES

PART 4.0 ENVIRONMENTAL AND NATURAL RESOURCES PROTECTION

- 4.1 GENERAL
- 4.2 SUBMITTALS

- 4.3 ENVIRONMENTAL PROTECTION REQUIREMENTS
- 4.4 PROTECTION OF NATURAL RESOURCES
- 4.5 PROTECTION OF CULTURAL RESOURCES
- 4.6 EROSION AND SEDIMENT CONTROL MEASURES
- 4.7 CONTROL AND DISPOSAL OF SOLID AND SANITARY WASTES
- 4.8 CONTROL AND DISPOSAL OF HAZARDOUS MATERIAL AND WASTE
- 4.9 DUST CONTROL
- 4.10 NOISE
- 4.11 ASBESTOS
- 4.12 PERMITS

PART 5.0 SAFETY AND HEALTH

- 5.1 DESCRIPTION
- 5.2 REGULATIONS
- 5.3 IMPLEMENTATION
- 5.4 PROTECTIVE EQUIPMENT FOR GOVERNMENT VISITORS
- 5.5 QUARTERLY ACCIDENT REPORTS
- 5.6 HEALTH AND SAFETY MANAGER
- 5.7 SITE SAFETY AND HEALTH OFFICER (SSHO)

PART 6.0 QUALITY MANAGEMENT AND SAMPLING AND ANALYSIS PLAN

- 6.1 SUMMARY
- 6.2 SUBMITTALS
- 6.3 QC MANAGEMENT
- 6.4 QC PLANS
- 6.5 CONTRACTOR'S QUALITY SYSTEM
- 6.6 STANDARD OPERATING PROCEDURES
- 6.7 GOVERNMENT QA/QUALITY ASSESSMENT OPERATIONS
- 6.8 COORDINATION AND MUTUAL UNDERSTANDING MEETING
- 6.9 QC MEETINGS
- 6.10 THREE PHASES OF CONTROL
- 6.11 LABORATORIES
- 6.12 QC CERTIFICATIONS
- 6.13 QC DOCUMENTATION

PART 7.0 SUBMITTALS (GENERAL STANDARDS)

- 7.1 TYPES OF SUBMITTALS
- 7.2 SUBMITTAL REGISTER
- 7.3 PROCEDURES FOR SUBMITTALS
- 7.4 FORMAT OF SUBMITTALS
- 7.5 QUANTITY OF SUBMITTALS
- 7.6 SCHEDULE OF SUBMITTAL DESCRIPTIONS (SD)
- 7.7 SUBMITTAL REGISTER INSTRUCTIONS

PART 8.0 ENVIRONMENTAL DATA MANAGEMENT (EDMS) AND REQUIRED ELECTRONIC DELIVERY STANDARDS

- 8.1 SURVEY CONTROL INFORMATION
- 8.2 OTHER SUBMITTALS

PART 9.0 PUBLIC RELEASE OF INFORMATION

- 9.1 PROPRIETARY INFORMATION

PART 10.0 PERFORMANCE METRICS AND QA

- 10.1 GENERAL
- 10.2 EVALUATIONS
- 10.3 QUALITY ASSURANCE
- 10.4 PERFORMANCE EVALUATION MEETINGS

Requirements

Small Business Indefinite Delivery Indefinite Quantity (IDIQ) Contract for Environmental Remedial Action for Sites in Hawaii, Guam, and Other Areas within the Naval Facilities Engineering Systems Command Pacific Area of Responsibility

SECTION C
 PERFORMANCE WORK STATEMENT
 SMALL BUSINESS ENVIRONMENTAL REMEDIAL ACTION CONTRACT FOR SITES IN HAWAII,
 GUAM, AND OTHER AREAS WITHIN THE NAVAL FACILITIES ENGINEERING SYSTEMS COMMAND
 PACIFIC
 AREA OF RESPONSIBILITY

PART 1.0 GENERAL DESCRIPTION AND PERSONNEL REQUIREMENTS

1.1 PERFORMANCE OBJECTIVE

The objective of this procurement is to obtain services for performing remedial actions at environmentally contaminated sites, predominantly located at Navy and Marine Corps installations and other Government agencies. The sites will consist of those ranked on the Superfund National Priority List (NPL) as well as non-NPL sites and Base Realignment and Closure (BRAC) sites regulated under Comprehensive Environmental Response, Compensation, and Liability Act (CERCLA), Resource Conservation and Recovery Act (RCRA), Underground Storage Tanks (UST) regulations, state specific regulations, and other sites which might require remedial action.

The work to be ordered under this contract will be performed at various locations within the Naval Facilities Engineering Systems Command (NAVFAC) Pacific area of responsibility (AOR) (primarily includes NAVFAC Hawaii, NAVFAC Marianas, NAVFAC Northwest, and NAVFAC Southwest). Work may also be added and performed anywhere outside of the NAVFAC Pacific area of responsibility, as required by the Government. The exact location of the required effort will be specified in the individual Contract Task Orders (CTOs). The Contractor may also, on occasion, be tasked to perform work for other NAVFAC Components, Department of Defense (DoD) or federal agencies as required by the Government. This contract may include performance of work on private, county, or state lands that are associated with the environmental sites identified above. The task order range for this contract is \$5,000.00 to \$100,000,000.00. The period of performance will be for five years.

1.2 SCOPE OF WORK

1.2.1 Services

The Contractor shall provide the personnel, equipment, materials, facilities, and management to respond to multiple requests for environmental support at various sites. These services may include tasks, such as, but not limited to the following:

- Performing removal actions
- Performing remedial actions
- Performing expedited and emergency response actions at sites
- Performing pilot and treatability studies
- Providing facility operation, maintenance and instruction
- Performing other related activities associated with returning sites to safe and acceptable levels
- Performing munitions response program clean up and closure
- Performing range clean up and closure; including Range Sustainability Environmental Program Assessments (RSEPA)
- Performing RCRA closures
- Performing site characterizations
- Performing hydrographic surveys
- Performing groundwater characterization studies
- Performing sediment removal and remediation
- Closure and/or replacement of USTs or above ground storage tanks
- Providing anti-terrorist/force protection (ATFP) hazardous material release incident responses and remediation of ATFP-related hazmat such as anthrax or any chemical, biological, or radiological (CBR) agent
- Performing munitions response quality assurance (QA)
- Performing optimization reviews of remediation facilities and remediation strategies
- Preparing appropriate documentation of planned and completed actions
- Providing technical support to the Navy on the full range of remedial actions

1.2.2 Contaminants

The contaminants will include, but not be limited to, those identified and regulated under RCRA, CERCLA, Toxic Substances Control Act (TSCA), Solid Waste Disposal Act (SWDA), petroleum, oils and lubricants (POL); munitions constituents (MC); munitions and explosives of concern (MEC); and general radioactive material (G-RAM).

The contaminants included are predominately solvents, POLs, metals, acids, bases, reactives, non-explosive ordnance residues or compounds, polycyclic aromatic hydrocarbons (PAHs), polychlorinated biphenyls (PCBs), per- and polyfluoroalkyl substances (PFAS), MEC (including all types of discarded military munitions and unexploded ordnance), emerging contaminants, pesticides, and G-RAM. Contaminants may be present in soils, marine or freshwater sediments, groundwater, air, sludge, surface water, and manmade structures. Contaminated sites may be landfills, hazardous waste treatment storage and disposal facilities, tanks, lagoons, firefighting training areas, small arms ranges, or other facilities.

1.2.2.1 The contractor must have ATRP hazmat release incident response and remediation capabilities. This includes capabilities in assisting-in or conducting decontamination following a release of ATRP-related hazmat such as anthrax or any chemical, biological or radiological (CBR) agent. Work could include emergency/expedited contamination assessment and subsequent decontamination/remediation prior to returning to normal operations as well as preparation of work plans and coordination with applicable agencies.

1.2.3 Ordering Procedures

The Contractor selected for the work shall perform tasks in accordance with CTO work statements prepared in accordance with Clause, Section G, Paragraph G3, entitled, "Ordering Procedures". The CTO work statements will be performance-based, describing the requirements in terms of the desired outcome of the project with minimal provision of precise details of work to be done. CTOs will include various documents that will describe the required remediation and technologies to achieve clean-up. Such documents may include records of decision, remedial investigation and feasibility studies, action memoranda, RCRA/CERCLA closure plans, corrective action plans, and drawings and specifications. Contract work will specify a wide range of services relating to the cleanup of sites including, but will not be limited to the following:

- a) Performing traditional and innovative methods for complete remedial action of environmentally contaminated sites. Methods include, but will not be limited to the following actions:
 - Excavation and hauling of contaminated soil and sediment
 - Removal and maintenance of containment and piping systems
 - Soil stabilization and solidification
 - Groundwater treatment
 - Neutralization processes
 - Metals precipitation
 - Chemical stabilization
 - Covering or capping contaminated soils and sediment
 - Mechanical or hydraulic dredging
 - Installation of leachate drains
 - Transportation and disposal of hazardous waste off-site
 - Bioremediation (both in-situ and aboveground)
 - Incineration on or off-site
 - Soil washing followed by disposal
 - Soil venting
 - Pumping and treating contaminated ground water
 - Installation of slurry or barrier walls
 - POL recovery systems
 - Air stripping
 - Carbon absorption
 - Groundwater monitoring
 - Solvent extraction
 - Chemical decomposition and solidification
 - Phytoremediation
 - Low temperature thermal desorption

-
- Bioventing
 - Biofiltration
 - Vacuum extraction
 - Natural attenuation
 - Dual phase extraction
 - Passive treatment walls
 - Soil vapor extraction
 - Air sparging
 - MEC/ Material Potentially Presenting an Explosive Hazard (MPPEH) clearance involving handling, screening, and disposal of MEC/MPPEH items
 - MEC removal and disposal (land surface, land subsurface, and underwater)
 - Other remedial technologies as developed by the remediation industry and accepted by regulators
- b) Providing technical support to the Navy on matters such as community relations regarding the Contractor's remedial action work;
 - c) Conducting topographic and geophysical surveys;
 - d) Conducting hydrogeological and geotechnical testing and data analyses in conjunction with remedial action projects;
 - e) Conducting multimedia sampling and analysis for physical, chemical, and geotechnical characteristics;
 - f) Installing temporary support facilities, such as decontamination areas, fences, roads, and utilities;
 - g) Operating and maintaining project facilities such as waste water treatment and collection systems;
 - h) Providing instruction for operation and maintenance of project facilities;
 - i) Engaging in partnering with the Navy, contractors, regulatory agencies, and other stakeholders;
 - j) Reviewing and/or providing input on investigations, feasibility studies, evaluations of remediation alternatives, and design packages relative to remediation activities;
 - k) Performing range management (including maintenance and/or clearance) and/or closure

1.2.4 Compliance

Work shall meet or exceed the minimum Applicable or Relevant and Appropriate Requirements (ARARs) established by Federal and State agencies. *ARARs can be under constant revision, but DoD can memorialize ARARs in finalized signed decision documents.* The Contractor shall be responsible for compliance with the most recent revisions to the regulations throughout the duration of work under this contract. The Contractor shall also be responsible for compliance with all applicable Federal, State, and local regulations. Any instances where compliance would exceed the scope of work or specific requirements of the contract, and *any conflicts between various regulations or between any regulation and contract/task order specifications, such circumstances shall be brought to the immediate attention of the Contracting Officer or Contracting Officer's Representative (COR) for resolution.* For OCONUS work, the Contractor shall be responsible for compliance with the latest Overseas Environmental Baseline Guidance Document (OEBGD), the Final Governing Standards (FGS) for the specific country in which the work is performed and any host nation regulatory requirements, if applicable. Base-specific documents shall be identified in the CTO Performance Work Statement (PWS), when applicable.

1.2.5 General Work Requirements

The Contractor shall perform tasks in accordance with the contract, Uniform Guide Specifications, Uniform Building Codes (UBC) and all Federal, State, and local environmental, building, and safety laws and regulations. Specific guidance provided in the task order scope will take precedence over the general guidance provided herein.

Task orders issued will be performance-based, describing the requirements in terms of desired outcomes of the project.

1.3 PERSONNEL REQUIREMENTS

The educational and experience qualifications of all personnel listed under paragraph 1.3.3 must meet the contract minimum qualification standards for the respective labor category that they are proposed under. These qualifications shall become the standard for these personnel performing under the contract. The Contractor shall be bound by these standards throughout the contract.

1.3.1 Review of Resumes

The Government reserves the right to review resumes of and interview Contractor employees performing under the contract, solely for the purpose of ascertaining their qualifications relative to the personnel qualification terms of the contract, whether such personnel are considered key personnel or not. Accordingly, the Contractor shall furnish such resumes to the Contracting Officer upon request. If a college degree is specified as required, the degree must be from a U.S. accredited university or demonstrate that the degree from a foreign university is an industry accepted equivalent accreditation of the educational institution in an engineering or scientific discipline, as applicable. An Associate's Degree does not qualify as meeting the requirements. Prior to working under this contract, all key personnel listed under paragraph 1.3.3 below shall be approved by the Contracting Officer, or the designated representative. Federal employees, military or civilian, shall not be employed by the contractor in performance of any work under the contract (i.e., during off-duty hours, regular hours, or while on annual leave).

1.3.2 Contractor Work Force Responsibility

The Contractor shall organize, furnish, maintain, supervise, and direct a work force, which, within the limitations of the provisions of the contract, is thoroughly capable and qualified to effectively perform the work set forth in the contract.

1.3.3 Key Personnel Qualifications

The Contractor shall provide qualified personnel to perform the duties of the following key positions. All personnel performing the required duties under the following key positions shall meet the minimum qualifications for that key position. Resumes for all personnel proposed under the following positions shall be submitted to the Contracting Officer to verify compliance with the qualification requirements below, if requested. Resumes shall be submitted for approval prior to substituting or adding any additional personnel to these positions during the term of the contract, if requested.

The required education and experience qualifications for key personnel are set forth below for the following key personnel positions:

- Program Manager
- Senior Project Manager
- Contract Administration Manager
- Quality Assurance (QA) Manager
- Health and Safety Manager

- a) **Program Manager.** Responsibilities include managing the execution of the overall contract and CTOs under this contract. Duties include but are not limited to: (1) monitoring and controlling project costs and quality; (2) assigning personnel consistent with contract requirements; (3) understanding and assuring compliance with CERCLA, RCRA, TSCA and SWDA regulations and their state counterparts, and other ARARs; and (4) performing as the Contractor's chief representative. Professional licensing or professional registration is desired. The qualified individual for this position shall be an employee of the Prime contractor and shall have as a minimum:

- (1) Undergraduate degree in engineering, physical science, or related discipline.
- (2) Six (6) total years of experience managing or overseeing large task order contracts involving multiple concurrent projects at multiple locations, of which, at least four (4) total years were as a Senior Project Manager managing environmental remedial action projects.

-
- b) **Senior Project Manager.** Responsibilities include directing work associated with assigned CTOs. Duties include: (1) ensuring effective and safe execution of projects; (2) controlling project schedule and budget; (3) recommending changes to improve project efficiency and effectiveness; (4) justifying change orders; (5) tracking materials and resources; (6) coordinating subcontractors' work; (7) complying with established health and safety procedures; (8) ensuring compliance with regulatory requirements; (9) following/implementing approved project work plans or specifications; and (10) producing quality technical reports supporting the remedial action with respect to meeting the appropriate regulatory authority requirements. Professional licensing or professional registration is desired. The qualified individual for this position shall be an employee of the Prime contractor and shall have as a minimum:
- (1) Undergraduate degree in engineering, physical science, or related discipline.
 - (2) Six (6) total years of project management experience, of which at least four (4) total years of experience is in managing environmental remedial action projects regulated under CERCLA, RCRA, and/or TSCA.
- c) **Contract Administration Manager.** Responsibilities include administering and managing CTOs for remedial action construction and services, with respect to contractual matters. Duties include: (1) ensuring compliance with applicable federal, DOD, and Navy regulations and policy, as well as the contract terms and conditions; (2) maintaining an adequate purchasing system, which includes overseeing procurement of subcontractors; (3) maintaining an adequate estimating system, which includes ensuring the adequacy of proposals; (4) tracking costs; and (5) interfacing with Navy contracts personnel regarding contractual matters. The qualified individual for this position shall be an employee of the Prime contractor and shall have as a minimum:
- (1) Undergraduate degree in Business Administration or in an appropriate related field.
 - (2) Four (4) total years of federal contracting experience, of which at least two (2) total years of experience is in administering cost plus fixed fee or cost plus award fee contracts.
- d) **QA Manager (QAM).** Responsibilities include developing, maintaining and enforcing the QA program. For projects involving environmental sampling or testing, the QAM shall provide internal QA surveillance during the implementation of the project. Referred and specified to as QAM in the *DoD Policy and Guidelines for Acquisitions Involving Environmental Sampling or Testing* (November 2007), the Contractor QAM shall: (1) approve project-specific Data Quality Objectives (DQO) that will meet the project-specific performance standards; (2) verify appropriateness of sampling procedures, analytical methods, and laboratory quality systems; (3) approve the final Work Plan (if prepared by the Contractor); (4) verify the selection of appropriately qualified laboratories; (5) coordinate field and laboratory QA surveillance, per contract specifications; (6) notify the Government QAM of any problems or nonconformance issues; (7) direct the performance of data review, per contract specifications; and (8) monitor corrective action. The QAM shall have an open communication link to the project level personnel; however, the QAM shall report and be accountable to a senior officer of the prime contractor's organization. The qualified individual for this position shall have as a minimum:
- (1) Undergraduate degree in engineering, physical science, or related discipline.
 - (2) Four (4) total years of QA experience in managing remedial action projects.
 - (3) Completed the course entitled "Construction Quality Management for Contractors" offered by both NAVFAC and the U.S. Army Corps of Engineers (USACE).
- e) **Health and Safety Manager.** Responsibilities include implementing and overseeing the Contractor's health and safety program and plans. Duties include: development and implementation of air monitoring and personal protective equipment programs for working in potentially toxic atmospheres and development and implementation of programs, policies, and procedures to comply with Federal, State, local and DoD, Navy/Marine Corps occupational health and safety regulations, OSHA regulations, the most recent version of the USACE Safety and Health Requirements (EM 385-1-1) and NAVSEA OP-6, paragraph 13-15 requirements. The Health and Safety Manager shall report and be accountable to a senior officer of the prime contractor's organization. The qualified individual for this position shall have as a minimum:

- (1) Certification as a Certified Safety Professional (CSP) or Certified Industrial Hygienist (CIH) by the Board of Certified Safety Professionals or the American Board of Industrial Hygiene, respectively.
- (2) Four (4) total years of working experience as a Health and Safety Manager overseeing remedial action projects.

1.3.4 Key Personnel Substitutions and Training Requirements

1.3.4.1 Substitution Limitations. The Contractor shall assign to this contract those key personnel whose resumes were submitted and approved by the Government. No substitutions shall be made except in accordance with this clause, as detailed below.

1.3.4.2 Conditions for Substitutions, Deletions, or Additions. No personnel substitutions or deletions shall be permitted for the first 180 days of the contract period unless such changes are necessitated by an individual's sudden illness, death, or termination of employment. In any of these events, the Contractor shall promptly notify the Contracting Officer. In addition, substitutions of all key personnel shall be approved in advance by the Contracting Officer. The Contractor shall provide complete resumes for proposed substitutes, and any additional information requested by the Contracting Officer. Proposed substitutes should have comparable qualifications to those of the persons being replaced. Proposed substitutions, deletions, or additions shall be submitted in writing to the Contracting Officer at least 30 days in advance (45 days if security clearance is required) with the following information:

1. A detailed explanation of the circumstances necessitating proposed substitution or additions,
2. A complete resume for the proposed substitute or addition, and
3. Any other information requested by the Contracting Officer.

The Contracting Officer will evaluate such requests and notify the Contractor in writing of approval or disapproval. The Contracting Officer will notify the Contractor within 15 days after receipt of all required information of the consent on substitutes. No change in labor rates may occur as a result of key personnel substitution.

1.3.4.3 Key Personnel List. The list of key personnel may be amended from time to time by contract modification to add, delete, or substitute personnel in accordance with key personnel substitution requirements specified herein. The Contractor shall submit a current list of key personnel upon Government request.

1.3.4.4 Training. Contractors are expected to have personnel with the requisite skills to perform the requirements of this contract. Therefore, the Government will not allow, nor reimburse as direct costs, those costs associated with the training of Contractor personnel in any effort to attain requirements of this contract. If allowable under FAR Part 31, these costs may be included as indirect costs. Attendance at workshops, symposiums, health and safety training required by 29 CFR 1910.120 or similar is considered training for purposes of this clause. The Contractor shall establish an explosive certification and documentation process for all Contractor and subcontractor personnel working within exclusion zones.

1.3.5 Other Personnel Requirements

The following list of personnel may be included as required, at the **task order level**.

- Project Manager
- Industrial Hygienist, Certified
- Project Chemist
- Project Engineer, Senior
- Project Engineer
- Staff Engineer
- Program Geophysicist
- Project Quality Control (QC) Manager
- Project Scientist/Geologist, Senior
- Project Scientist/Geologist
- Staff Scientist/Geologist
- Site Safety and Health Officer
- Site Superintendent
- Computer-Aided Design and Drafting (CADD)/GIS Operator
- Database Manager

The desired education and experience qualifications are set forth below for the following other positions:

- a) **Project Manager.** Responsibilities include management of assigned CTOs. Duties include: (1) ensuring effective and safe execution of projects; (2) controlling project schedule and budget; (3) recommending changes to improve project efficiency and effectiveness; (4) justifying change orders; (5) tracking materials and resources; (6) coordinating subcontractors' work; (7) complying with established health and safety procedures; (8) ensuring compliance with regulatory requirements; (9) following/implementing approved project work plans or specifications; and (10) producing quality technical reports supporting the remedial action with respect to meeting the appropriate regulatory authority requirements. The qualified individual for this position shall have as a minimum:
 - (1) Undergraduate degree in engineering, physical science, or related discipline.
 - (1) Two (2) years of project management experience, including experience with environmental remedial action projects regulated under CERCLA, RCRA, and/or TSCA.
- b) **Industrial Hygienist, Certified.** Responsibilities include implementing and overseeing the Contractor's health and safety program and plans. Duties include: development and implementation of air monitoring and personal protective equipment programs for working in potentially toxic atmospheres and development and implementation of programs, policies, and procedures to comply with Federal, State, local and DoD, Navy/Marine Corps occupational health and safety regulations, OSHA regulations, the most recent version of the USACE Safety and Health Requirements (EM 385-1-1) and NAVSEA OP-6, paragraph 13-15 requirements. The qualified individual for this position shall have as a minimum:
 - (1) Undergraduate degree in engineering, physical science, or related discipline.
 - (2) Certification by the American Board of Industrial Hygiene.
 - (3) Five (5) years of professional experience as a full-time Industrial Hygienist.
- c) **Project Chemist.** The Project Chemist provides coordination and QA surveillance of laboratory services and provides internal QA surveillance as specified in reference (n). The qualified individual for this position shall have as a minimum:
 - (1) Undergraduate degree in chemical, environmental, biological sciences, physical sciences or engineering.
 - (2) Two (2) years of experience in areas of environmental sampling and analytical testing relevant to the project. An advanced degree in one of the above disciplines may be substituted for equivalent experience.
 - (3) As applicable to the specific project, the Project Chemist must also have knowledge of environmental analytical chemistry methodologies, remedial process chemistry, chemical fate and transport, and/or experience in the sampling and analysis of toxic/hazardous chemicals in environmental matrices.
- d) **Project Engineer, Senior.** Responsibilities include consulting with the Program Manager and the Project Manager on engineering issues related to environmental remedial action projects. Duties include preparing technical submittals and providing field consultations as required, and assisting the Project Manager in carrying out duties remedial action projects. The qualified individual for this position shall have as a minimum:
 - (1) Undergraduate degree in Engineering.

-
- (2) Six (6) years of construction management experience or in-field project management experience of which at least three (3) years of experience is in managing remedial action projects.
 - (3) Professional licensing and registration.
 - e) **Project Engineer.** Responsibilities include consulting with the Project Manager and Senior Project Engineer on engineering issues related to environmental remedial action projects. Duties include preparing technical submittals and providing field consultations as required, and assisting the Project Manager in carrying out duties related to remedial action projects. Professional licensing and registration is desired. The qualified individual for this position shall have as a minimum:
 - (1) Undergraduate degree in Engineering.
 - (2) Five (5) years of experience working on environmental remedial action projects.
 - f) **Staff Engineer.** Responsibilities include preparing technical submittals and providing field support as required. The qualified individual shall have as a minimum:
 - (1) Undergraduate degree in Engineering.
 - (2) One (1) year of experience working with environmental restoration projects.
 - g) **Program Geophysicist.** The Contractor shall designate a Senior Geophysicist who is desired to be employed by the prime contractor, but may be employed by a subcontractor. The Program Geophysicist shall be responsible for geophysical survey design, dynamic data collection, cued data collection, interpretation and reporting of geophysical data, developing a verification plan, geophysical accreditation program and all aspects of QC. This individual has overall responsibility for design, implementation, and management of all geophysical investigations required for the work effort related to military munitions, but may not necessarily be on-site full time. This individual shall be the Program Geophysicist-of-Record. The qualified individual for this position shall have as a minimum:
 - (1) A degree in geophysics, geology, geological engineering, engineering geophysics, or closely related field.
 - (2) Five (5) years of experience directly related to the geophysical mapping, detection and discrimination of buried munitions, and geophysical QC experience.
 - h) **Project Geophysicist.** Responsible for design implementation and management of geophysical investigations but may not be on site full time.
 - (1) Undergraduate degree in geophysics, geology, geological engineering or a closely related field.
 - (2) Specific education, training, and experience appropriate in any geophysical investigations managed.
 - i) **Project QC Manager.** Responsibilities include maintaining and enforcing the QC program. The qualified individual for this position shall have as a minimum:
 - (1) Undergraduate degree in a scientific or engineering discipline.
 - (2) Five (5) years of QC experience in managing remedial action projects.
 - (3) Certification by the American Society of Quality is desired.
 - j) **Project Scientist/Geologist, Senior.** Responsibilities include consulting with the Program Manager and Project Manager on scientific issues related to environmental remedial action projects. Areas of specialty include geology, hydrogeology, chemistry, biology, physics, and appropriate engineering

-
- fields. Typical duties include collecting and interpreting field data, reviewing earth science data, determining contaminant and toxicity levels, and providing field consultations as required. The qualified individual for this position shall have as a minimum:
- (1) Graduate degree in a scientific or engineering discipline.
 - (2) Five (5) years of experience working on environmental remedial action projects.
- k) **Project Scientist/Geologist.** Responsibilities include assisting the Senior Project Scientist/Geologist and Project Manager on scientific issues related to environmental remedial action projects. Areas of specialty include geology, hydrogeology, chemistry, biology, physics, and appropriate engineering fields. Typical duties include collecting and interpreting field data, reviewing earth science data, determining contaminant and toxicity levels, and providing field consultations as required. The qualified individual for this position shall have as a minimum:
- (1) Undergraduate degree in the specific scientific discipline.
 - (2) Three (3) years of experience working on environmental remedial action projects.
- l) **Staff Scientist/Geologist.** Responsibilities include preparing technical submittals and providing field support as required. The qualified individual shall have as a minimum:
- (1) Undergraduate degree in geology, hydrogeology, chemistry, or biology.
 - (2) One (1) year of experience working with environmental restoration projects.
- m) **Site Safety and Health Officer (SSHO).** Responsibilities include ensuring that elements of the approved Site Safety and Health Plan are implemented and enforced on-site. The qualified individual for this position shall be an employee of the Prime Contractor and shall have as a minimum:
- (1) Training, experience, and qualifications required by reference (e) paragraph 01.A.17 and all associated subparagraphs and be able to demonstrate the proficiency required.
 - (2) A minimum of four (4) years of experience in the safety and health aspects of remedial action construction work, of which a minimum of one (1) year of working experience at hazardous waste sites where EPA Level C and Level B personal protective equipment was required.
 - (3) Knowledge of the OSHA regulations and the USACE Safety and Health Requirements (EM-385-1-1) and applicable Federal, State, and local, and DoD, Navy/Marine Corps occupational safety and health regulations.
 - (4) Certification in first aid and cardiopulmonary resuscitation (CPR) by a recognized organization such as the American Red Cross.
 - (5) Experience in the HAZWOPER field and have specialized training in personal and respiratory protective equipment, program implementation, proper use of air monitoring instruments, air sampling methods, and interpretation of results.
 - (6) Qualification as a CSP by the Board of Certified Safety Professionals is recommended.

The following requirements are specific for NAVFAC Marianas projects in Guam:
 All SSHOs performing work for NAVFAC Marianas shall attend the "40 Hour Construction Safety Hazard Awareness Training Course for Contractors," which is periodically offered by the Guam Contractors Association (GCA) Trades Academy and other qualified trainers. If the SSHO does not have a current certification, he/she shall obtain the course certification within 60 calendar days from award of CTO. The credentials of the SSHO will be approved by the Contracting Officer in consultation with the NAVFAC Marianas Site Safety and Health Manager.

NOTE: The 40 Hour Construction Safety Hazard Awareness Training Course for Contractors curriculum must be in alignment with the latest version of the EM 385-1-1, to include covering any significant changes that had occurred with this latest version.

Requirements for all Contractor Jobsite Personnel Holding H-1B or H-2B Visas: Prior to their first day on the jobsite, all Contractor jobsite workers holding an H-1B or H-2B visa shall complete a minimum of 16 hours of classroom training on the requirements of the latest version of reference (e) to include, but not limited to, the following topics: Sanitation; Medical and First Aid Requirements; Temporary Facilities; PPE; Electrical; Hand and Power Tools; Material Handling and Storage; Motor Vehicles; Fall Protection; Work Platforms and Scaffoldings; Demolition; Safe Access, Ladders, Floor & Wall Openings, Stairs and Railing Systems; Excavations and Trenching; and Confined Spaces.

n) **Site Superintendent.** Responsibilities include supervising on-site operations. Duties include: (1) managing and administering material logistic procedures; (2) executing the project tracking system; (3) coordinating work, including subcontractors' work; (4) monitoring and controlling project costs and schedule. The qualified individual for this position shall have as a minimum:

- (1) Six (6) years of on-site supervisory construction management experience, of which at least four (4) years of experience is in managing environmental remedial action projects.

Note: For the purposes of this contract: "Professional Licensing or Professional Registration" is defined as attainment of certified status by taking and passing a nationally accredited written examination administered by a U.S. nationally recognized U.S. Professional Organization. Attainment of a Professional Registration or Certification status by submission of an application or by nomination without having to pass a nationally accredited written examination is not considered to meet the requirements of this contract.

o) **CADD/GIS Operator.** Duties include, but are not limited to, technical CADD, drafting, and mapping support, creating and revising drawings in a CADD system, working from sketches, markups, or other instructions from engineering personnel, and running plots, blueprints, and sepias. The qualified individual for this position shall have as a minimum:

- (1) One (1) year of experience as a CADD/GIS Operator.

p) **Database Manager.** Responsibilities include consulting with the Program Manager and Project Manager on data issues. Duties include, but are not limited to, managing data to ensure that it is available for analysis, reporting, and data transfer to other government agencies or contractors. The qualified individual for this position shall have as a minimum:

- (1) Undergraduate degree in engineering or science.
- (2) Three (3) years of experience as a database manager on environmental remediation projects.

q) **Unexploded Ordnance (UXO) Personnel.** The qualified individuals shall meet the minimum requirements for UXO personnel as described in the latest version of DoD Explosives Safety Board (DDESB) TP 18. In addition to TP 18 qualifications, all Technician Level III personnel must have previous team lead experience or team leader training.

The Government reserves the right to review and approve personnel proposed by the Contractor on individual task orders. Upon approval, no substitutions shall be made except in accordance with Section 1.3.4.

PART 2.0 CONTRACT MANAGEMENT

2.1 PROGRAM MANAGEMENT

2.1.1 Program Management Organization (PMO)

The Contractor shall establish a PMO as part of overall contract management that shall plan, monitor, and control all CTOs issued under this contract, and ensure CTOs are completed in a timely, cost effective, and highly competent

manner. **All Program Management costs will be captured within the project task orders awarded under the contract, and costs should be distributed amongst the task orders in accordance with the level of effort that can be attributed to each task order.**

2.1.2 Program Management Office Personnel

Because of the number, complexity, and diversity of the projects that may be implemented under this contract, successful execution will require personnel principally responsible for planning, coordinating, monitoring, and controlling large, long-term, and technically complex projects. It is essential that these personnel access and utilize a Contract Management System (CMS) in order to ensure real-time project management. The Contractor shall furnish specialized skills and experience as required for the performance of CTOs, and for any management or administrative support required to accomplish the CTOs.

2.2 CONTRACT MANAGEMENT PLAN

After contract award, the Contractor will be tasked with submitting a Contract Management Plan for review and approval. The Contract Management Plan shall delineate the management strategy, implementation of CMSs, and all management functions involved in supporting, monitoring, and controlling project operations. Include appropriate organization charts and describe the program management functions next to names and positions of management personnel assigned to the contract. The plan is also to provide general policy and procedural guidance for all work to be performed. The Plan must be consistent with the Contract Management data submitted in the Contractor's proposal. Details regarding the Contract Management Plan will be discussed with the Navy following award, but generally the plan should include the following:

- 1) Introduction - overall purpose, scope, and objectives
- 2) Organization
 - (a) Organizational structure
 - (b) Staff assignments, including key personnel
 - (c) Authority and responsibility of staff
- 3) Management Process
 - (a) Project Manager Handbook - standard operating procedures
- 4) Financial Management Systems
 - (a) Accounting System
 - (b) Billing System Operating Procedures
 - (c) Estimating System Operating Procedures
 - (d) Purchasing System
 - (e) Cost Accounting Standards Disclosure Statement
 - (f) Compensation System
 - (g) Government Property Management System
 - (h) Project Closeout Procedures

2.3 CONTRACT MANAGEMENT SYSTEM

The Contractor shall utilize a CMS, which shall be an effective integrated system to manage each CTO for: (1) planning and scheduling; (2) cost estimating, budgeting, and accounting; (3) QA; (4) procurement material management; and (5) other required contract reports. Data within the CMS must be processed at a minimum of once per month to coincide with data transfers and the generation of monthly progress reports. The Contractor shall utilize existing, in-place systems to the maximum extent possible.

2.4 MONTHLY STATUS REPORTS

The Contractor shall prepare monthly progress reports. The reports will be due for all active CTOs on the 15th calendar day of the following month, or as agreed to with the Contracting Officer. All Task Order progress reports

shall be submitted **by email to the Contracting Officer and COR**. The purpose of these reports will be to apprise the Navy of the status of the individual projects and the overall program, and to call attention to any departures from the applicable management and work plans. The technical sections shall provide baseline schedules for performing work and monitoring progress, and shall document the work that has been accomplished at a site. The financial sections shall provide a baseline for planned expenditures for the total project and for each CTO, and monitor actual expenditures against the baseline to assess the financial status of the project.

2.4.1 Summary Progress Report

The executive level summary progress report shall consist of the pertinent technical and financial information for the reporting period. Its focus shall be the Contractor's overall effort on all CTOs, highlighting key activities and any deviations from planned schedules and budgets.

2.4.1.1 Technical. This section shall consist of a concise, executive-level summary of all technical activities performed under the contract during the reporting period. The summary shall highlight the activities of the program management/overall management and progress achieved under each project. Specific areas of interest shall include difficulties encountered during the reporting period and corrective actions taken, a statement of activity anticipated during the subsequent reporting period, and a schedule showing accomplishments versus planned activities. The report shall include any changes of key personnel concerned with the project.

2.4.1.2 Financial. This section shall provide the following information in Microsoft Excel by email:

(a) Financial Information (CTO #, obligated to date, cumulative invoiced, current invoiced amount, current costs not invoiced, projected cost to complete, variance, pending requests for change, month exceeding 75%)

(b) 75% Notification Table (CTO #, cumulative invoiced, negotiated, projected monthly expenditures w/o fixed fee for next three months, month exceed 75%)

(c) Subcontracting Activity

(d) CTO Suspension List

2.4.1.3 Subcontracts. This section shall list all subcontracts awarded monthly by title, subcontractor, address, type of contract, small business type, and dollar value; and percentage of small business subcontracts awarded. Note: Small business includes small disadvantaged, women-owned, historically underutilized business (HUBZone), veteran-owned, historically black colleges and universities and minority institutions and service disabled-veteran owned small business.

2.4.2 CTO Progress Reports

The CTO Progress Reports shall contain technical and financial summaries for each CTO. The Contracting Officer shall identify details of the status report format after contract award. The report shall be submitted to the responsible COR, or as indicated by the Contracting Officer.

2.4.2.1 Technical. The reports shall present a summary, and highlight progress and problems experienced during the reporting period; it shall contain detailed activity progress reports for each active CTO. A tabular summary showing planned and actual start and completion dates for each of the standard tasks, percent complete for each active task, and schedule variances shall also be provided. The schedule should also include any unforeseen changes and include schedule variances. Schedule variances shall be highlighted in the narrative, with options for correcting problems as appropriate. The reports shall also identify the planned technical completion date, as well as the contractual period of performance end date.

2.4.2.2 Financial. Site-specific financial status reports shall contain detailed cost summaries for each active CTO. They shall compare planned versus actual expenditures for all standard tasks. The reports shall contain tabular and graphical summaries. In addition, the reports shall contain six-month cost projections and explain any variances in a narrative summary. The report shall include

a summary of cost avoidance measures implemented for each active task. Also provide a summary of CTO modifications and requests for change.

PART 3.0 GENERAL REQUIREMENTS FOR CTOs

3.1 CTO BASIC REQUIREMENTS

3.1.1 Project Information

The type of project information the Government will provide to the Contractor depends on the specific CTO. The information may include but is not limited to contract drawings, maps and specifications, reports, reference drawings, and boring logs.

3.1.2 Drawing Errors and Omissions

Omissions from drawings or specifications, or misdescriptions of details of work which are manifestly necessary to carry out the intent of the drawings and specifications, or which are customarily performed, shall not relieve the Contractor from performing such omitted or misdescribed details of the work, but they shall be performed as if such details are fully and correctly set forth and described in the drawings and specifications.

3.1.3 Notification of Drawing Discrepancies

The Contractor shall check all furnished drawings and specifications immediately upon their receipt and shall promptly notify the Contracting Officer or COR of any discrepancies and propose a solution. Figures marked on drawings shall in general be followed in preference to scale measurements. Large scale drawings shall in general govern small scale drawings. The Contractor shall compare all drawings and verify the figures before laying out the work.

3.1.4 Reference Drawings Accompanying Specification

Reference drawings may accompany CTO specifications and are intended only to show original construction. Drawings are the property of the Government and shall not be used for any purpose other than those contemplated by the specification. Reference drawings included with a CTO will be half size. Information on procuring any half-size drawing as a full-size drawing may be obtained from the Contracting Officer or COR.

3.1.5 Boring Logs

Boring logs may be available to the Contractor for specific CTO remedial action work. If boring logs are available, the Government does not guarantee that borings indicate current conditions. Subsurface data obtained by the Government at these locations will be made available for examination by the Contractor.

3.1.6 Explosive Safety

The Contractor, upon discovery of MEC, propellant, ordnance waste, or pyrotechnic materials larger than 50-caliber rounds, shall cease operations and notify the Contracting Officer or COR for further directions. When applicable the Contractor shall comply with the applicable portions of DoD 4144.26-M, "Contractors Safety Requirements for Ammunition and Explosives", NAVSEA OP 5, Volume 1, Sixth Revision, "Ammunition and Explosives Ashore Safety Regulations For Handling, Storing, Production, Renovation and Shipping", and NOSSA 8020.15C (or latest version) Explosive Safety Review, Oversight and Verification of Munitions Response in lieu of EM 385-1-1 for safety requirements for all explosive operations."

3.2 SPECIFICATIONS AND STANDARDS

The specifications and standards referenced in the specifications, including addenda, amendments, and corrections listed, shall govern where references thereto are made. In case of differences between the specifications or standards and the project specification or accompanying drawings, the project specifications and accompanying drawings shall govern. Otherwise, the referenced specifications and standards shall apply. The requirement for packaging, packing, marking, and preparing for shipment or delivery included in the referenced specifications apply only to materials and equipment furnished directly to the Government, and not to materials and equipment furnished and installed by the Contractor.

3.3 OPTIONAL REQUIREMENTS

Where a choice of materials or methods, or both, is permitted in the contract or CTO, the Contractor shall have the discretion to choose an alternative unless otherwise required by the specification, so long as the materials chosen meet the required standards per Federal regulations.

3.4 AS-BUILT RECORDS

Maintain/develop at the project site one set of full-size contract drawings and specifications marked to show any deviations which have been made from the CTO drawings or specifications, including buried or concealed structures and utility features revealed during the course of site work. Record the horizontal and vertical location of buried utilities that differ from the contract drawings. The drawings shall be available for review by the Contracting Officer at all times. Upon completion of the work, the Contractor will deliver the marked set of prints to the Contracting Officer or COR.

3.5 INSTALLATION REGULATIONS

The Contractors and subcontractors shall become familiar with and obey installation regulations, including fire, traffic, and security regulations. Personnel working on the installation shall keep within the limits of the work (and avenues of ingress and egress), and shall not enter restricted areas unless required to do so and are cleared for such entry. The Contractor's equipment shall be conspicuously marked for identification.

3.6 SCHEDULING

The contractor shall schedule work so as to cause the least amount of interference with installation operations. Work schedules shall be subject to the approval of the Contracting Officer or COR. Permission to interrupt any installation roads, railroads, or utility service shall be requested in writing a minimum of 30 calendar days prior to the desired date of interruption. Certain installations will restrict the interruption of utility services as well as general installation operations. For project sites that are resting places for endangered species, work shall be scheduled to avoid interference with these species and shall follow United States Fish and Wildlife Section 7 consultation guidelines. CTOs will specify restrictions when applicable, and specify when the work shall commence and be completed.

3.6.1 Work Hours

Regular work hours shall be Monday through Friday and match those of the applicable Facilities Engineering and Acquisition Division (FEAD) or Resident Officer in Charge of Contracts (ROICC) office where the work is to be performed. The contractor shall submit a request to work other than regular work hours to the contracting officer or designated representative for approval. Approval shall be obtained prior to commencement of work outside regular work hours.

3.6.2 Interruption of Vehicular Traffic

If, during the performance of work, it becomes necessary to modify vehicular traffic patterns at any locations, the contractor shall notify the contracting officer or designated representative at least 15 calendar days prior to the proposed modification date and provide a traffic control plan detailing the proposed controls to traffic movement for approval. The contractor shall make all notifications and obtain any permits required for modification to traffic movements outside station's jurisdiction. Provide cones, signs, barricades, lights, or other traffic control devices and personnel required to control traffic.

3.7 LAYOUT OF WORK

Layout work from Government established baselines and benchmarks indicated on the drawings, and make measurements in connection therewith. Furnish stakes, templates, platforms, equipment, tools, and materials and labor as may be required in laying out any part of the work from the baselines and benchmarks established by the Government. The Contractor shall execute the work to the lines and grades established or indicated, and shall maintain and preserve stakes and other control points established in the CTO until authorized by the Contracting Officer or COR to remove the stakes.

3.8 EXISTING WORK

3.8.1 Protection

The disassembling, disconnecting, cutting, removing, or altering in any way of existing work shall be carried on in such a manner as to prevent injury or damage to portions of existing work, whether they (1) remain in place, (2) are re-used in the new work, or (3) are salvaged and stored.

3.8.2 Replacement

Portions of existing work which have been cut, damaged, or altered in any way during construction operations shall be repaired or replaced in-kind, in an approved manner to match existing or adjoining work. Existing work shall, at the completion of operations, be left in as good a condition as existed before the new work started.

3.8.3 Location of Underground Facilities

Before commencing work, the contractor shall verify the location and elevations of existing piping, utilities, and any type of underground obstruction not indicated or specified to be removed, but indicated in locations to be excavated, traversed by piping or ducts, or otherwise to be disturbed by or involved in this work. Scan the project site with electromagnetic or sonic equipment and mark the surface of the ground where existing underground utilities are discovered. Archival search of as-built drawings shall be coordinated with the Contracting Officer or designated representative. At Navy and Marine Corps sites in Hawaii and Guam, a dig permit shall first be obtained identifying potential utility services in the area, vehicular or aircraft traffic flow, protection provided by fire and intrusion and alarm systems, or activities that might affect mission operations.

3.9 GOVERNMENT FURNISHED MATERIALS

Each CTO will specify, if applicable, the provision and handling of Government-furnished materials and equipment.

3.10 FACILITIES AND SERVICES

The availability of facilities and services, for example, temporary buildings, field offices, and the need for project signs, will be specified in CTOs.

3.11 RESTRICTIONS ON EQUIPMENT

Certain installations requiring remedial action work under the contract may have sensitive areas. They may therefore enforce radio transmitter restrictions and may require electromagnetic interference suppression on the Contractor's equipment. CTOs will specify restrictions, when applicable.

3.12 SANITATION

Provide and maintain adequate sanitary conveniences of a type approved for the use of persons employed properly secluded from public observation, and maintained by the Contractor in such a manner as shall be required or approved by the Contracting Officer or COR. Conveniences shall be maintained without nuisance. Upon completion of the work, the sanitary conveniences shall be removed by the Contractor from the premises, leaving the premises clean and free from nuisance.

3.13 SECURITY REQUIREMENTS.

3.13.1 United States Citizenship

All Key Personnel must be U.S. citizens and have the ability to access all federal installations. No employee or representative of the Contractor will be admitted to the work site unless the employee or representative furnishes satisfactory proof of United States citizenship, or is specifically authorized admittance by the Government.

3.13.2 Defense Biometric Identification System (DBIDS) Program

Note: The NCAC Program, Rapid Gate Program, has been replaced by the DBIDS Program. Identification badges, if required, will be furnished based on the individual installation's security procedures. The Contractor is responsible for all costs, if any, associated with obtaining proper credentials, including participation in the DBIDS program. Failure of Contractor personnel to obtain entry approval will not affect the contract price or expected time of completion. The Contractor must immediately report instances of lost or stolen badges to the Contracting Officer. All Contractor personnel shall become familiar with and obey all Government regulations, including fire, traffic, and security regulations. Refer to individual CTO requirements provided at the preconstruction conference. Contractor

personnel will not be admitted to the work site without approval. Access requirements will be as identified in installation policy for each location.

Additional details about the DBIDS Program may be found at the Commander, Navy Installations Command website at <https://www.cnmc.navy.mil/om/dbids.html>.

3.13.3 Site Security Requirements

Provide site security such as fencing or guard services as required by each CTO. However, at a minimum, maintain the site and other Contractor-controlled areas in such a manner as to minimize the risk of injury or accident to site personnel or others who may be in the area. Carefully mark work on or near roadways with lights and barricades complying with State and local regulations; where such regulations are not applicable, provide adequate lights and barricades to minimize the risk of an accident. Fence around open excavations, which pose a danger to site personnel or others to prevent accidental entry. Shore up side slopes of excavations or leave at a safe angle of repose. Equipment, when not in operation, shall be left in a safe manner (e.g., wheels blocked, buckets on the ground, and in an area under the responsibility of the Contractor). Near residential areas where there may be children, special consideration shall be given to site security and safety needs, and requirements will be discussed with the Contracting Officer or COR before work begins.

3.14 CONTRACTOR AND SUBCONTRACTOR PERSONNEL LIST

Provide to the Contracting Officer or designated representative, a list of Contractor and/or subcontractor personnel (including addresses and telephone numbers) for use in the event of an emergency. As changes occur and additional information becomes available, correct and change the information contained in previous lists. The Contractor shall post a list of the subcontractors at the project site.

3.15 INCLEMENT WEATHER

If a warning of inclement weather is issued, take precautions to minimize any danger to persons, and protect the work and any nearby Government property. Precautions shall include, but are not limited to, closing openings, removing loose materials, tools, and equipment from exposed locations, and removing or securing scaffolding and other temporary work. Close openings at the work area if storms of lesser intensity pose a threat to the work or any nearby Government property.

3.16 EMERGENCY RESPONSE

3.16.1 Definition

Emergency response is defined as having action personnel at the identified location within 24 hours of notification. These personnel shall stage and prepare for immediate actions to be taken.

3.16.2 Examples

Emergency response is required in order to tend to unplanned incidents requiring immediate attention. Examples of work requirements include expedited sampling or testing, removal of contaminated soils, and identification of Immediately Dangerous to Life or Health (IDLH) circumstances, such as in the case of hazardous material spills, industrial accidents, or identification of high levels of contamination.

3.16.3 Response

The Contractor shall respond to an emergency response requirement as quickly as physically possible; administration matters will take second priority and will be handled concurrently or after the situation is in progress or has been resolved, ensuring that the response is not slowed down. Emergency actions will only be directed by the Contracting Officer.

3.16.4 Emergency Response Plan

A generic Emergency Response Plan shall be developed by the Contractor for procedures during and after hours. This plan shall be submitted within 30 days after contract award.

3.17 MUNITIONS RESPONSE PROGRAM

3.17.1 Overview

The contractor shall provide a wide range of services for performing investigations and response actions at sites, which potentially contain MC and munitions and explosive of concern (MEC). MC and MEC include, but are not limited to, UXO, discarded military munitions (DMM), and explosives in high concentrations potentially posing an explosive hazard. Work at these areas of concern may be on or beneath the land surface, and/or may include beach, marsh, mudflats, surf zones, and/or submerged water areas.

3.17.2 Tasks

Tasks related to the specified investigations and response actions may include, but are not limited to, the following:

1. Archival research of site history as it relates to past use, storage, handling, transportation, treatment, and disposal of materials that may contain MEC and other munitions-related materials
2. Site assessment, investigation (e.g. sampling and analysis), characterization (e.g. type and extent)
3. MEC/MPPEH avoidance support for internal and regulatory site visits
4. Assessment of explosive safety, human health, and environmental risk using models specifically developed for assessment of such hazards and risk
5. Evaluation, selection, and design of removal or response alternatives for MEC and other munitions-related material
6. Evaluation and selection of munitions detection alternatives
7. Preparation of Explosive Safety Submissions (ESSs), Explosive Safety Submission Determination Requests (ESS-DRs), ESS Amendments or Corrections, work plans, MEC Quality Assurance Project Plans (QAPPs), and After Action Reports (AARs)
8. Search for, detection of, and positive identification of MEC, munitions-related materials, and/or other contaminants
9. Removal, demolition, certification, packaging, and storage of MEC, munitions-related materials, and/or other contaminants
10. Transportation and disposal of MEC, munitions-related materials, and/or other contaminants in compliance with applicable DOD standards, transportation regulations, and applicable environmental regulations (e.g. RCRA and military munitions rule)
11. Documentation of results of investigations and response actions
12. Munitions and environmental data management and recurring review of response action sites
13. Determination and documentation of remaining post-removal site risk and compatible site uses
14. Quality assessment of response actions conducted by third parties to ensure those response actions meet objective criteria established as the remedial action goal.

3.17.3 Requirements

Requirements relating to the specified investigations and response actions may include, but are not limited to, the following:

1. Performing traditional and innovative methods for investigation and response action at sites which potentially contain MEC and munitions-related materials. Methods include, but will not be limited to, the following actions:
 - a. Land and underwater: Geophysical surveys of surface/subsurface to support detection of potential MEC and munitions-related items including real-time field data interpretation and post-processing data analysis. Examples of technologies that may be used in support of this objective include, but are not limited to:
 - i. Magnetic detection
 - ii. Electromagnetic detection
 - iii. Subsurface munitions classification
 - iv. Side-scan and bottom-penetrating sonar
 - v. Real-time kinematic differential geographic positioning system
 - b. Removal technologies
 - i. Land: surface/subsurface
 - ii. Underwater
 - c. Treatment technologies
 - i. Blow-in-place
 - ii. Centralized demolition

-
- iii. Thermal treatment
 - iv. Contained detonation chamber
 - v. Other UXO demilitarization methods
 - d. Covering, capping, or containment
 - e. Transporting and disposing of MEC and munitions-related materials off-site
 - f. Other investigation and response action technologies developed by industry and accepted by regulators
 - 2. Multimedia sampling and analysis for physical, chemical, and geotechnical properties.
 - 3. Range control operations for all activities.
 - 4. Boundary and location surveying including topographic surveys using the Global Positioning System (GPS) and other approved surveying methods.
 - 5. Providing technical support to the Government on community relations.
 - 6. Installing temporary support facilities, such as explosive blast and fragmentation protection, decontamination areas, fences, roads, and utilities.
 - 7. Engaging in partnering with the Government, other contractors, and regulatory agencies.
- 3.17.4 Specifications.

- 1. Minimum requirements for UXO personnel as detailed in the latest version of DDESB TP 18.
- 2. Individual detectability statistics, including probability and depth, shall be developed and documented for each type or size class of ordnance found. Detection level requirements for underwater sites will be as specified for each project based on the available technologies at the time of the project. The contractor shall specify the ordnance detection levels to be attained early in the data quality objective (DQO) process.
- 3. The contractor shall, on a site-specific basis, work with the Navy and appropriate stakeholders in order to specify requirements for ordnance investigation and removal depths. The contractor will be required to recommend investigation and removal action depths based on site-specific information, the specified land use of the area of concern, and the DDESB Standard 6055.9, Chapter 12, "Real Property Contaminated with Ammunition, Explosives, or Chemical Agents".
- 4. On a site-specific basis, the contractor shall determine if a validation of the detection systems used is needed, to show that the detection levels were met. This is part of the contractor's QC/QA requirements, and should be addressed in the DQO process.
- 5. On a site-specific basis, the contractor, in consultation with the Navy, shall make recommendations to the Navy to ensure all Government QA requirements are met. If the Navy determines the Government needs to perform independent QA on the validation of detection systems used by the contractor, the contractor shall work with the Navy and/or an independent, third-party to ensure the validation is appropriately executed.
- 6. On a site-specific basis, the contractor is required to submit the contractor SOPs for all MEC-related operations (MEC identification, MEC sweep operations, MEC data collection, MEC excavation, MEC transport, MEC disposal, etc.) for review, as applicable.
- 7. Survey Control Requirements
 - a. General. The surveyed horizontal geographic position and state plane coordinates shall be referenced to permanent or semipermanent control points existing on the project site and shall be accurate to one quarter meter (0.25 m), plus or minus. Horizontal control of class one, third order or better, shall be established for all new semipermanent and tertiary control points. Horizontal control shall be referenced to the North American Datum of 1983 (NAD83). Data conversions from the metric system to the English system shall use the U.S. Survey Foot definition (1 meter=39.37 inches exactly). All drawings and calculations shall contain a prominent note stating the same. Surveying results shall be submitted in accordance with the contract requirements.
 - b. GPS. Boundary and location surveys of munitions-related, known historic properties; infrastructure improvements; utilities; and roadways shall be performed utilizing GPS to the maximum extent possible. The contractor shall survey the clearance boundaries and define the perimeter corners of clearance areas with visible markers. The contractor shall survey the location of all confirmed UXO items found during

surface/subsurface clearance operations; any planimetric features, fence lines, and other significant land features not shown on existing maps; and historic properties identified during the project.

- c. Horizontal and Vertical Controls. The contractor shall use the existing verified geodetic control points, updated to the World Geodetic System of 1984 (WGS 84) Geocentric Reference System (GRS), for all horizontal and vertical controls used for the surveying of the project site.
- d. Final Survey Map. As specified in each task order, the final survey map of the project work areas shall be completed with 1-meter contours and spot elevations surveyed every 30-meters. All spot elevations shall have a horizontal accuracy of 0.25 meters and a vertical accuracy of 0.1 of a meter.
- e. Location of UXO. All location surveys of UXO shall have a horizontal accuracy of one meter and a vertical accuracy (depth of UXO) of 0.25 meters.

3.17.5 Skills – UXO Personnel Skill Hierarchy

The following information sets forth the skill hierarchy appropriate to those individuals performing munitions related remediation.

1. UXO Sweep Personnel

Sweep personnel assist UXO technicians and supervisory personnel in the clearance of UXO, operating only under the direct working supervision of qualified UXO technicians and/or UXO supervisors. Sweep personnel assist with the following functions:

- a. Conducting visual and/or instrumented UXO search activities in the field
 - b. Operating ordnance detection instruments and other similar equipment
 - c. Removing non-hazardous scrap (e.g. fuze remnants, fragments, and related debris) only after such items have been certified/verified by a qualified UXO technician as safe for handling
 - d. Performing field maintenance on military and/or civilian ordnance detectors
- Sweep personnel are not involved in the execution of explosives operations. This position requires site and job-specific contractor training (which may include ordnance recognition, safety precautions, donning and doffing of protective clothing, etc.), but does not require UXO technician qualifications.

2. UXO Technician I

This skill level allows the individual to assist fully qualified personnel (UXO technician II and above) in the following functions:

- a. Conducting reconnaissance and classification of UXO
- b. Identifying all ordnance types and conditions, armed or unarmed, to include:
 - Bombs and bomb fuzes (to include munition and fuze condition—armed or unarmed)
 - Guided missiles
 - Projectiles and projectile fuzes (to include fuze condition—armed or unarmed)
 - Rockets and rocket fuzes (to include fuze condition—armed or unarmed)
 - Land mines and associated components
 - Pyrotechnic items
 - Military explosives and demolition materials
 - Grenades and grenade fuzes (to include fuze condition—armed or unarmed)
 - Submunitions
- c. Locating subsurface UXO using military and/or civilian ordnance detectors (and related equipment)
- d. Performing excavation procedures on subsurface UXO
- e. Locating surface UXO by visual means

- f. Transporting UXO and demolition materials
- g. Preparing firing systems, both electric and non-electric, for disposal operations (not render safe procedures)
- h. Operating personnel decontamination stations
- i. Inspecting salvaged UXO-related material and the erection of UXO-related protective works
- j. Performing field maintenance on military and/or civilian magnetometers
- k. Donning and doffing personnel protective clothing.

3. UXO Technician II

Must be able to fully perform all of the functions enumerated for sweep personnel and UXO Technician I plus:

- a. Properly storing explosive materials in accordance with applicable guidance
- b. Performing field maintenance on military and/or civilian ordnance detectors
- c. Determining precise position and/or a magnetic azimuth using current navigational/locating equipment
- d. Performing field expedient identification procedures to identify contaminated soil
- e. Preparing an on-site holding area for recovered UXO
- f. Operating modes of transportation for transporting UXO, when appropriate
- g. Performing limited technical supervision of non-technical personnel.

4. UXO Technician III

Must be able to fully perform all of the functions enumerated for sweep personnel and UXO Technicians I and II plus:

- a. Supervising and performing the on-site disposal of recovered UXO and demolition materials
- b. Preparing an explosive storage plan in accordance with all applicable guidance
- c. Preparing required UXO remediation administrative reports
- d. Preparing standard operating procedures for on-site remediation project
- e. Performing risk hazard analysis
- f. Conducting daily site safety briefings
- g. Supervising the conduct of all on-site evolutions directly related to UXO remediation

5. Senior UXO Supervisor

Must be able to fully perform all of the functions enumerated for sweep personnel, UXO Technicians I, II, and III plus:

- a. Performing planning, coordinating, and supervision of all UXO activities
- b. Supervising multiple UXO teams performing:
 - reconnaissance, and classification of UXO, pyrotechnic items, and military explosives and demolition materials
 - locating surface and subsurface UXO
 - destroying UXO by burning and detonation
 - transporting and storing UXO
 - Preparing SOPs for UXO remediation actions insuring compliance with DOD directives as well as local, state, federal, and statutes and codes
 - Certifying AEDA and/or range scrap as ready for disposal or turn-in in accordance with current policies.

7. UXO Safety Officer

Responsible to the program UXO safety officer for establishing, implementing, and executing an effective contractor MEC/UXO safety program for investigation and response actions, in compliance with all applicable federal, DOD, state, and local regulations and requirements. The UXO safety officer is responsible for establishing standard operating procedures for all MEC/UXO-related activities, including search, detection, access, identification, transportation, centralized storage, disposal, treatment, scrap certification, HERO analysis, etc. The UXO safety officer must be able to fully perform all of the functions enumerated for sweep personnel and UXO Technicians I, II, and III plus:

- a. Implementing the approved explosives and UXO safety program in compliance with all DOD, Federal, State, and local statutes and codes
- b. Analyzing UXO and explosives operational risks, hazards and safety requirements
- c. Establishing and insuring compliance with all site-specific safety requirements for:
 - UXO and explosives operations,
 - Establishing, posting, and enforcing personnel limits, safety exclusion zones for UXO clearance operations, UXO and explosives transportation, storage, and destruction,
 - Conducting safety inspections to ensure compliance with all UXO and explosives safety codes,
 - Operating and maintaining air-monitoring equipment required at site for airborne contaminants,
 - Ensuring all equipment utilized within the exclusion zone is operated IAW federal, state, and local statutes and codes,
 - Establishing personal protective equipment (PPE) requirements for all MEC/UXO-related activities as part of the activity/task risk hazard analysis.

3.17.6 Advance Geophysical Classification

The Contractor shall be required to comply with the DoD Advanced Geophysical Classification Accreditation Program, Office of the Assistant Secretary of Defense Memorandum (April 11, 2016 or series) for all Advanced Classification work on Munitions Response Sites (MRSS).

3.17.7 QA Oversight and Support

The munitions response work may involve working with other Navy support or QA oversight of other contractors during any of the phases of work and may include performing anomaly avoidance for support or oversight activities (e.g., biological surveys, site visits, etc.), hazardous/toxic wastes assessment/remediation projects, archaeological studies, flora and fauna studies, geotechnical studies, emergency response plans, public evacuation/safety plans and execution, public coordination, and other environmental and/or engineering studies). The work may involve but not be limited to disciplines in the following areas: explosive safety, hazardous/toxic wastes management, noise quality, air quality, water quality, risk assessment, occupational health, industrial hygiene, safety, and public health. The work may also be conducted at non-CERCLA sites involving construction or maintenance and subject to all applicable policy, laws and regulation.

3.18 CONTRACTOR LICENSING REQUIREMENTS FOR WORK OUTSIDE THE UNITED STATES

CTOs under this contract may be awarded and performed outside the United States and its Territories. Projects may require services in countries that impose restrictions or prohibitions on the use of non-national labor and/or businesses and may require the development of partnerships, joint ventures, or other arrangements with local businesses. Contractors must be duly authorized to operate and conduct business in any host country and must fully comply with all laws, decrees, labor standards, and regulations of the host country during the performance of the contract. The United States may have Status of Forces Agreements (SOFAs) with some countries and those agreements must be complied with. Unless explicitly provided in the RFP for the relevant task order, the U.S. Government will not offer “United States Official Contractor,” “Technical Representative,” or similar status under any SOFA; nor will the U.S. Government certify any employees of a contractor as “Members of the Civilian Component” under a SOFA. Offerors are expected to familiarize themselves with the laws of host nations whether

or not the United States Government provides notice of the existence of such requirements.

3.18.1 Contractor Licensing Requirements for Work in Compact of Free Association (COFA) Countries

Except to the extent provided otherwise in the Compact of Free Association (COFA), or Subsidiary Agreements of the Compact of Free Association including the Status of Forces Agreement (SOFA), Contractors must be duly authorized to operate and conduct business in any host country and must fully comply with all laws, decrees, labor standards, and regulations of the host country during the performance of the contract. The United States has a number of international agreements with the host nation, including a COFA and a SOFA, and those agreements, including but not limited to provisions relating to employment preferences and use of local and U.S. contractors, as well as restrictions on hiring of third country nationals or utilization of third country contractors, must be complied with. Offerors are expected to familiarize themselves with the laws of host nations whether or not the United States Government provides notice of the existence of such requirements.

PART 4.0 ENVIRONMENTAL AND NATURAL RESOURCES PROTECTION

4.1 GENERAL

The requirements stated herein provide general protection of natural resources and the environment during the execution of CTO work. The Contractor shall comply with Federal, State, local, and base environmental laws and regulations including, but not limited to, pertinent Occupational Safety and Health Administration (OSHA); Department of Transportation requirements; National Environmental Policy Act; Clean Water Act; Clean Air Act; Endangered Species Act; Safe Drinking Water Act; TSCA; RCRA as amended by the Hazardous and Solid Waste Act; CERCLA as amended by Superfund Amendments and Reauthorization Act; Migratory Bird Treaty Act, and EPCRA of 1986. The Contractor shall ensure that activities performed by their personnel, subcontractors, and suppliers are executed as required by these laws and regulations.

4.2 SUBMITTALS

For each CTO, provide the required submittals to the Contracting Officer or COR, unless otherwise indicated. The submittal list may include, but is not limited to:

- a) Environmental Protection Plan
- b) Environmental Conditions Report
- c) Hazardous Waste Management Plan
- d) Emergency and Hazardous Chemical Inventory Forms
- e) Toxic Chemical Release Report
- f) Storm Water Pollution Prevention Plan

4.3 ENVIRONMENTAL PROTECTION REQUIREMENTS

Provide and maintain protection of natural resources and the environment during the life of the project. Plan for and provide environmental protective measures to control any and all pollution that may develop during operations. Plan for and provide environmental protective measures required to correct conditions that develop during site work associated with the project.

4.3.1 Environmental Protection Plan (EPP)

For each CTO, an EPP may be required. An EPP will set out the details of environmental protection, including measures for protecting natural resources, required reports, and other required measures.

4.3.2 Environmental Conditions Report

For each CTO, a survey of the project site with the Contracting Officer or COR prior to starting work may be requested. Photographs may be requested that show existing environmental conditions in and adjacent to the site.

4.4 PROTECTION OF NATURAL RESOURCES

Preserve the natural resources within the project boundaries and outside the limits of permanent work. Installation Natural Resource Management Plans shall be followed when determining protection of natural resources. Restore to an equivalent or improved condition upon completion of work. Confine activities to within the limits of the work specified in the CTO.

4.4.1 Land Resources

Except in areas to be cleared, do not remove, cut, deface, injure, or destroy trees or shrubs without the Contracting Officer or COR's approval. Do not fasten or attach ropes, cables, or guys to existing trees for anchorage, unless approved by the Contracting Officer or COR in writing.

4.4.2 Protection

Protect existing trees, which are to remain, and which may be injured, bruised, defaced, or otherwise damaged by Contractor operations. Remove displaced rocks from uncleared areas. The Contractor, upon Contracting Officer or designated representative's approval, shall remove trees with 30 percent or more of their root systems destroyed.

4.4.3 Replacement

Remove trees and other landscape features scarred or damaged by equipment operations, and replace with equivalent, undamaged trees and landscape features. Obtain Contracting Officer or COR's approval before removal and replacement.

4.4.4 Temporary Construction

Grade temporary roads, parking areas, and similar temporarily used areas to conform to surrounding contours. When construction is over, remove traces of temporary construction facilities such as haul roads, work areas, structures, foundations of temporary structures, and stockpiles of excess or waste materials, and repair the area as specified in CTOs.

4.4.5 Stream Crossings

The Contracting Officer or COR's approval is required before any equipment will be permitted to ford streams. In areas where frequent crossings are required, install temporary culverts or bridges when applicable after obtaining appropriate USACE permits. Remove temporary culverts or bridges upon completion of work, and repair the area as specified in CTOs.

4.4.6 Fish and Wildlife Resources

Do not disturb fish or wildlife. Do not alter water flows or otherwise significantly disturb the native habitat adjacent to the project and critical to the survival of fish or wildlife, except as specified in CTOs.

4.4.7 Wetland Areas

The Contractor shall not disturb any wetland areas unless authorized by Contracting Officer or COR.

4.5 PROTECTION OF CULTURAL RESOURCES

Carefully preserve and report immediately to the Contracting Officer or COR any historical or archaeological items, or apparent human skeletal remains discovered in the course of work. Stop work in the immediate area of the discovery until directed by the Contracting Officer or COR to resume work. Protect monuments, markers, and works of art.

4.5.1 Definitions

- a) "Historic Preservation", for the purposes of this contract, includes identification, evaluation, recordation, documentation, curation, protection, management, and/or stabilization of historic properties.
- b) "Historic Property" means any prehistoric or historic district, site, building, structure, object, or Traditional Cultural Property included in, or eligible for inclusion in, the National Register of Historic Places.
- c) "Traditional Cultural Property" is, generally, a property that is eligible for inclusion in the National Register because of its association with cultural practices or beliefs of a living community that; (a) are rooted in that community's history, and (b) are important in maintaining the continuing cultural identity of the community.

4.5.2 General Requirements

4.5.2.1 Historic Preservation Services. Historic preservation services shall be provided as specified in each CTO. Historic property protection services shall be conducted in accordance with the National Historic Preservation Act of 1966 (as amended), and professional archaeological standards and practices. Installation Cultural Resources Management Plans shall be followed when determining protection of historical and

archeological resources.

4.5.2.2 Research Design. As specified in each CTO, the Contractor shall provide a Research Design in accordance with the Secretary of the Interior's Standards and Guidelines for Archaeological Documentation (48 FR 44716), prior to on site activities.

4.5.2.3 Special Protection Tasks. The Contractor shall, in accordance with applicable plans and SOPs, conduct fieldwork tasks in addition to those listed above to preclude or minimize adverse effects to historic properties. These tasks may include the construction, transportation, placement, and subsequent removal of physical barriers (protective works); the recording of historic properties data before, during and after remedial work; and site restoration.

4.5.2.4 Treatment of Human Remains and Associated Objects. In the event of the inadvertent discovery of known or suspected human remains and/or associated objects, the Contractor shall stop work in the immediate area, protect the discovery from imminent harm, and immediately notify the Contracting Officer or COR. The Contractor shall use the services of personnel trained in the field identification of human remains to confirm the discovery. Work in the area shall be suspended until the Contractor receives written notification to proceed from the Contracting Officer or COR. Treatment of known or confirmed human remains will be determined by the Navy on a case-by-case basis, but may require the Contractor to perform site stabilization, data collection, or data recovery.

4.5.2.5 Historic Preservation Progress Reports. As specified in each CTO, the Contractor shall prepare and submit monthly, quarterly and annual progress reports on the historic preservation work performed.

4.6 EROSION AND SEDIMENT CONTROL MEASURES

4.6.1 Burn off

Burn off of the ground cover is not permitted.

4.6.2 Borrow Pit Areas

Manage and control borrow pit areas to prevent sediment from entering nearby streams or lakes. Restore areas disturbed by borrow and haul operations, including those outside the borrow pit. Restoration includes grading, replacement of topsoil, and the establishment of a permanent vegetative cover. Uniformly grade the bottom of the borrow pits to provide a flat bottom and drain by outfall ditches or other suitable means. Stockpile topsoil removed during the borrow pit operations, and use as part of restoring borrow pit areas.

4.6.3 Protection of Erodible Soils

Prepare erosion prevention plan for stakeholder approval, if applicable. Obtain a National Pollutant Discharge Elimination System (NPDES) permit if applicable, on behalf of the Government. Plan and conduct earthwork to minimize the duration of exposure of unprotected soils. Immediately protect the side slopes and back slopes upon completion of rough grading. Finish the earthwork brought to a final grade, as indicated or specified in CTOs.

4.6.4 Temporary Protection of Erodible Soils

The following methods will be used to prevent erosion and control sedimentation:

1. Mechanical Retardation and Control of Run-Off. Mechanically retard and control the rate of run-off from the site. This method includes building of diversion ditches, benches, and berms to retard and divert run-off to protected drainage courses.

2. Vegetation and Mulch. Provide temporary protection on sides and back slopes as soon as rough grading is completed or sufficient soil is exposed to require erosion protection. Protect slopes by accelerated growth of permanent vegetation, temporary vegetation, mulching, or netting. Stabilize slopes by hydroseeding; anchoring mulch in place; covering with anchored netting; sodding; or use of a combination of these and other methods necessary for effective erosion control.

4.7 CONTROL AND DISPOSAL OF SOLID AND SANITARY WASTES

Collect solid wastes and place in containers, which are regularly emptied at intervals to prevent the attraction of rodents or disease vectors. Do not prepare, cook, or dispose of food on the project site. Prevent contamination of the site or other areas when handling and disposing of wastes. Upon completion of work, leave the areas clean.

Control and dispose of waste appropriately. Dispose of rubbish, debris, garbage, and sewage according to procedures and requirements specified in the CTO. The Contractor is required to utilize only permitted disposal facilities. When requested, provide permit ID number, facility address, and POC.

4.8 CONTROL AND DISPOSAL OF HAZARDOUS MATERIAL AND WASTE

4.8.1 Hazardous Material and Hazardous Waste

Manage generated hazardous material, hazardous waste, and hazardous waste residues in accordance with Federal, State, and local regulations, as well as the applicable installation hazardous waste management plan.

4.8.2 Hazardous Waste Management Plan

For each CTO, estimate the types and quantities of hazardous waste or hazardous materials that will be generated from the work site that will require transportation and disposal off the project site. Indicate how and when these wastes will be packaged, stored on-site, transported, and disposed.

4.8.3 Hazardous Material and Waste Storage

Store hazardous materials and waste in containers in accordance with Federal, State, local, and applicable installation requirements. All hazardous material coming on-site must have an MSDS (OSHA 174 or equivalent).

4.8.4 Hazardous Waste Disposal

Transport and dispose of hazardous waste in accordance with Federal, State, local, and applicable installation requirements. Any off-site disposal shall be documented by provision of manifests and certificates of destruction.

4.8.5 Oil and Hazardous Material Spills

Take precautions to prevent oil and hazardous material spills. In the event of a spill, immediately notify the Contracting Officer or COR and the Installation Emergency Response Coordinator where applicable. Spill response shall be in accordance with Federal and applicable State regulations and the installation contingency plan.

4.8.6 Waste Manifests

Original waste manifests shall be forwarded to the Contracting Officer or COR.

4.8.7 Emergency and Hazardous Chemical Inventory Forms

The Contractor shall maintain an inventory of all hazardous materials brought to, or generated at, the project site. The purpose of the inventory is for the Navy to comply with the Emergency Planning and Community Right-to-Know Act (EPCRA). Hazardous materials include hazardous chemicals, toxic chemicals, hazardous substances, and extremely hazardous substances. The inventory form and frequency of submittal shall be as approved by the Contracting Officer or COR. The hazardous material inventory shall include the following information: material name (trade and chemical); material CAS number; material classification(s); reportable quantity, if applicable; threshold planning quantity, if applicable; maximum quantity/volume maintained on the project; average daily quantity used on the project; and total quantity used on the project.

4.8.8 Toxic Chemical Release Report

The Contractor shall promptly report any release of a potentially hazardous substance to the Contracting Officer or COR. The report shall include the following information: material name (trade and chemical); material CAS number; applicable reportable quantity; location of the release; media into which release occurred; description of cause of release; source of release; date/time/duration of release; response actions, including notifications made; any known or anticipated health risks associated with the release and medical recommendations; and any known or anticipated impacts to public health or the environment and recommendations.

4.9 DUST CONTROL

Keep dust down at all times, including during non-working periods. Sprinkle or treat the soil at the site, haul roads, and other areas disturbed by operations with dust suppressants. Dry power brooming shall not be permitted. Instead, use vacuuming, wet mopping, wet sweeping, or wet power brooming. Air blowing shall be permitted only for cleaning non-particulate debris such as steel reinforcing bars. Only wet cutting shall be permitted for cutting concrete blocks, concrete, and bituminous concrete. Do not unnecessarily shake bags of cement, concrete mortar, or plaster.

4.10 NOISE

Make the maximum use of low-noise emission products as certified by the Environmental Protection Agency (EPA). Blasting or using explosives shall not be permitted without written permission from the Contracting Officer or COR, and then only during designated times specified in the CTO.

4.11 ASBESTOS

No asbestos-containing materials shall be used by the Contractor in performing the services required on the CTOs issued under this contract. For the purposes of this requirement, asbestos is defined to include any of the following six fibrous mineral silicates of commercial importance: chrysotile, amosite, crocidolite, tremolite, anthophyllite, and actinolite. The term "materials containing hazardous" is defined as including all materials that either are known or can logically be expected to require the use of asbestos.

4.12 PERMITS

When applicable, Contractor will obtain administrative and substantive permits, licenses, and certificates required by CTOs.

PART 5.0 SAFETY AND HEALTH

5.1 DESCRIPTION

This part describes in general terms the minimum Contractor safety and health requirements associated with the contract. The Contractor shall prepare, implement, and enforce for each site described in CTOs an Accident Prevention Plan/ Site Safety and Health Plan (APP/SSHP). The Contractor shall ensure that safety and health provisions on these plans are also followed by their subcontractors, suppliers, and support personnel.

5.2 REGULATIONS

The Contractor's Safety and Health Program and APP/SSHPs shall comply with and reflect appropriate requirements of the OSHA, specifically 29 CFR 1910 (especially 29 CFR 1910.120) and 29 CFR 1926; the USACE "Safety and Health Requirements Manual," EM-385-1-1, November 2014 or latest edition; United Facilities Guide Specifications (UFGS), November 2015 or latest edition; and any other relevant Federal, State, and local statutes and regulations.

5.3 IMPLEMENTATION

5.3.1 Corporate Safety and Health Plan

Within 30 days after contract award, the Contractor will be tasked to submit a current Corporate Safety and Health Program (CSHP) to the Contracting Officer for review by the Government and for use by the Contractor in the preparation of the APP, SSHP, and other safety and health plans required by the contract. The Contractor shall make any additions or revisions required as a result of this review. Costs associated with the plan will NOT be allowed as a direct charge under the contract - See Section H3.

5.3.2 Site Accident Prevention Plan (APP)/SHSP

For each CTO, prepare a written APP/SHSP. The APP shall interface with the CSHP. An APP with appropriate appendices [e.g., SSHP, for hazardous waste operations, Activity Hazard Analysis (AHA), etc.] shall be developed before the initiation of work at the job site, describing the specific work and hazards, and implementing in detail the pertinent requirements as required by the USACE EM 385-1-1 manual. If by the nature of the work an item is not applicable, the Contractor will so state and provide a justification for why that element/sub-element is not applicable. Changes and modifications to the APP are permitted and shall be made in writing with the knowledge and concurrence of the Contractor's Health and Safety Manager, and accepted by the Government's Designated Authority's (GDA).

The preparer of the APP shall be proficient on the USACE EM 385-1-1, and skilled in applying relevant and appropriate requirements on the safety and health aspects of the project. Contractor personnel qualified to prepare, approve, and concur with the APP are listed in EM 385-1-1 Appendix A.

At the project site, the SSHO shall be fully responsible to ensure that all mishaps/incidents and near misses are properly notified. In the event an accident classified as "significant" or "serious" occurs, the Contractor shall notify

to the Contracting Officer, Remedial Program Manager (RPM)/PM, and local Resident Officer In Charge of Construction/Facilities Engineering and Acquisition Division (ROICC/FEAD) office, within 4 hours of the mishap. The Contractor shall also submit the Contractor Incident Reporting System (CIRS) in accordance with the SSHP and Government reporting requirements. For accidents not classified as "significant" or "serious", the Contractor shall notify the to the Contracting Officer, RPM/PM, and local Resident Officer In Charge of Construction/Facilities Engineering and Acquisition Division (ROICC/FEAD) office within 24 hours. An accident investigation shall be conducted for recordable injuries and illnesses, for Medical Treatment defined in paragraph DEFINITIONS, UFGS-01 35 26, property damages, and accidents resulting in at least \$20,000 in damages and near misses as defined in the USACE EM 385-1-1, to establish the root cause(s) of the accident. The NAVFAC Contractor Incident Reporting System (CIRS) form shall be completed and submitted to the FEAD/ROICC, and copies sent to the Contracting Officer and RPM/PM. Contractor shall preserve the conditions and evidence on the accident site until the Government investigation team arrives on-site and the Government investigation is conducted. Site shall be secured by the Contractor until the Government investigation is formally completed and the site restored to its proper order. A "Follow-up" or "Final" CIRS shall be submitted within five (5) days of the accident to the GDA.

Additional responsibilities of the SSHO and other Contractor personnel are spelled out in the UFGS-01 35 26 and have to be adhered to on the project site.

5.3.3 SSHP

The Contractor when required shall prepare a written SSHP and shall cover all the elements in project in specific detail as described in Section 33 of the USACE EM 385-1-1 manual. Changes and modifications to the SSHP are permitted and shall be made in writing with the knowledge and concurrence of the Contractor's Health and Safety Manager and accepted by the GDA. The SSHP shall be prepared as a standalone document and include the AHA as an attachment APP/SSHP. Once in the final form and accepted by the GDA, the APP and SSHP, remaining as standalone documents, shall be combined into one binder and shall be titled APP/SSHP. A copy of these plans are required to be on the job site and made available for use by all Contractor and GDA personnel.

5.3.4 Acceptance of APP/SSHP

Acceptance of the Contractor's APP/SSHP is required prior to the start of field activities on each CTO. Changes are subject to approval by the Government. Acceptance is conditional and will be predicated on satisfactory performance during field activities. No change in the approved plan shall be implemented without written concurrence by the Contracting Officer or designated representative. The Government reserves the right to require the Contractor to make changes in their APP/SSHP and operations as necessary during the course of a project to ensure the health and safety of persons and Government properties on or near the site.

5.4 PROTECTIVE EQUIPMENT FOR GOVERNMENT VISITORS

The Contractor shall maintain on-site protective equipment as specified in each CTO for use by Government personnel.

5.5 QUARTERLY ACCIDENT REPORTS

The contractor shall submit a Contractor Incident Summary Log (CISL) quarterly with the information identified herein.

- a) Name and initials of the injured. If property damage, state property damage.
- b) Date when the injury or property damage occurred.
- c) Contractor name and contract number. The Contractor name is the Contractor who the injured worked for or caused the property damage. Prime Contractors name not required unless their employee was the individual involved.
- d) Classify the injury as either Lost Time/Workday, No Lost Time, Other OSHA Recordable or Other. In the instance where property damage is involved classify as Property Damage and specify estimated value of damage.
- e) Specify whether the Prime Contractor or Subcontractor caused the injury or property damage.
- f) Identifying whether the Prime Contractor meets the requirements of being classified as an 8(a) or Other Small Business Contractor. SBA 8(a) classification only applies to PRIME Contractors.
- g) Identify whether the sub-Contractor was responsible for the injury/property damage and meets the SBAs requirements to be classified as an 8(a) or Small business Contractor.
- h) Identify the Prime Contractor, if not previously identified.

A CISL form shall be provided at the preconstruction or coordination and mutual understanding meeting.

5.6 HEALTH AND SAFETY MANAGER

The Contractor shall have a Health and Safety Manager to implement and oversee the Health and Safety Program and to develop, implement, and sign APP/SSHPS. Any changes to the established Health and Safety Program or APP/SSHPS shall be at the direction and approval of the Health and Safety Manager, with concurrence of the Contracting Officer or designated representative. The Health and Safety Manager will not necessarily be required to be on-site during remedial activities, but shall be readily available for consultation, when required by the contract or the Contracting Officer or designated representative to discuss the APP/SHSP, site conditions, work practices, or unsafe/unhealthful conditions that expose personnel and/or members of the public to potential injury or illness. Refer to section 1.3.3 for minimum qualifications for the Health and Safety Manager.

5.7 SITE SAFETY AND HEALTH OFFICER (SSHO)

In addition, the Contractor shall use a trained, experienced SSHO to assist and represent the Health and Safety Manager in continued implementation and enforcement of the approved APP/SSHPS. A SSHO shall be assigned to each site and shall report to the Health and Safety Manager in matters pertaining to site health and safety. The SSHO shall have the on-site responsibility and authority to modify and stop work, or remove personnel from the site if working conditions change that may affect on-site and off-site health and safety. The SSHO shall be the main contact for any on-site emergency situation. Except in an emergency, the SSHO may modify the approved APP/SSHPS only after consultation and concurrence of the Health and Safety Manager and the Contracting Officer or designated representative. Refer to section 1.3.5 for minimum education and experience requirements for the SSHO.

PART 6.0 QUALITY MANAGEMENT AND SAMPLING AND ANALYSIS PLAN

6.1 SUMMARY

This part establishes minimum requirements for quality management that shall apply to all CTOs. The Contractor shall have a documented quality system (referred to as the Quality Management Plan or QMP) that conforms to the Uniform Federal Policy (UFP) for implementing Quality Systems (QS) – 2005 (EPA-505-F-03-001) and ANSI/ASQ E4-2004: Quality Systems for Environmental Data and Technology Programs. The QMP Manual shall be in accordance with a corporate-quality commitment (however named) which describes the Contractor's Executive Management assurance of implementation and maintenance of a QS for the Contract. The Contractor shall require subcontractors to implement a compliant QS, or shall implement oversight to meet the QS requirements. More stringent requirements may be included in specific CTOs if the statement of work indicates they are needed; it must meet the requirements in the Uniform Federal Policy for QA Project Plans, EPA March 2005.

6.1.1 Project Chemist

A project chemist shall be assigned to each project that includes environmental sampling or testing. As specified in the *DoD Policy and Guidelines for Acquisitions Involving Environmental Sampling or Testing* (November 2007), the Contractor Project Chemist provides coordination and QA surveillance of laboratory services, and shall:

- a) Define project-specific Data Quality Objectives (DQO's) that will meet the project-specific performance standards.
- b) Determine appropriateness of sampling and analytical methods and laboratory quality systems.
- c) Oversee preparation of sampling and testing portions of the SAP.
- d) Verify laboratory qualifications and make recommendations for laboratory selection.
- e) Coordinate with the laboratory during contract execution.
- f) Notify the Project QC Manager and Senior Scientist of any problems or nonconformance issues related to environmental sampling and testing.
- g) Perform data review, per contract specifications.
- h) Implement and monitor corrective actions related to environmental sampling and testing, as needed.

Refer to Section 1.3.5 for Project Chemist qualifications.

6.2 SUBMITTALS

Provide the following submittals to the Contracting Officer or the COR:

6.2.1 Quality Management Plan

After Basic Contract award, the Contractor will be tasked to submit a Quality Management Plan (QMP) to the Contracting Officer and the Quality Assurance Manager (QAM). This document will serve as the platform for streamlined CTO-specific plans and procedures. Guidance on the content of the QMP can be found in the following references: 1. EPA Requirements for Quality Management Plans, EPA/240/B-01/002, March 2001; 2. Uniform Federal Policy for Implementing QSs (UFP-QS) Final Version 2 March 2005 (EPA-505-F-03-001); 3. ANSI/ASQ E4-2014 or latest version: QSs for Environmental Data and Technology Programs; and 4. NAVFAC Pacific Quality Management Plan, September 2010 or latest version.

The QS that the Contractor is employing for this contract award is documented at an organizational level in a QMP. The organizational QMP will detail how the QS is to be implemented throughout the organization. A QMP documents how an organization structures its QS and describes its quality policies and procedures, criteria for and areas of application, and roles, responsibilities, and authorities. It also describes an organization's policies and procedures for implementing and assessing the effectiveness of the QS. It will include information by which the organization will manage, plan, implement, assess, conduct corrective action upon, and continually improve the products, services, and activities involved in environmental data collection or use in environmental technology management. The QMP should generally address 10 elements in the UFP-QS document in order to conform to ANSI/ASQC E4:

1. Management and Organization
2. QS and Description
3. Personnel Qualification and Training
4. Procurement of Products, Services, and Activities
5. Documents and Records
6. Computer Hardware and Software
7. Planning
8. Management of Work Process Implementation, including implementation of the Three Phases of Control: Preparatory, Initial and Follow up (forming the backbone of the Contractor's QC System). Through the Three Phases of Control, the Contractor establishes the correct quality at the beginning of each feature of work and monitors the work through completion to ensure that quality requirements are met.
9. Assessment and Response
10. Quality Improvement

The QMP must be sufficiently inclusive, explicit, and readable to enable both management and staff to understand the priority upon which management places on QA and QC activities, the established quality policies and procedures, and their respective quality-related roles and responsibilities. The QMP must be written so that an assessment of the suitability and effectiveness of the organization's QS can be accomplished. Such assessments will enable management to determine if the QS meets the needs of the organization. The QMP should be focused on the processes and procedures used to plan, implement, and assess the programs to which it is applied, and must include definitions of appropriate authorities and responsibilities for managers and staff.

6.2.2 CTO-specific Sampling and Analysis Plans (SAPs)

CTO-specific SAPs, also referred to as UFP-Quality Assurance Plans (QAPPs), shall contain all of the required elements of Field Sampling Plans (FSPs) and QAPPs and shall be prepared and submitted in accordance with NAVFAC and EPA guidance to the designated NAVFAC authority for approval prior to regulatory review and field implementation. Sampling and testing requirements shall be developed and documented in the SAP in accordance with the *Uniform Federal Policy for QA Project Plans* (March 2005 or latest version), the CTO PWS, and site-specific data quality objectives. It includes or references Standard Operating Procedures (SOPs) used to perform work. Submitted documents shall recognize the responsibility of Contractor to carry out its QC obligations and contain measurable inspection and acceptance criteria corresponding to the performance standards contained in the CTO. The Program QA Manager and Project Manager shall review and approve the SAPs prior to submittal to the NAVFAC QAM. The SAPs shall be submitted to the NAVFAC QAM for review and approval prior to regulatory review and field implementation. The Government will review the submitted document and provide comments,

indicating acceptance or rejection. As required, the Contractor shall revise the document to address all comments and shall submit the revised document to the Government for acceptance. Deviations from this protocol shall be approved by Navy personnel on a project specific basis. Written approval must be obtained for any deviations from the above requirements. All project-specific SAPs shall be prepared utilizing the most recent NAVFAC Pacific's SAP template. This template can be obtained by contacting the NAVFAC QAM.

6.3 QC MANAGEMENT

6.3.1 Program QA Manager

The contractor shall provide a QA manager to manage and implement the QMP and contract-wide QA/QC program. Any changes to the QMP shall be at the direction and approval of the QA manager with concurrence of the contracting officer or designated representative. Refer to section 1.3.3 for Program QA Manager qualifications.

6.3.2 Project QC Manager

Provide Project QC Managers to enforce the approved Project-specific QC Plans. Any changes to the Project QC Plans shall be at the direction and approval of the Project QC Manager, with concurrence of the Program QA Manager, and Contracting Officer or designated representative. The Contractor shall utilize trained, experienced Project QC Managers for implementation and enforcement of the approved Project QC Plans. The Project QC Manager for each CTO shall manage the site-specific QC requirements in accordance with the Project QC Plan. The Project QC Manager is required to attend the coordination and mutual understanding meeting, conduct QC meetings, perform the three phases of control, perform submittal review, perform submittal approval except for submittals designated for Contracting Officer or designated representative approval, ensure testing is performed, and prepare QC certifications and documentation required in this contract. Refer to section 1.3.5 for Project QC Manager qualifications.

6.3.3 Additional Duties

In addition to managing and implementing the site-specific QC program, the project QC manager may be assigned duties on a part-time basis and, if qualified, may also serve as the Site Safety and Health Officer (SSHO). When approved in advance by the contracting officer or designated representative, the Project Superintendent/Construction Site Manager may act in a dual role as the project QC manager and the Project Superintendent/Construction Site Manager. In such case, that person will be held responsible for the quality of work on the job and is subject to removal by the contracting officer or designated representative for non-compliance with quality requirements specified in the contract. The Project Superintendent/Construction Site Manager in this context shall mean the individual with the responsibility for the overall management of the project including quality and production.

6.4 QC PLANS

6.4.1 Program Level

6.5.1.1 The QMP establishes minimum requirements for QC that shall apply to all CTOs. The Contractor shall require subcontractors to implement a compliant QS, or shall implement oversight to meet the QS requirements.

6.4.2 Project (CTO) Level

6.5.2.1 Project QC Plan. For each CTO, submit for approval by the Contracting Officer or designated representative, a Project QC Plan that covers both on-site and off-site work and include the following:

- a) Name and qualifications, in resume format, for the Project QC Manager.
- b) A letter signed by an officer of the firm appointing the Project QC Manager and stating that the Project QC Manager is responsible for implementing the QC program as described in this contract. Include in the letter the Project QC Manager's authority to direct the correction of non-conforming work.
- c) Procedures for reviewing, approving, and managing submittals. Provide the names of persons authorized to review and certify submittals prior to approval. Provide the initial submittal of the submittal register as specified in Part 7, "Submittals," and as required by the CTO.

- d) Construction testing requirements as identified in Section 6.9.2.
- e) Environmental sampling and testing requirements shall be developed and documented in a Sampling and Analysis Plan, which is submitted as an appendix to the Work Plan. The Sampling and Analysis Plan shall be prepared in accordance with the *Uniform Federal Policy for QA Project Plans* (Mar 2005). Refer to Section 6.2.2 for additional information.
- f) A testing plan and log that includes the tests required, referenced by the specification paragraph number requiring the test, the frequency, and the person responsible for each test.
- g) Procedures to identify, record, track and complete rework items.
- h) Documentation procedures, including proposed report formats.
- i) A listing of outside organizations such as testing laboratories, architects, and consulting engineers that will be employed by the Contractor and a description of the services these firms will provide.

6.4.3 Preliminary Work Authorized Prior to Approval

No work is authorized to proceed prior to the approval of the SAPs and the Project QC Plan, unless specifically authorized by the Contracting Officer or COR. The Contracting Officer or the NAVFAC QAM reserves the right to require changes to project plans to ensure the quality of work specified in the contract and CTO.

6.4.4 Approval

Approval of the Project QC Plan is required prior to the start of work. The Contracting Officer or designated representative reserves the right to require changes in the Project QC Plan and operations as necessary to ensure the specified quality of work.

6.5 CONTRACTOR'S QUALITY SYSTEM

The contractor shall have an effective quality system which demonstrates the application of and conformance to the Uniform Federal Policy for UFP-QAPP. Demonstrated functioning of the contractor's quality system shall be a continuing part of all contractual requirements. Records, documents, logs, data, and/or reports necessary to provide objective evidence of the effectiveness of the quality system shall be made available to the Government upon request.

6.6 STANDARD OPERATING PROCEDURES

The contractor shall establish and utilize SOPs to perform work as much as practicable in order to ensure uniformity and quality of work. SOPs shall include, but not be limited to, procedures to ensure: utilization of proper equipment in current calibration, utilization of proper team size and constitution, incorporation of operational risk management to engineer away hazards as much as possible, availability of all materials and tools, utilization of proper personal protective equipment, and establishment of proper communications. The contractor shall establish a procedure for making changes to SOPs. Project-specific changes to established SOPs shall be documented and approved by the Project Task Order Manager. Pen and ink changes in the field shall not be allowed.

6.7 GOVERNMENT QA/QUALITY ASSESSMENT OPERATIONS

The Government will perform QA and/or quality assessment of the contractor's work utilizing MILSTD 1916 and other guidance documents. The contractor shall provide support as required by the contracting officer or designated representative for the government to execute QA and quality assessments of the contractor's quality system and QC operations.

6.8 COORDINATION AND MUTUAL UNDERSTANDING MEETING

Prior to the start of site work, the Project QC Manager shall meet with the Contracting Officer or designated

representative to discuss the QC program required by this contract. The purpose of this meeting is to develop a mutual understanding of the QC details, including forms to be used; administration of on-site and off-site work; and coordination of the Contractor's management, production, and the Project QC Manager's duties with the Contracting Officer or designated representative. As a minimum, the Contractor's personnel required to attend shall include the Project Manager, Project Superintendent, and Project QC Manager. Minutes of the meeting shall be prepared by the Project QC Manager and signed by both the Contractor and the Contracting Officer or designated representative. This meeting may be held in conjunction with other meetings (i.e. preconstruction meeting).

6.9 QC MEETINGS

After the start of site work, the Contractor shall conduct QC meetings as required by the Contracting Officer or COR at the work site, with the project superintendent and the foreman responsible for the upcoming work. Meetings conducted shall be recorded in the contractor QC report. The Contracting Officer or designated representative may attend any of these meetings. These meetings may be held in conjunction with other meetings (i.e. tool box safety meetings). QC Meeting attendance, agenda, and frequency and procedures for distributing meeting minutes will be established by the Contracting Officer, or COR, after CTO award. As a minimum, the following shall be accomplished at each meeting:

6.9.1 Minimal Meeting Requirements

- a) Review the minutes of the previous meeting
- b) Review the schedule
 - (1) Work or testing accomplished since last meeting
 - (2) Rework items identified since last meeting
 - (3) Rework items completed since last meeting
- c) Review the status of submittals
 - (1) Submittals reviewed and approved since last meeting
 - (2) Submittals required in the near future
- d) Review the work to be accomplished in the next two (2) weeks and documentation required. Schedule the three phases of control and testing
 - (1) Establish completion dates for rework items
 - (2) Preparatory phases required
 - (3) Initial phases required
 - (4) Follow-up phases required
 - (5) Testing required
 - (6) Status of off-site work or testing
 - (7) Documentation required
- e) Resolve QC and production problems
- f) Address items that may require revising the Project QC Plan.
 - (1) Changes in procedures

6.10 THREE PHASES OF CONTROL

The Contractor shall perform the three phases of control for each definable feature of construction work described in the NAVFAC Construction Quality Management Program, NAVFAC P-445/ NAVFAC 0525-LP-037- 7202, June 2000. Guidelines for performing and documenting the preparatory, initial, and follow-up inspections are contained in the Contractor's QMP. Note: these guidelines are based on the Department of the Navy (DON), Naval Facilities Engineering Command Guide Specification, NFGS-01450J, Quality Control. The Contractor shall notify the Contracting Officer, or COR, prior to the start of the preparatory and initial phases. The notification procedures and lead-time will be established for each CTO by the Contracting Officer or COR.

Definable features of work shall be specified in the Project QC Plan approved by the Contracting Officer or designated representative. The three phases of control shall adequately cover appropriate on-site and off-site work and shall include the following:

6.10.1 Preparatory Phase

Notify the Contracting Officer or designated representative at least 2 working days in advance of each preparatory phase. Conduct the preparatory phase with the superintendent and the foreman responsible for the definable feature of work. Document the results of the preparatory phase actions in the Contractor Daily QC Report. Perform the following prior to beginning work on each definable feature of work:

- a) Review each paragraph of the applicable specification sections.
- b) Review the contract drawings.
- c) Verify that appropriate shop drawings and submittals for materials and equipment have been submitted and approved. Verify receipt of approved factory test results, when required.
- d) Review the testing plan and ensure that provisions have been made to provide the required QC testing.
- e) Examine the work area to ensure that the required preliminary work has been completed.
- f) Examine the required materials and equipment, and sample work to ensure that materials and equipment are on hand and conform to the approved shop drawings and submitted data.
- g) Review the safety plan and appropriate activity hazard analysis to ensure that applicable safety requirements are met, and that required material safety data sheets (MSDS) are submitted.
- h) Discuss construction methods.

6.10.2 Initial Phase

Notify the Contracting Officer or designated representative when crews are ready to start work on a definable feature of work. Observe the initial segment of the definable feature of work to ensure that the work complies with contract requirements. Document the results of the initial phase in the Contractor Daily QC Report. Repeat the initial phase when acceptable levels of specified quality are not being met. Perform the following for each definable feature of work:

- a) Establish the quality of workmanship required.
- b) Resolve conflicts.
- c) Review the safety plan and the appropriate activity hazard analysis to ensure that applicable safety requirements are met.
- d) Ensure that testing is performed.

6.10.3 Follow-Up Phase

Perform the following for on-going work daily, or more frequently as necessary until the completion of each definable feature of work and document in the Contractor Daily QC Report:

- a) Ensure the work is in compliance with contract requirements.
- b) Maintain the quality of workmanship required.

- c) Ensure that testing is performed.
- d) Ensure that rework items are being corrected.

6.10.4 Notification of Three Phases of Control for Off-Site Work

Notify the Contracting Officer or designated representative at least 2 weeks prior to the start of the preparatory and initial phases.

6.11 LABORATORIES

Contractor will provide an independent testing laboratory qualified to perform sampling and tests required by this contract. Laboratories performing work in connection with construction testing shall be certified to the methods specified by each CTO.

6.11.1 Environmental

Laboratories performing Environmental Restoration (ER) or compliance work funded by Environmental Restoration, Navy (ER,N) or Base Realignment and Closure (BRAC) must have current accreditation under the DoD Environmental Laboratory Accreditation Program (DoD ELAP) for the specific lab tests and analytes for each sample matrix. Laboratories shall also be certified by the State (if available) in which the project/site is located. On-site chemical analysis by mobile laboratories that are generating definitive data for an Environmental Restoration project must be performed by mobile laboratories certified by the State (if available) in which the project/site is located. Unless otherwise specified, analysis shall only be performed in accordance with the approved SAPs. Any deviation from the above requirements must be approved in writing by the appointed NAVFAC QAM.

6.11.2 Non-Environmental

Except as stated otherwise in the specification sections, perform construction sampling and testing required under this contract. Construction testing includes soil compaction, materials evaluation, concrete strength testing, etc. Provide an independent testing laboratory qualified to perform sampling and testing required by the contract. Acceptable accreditation programs are the National Institute of Standards and Technology (NIST), National Voluntary Laboratory Accreditation Program (NVLAP), the American Association of State Highway and Transportation Officials (AASHTO) Program, and the American Association for Laboratory Accreditation (AALA) Program. Furnish to the Contracting Officer or COR a copy of the certificate of accreditation, scope of accreditation, and latest directory of the accrediting organization for accredited laboratories. The scope of the laboratory's accreditation shall include the test methods required by the contract. Any deviation from the above requirements must be approved in writing by the Contracting Officer or designated representative and documented in the project Work Plan. Accreditation requirements for laboratories performing work funded by other DoD programs will be specified in the CTO PWS and considered on a case by case basis. The Contracting Officer or NAVFAC QAM must approve any deviation from the above requirements in writing.

6.11.3 Geotechnical Testing Laboratories

Geotechnical testing shall be conducted in accordance with laboratory requirements specified in ASTM D-3740. The laboratory shall have experience performing physical testing of materials potentially contaminated with HTRW or MC. The types of laboratory services anticipated under this contract include, but are not limited to, mechanical analysis (sieve analysis), hydrometer analysis, Atterberg Limits, soils classifications, permeability, standard and modified proctor tests and relative density tests. Any deviation from the above requirements must be approved in writing by the Contracting Officer or designated representative.

6.11.4 Inspection of Testing Laboratories

Prior to approval of non-accredited laboratories, the proposed testing laboratory facilities and records may be subject to inspection by the NAVFAC QAM or COR.

6.11.5 Capability Check

The NAVFAC QAM or COR retains the right to check laboratory equipment in the proposed laboratory and the laboratory technician's testing procedures, techniques, and other items pertinent to testing for compliance with the standards set forth in this contract.

6.11.6 Analytical Laboratory Requirements

The Contractor shall utilize a qualified, independent analytical laboratory to perform analytical testing required by CTOs issued under this contract.

a) **Laboratory Quality System.** As required by DoD Policy and Guidelines for Acquisitions Involving Environmental Sampling or Testing Services (November 2007 or latest version), laboratories performing analyses in support of this contract must have an established and documented laboratory quality system that conforms to ISO/IEC 17025 as implemented by the *DoD Quality Systems Manual for Environmental Laboratories* (QSM) (December 2023 or latest version). The laboratory's authorized contract representative and the laboratory QA Officer (however named) must declare laboratory conformance to the DoD QSM using the forms in Reference. The declaration shall be included in the project-specific SAP as an Appendix.

b) **Laboratory Accreditation.** Laboratories must possess any required state or host nation certification and/or be accredited for each applicable test method, by a nationally recognized laboratory accreditation body (e.g. NELAP), compliant with ISO/IEC 17011:2004. All laboratories must demonstrate the ability to generate acceptable results from the analysis of proficiency-testing (PT) sample(s), subject to availability, using each applicable method in the specified matrix. Upon request, laboratories must make available to the Government, the results of all PT samples analyzed by the laboratory during the period of performance. The Contractor shall review and ensure the laboratory makes appropriate documentation available to the Government Chemist/QAM. All laboratories are subject to on-site assessments by authorized representatives of the Government.

c) **Changes to Laboratory Accreditation Status.** The Contractor shall ensure the Government is notified in writing of any change in laboratory certification or accreditation status within 30 calendar days of the change. This written notification requirement applies, but is not limited, to suspension or revocation of certification or accreditation.

d) **Analytical Methods.** Unless otherwise specified in the CTO PWS, chemical analyses shall be performed using current EPA procedures and in conformance with *DoD Quality Systems Manual for Environmental Laboratories* (December 2023 or latest version) and EPA and state agency requirements.

6.11.7 Analytical Results

Cite applicable contract requirements or test procedures used. Provide actual results and include a statement that the item tested or analyzed conforms or fails to conform to specified requirements. Conspicuously stamp the cover sheet for each report in large red letters "CONFORMS" or "DOES NOT CONFORM" to the specification requirements, whichever is applicable. Test results shall be signed by a testing laboratory representative authorized to sign certified test reports. Furnish the signed reports, certifications, and other documentation to the Contracting Officer or designated representative. Furnish a summary report of field tests at the end of each month. Attach a copy of the summary report to the last Contractor Daily QC Report of each month. Additional deliverable requirements may be defined in the PWS.

6.11.8 Additional Requirements for ER,N and BRAC Funded Task Orders

- a) **Project Procedures Manual, Standard Operating Procedures (SOPs) or Work Instructions.** SOPs for project planning, sampling, data validation, and QC are provided in references (d), (bn), (bo) or latest versions. These procedures shall be utilized for all ER,N and BRAC funded projects performed in the NAVFAC Pacific Area of Responsibility, which includes NAVFAC Hawaii, NAVFAC Marianas, NAVFAC Southwest and NAVFAC Northwest. Any deviations from the procedures shall be approved by the Contractor CTO Manager and Senior Scientist, CTO COR,

RPM, and respective QAM or Quality Assurance Officer (QAO) for NAVFAC Pacific/Southwest/Northwest and documented in the project Sampling and Analysis Plan and Report. Laboratory reporting and data validation protocols shall follow both references (d), (bn), (bo) and the latest version of references (t) and (bp), where the two differ, references (t) and (bp) shall take precedence.

b) Quality Assurance Program Plans for the Pearl Harbor Naval Complex and Naval Computer and NCTAMS PAC NPL sites. All Pearl Harbor Naval Complex NPL and NCTAMS PAC NPL projects must be performed in accordance with reference (u) or the latest version. This Quality Assurance Program Plan is not a substitute for a project-specific SAP.

6.12 QC CERTIFICATIONS

6.12.1 Contractor Daily QC Report Certification

Each Contractor Daily QC Report shall contain the following statement signed by the Project QC Manager: “On behalf of the Contractor, I certify that this report is complete and correct, and equipment and material used and work performed during this reporting period is in compliance with the contract drawings and specifications to the best of my knowledge, except as noted in this report.”

6.12.2 Invoice Certification

Furnish a certificate to the Contracting Officer or COR with each payment request, signed by the Project QC Manager, attesting that as-built drawings are current and attesting that the work for which payment is requested, including stored material, is in compliance with contract requirements.

6.12.3 Completion Certification

Upon completion of work under a CTO, the Project QC Manager shall furnish a certificate to the Contracting Officer or COR attesting that “the work has been completed, inspected, and tested, and is in compliance with the contract.”

6.13 QC DOCUMENTATION

Maintain current and complete records of on-site and off-site QC program operations and activities. For each CTO, deliver the following to the Contracting Officer and/or COR, and other parties as identified through regional distribution listings

6.13.1 Contractor Daily Production Report

Production Reports are required for each day that work is performed and shall be attached to the Contractor Daily QC Report prepared for the same day. Submit original and one copy by 10 A.M. the next working day after each day that work was performed. Account for each calendar day throughout the life of the contract. The reporting of work shall be identified by terminology consistent with the construction schedule. Contractor Production Reports are to be prepared, signed, and dated by the superintendent and shall contain the following information:

- a) Date of report, report number, name of Contractor, contract number, title and location of contract, and superintendent present.
- b) Weather conditions in the morning and in the afternoon including maximum and minimum temperatures.
- c) A list of Contractor and subcontractor personnel on the work site, their trades, employer, work location, description of work performed, and hours worked.
- d) A list of job safety actions taken and safety inspections conducted. Indicate that safety requirements have been met including the results on the following:
 - (1) Was a job safety meeting held? (If YES, attach a copy of the meeting minutes)
 - (2) Were there any lost time accidents? (If YES, attach a copy of the completed OSHA report)

- (3) Was trenching, scaffold, high-voltage electrical, or high work done? (If, YES, attach a statement or checklist showing inspection performed)?
- (4) Was hazardous material or waste released into the environment? (If YES, attach description of incident and proposed action).
- e) A list of equipment and material received each day that is incorporated into the job.
- f) A list of construction and plant equipment on the work site including the number of hours used, idle and down for repair.
- g) Include a "Remarks" section in this report which shall contain pertinent information including directions received, problems encountered during construction, work progress and delays, conflicts or errors in the drawings or specifications, field changes, safety hazards encountered, instructions given and corrective actions taken, delays encountered, and a record of visitors to the work site.

6.13.2 Contractor Daily QC Report

Reports are required for each day that work is performed, and for every 7 consecutive calendar days of no-work on the last day of that no-work period. Submit original and one copy by 10 A.M. the next working day after each day that work was performed. Reports must account for each calendar day throughout the life of the contract. The reporting of work shall be identified by terminology consistent with the schedule. Contractor Daily QC Reports are to be prepared, signed, and dated by the Project QC Manager and shall contain the following information:

- a) Identify the control phase and the definable feature of work.
- b) Results of the preparatory phase meetings held, including the location of the definable feature of work and a list of personnel present at the meeting. Verify in the report that for this definable feature of work, the drawings and specifications have been reviewed, submittals have been approved, materials comply with approved submittals, materials are stored properly, preliminary work was done correctly, the testing plan has been reviewed, and work methods and schedule have been discussed.
- c) Results of the initial phase meetings held, including the location of the definable feature of work and a list of personnel present at the meeting. Verify in the report that for this definable feature of work the preliminary work was done correctly, samples have been prepared and approved, the workmanship is satisfactory, test results are acceptable, work is in compliance with the contract, and the required testing has been performed, and include a list of who performed the tests.
- d) Results of the follow-up phase inspections held, including the location of the definable feature of work. Verify in the report for this definable feature of work that the work complies with the contract as approved in the initial phase, and that required testing has been performed, and include a list of who performed the tests.
- e) Results of the three phases of control for off-site work, if applicable, including actions taken.
- f) List rework items identified, but not corrected by close of business.
- g) As rework items are corrected, provide a revised rework items list along with the corrective action taken. (NOTE: ALL REWORK WILL BE NON-FEE BEARING)
- h) Include a "Remarks" section in this report which shall contain pertinent information including directions received, QC problem areas, deviations from the Project QC Plan, construction deficiencies encountered, QC meetings held, acknowledgment that as-built drawings have been updated, corrective direction given by the Project QC Manager, and corrective action taken by the Contractor.
- i) Contractor QC Report Certification.

6.13.3 Testing Plan and Log

As tests are performed, the Project QC Manager shall record on the testing plan and log the date the test was conducted, the date the test results were forwarded to the Contracting Officer or designated representative, and any remarks and acknowledgment that an accredited or Contracting Officer approved testing laboratory was used. Attach a copy of the updated testing plan and log to the last daily Contractor Daily QC Report of each month.

6.13.4 Monthly Summary Report of Field Tests

Submit original and one copy attached to the Contractor Daily QC report at the end of each month.

6.13.5 QC Meeting Minutes

Submit one copy within two calendar days of the meeting.

6.13.6 Rework Items List

The Project QC Manager shall maintain a list of work that does not comply with the contract, identifying what items need to be reworked, the date the item's unsuitability was originally discovered, and the date the item was corrected. There is no requirement to report a rework item that is corrected the same day it is discovered. Attach a copy of the Contractor rework items list to the last Contractor Daily QC Report of each month. The Contractor shall be responsible for including on this list items needing rework, including those identified by the Contracting Officer or COR.

6.13.7 As-Built Records

The Project QC Manager is required to review the as-built records to ensure that as-built records are kept current on a daily basis and marked to show deviations that have been made from the contract drawings. The Project QC Manager shall initial each deviation or revision. Upon completion of work, the Project QC Manager shall submit a certificate attesting to the accuracy of the as-built records prior to submission to the Contracting Officer or COR.

PART 7.0 SUBMITTALS (GENERAL STANDARDS)

This part establishes the requirements for submittal by the Contractor for review and approval. Submittals for CTOs shall be prepared and processed using this part, including those requirements specified in other parts of Section C as being submitted in a CTO.

7.1 TYPES OF SUBMITTALS

Submittals include shop drawings, product data, samples, administrative and closeout submittals, and additional technical support data presented for review and approval.

7.1.1 Definitions

The following submittal descriptions are classified into four groupings of submittals as designated in Section 7.7 entitled "Schedule of Submittal Descriptions (SD)."

a) Shop Drawings. As used in this section, drawings, schedules, diagrams, and other data prepared specifically for this contract, by the Contractor or through the Contractor by way of a subcontractor, manufacturer, supplier, distributor, or other lower tier Contractor, to illustrate a portion of the work. Types are as listed in the paragraph entitled "Schedule of Submittal Descriptions (SD)."

b) Product Data. Preprinted material such as illustrations, standard schedules, performance charts, instructions, brochures, diagrams, manufacturer's descriptive literature, catalog data, and other data to illustrate a portion of the work, but not prepared exclusively for this contract. Types are as listed in the paragraph entitled "Schedule of Submittal Descriptions (SD)."

c) Samples. Physical examples of products, materials, equipment, assemblies, or workmanship, physically identical to a portion of the work, illustrating a portion of the work or establishing standards for evaluating the appearance of the finished work or both. Types are as listed in the paragraph entitled "Schedule of Submittal Descriptions (SD)."

d) Administrative Submittals. Submittals of data for which reviews and approval will be required to ensure that the administrative requirements of the project are adequately met but not to ensure directly that the work is in accordance with the design concept and in compliance with the contract documents. Types are as listed in the paragraph entitled "Schedule of Submittal Descriptions (SD)."

e) Approving Authority. The person who is authorized to approve a submittal.

7.2 SUBMITTAL REGISTER

For each CTO, submit a Submittal Register. Instructions for completion of the Government furnished Submittal Register are provided in Section 7.8. The submittal register with columns (a), (b), (c), and (d) completed by the Contractor is designated the initial submittal register required as a part of the Project QC Plan. Additional details concerning the use of the submittal register will be explained at the preconstruction conference.

7.3 PROCEDURES FOR SUBMITTALS

7.3.1 Reviewing, Certifying, Approving Authority

The Contractor's QC organization shall be responsible for reviewing and certifying that submittals are in compliance with contract requirements. The approving authority on submittals is the Project QC Manager unless submission to the Contracting Officer is specified for the specific submittal.

7.3.2 Constraints

a) Submission. Submittals shall be complete for each definable feature of work; components of the definable features interrelated as a system shall be submitted at the same time.

b) Acceptability. When submittal acceptability is dependent on conditions, items, or materials included in separate subsequent submittals, the submittal will be returned without review.

c) Approval. Approval of a separate material, product, or component does not imply approval of the assembly in which the item functions.

7.3.3 Scheduling

a) Coordination. Coordinate preparation and processing of submittals with performance of the work so that work will not be delayed by submittal processing. Allow for potential requirements to resubmit.

b) Review Period. Except as specified otherwise, allow a review period, beginning with receipt by the approving authority, that includes at least 20 working days for submittals requiring Project QC Manager approval and 20 working days for submittals requiring Contracting Officer or designated representative approval. The period of review for submittals with Contracting Officer or designated representative approval begins when the Government receives the submittal from the Contractor's QC organization. The period of review for each resubmittal is the same as for the initial submittal.

7.3.4 Contractor's Responsibilities

a) Verify Field Conditions. Determine and verify field measurements, materials, field construction criteria; review each submittal; and check and coordinate each submittal with requirements of the work and contract documents.

b) Transmission. Transmit submittals to the QC organization in orderly sequence, in accordance with the submittal register, and to prevent delays in the work, delays to the Government, or delays to separate Contractors.

c) Revisions. Correct and resubmit submittal as directed by the approving authority. Direct specific attention, in writing or on resubmitted submittal, to revisions not requested by the approving authority on previous submissions.

d) Copies. Furnish additional copies of submittals when requested by the Contracting Officer or designated representative, to a limit of 20 submittals.

e) Completion of Work. Complete work which shall be accomplished as a basis of a submittal in time to allow the submittal to occur as scheduled.

f) Approval. Ensure no work has begun until submittals for that work have been returned as "approved," or "approved as noted" except to the extent that a portion of the work shall be accomplished as a basis of the submittal.

7.3.5 QC Organization Responsibilities

a) Receiving Date. Note the date on which the submittal was received from the Contractor on each submittal for which the Project QC Manager is the approving authority.

b) Verify Field Conditions. Determine and verify field measurements, materials, field construction criteria; review each submittal; and check and coordinate each submittal with requirements of the work and contract documents.

c) Review. Review submittals for conformance with project design concepts and compliance with the contract documents.

d) Action. Act on submittals, determining the appropriate action based on the QC organization's review of the submittal.

(1) When the Project QC Manager is the approving authority, take the appropriate action on the submittal from the possible actions defined in the paragraph entitled "Actions Possible."

(2) When the Contracting Officer or designated representative is the approving authority or when a variation has been proposed, forward the submittal to the Government with the certifying statement or return the submittal marked "not reviewed" or "revise and resubmit" as appropriate.

e) Legible. Ensure that material is clearly legible.

f) Certification Stamp. Stamp each sheet of each submittal with the Contractor's certification stamp, except that data submitted in bound volume or on one sheet printed on two sides may be stamped on the front of the first sheet only.

(1) When the approving authority is the Contracting Officer or designated representative, the QC organization will certify submittals forwarded to the Contracting Officer or designated representative with the following certifying statement:

"I hereby certify that the (equipment) (material) (article) shown and marked in this submittal is that proposed to be incorporated into Contract Number _____, is in compliance with the contract drawings and specification, can be installed in the allocated spaces, and is submitted for Government approval.

Certified by Submittal Reviewer _____, Date _____
(signature when applicable)

Certified by Project QC Manager _____, Date _____
(signature)

(2) When the approving authority is the Project QC Manager, the Project QC Manager will use the following approval statement when returning submittals to the Contractor as "Approved" or "Approved as Noted."

"I hereby certify that the (equipment) (material) (article) shown and marked in this submittal is that proposed to be incorporated into Contract Number _____, is in compliance with the contract drawings and specification, can be installed in the allocated spaces, and is approved for use.

Certified by Submittal Reviewer _____, Date _____
(signature when applicable)

Approved by Project QC Manager _____, Date _____
(signature)

g) Signature. Sign the certifying statement or approval statement. The person signing the certifying statements shall be the QC organization member specified in the part entitled "Quality Control" or designated in writing by the Contractor as having that authority. The signatures shall be in original ink. Stamped signatures are not acceptable.

h) Submittal Register. Update the submittal register as submittal actions occur and maintain the submittal register at the project site until final acceptance of work by the Contracting Officer or designated representative.

i) Retention. Retain a copy of approved submittals at the project site, including the Contractor's copy of approved samples.

j) Distribution. When the approving authority is the Project QC Manager, forward two copies of each approved submittal, except "samples," where one set is required, to the Contracting Officer or designated representative.

7.3.6 Government's Responsibilities

The following applies to the Contracting Officer or designated representative when indicated to be the approving authority:

a) Submittal Date. Note the date on which the submittal was received from the Project QC Manager, on each submittal.

b) Review. Review submittals for approval within the scheduling period specified and only for conformance with project design concepts and compliance with the contract documents.

c) Returned Submittals. Identify returned submittals with one of the actions defined in the paragraph entitled "Actions Possible" and with markings appropriate for the action indicated.

d) Distribution. Retain three copies of each submittal, except "Samples" where one copy will be retained.

7.3.7 Actions Possible

Submittals will be returned with one of the following notations:

a) Not Reviewed. Submittals marked "not reviewed" shall indicate the submittal has been previously reviewed and approved, is not required as a submittal, does not have evidence of being reviewed and approved by the Contractor, or is not complete. A submittal marked "not reviewed" shall be returned with an explanation of the reason it is not reviewed. Returned submittals deemed to lack review by the Contractor or to be incomplete shall be resubmitted with appropriate action, coordination, or change.

b) Approved. Submittals marked "approved" or "approved as submitted" authorize the Contractor to proceed with the work covered.

c) Approval as Noted. Submittals marked "approved as noted" authorize the Contractor to proceed with the work as noted provided the Contractor takes no exception to the notations.

d) Revise and Resubmit. Submittals marked "revise and resubmit" or "disapproved" indicate the submittal is incomplete or does not comply with the design concept or the requirements of the Contract documents and shall be resubmitted with appropriate changes.

7.4 FORMAT OF SUBMITTALS

7.4.1 Transmittal Form

Transmit each submittal, except sample installations and sample panels, to the office of the approving authority. Transmit submittals with a transmittal form prescribed by the Contracting Officer or designated representative. The transmittal form shall identify the Contractor, indicate the date of the submittal, and include information prescribed by the transmittal form and required in the paragraph entitled "Identifying Submittals." Process transmittal forms to record actions regarding sample panels and sample installations.

7.4.2 Identifying Submittals

Identify submittals, except sample panel and sample installation, with the following information permanently adhered to or noted on each separate component of each submittal and noted on the transmittal form. Mark each copy of each submittal identically, with the following:

- a) Project title and location.
- b) Construction contract number and CTO.
- c) The section and part number of the section by which the submittal is required.
- d) The submittal description (SD) number of each component of the submittal.
- e) If a resubmission, an alphabetic suffix on the submittal description, for example, SD-10A, to indicate the resubmission.
- f) The name, address, and telephone number of the subcontractor, supplier, manufacturer and any other second tier Contractor associated with the submittal.
- g) Product identification and location in project.

7.4.3 Format for Product Data

- a) Presentation. Present product data submittals for each section as a complete, bound volume. Include a table of contents listing page and catalog item numbers for product data.
- b) Notation. Indicate, by prominent notation, each product that is being submitted; indicate the specification section number and paragraph number to which it pertains.
- c) Product Supplement. Supplement product data with material prepared for the project to satisfy submittal requirements for which product data does not exist. Identify this material as developed specifically for the project.

7.4.4 Format for Shop Drawings

- a) Size. Shop drawings shall be not less than 8-1/2 by 11 inches or more than 30 by 42 inches.
- b) Placement. Present 8-1/2 by 11 inch shop drawings as a part of the bound volume for the

submittals required by the section. Present larger drawings in the sets.

c) Information. Include on each drawing the drawing title, number, date, and revision numbers and dates, in addition to the information required in Paragraph 7.5.2 entitled "Identifying Submittals."

d) Dimensions. Dimension drawings, except diagrams and schematic drawings; prepare drawings demonstrating interface with other trades to scale. Identify materials and products for work shown.

7.4.5 Format of Samples

a) Size. Furnish samples in the sizes below, unless otherwise specified or unless the manufacturer has prepackaged samples of approximately the same size as specified:

(1) Sample of equipment or device: Full size.

(2) Sample of materials less than 2 by 3 inches: Built-up to 8-1/2 by 11 inches.

(3) Sample of materials exceeding 8-1/2 by 11 inches: Cut down to 8-1/2 by 11 inches and adequate to indicate color, texture, and material variations.

(4) Sample of linear devices or materials, such as conduit and handrails: 10-inch length or length to be supplied, if less than 10 inches.

(5) Sample of non-solid materials (e.g., sand, paint, etc.): One pint, unless specified otherwise in technical sections.

(6) Sample panel: 4 feet by 4 feet.

(7) Sample installation: 100 square feet.

b) Range of Variation. Samples showing range of variation: Where unavoidable variations must be expected, submit sets of samples of not less than three units showing the extremes and middle of the range.

c) Reusable Samples: Incorporate returned samples into the work only if so specified or indicated. Incorporated samples shall be in undamaged condition at the time of use.

d) Recording of Sample Installation: Note and preserve the notation of the area constituting the sample installation but remove the notation at the final cleanup of the project.

e) Color, Texture, or Pattern: When specified in naming a particular manufacturer and style, include one sample of that manufacturer and style for comparison.

7.4.6 Format of Administrative Submittals

a) Reference Document. When the submittal includes a document that is to be used in the project or become a part of the project record, other than as a submittal, do not apply the Contractor's approval stamp to the document, but to a separate sheet accompanying the document.

b) Operation and Maintenance Manual Data: Submit in accordance with the CTO.

7.5 QUANTITY OF SUBMITTALS

7.5.1 Number of Copies of Product Data

a) Submit six copies of submittals of product data requiring review and approval only by the QC organization and seven copies of product data requiring review and approval by the Contracting Officer.

7.5.2 Number of Copies of Shop Drawings

a) For shop drawings presented on sheets larger than 8-1/2 inches by 14 inches, submit one reproducible and three prints of each shop drawing prepared for this project.

(1) Transmit reproducible rolled in mailing tubes.

(2) After review, the approving authority will retain the prints and return only the reproducible with notations resulting from the review.

b) For shop drawings presented on sheets 8-1/2 inches by 14 inches or less, conform to the quantity requirements for product data.

7.5.3 Number of Samples

a) Submit two samples, or two sets of samples showing range of variation, of each required item. One approved sample or set of samples will be retained by the approving authority and one will be returned to the Contractor.

b) Submit one sample panel. Include components listed in the technical section or as directed.

c) Submit one sample installation, where directed.

d) Submit one sample of non-solid materials.

7.5.4 Number of Copies of Administrative Submittals

a) Unless otherwise specified, submit administrative submittals which are 8-1/2 inches by 14 inches or smaller in the quantity required for product data.

b) Unless otherwise specified, submit administrative submittals larger than 8-1/2 inches by 14 inches in the quantities required for shop drawings.

7.6 SCHEDULE OF SUBMITTAL DESCRIPTIONS (SD)

7.6.1 SD-01, Data: Submittals which provide calculations, descriptions, or other documentation regarding the work

7.6.2 SD-02, Manufacturer's Catalog Data: Data composed of catalog cuts, brochures, circulars, specifications, and product data, and printed information in sufficient detail and scope to verify compliance with requirements of the contract documents. A type of product data.

7.6.3 SD-03, Manufacturer's Standard Color Charts: Preprinted illustrations displaying choices of color and finish for a material or product. A type of product data.

7.6.4 SD-04, Drawings: Submittals which graphically show relationship of various components of the work, schematic diagrams of systems, detail of fabrications, layout of particular elements, connections, and other relational aspects of the work. A type of shop drawing.

7.6.5 SD-05, Design Data: Design calculations, mix designs, analyses, or other data, written in nature and pertaining to a part of the work. A type of shop drawing.

7.6.6 SD-06, Instructions: Preprinted material describing installation of a product, system, or material, including special notices and material safety data sheets, if any, concerning impedance's, hazards, and safety precautions. A type of product data.

7.6.7 SD-07, Schedules: A tabular list of data or tabular list including location, features, or other pertinent information regarding products, materials, equipment, or components to be used in the work. A type of shop drawing.

7.6.8 SD-08, Statements: A document, required of the Contractor, or through the Contractor by way of a supplier, installer, manufacturer, or other lower tier Contractor, the purpose of which is to further the quality or orderly progression of a portion of the work by documenting procedures, acceptability of methods or personnel, qualifications, or other verification of quality. A type of shop drawing.

7.6.9 SD-09, Reports: Reports of inspection and laboratory test, including analysis and interpretation of test results. Each report shall be properly identified. Test methods used and compliance with recognized test standards shall be described.

7.6.10 SD-10, Test Reports: A report signed by an authorized official of a testing laboratory that a material, product, or system identical to the material, product, or system to be provided has been tested in accordance with requirements specified by naming the test method and material. The test report must state the test was performed in accordance with the test requirements; state the test results; and indicate whether the material, product, or system has passed or failed the test. Testing must have been within 3 years of the effective date of award of the CTO. A type of product data.

7.6.11 SD-11, Factory Test Reports: A written report which includes the findings of a test required to be performed by the Contractor on an actual portion of the work or prototype prepared for this project before it is shipped to the job site. The report must be signed by an authorized official of a testing laboratory and must state the test was performed in accordance with the test requirements; state the test results; and indicate whether the material, product, or system has passed or failed the test. A type of shop drawing.

7.6.12 SD-12, Field Test Reports: A written report which includes the findings of a test made at the job site, in the vicinity of the job site, or on a sample taken from the job site, or on a portion of the work, during or after installation. The report must be signed by an authorized official of a testing laboratory or agency and must state the test was performed in accordance with the test requirements; state the test results; and indicate whether the material, product, or system has passed or failed the test. A type of shop drawing.

7.6.13 SD-13, Certificates: Statements signed by responsible officials of a manufacturer of a product, system, or material attesting that the product, system, or material meets specified requirements. The statements must be dated after the award of this contract, name the project, and list the specific requirements that it is intended to address. A type of shop drawing.

7.6.14 SD-14, Samples: Samples, including both fabricated and unfabricated physical examples of materials, products, and units of work as complete units or as portions of units of work. A type of sample.

7.6.15 SD-15, Color Selection Samples: Samples of the available choice of colors, textures, and finishes of a product or material, presented over substrates identical in texture to that proposed for the work. A type of sample.

7.6.16 SD-16, Sample Panels: An assembly constructed at the product site in a location acceptable to the Contracting Officer or designated representative and using materials and methods to be employed in the work; completely finished; maintained during construction; and removed at the conclusion of the work or when authorized by the Contracting Officer or designated representative. A type of sample.

7.6.17 SD-17, Sample Installations: A portion of an assembly or material constructed where directed and, if approved, retained as a part of the work. A type of sample.

7.7.18 SD-18, Records: Documentation to ensure compliance with an administrative requirement or to establish an administrative mechanism. A type of administrative and closeout submittal.

7.6.19 SD-19, Operation and Maintenance Manuals: Data intended to be incorporated in an operations and maintenance manual. A type of administrative and closeout submittal.

7.6.20 SD-20, Closure Report and Certification of Closure: Report detailing historical background of the site as it relates to compliance issues, summary of the work performed, closure investigation (purpose, background and unit sampling, laboratory analysis and data usability, discussion of results), statistical comparisons (data organization,

descriptive statistics, definition of the nature of the data distribution, comparison to background, results of statistical comparisons), demolition and removal activities (characterization of wastes, removal and disposal, post-closure restoration), and conclusions and recommendations for a RCRA closure site. The Certification of Closure must be jointly signed by a registered professional engineer and the owner/operator; it must state the name and location of the site and certify that the site was closed in accordance with the specifications in the (respective) approved Closure Plan.

7.6.21 SD-21, Sampling and Analysis Plan: Plan detailing sampling and analysis objectives, data quality objectives (including laboratory methods and QA/QC samples), project organization (field sampling services and project management), field sampling procedures (background sampling, unit sampling, sample containers and preservation, disposal sampling), field sampling QC (field documentation, chain-of-custody procedures, decontamination procedures), analytical parameters (background and unit samples, laboratory certification, turnaround time, disposal analysis), laboratory QC (sample handling in the laboratory, laboratory sample storage, method specific QC, data quality evaluation, corrective action), and data reduction, validation, and reporting (data reduction and tabulation, general procedures for data review/validation, data reporting, and project technical and peer reviews).

7.6.22 SD-22, RCRA Closure Plan: Plan detailing background, facility location and description, regulatory evaluation, closure performance standards, written plan availability, maximum hazardous waste inventory, unit sampling plan, statistical comparisons, risk characterization, site remedial actions, closure schedule, certificate of closure standards, and closure plan amendment standards for a RCRA closure site.

7.7 SUBMITTAL REGISTER INSTRUCTIONS

7.7.1 Submittal Register

Use a submittal register form for the project's submittal register and to track progress of submittals as they are processed. Users may arrange Parts "A" and "B" side-by-side in a three-ring notebook.

a) Submittal Register Form Columns (a) through (e). The Government will supply submittal register forms, with columns (a) through (e) completed to the extent that will be required by the Government. Consider these forms as being for convenience only. Correct variations from requirements shown in specification sections; ensure submittal register conforms to specification sections.

(1) Column (a): Lists each specification section in which a submittal is required.

(2) Column (b): Lists each submittal description (SD number and type (e.g., SD-04, Drawings) required in each specification section. Follow each submittal description with the list of material or products to be addressed in each submittal description.

(3) Column (c): Lists one principal paragraph in the specification section where a material or product is specified. This listing is only to facilitate submittal reviews. Do not consider entries in column (c) as limiting project requirements; do not consider that a blank must be filled in by Contractor or the Government.

(4) Column (d): Indicates approving authority for each submittal. A "G" indicates approval by Contracting Officer or designated representative; a blank indicates approval by QC manager.

(5) Column (e): Indicates, for submittals to be approved by Contracting Officer or designated representative, specific reviewers other than QC organization. This column may or may not be filled out on the copy supplied by the Government.

b) Submittal Register Form Columns (f) through (i). Columns (f) through column (i) will be used by the Contractor, QC organization, and Government on their own copies to record data established by the Contractor.

(1) Column (f): As submittals are processed, list a consecutive number assigned by Contractor for each group of submittals. Place this same number in the appropriate block of "Submittal Transmittal Form." For a resubmission, repeat transmittal control number of the original submittal with a suffix; e.g., No. "100B" is the second resubmission of material originally transmitted under No. "100."

(2) Column (g): List dates scheduled for approving authority to receive submittals. These dates are the scheduled beginnings of the submittal review period. The Contractor proposes these dates and the Contracting Officer or designated representative approves them to establish the approved submittal register.

(3) Columns (h) and (i): Use to record Contractor's review when forwarding submittals to the QC organization.

c) Submittal Register Form Columns (j) through (o). Columns (j) through column (o) will be used by the Contractor, QC organization, and Government on their own copies, in the following manner:

7.7.2 Contractor's Responsibilities:

a) Column (j): Enter date submittal is delivered to QC organization if QC manager is approving authority or to the Government via QC organization if Contracting Officer or designated representative is approving authority.

b) Columns (k) and (l): No entries are required on Contractor's copy.

c) Columns (m) and (n): Enter action and date of action by approving authority as shown on returned submittal.

d) Column (o): Enter date Contractor receives on acted-on submittal.

7.7.3 QC Organization Responsibilities:

a) Column (j): Enter date QC organization receives submittal from Contractor.

b) Columns (k) and (l): If approving authority is Contracting Officer or designated representative, enter date QC organization forwards certified submittal to Contracting Officer or designated representative.

c) Columns (m) and (n): If approving authority is Contracting Officer or designated representative, enter the Government action and date of action as shown on returned submittal. If approving authority is QC manager, enter QC action and date of action.

d) Column (o): Enter date QC organization returns submittal to Contractor, regardless of who is approving authority. If QC manager is approving authority, the date the submittal is returned to Contractor is also the date the information copy is forwarded to the Government.

7.7.4 Government Responsibilities:

a) Column (j): When Contracting Officer or designated representative is approving authority, enter date submittal is received from QC organization.

b) Columns (k) and (l): When Contracting Officer or designated representative is approving authority, enter date submittal is routed or received from specialized reviewer, such as fire protection engineer or architect-engineer.

c) Columns (m) and (n): When approving authority is Contracting Officer or designated representative, enter the Government action and date of action. When approving authority is QC organization, enter QC manager action and date of action, as indicated on information copy forwarded by QC organization.

d) Column (o): When Contracting Officer or designated representative is approving authority, enter date submittal is returned to Contractor via QC organization.

PART 8.0 ENVIRONMENTAL DATA MANAGEMENT (EDMS) AND REQUIRED ELECTRONIC DELIVERY STANDARDS

The Contractor shall comply with the Controlled Unclassified Information (CUI) requirements specified in reference (bq), references therein and current NAVFAC guidelines and policy. If CUI content needs to be incorporated into the deliverable, it needs to be marked per reference (o). If the deliverable contains CUI and will be released to the public, the CUI information needs to be redacted.

Naval Installation Restoration Information Solution (NIRIS) shall be used to collect, store, and manage all NAVFAC ER data and documents in accordance with NAVFAC policy, ensuring that ER data and documents are maintained and accessible over the lifecycle of the ER program. All data and documents collected and prepared under the ER program shall be submitted to NAVFAC in compliance with current NIRIS specifications and guidance, and in accordance with each CTO SOW. CTOs supporting non-ER efforts may have its own environmental data management system and the requirements and guidance shall be obtained from that Task Order's SOW and CTO COR. An example of NIRIS SOW requirements for ER program CTOs is provided below. NIRIS data management and document submittal requirements are updated often. The Contractor shall confirm current NIRIS requirements with the CTO COR prior to submittal of all ER data and documents. An example of NIRIS CTO SOW requirements (October 2024 version) is provided below for general reference.

(Example CTO SOW) SECTION XX.XX: NIRIS Requirements

All data (including, but not limited to analytical data, well construction data, borehole data, environmental measurement data, geospatial data, and documents) that are produced under this contract task order shall be loaded to the Naval Installation Restoration Information Solution (NIRIS) in the manner outlined below. NIRIS is the Navy's authoritative data source for its Environmental Restoration Program. NIRIS is an information management solution, the purpose of which is to ultimately ensure the continuity and support of the Environmental Restoration Program. NIRIS consists of a centralized database, tools, and applications used to store and manage ER data. This system uses standard protocols, valid values, and formats to ensure that data and documents are loaded, stored, and accessed in a consistent manner. The policies mandating the use of NIRIS for both ERN and BRAC can be found at https://exwc.navy.mil/Portals/88/Documents/EXWC/Restoration/er_pdfs/gpr/navfac-ev-inst4715.1-niris-20080411.pdf?ver=JXPpr2saCokn54TVIsYPUg%3d%3d×tamp=1651190360253 and https://exwc.navy.mil/Portals/88/Documents/EXWC/Restoration/er_pdfs/gpr/bpmo-ev-pol-niris-20080519.pdf?ver=fWb1hZwUaze9zUUPhewBPw%3d%3d×tamp=1651190327547.

In order to meet the requirements of this task order, a project manager representing the contractor is required to obtain NIRIS access. Instructions for gaining access can be found at https://administrative-records.navy.mil/Public_Documents/Knowledge_Base/SOP_Documentation/NIRIS_Access_Quick_Reference_Guide.pdf. When requesting NIRIS access, the "CONTRACTOR" role will be sufficient to complete the basic requirements of this task order. Required costs for obtaining NIRIS access (i.e. purchase of a PKI certificate and/or card reader) will be included in the estimated cost for this task order.

NOTE: *NIRIS contains Controlled Unclassified Information (CUI) and should be handled accordingly. Any export of data from NIRIS should only be used for official purposes and should not be disseminated to 3rd parties without the written consent of the RPM.*

NIRIS training (on a variety of topics) is available throughout the year. On-demand training materials (slides, videos, etc) and the current NIRIS training schedule are available in the NIRIS help section. If necessary, the contractor may request additional training by submitting a Support Request in NIRIS.

XX.XX.1 Tracking Task Order Deliverables in NIRIS

*The RPM will assign the project manager representing the contractor to manage this task order in NIRIS RPM Tools (NIRIS access is required for the project manager before this can be done). Within **30 days of the receipt of the awarded contract**, the contractor shall establish the list and planned schedule of expected deliverables (and all associated dependencies) in NIRIS RPM Tools, based on the deliverables and schedule outlined in this SOW. This includes anticipated start and end dates for any required task order field work and ALL other relevant deliverable dependencies, where applicable.*

This task order will not be considered complete until the project in RPM Tools shows it as complete. To reach this status in RPM Tools, all deliverables and their associated dependencies are required to be marked complete or removed if they are not needed.

The contractor is responsible for tracking the schedule in NIRIS, and to ensure that expected dates of document deliverables are kept current. Deliverable schedule updates should occur routinely when the project schedule is updated or on an as needed basis, with RPM concurrence/approval. Additionally, with RPM approval, the contractor shall add additional dependencies or delete dependencies associated to a deliverable, depending on the specific requirements of this task order and/or specific deliverable.

XX.XX.2 Analytical Data Deliverables

Analytical data are entered into NIRIS via NAVFAC Electronic Data Deliverables (NEDDs). The NEDD Specifications are a collection of tables that provide the requirements, valid values, and definitions for ER data submittals. These specifications standardize the analytical data submittal process for the ER program. The NEDD Standard Operating Procedures (SOP), which can be downloaded at https://niris.navy.mil/Document_Management/Knowledge_Base/SOP_Documentation/03-000-01%20NEDD%20SOP.pdf (NIRIS access required), provides guidance and support for the submittal of NEDD tables in NIRIS, along with detailed instructions for compiling and submitting data to NAVFAC. The SOP additionally provides guidance on helping plan projects to facilitate consistent collection and organization of analytical data gathered during field activities.

NEDD Selector

*During the planning process and prior to conducting field work, the contractor shall discuss with the RPM, and NIRIS Regional Data Manager (RDM) if necessary, which NEDD tables will be populated. Certain NEDDs will be required based on the data collection requirements outlined in this SOW, including specialized NEDDs for munitions response and/or vapor intrusion data. The NEDD selector (located in NIRIS) can help determine which NEDDs are required based on the work outlined in this task order. Once the NEDD tables are selected, the contractor shall consult with the RPM as to which optional fields in each NEDD table will be required to be populated for this task order. Even if a field in a NEDD table is considered optional (i.e. NIRIS will not reject the data submittal if left blank), **to the contractor shall submit ALL applicable tabular data collected for this task order into NIRIS**, provided a location for that data exists in a NEDD table. A complete list of NEDD tables can be found at the following link: <https://niris.navy.mil/DataChecker/NEDD/Specifications.aspx> (NIRIS access required).*

NEDD Submittal

Prior to a field event involving the collection of analytical data associated with this task order, the contractor shall complete the WS18_Location NEDD Table and submit it when the Draft SAP is complete. This NEDD contains information found in Worksheet #18 of the Tier I NAVFAC Uniform Federal Policy Sampling and Analysis Plan (UFP-SAP). The requirement to submit WS18_Location NEDD in NIRIS is applicable regardless of the specific type of SAP deliverable for this SOW. The contractor shall keep the WS18_Location NEDD table current with any changes applied to the UFP-SAP, until the field event is complete. Keeping the WS18_Location NEDD current requires submission of a new WS18_Location NEDD, replacing the previous one.

*Following the collection and validation of data, the contractor shall submit all tabular data collected under this task order in the specified NEDD format, including data for optional fields in NEDD tables as initially directed by the RPM. **All data associated with this task order shall be submitted to NIRIS as soon as the data has been validated, and no later than 3 months following the collection of the sample.** If the time required to submit the data exceeds 3 months from the time the samples are collected, the contractor shall notify the RPM with an explanation as to why the data cannot be submitted in the established time frame. **Failure to do so will result in the data submittal being classified as “late” and could affect the contractor’s performance evaluation following the completion of the task order.***

*Following the successful completion of the data checking process, the data is automatically transferred to the RDM. Within 10 days of the submittal, the RDM will notify the contractor that the NEDDs have been loaded successfully, rejected, or will ask questions for clarification. Data **HAVE NOT** been successfully loaded to NIRIS until a successful loading notification has been received. Additional instructions for this process are available in the NEDD SOP.*

XX.XX.3 Geospatial Data Deliverables

NIRIS maintains ER spatial data and displays the data in NAVFAC's WebGIS browser, the GRX Viewer. Geospatial data produced as a result of this Task Order (including restoration site boundaries, land use control boundaries, contours, etc) shall be submitted to NIRIS in accordance with guidance set forth in the GIS Submissions Guide. This guide (and associated templates) can be found at <https://www.navy.mil/Divisions/Environmental/Products-and-Services/Environmental-Restoration/Data-Submittal-Guidance> or on the Help page in NIRIS. All geospatial data shall be provided with metadata, using the appropriate coordinate system (e.g., WGS 1984), in an ESRI format (preferably in shapefile or geodatabase file format, although CAD files can be accepted) and submitted to the RDM for loading into the NIRIS geospatial database. **NOTE:** Geospatial data as it pertains to this requirement include data such as site boundaries, LUC boundaries, contaminant plumes, general contours, etc). It does not include geospatial data associated with analytical data. Geospatial data associated with analytical data and sample locations is loaded to NIRIS in the NEDD submittal process.

Any geospatial data produced as a result of this task order shall be submitted to the RDM concurrently with the final document containing that information. All task orders/projects in NIRIS RPM Tools by default contain an expected deliverable named "Spatial Data Upload". The contractor is required to submit a spatial data package via RPM Tools, to ensure that any changes to site spatial data are kept current in NIRIS. Additional GIS deliverables can be added to RPM Tools as necessary, depending on the specific requirements outlined in this task order SOW. If a requirement exists to submit non-Environmental Restoration Program spatial data, the contractor shall submit that data in accordance with the Navy IGI&S Standards & Specifications for Vector GIS Deliverables, which may be appended to this SOW. Any questions related to the collection or submission of environmental restoration geospatial data should be directed to the RDM via a NIRIS Support Request.

Additionally, the contractor shall contact the appropriate RDM to obtain relevant geospatial data for use in official task order deliverables and environmental records. Geospatial data maintained within NIRIS are considered official in terms of sample locations, site boundaries, legal descriptions of land use control boundaries, etc. Using geospatial data from any other source could lead to the production of inaccurate maps and figures. If there is a dispute as to whether the geospatial information located in NIRIS is correct, the contractor shall contact the RDM, RPM, and/or a NIRIS Work Group member from the applicable Naval Facilities Engineering Command (FEC). Contact information for the RDM can be found in Section XX.XX (Points of Contact) of this SOW.

XX.XX.4 Internal Document Reviews

Draft versions of certain document deliverables associated with this task order require a formal review in the NIRIS Document Review Tool. If task order requirements include the development of a Sampling and Analysis Plan (SAP), a Remedial Alternative Analysis (RAA), and/or a document falling under NAVFAC's Quality Document Review (QDR) policy, the contractor shall coordinate with the RPM on the submittal of the applicable Draft document and upload the draft document in the respective NIRIS Document Review module for internal Navy review. If any expected deliverables for Installation Restoration Program (IRP) documents do not fall into one of the above categories, the RPM may request a formal review be completed by checking the "SME Review" box for the deliverable in RPM Tools. **NOTE:** QDR eligible documents typically consist of a Feasibility Study (FS), Engineering Evaluation Cost Analysis (EE/CA), Proposed Plans (PP), Record of Decision (ROD), Five Year Review (5YR), or a Time Critical Removal Action (TCRA) Memorandum. QDR policy is only applicable IRP documents.

The contractor shall expect to address comments from all forms of document reviews and load responses to the applicable review in the NIRIS Document Review Tool, in coordination with the RPM. Contractors shall also submit Regulatory Comments and Responses to Comments to the applicable project in RPM Tools and to Records Management, as directed by the RPM.

XX.XX.5 Document/Environmental Record Deliverables

All Administrative Record, Post Decision, and Site File documents produced under this task order shall follow guidelines outlined in the Environmental Restoration Recordkeeping Manual, including any additional regional requirements where applicable. The Environmental Restoration Recordkeeping Manual is a valuable resource that provides information on the different types of Environmental Restoration documents and how to prepare them for submission in NIRIS. The Environmental Restoration recordkeeping Manual can be found in its entirety at <https://www.navy.mil/Divisions/Environmental/Products-and-Services/Environmental-Restoration/Data-Submittal-Guidance/>. All final document deliverables, including, but not limited to reports, official NAVFAC correspondence (such as letters to/from regulators, emails that provide context to a site cleanup decision, etc), lab analytical data packages, meeting minutes, PDF maps or drawings, photographs, fact sheets, and public notices associated with this task order (as well as unofficial correspondence such as emails and notes from phone

conversations essential to the decision making processes) shall be prepared in a manner that allows for easy submission to NIRIS, following the guidelines set forth in Appendix K of the Environmental Restoration Recordkeeping Manual (https://administrative-records.navy.mil/Public_Documents/Knowledge_Base/SOP_Documentation/Recordkeeping_Manual/AppxK_EDMS%20NRIIS_pdfs.pdf) and submitted to Records Management **PRIOR to external distribution**. Additionally, these documents shall be submitted to the appropriate Records Manager or Regional Data Manager as outlined in **Appendix O - NAVFAC SOP to Submit Documents to NIRIS** of the Environmental Restoration Recordkeeping Manual, for upload into NIRIS (https://administrative-records.navy.mil/Public_Documents/Knowledge_Base/SOP_Documentation/Recordkeeping_Manual/AppxO_SOP_to_Submit_Docs.pdf). **Documents may only be distributed to other parties outside of the Navy after they have been approved by Records Management.**

The contractor shall work with the RPM to exclude CUI in all document deliverables, when possible. However, if this cannot be achieved, then any documents on this task order that contain CUI shall follow the guidance outlined in Appendix G of the ER Recordkeeping Manual, which can be found at https://administrative-records.navy.mil/Public_Documents/Knowledge_Base/SOP_Documentation/Recordkeeping_Manual/AppxG_CUI.pdf. For Administrative Record and Post Decision File documents that contain CUI, the contractor shall submit two versions of the FINAL document to the applicable Records Manager or Regional Data Manager. One version will be an unredacted version containing CUI without redactions, and the other version will be a version with all CUI redacted. The contractor shall follow document redaction guidance outlined in the ER Recordkeeping Manual Appendix Z, and submit the redacted version to the appropriate Records Manager or RDM with the clean version. Appendix Z can be found at https://administrative-records.navy.mil/Public_Documents/Knowledge_Base/SOP_Documentation/Recordkeeping_Manual/AppxZ_Redaction_Policy.pdf.

All documents submitted to the appropriate Records Manager or Regional Data Manager for upload into NIRIS shall be accompanied by a completed Document Data Sheet.

The Document Data Sheet shall be filled out and submitted electronically in RPM Tools. Please contact the appropriate regional Records Manager for specific Document Data Sheet submittal questions. An accurate and complete Document Data Sheet is essential to ensuring that environmental records are loaded into NIRIS using the correct metadata, help NAVFAC Records Managers identify the appropriate distribution of the document, and protect CUI. The Document Data Sheet and instructions to fill it out can be found in **Appendix N - The Document Data Sheet and Distribution Statements** (https://administrative-records.navy.mil/Public_Documents/Knowledge_Base/SOP_Documentation/Recordkeeping_Manual/AppxN_Distribution_Statement_Doc_Data_Sheet_Marking_Docs.pdf) of the Environmental Restoration Recordkeeping Manual.

Final payment for “Final” deliverables will be dependent upon their successful loading to NIRIS.

THE FOLLOWING PARAGRAPH IS FOR SW CTO's ONLY

Upon completion of the project and before closeout, a list of all deliverables, including official, formal comments and response to comments shall be submitted to the appropriate Records Manager or Regional Database Manager. Do not include contract related or funding related correspondence and documents on the list. See the Environmental Restoration Recordkeeping Manual, Appendix B (https://administrative-records.navy.mil/Public_Documents/Knowledge_Base/SOP_Documentation/Recordkeeping_Manual/AppxB_ARF_PF_SF.pdf), for a complete list of Administrative Record, Post Decision and Site Files.

XX.XX.5 Land Use Control Tracker

The Contractor shall set up “controlled areas” for the Land Use Control(s) specified in this SOW in the NIRIS Land Use Control (LUC) Tracker module in accordance with the NIRIS specifications. The Contractor shall enter all relevant LUC information required by NIRIS (e.g., LUC boundaries, monitoring reporting requirements, and responsible project team members’ contact information) into the LUC Tracker. Additionally, the contractor shall create a customized inspection checklist in the NIRIS LUC Tracker (if an applicable one does not already exist) that

matches the inspection requirements outlined for the Land Use Control(s) in the LUC Remedial Design or other LUC requirements documentation. The Contractor shall prepare a draft version of the relevant LUC information for the RPM's review and approval prior to entering into the LUC Tracker.

The contractor shall also enter any and all required data and documentation from LUC inspections identified in this SOW into NIRIS within 3 months of completing the inspection. As part of the LUC inspection data entry process, the contractor shall also include a scanned copy of the inspection form that was filled out in the field as well as any photographs taken of any issues or potential issues found during the inspection.

8.1 SURVEY CONTROL INFORMATION

8.1.1 General

The surveyed horizontal geographic position and state plane coordinates shall be referenced to permanent or semi-permanent control points existing on the project site, and shall be accurate to one-quarter meter (0.25 m), plus or minus. Horizontal control of Class One, third order or better, shall be established for all new, semi-permanent and tertiary control points. Horizontal control shall be referenced to the North American Datum of 1983 (NAD83). Data conversions from the metric system to the English system shall use the U.S. Survey Foot definition (1 meter = 39.37 inches exactly). All drawings and calculations shall contain a prominent note stating the aforementioned. Surveying results shall be submitted in accordance with the contract requirements.

8.1.2 Global Positioning System (GPS)

Boundary and location survey of historic properties, infrastructure improvements, utilities, roadways, and munitions and explosives of concern shall be performed utilizing the Global Positioning System (GPS) to the maximum extent possible. The Contractor shall survey the clearance boundaries and define the perimeter corners of clearance areas with visible markers. The Contractor shall survey and document the location of all confirmed munitions and explosives of concern items found during surface/subsurface clearance operations, any planimetric features, fence lines, other significant land features not shown on existing maps, and Historic Properties identified during the project. All location surveys of munitions and explosives of concern shall have a horizontal accuracy of one meter and a vertical accuracy of 0.25 meters.

8.1.3 Horizontal and Vertical Controls

The Contractor shall use the existing verified Geodetic Control points, updated to the World Geodetic System of 1984 (WGS 84) Geocentric Reference System (GRS), for all horizontal and vertical controls used for the surveying of the project site.

8.1.4 Final Survey Map

As specified in each CTO, the final survey map of the project work areas shall be completed with 1-meter contours and spot elevations surveyed every 30 meters. All spot elevations shall have a horizontal accuracy of 0.25 meters and a vertical accuracy of 0.1 of a meter.

8.2 OTHER SUBMITTALS

Projects may include other submittals in addition to the electronic data and document submittal requirements in Sec 8.2 – 8.3. The Contractor shall verify with the CTO COR whether any of the following are required project submittals.

(1) Hardcopy and/or CD submittals. The Contractor shall verify the current format requirements and number of copies with the CTO COR.

(2) Native files. For each CTO deliverable, the Contractor shall provide a minimum of one CD with the native files associated with the document (e.g. Word, Excel, etc).

PART 9.0 PUBLIC RELEASE OF INFORMATION

The Contractor shall not publicly disclose information or data concerning any aspect of the materials or services relating to the contract without the prior written approval of the Contracting Officer, unless required by law (Refer

to Section H, Paragraph H14). The Contractor shall refer all press or public contacts to the RPM. The Contractor may not distribute reports or data to any source, unless specifically authorized by the RPM and the Public Affairs Officer in accordance with NAVFAC Instruction 5720.10A (Reference: NAVFAC 5720/6 Form – Publication Security Review and Clearance). The Contractor shall insert the substance of this paragraph into each subcontract and purchase order related to the project.

9.1 PROPRIETARY INFORMATION

The Contractor may require access to data and information proprietary to a Government agency, another Government Contractor, or of such a nature that its dissemination or use, other than as specified in this contract, would be averse to the interests of the Government or others. Neither the Contractor's nor subcontractor's personnel shall divulge or release data or information developed or obtained under performance of this contract, except to authorized Government personnel or upon written approval of the Contracting Officer or COR. The Contractor shall not use, disclose, or reproduce proprietary information bearing a restrictive legend, other than as specified in the contract or applicable CTO. The Contractor shall not release any information on any part of the subject matter of this contract, or any phase of any program hereunder, without the prior written approval of the Contracting Officer or COR.

The Contractor's and subcontractor's employees shall not disclose or release any information on publicly accessible or private websites, including photos of project sites, names or locations of project sites, or names of employees working in support of the project requirements. This list is not all inclusive. The Contractor is to ensure that all personnel working for them have signed a non-disclosure form before going to work on any work site. The Contracting Officer may request any and all non-disclosure forms at any time during the Contract Performance Period for review to ensure that the Contractor has complied with this requirement.

The Contractor shall not release information regarding individuals without prior authority of the Contracting Officer or COR. Any documentation showing individuals' names or other personal information will be controlled and protected. The provisions of the Privacy Act of 1974, Public Law 93-579, 5 U.S.C, Section 552a, shall apply.

Disclosure of information regarding operations and services of the activity to persons not entitled to receive it, or failure to safeguard any classified information that may come to the Contractor (or any persons under the Contractor's control) in connection with work under this contract, may subject the Contractor, Contractor's agent, or employees to criminal liability under Title 18, Sections 793 and 798 of the United States Code. Neither the Contractor nor the Contractor's employees shall disclose or cause to be disseminated any information concerning the operations of the activity that could result in, or increase the likelihood of, the possibility of a breach of the activities' security or interrupt the continuity of operations.

The Contractor shall direct to the Contracting Officer or COR all inquiries, comments, or complaints arising from matters observed, experienced, or learned as a result of, or in connection with, the performance of this contract, the resolution of which may require the dissemination of official information.

PART 10.0 PERFORMANCE METRICS AND QA

10.1 GENERAL

The performance evaluation of the Contractor shall be based on certain performance metrics. Individual CTOs issued for services under the basic contract will include a PWS that describes the performance objectives and measurable performance standards. A sample of a performance-based specification for describing service requirements is included in the following matrix:

EXAMPLE PERFORMANCE REQUIREMENT SUMMARY MATRIX

PERFORMANCE OBJECTIVE/ TASK	PERFORMANCE STANDARD	ACCEPTABLE QUALITY LEVEL	ASSESSMENT METHOD	INCENTIVE/ REMEDY
Meetings, Project Management, and Administrative Support	Completion and distribution of all meeting materials, including agenda, handouts, figures, schedule, PowerPoint presentation, and meeting minutes. Attendance and technical support at the meetings. Successful project management and administrative support to keep the project on schedule and budget.	99% on Promptness; 95% on preparation	Navy receipt of prepared agenda (at least 48 hours prior) and minutes (within 10 days after each meeting) Navy acceptance by the COR.	Not meeting the performance standards may result in: -Possible termination of CTO or contract for continuous or uncorrected performance deficiencies, or for failure to meet identified and/or QA standards. -Adverse past performance reports. -The Contractor may not have the next option period exercised.
Project Plans/Reports	Navy acceptance of deliverables. Plans and reports shall include sufficient information to support the remedial action in the field; be clearly written; and have minimal transcription, typographical, and grammatical errors.	90% of written plans and reports are accepted within two submissions.	Completed deliverables are measured against PWS, deliverable schedule, and negotiated budget. Acceptance by the COR with regulator involvement.	Not meeting the performance standards may result in: -Possible termination of CTO or contract for continuous or uncorrected performance deficiencies, or for failure to meet identified and/or QA standards. -Adverse past performance reports. . -The Contractor may not have the next option period exercised.
Field Work	Complete field work as specified in the Project Plans and other requirements of the PWS.	Remediation work is accepted without rework. No unauthorized cost overruns.	Completed work measured against PWS, deliverable schedule, negotiated budget, and field schedule. Acceptance by the COR with regulator involvement.	Not meeting the performance standards may result in: -Possible termination of CTO or contract for continuous or uncorrected performance deficiencies, or for failure to meet identified and/or QA standards.

				-Adverse past performance reports. -The Contractor may not have the next option period exercised.
Safety	Maintain High Safety Standards	Zero Class A Safety violations (CONUS only) where the Contractor is determined at fault.	Submission of accident reports, adverse safety inspection reports, and similar documents.	Not meeting the performance standards may result in: -Possible termination of CTO or contract for continuous or uncorrected performance deficiencies, or for failure to meet identified and/or QA standards. -Adverse past performance reports. -The Contractor may not have the next option period exercised.
Innovative Approaches	Provide technical support to the Navy	Develop innovative approaches that achieve goals and result in accelerated schedules and/or cost savings.	Measured against established schedules, budgets, and remediation goals.	Achieving these performance standards may result in: -Exemplary performance ratings. -Option period exercised.

**The Performance Requirement Summary Matrix shall be edited at the CTO level to be consistent with the project requirements.*

10.2 EVALUATIONS

The Government will normally perform evaluations at least annually. The Government will issue appraisals to support exercising subsequent option periods using the Contractor Performance Assessment Reporting System (CPARS). The Contractor will be allowed to provide input to specific performance metrics. However, the Government will make the final determination of specific performance metrics.

10.3 QUALITY ASSURANCE

According to the inspection of services clause (FAR 52.246-5), the Government will evaluate the Contractor's performance under this contract. Government personnel will report all observations. When an observation indicates defective performance, the COR will require the Contractor's representative at the site to initial the observation. The initialing of the observation does not necessarily constitute concurrence with the observation, only acknowledgement that he or she has been made aware of the defective performance. Any action taken by the Contracting Officer as a result of performance observation will be in accordance with the terms of this contract.

10.4 PERFORMANCE EVALUATION MEETINGS

The Contracting Officer may require the Program Manager to meet with the Contracting Officer, Contract Administrator, COR, and other Government personnel as deemed necessary. The Contractor may request a meeting with the Contracting Officer when he or she believes such a meeting is necessary. Written minutes of any such meetings must be recorded in the contract administration file and signed by the Program Manager and the Contracting Officer or Contract Administrator. If the Contractor does not concur with any portion of the minutes, such non-concurrence must be provided in writing to the Contracting Officer within 15 calendar days following receipt of the minutes.

References. The publications listed below form a part of this specification. The Contractor shall use the latest version of all references. The publications are referred to in the text by the basic designation only. Applicable references include but are not limited to the following:

Ref:

- (a) OPNAV-M 5090.1D, Environmental Readiness Program Manual, Sep 2019, or latest edition
- (b) Unified Facilities Criteria (UFC) Design Procedures UFC 1-300-09N, May 2005 version, including change 8 in Feb 2011, or latest edition
- (c) Navy Environmental Restoration Program Manual, 2018, or latest edition
- (d) NAVFAC Pacific Environmental Restoration (ER) Program Project Procedures Manual, May 2015, or latest edition
- (e) U.S. Army Corps of Engineers Safety and Health Requirements Manual EM-385-1-1, Mar 2024, or latest edition
- (f) Site Management Plan Update for the Pearl Harbor Naval Complex, NAVFAC Hawaii, latest edition
- (g) Site Management Plan for the NCTAMS PAC, NAVFAC Hawaii, Jun 2011, latest edition
- (h) Site Management Plan for the Andersen Air Force Base, Guam, Oct 2021, or latest edition
- (i) DoN Toolkit for Preparing Records of Decision, Feb 2011, or latest edition
- (j) DoN Toolkit for Preparing Five-Year Reviews, Dec 2013, or latest edition
- (k) DoD/EPA Joint Guidance on Streamlined Site Closeout and NPL Deletion Process for DoD Federal Facilities, Jan 2006, or latest edition
- (l) DoN User's Guide UG-2072-ENV, Guidance to Documenting Milestones Throughout the Site Closeout Process, Mar 2006, or latest edition
- (m) Marine Corps Order (MCO) P5090.2 3, Environmental Compliance and Protection Program, Jun 2018, or latest edition
- (n) DoD Policy and Guidelines for Acquisitions Involving Environmental Sampling or Testing, Nov 2007, or latest edition
- (o) Environmental Restoration Program Recordkeeping Manual, 2020, or latest edition
- (p) EPA Requirements for Quality Management Plans (EPA QA/R2), Mar 2001, or latest edition
- (q) DoD Uniform Federal Policy for Implementing Environmental Quality Systems (UFP-QS) Final Version, Mar 2005 (EPA-505-F-03-001), or latest edition
- (r) DoD Uniform Federal Policy for Quality Assurance Project Plans (UFP QAPP), Mar 2005, or latest edition
- (s) DoD Environmental Laboratory Accreditation Program (DoD ELAP), Office of the Under Secretary of Defense Memorandum. April 2017 or latest version. <http://www.denix.osd.mil/>
- (t) DoD Quality Systems Manual for Environmental Laboratories, Dec 2023, or latest edition
- (u) Quality Assurance Program Plan, Pearl Harbor Naval Complex and Naval Computer and Telecommunications Area Master Station Pacific, Oahu, Hawaii, NAVFAC Pacific, Oct 2010, or latest edition
- (v) Federal Highway Administrations (FHWA) Manual on Uniform Traffic Control Devices for Streets and Highways (MUTCD), 2009 and 2012 updates, or latest edition
- (w) NOSSA Instruction 8020.15E Explosives Safety Review, Oversight, and Verification of Munitions Responses, September 11, 2020 or latest edition
- (x) NAVSEA OP 5, Ammunitions and Explosive Safety Ashore, Mar 2023, or latest edition
- (y) DoD 4140.62, DoD 4160.21-M, DoD 4160.21-M-1 MPPEH/MD/RRD handling latest editions

-
- (z) DDESB Minimum Qualifications for Personnel Conducting Munitions and Explosives of Concern-Related Activities, Technical Paper 18, Jun 2020, or latest edition
- (aa) U.S. Navy Range Sustainability Environmental Program Assessments Manual (Nov. 2006), or latest edition
- (ab) OPNAV INSTRUCTION 8020.15B/MCO 8020.13 (series), “Explosives Safety Review, Oversight, And Verification of Response Actions Involving Military Munitions, Apr 2021, or latest edition
- (ac) OPNAV INSTRUCTION 3500.39 series, Operational Risk Management (ORM), Mar 2018, or latest edition
- (ad) OPNAV INSTRUCTION 5330.13D series – Department of the Navy Physical Security for Sensitive Conventional Arms, Ammunition, and Explosives (AA& E), May 2021, or latest edition
- (ae) SECNAVINST 5100.10 series – Department of the Navy Policy for Safety, Mishap, Prevention, Occupational Health and Fire Protection Programs, or latest edition
- (af) DoD Explosives Safety Board (DDESB) Standard 6055.9-STD Ammunition and Explosive Safety Standard
- (ag) Marine Corps Order P 8020.10A, Marine Corps Ammunition Management and Explosives Safety Policy Manual, April 2002, or latest edition
- (ah) U.S. Navy, Automated Quality Assessment Planning System (AQAPS) CD, or latest edition
- (ai) DFARS 252.223-7002 Safety Precautions for Ammunition and Explosives, Nov 2023, or latest edition
- (aj) DFARS 252.223-7003 Change in Place Performance-Ammunition and Explosive, Dec 1991, or latest edition
- (ak) DoD
- DoD 4160.21-M, *Defense Material Disposition Manual*, Oct 2015, or latest edition of volume change
 - DoD 4160.21-M-1, *Defense Demilitarization Manual*, Oct 2015, or latest edition
 - DoD 4140.62, Management and Disposition of Material Potentially Presenting an Explosive Hazard, Sept 2019, or latest edition
 - DoD 5100.76, *Physical Security of Sensitive Conventional Arms, Ammunition and Explosives*, Oct 2020, or latest edition
 - DoD 4145.26, *DoD Contractor’s Safety Requirements for Ammunition and Explosives*, Oct 2020, or latest edition
- (al) OPNAVINST 3571.4, *Operational Range Clearance Policy for Navy Ranges*, dated 9 October 2009, or latest version
- (am) Operational Range Clearance Plans for individual ranges.
- (an) NOSSA Instruction 8023.11B, Standard Operating Procedures (SOP) Development, Implementation, and Maintenance for Ammunition and Explosives, 27 April 2011, or latest edition
- (ao) Naval Facilities Engineering Command Guide Specification, NFGS-01450J (Quality Control), March 2000, or latest edition
- (ap) Military Munitions Rule [Federal Register: February 12, 1997 (Volume 62, Number 29)], or latest edition
- (aq) DoDM 4715.26, DoD Military Munitions Rule Implementation Procedures, CH2 June 18, 2019, or latest edition
- (ar) DoD Directive 4715.11, Environmental and Explosives Safety Management on DoD Active and Inactive Ranges within the United States, Change 1, Aug 2018, or latest edition
- (as) DODD 4715.11E, Environment, Safety, and Occupational Health (ESOH), March 2005, or latest edition
- (at) Handbook on the Management of Munitions Response Actions, USEPA (Interim Final), May 2005, or interim final
- (au) DoD Directive 4715.12, Environmental and Explosives Safety Management on DoD Active and Inactive Ranges Located Outside the United States, Change 1, August 2018, or latest edition

-
- (av) USEPA Uniform Federal Policy for Quality Assurance Project Plans Manual, March 2005
 - (aw) USEPA SW 846 Test Methods for Evaluating Solid Waste, Physical/Chemical Methods, Method 8330B Nitroaromatics, Nitramines and Nitrate Esters by High Performance Liquid Chromatography and Method 8321A Solvent Extractable Nonvolatile Compounds by High Performance Liquid Chromatography/Thermospray/Mass Spectrometry (HPLC/TS/MS) or Ultraviolet (UV) Detection
 - (ax) Navy Procedures, Guidance on UFP-QAPP for Munitions of Explosive Concern (MEC)/MPPEH and Geophysical Classification.
 - (ay) ASTM A 880, 1989 Criteria for use in Evaluation of Testing Laboratories and Organization for Examination and Inspection of Steel, Stainless Steel, and Related Alloys
 - (az) ASTM C 1077, 1990 Laboratories Testing Concrete and Concrete Aggregates for Use In Construction and Criteria for Laboratory Evaluation
 - (ba) ASTM D 3666, 1990 (Rev. A) Evaluating and Qualifying Agencies Testing and Inspecting Bituminous Paving Materials
 - (bb) ASTM D 3740, 1988 Evaluation of Agencies Engaged in the Testing and/or Inspection of Soil and Rock as Used in Engineering Design and Construction
 - (bc) ASTM E 329 1990 Use in the Evaluation of Testing and Inspection Agencies as Used in Construction
 - (bd) ASTM E 543 1989 (Rev. A) Determining the Qualification of Nondestructive Testing Agencies
 - (be) ANSI/ASQC E4-1994: Specifications and Guidelines for Quality Systems for Environmental Data Collection and Environmental Technology Programs
 - (bf) Uniform Federal Policy for Quality Assurance Project Plans, Munitions Response QAPP Toolkit, latest edition
 - (bg) MCO 11000.25A Installation Geospatial Information and Services, July 2013, or latest edition
 - (bh) OASD (EI&E) DoD Advanced Geophysical Classification Accreditation Program (DAGCAP) (April 11, 2016), or latest edition
 - (bi) DoD Quality Systems Requirements for Advanced Geophysical Classification, version 1.0 (November 2015), or latest edition
 - (bj) NAVFAC Pacific Quality Management Plan, November 2010, or latest version
 - (bk) Naval Sea Systems Command (NAVSEA) S0420-AA-010 (RAD-010) Radiological Affairs Support Program Manual, Jan 2015, or latest edition
 - (bl) Multi-Agency Radiation Survey and Site Investigation Manual (MARSSIM) (NUREG-1575), latest version
 - (bm) ANSI/HPS N13.59 Characterization in Support of Decommissioning Using the Data Quality Objectives Process, latest edition
 - (bn) NAVFAC Southwest Environmental Work Instructions, most recent versions
 - (bo) Standard Operating Procedure: NAVFAC Northwest Field Procedures Manual, Feb/March 2015 or latest version
 - (bp) Department of Defense Data Validation Guidelines, latest edition (<https://www.denix.osd.mil/edqw/data-validation-guidelines>)
 - (bq) DOD INSTRUCTION 5200.48 – Controlled UNCLASSIFIED Information (CUI), 6 MAR 20 (or latest)

Section D - Packaging and Marking

D1 PREPARATION FOR DELIVERY

(a) All material to be delivered hereunder shall be afforded the degree of packaging (preservation and packing) required to prevent deterioration and damages due to the hazards of shipment, handling and storage. Best commercial practice will be accepted.

(b) Preservation, packaging and packing shall be in accordance with ASTM Designation D3951-88, "Standard Practice for Commercial Packaging", current version.

D2 MARKING OF SHIPMENT

(a) The contractor shall mark all shipments under this contract in accordance with MIL-STD-129, Marking for Shipment and Storage, current version.

(b) Each shipment of material and/or data shall be clearly marked to show the following information:

MARK FOR: Contract Number _____
 Contract Task Order Number _____
 Item Number _____

Destinations to be provided at time contract task orders are issued.

D3 PROHIBITED PACKING MATERIALS

The use of asbestos, excelsior, newspaper or shredded paper (all types including waxed paper, computer paper and similar hygroscopia or non-neutral material) is prohibited. In addition, loose fill polystyrene is prohibited for shipboard use.

D4 CAUTION MARKINGS FOR ITEMS MADE OF ASBESTOS AND CONTAINING ASBESTOS

In accordance with 29 CFR 1910.1001, the following caution labels shall be placed on all products containing asbestos fibers or to their containers, for all items containing asbestos in a form that can be inhaled.

CAUTION
CONTAINS ASBESTOS FIBERS
AVOID CREATING DUST
BREATHING ASBESTOS DUST CAN CAUSE SERIOUS BODILY HARM

The above label shall be printed in letters of sufficient size as to be readily visible and legible.

D5 CLASSIFIED MATTER

Classified Matter, if applicable, will be packed and shipped in accordance with transmission instructions contained in the "Industrial Security Manual for Safeguarding Classified Information" and Applicable Security Requirements Guide.

D6 STORAGE AND MARKING OF HAZARDOUS WASTE CONTAINERS

Hazardous waste shall be stored in containers in accordance with Federal, State, Local and applicable station requirements. All hazardous material coming on the site must have a Safety Data Sheet (OSHA 174 or equivalent.)

Section E - Inspection and Acceptance

E1 INSPECTION AND ACCEPTANCE (DESTINATION)

Inspection and acceptance of the services to be furnished hereunder shall be made at destination by the Contracting Officer's Representative (COR) or Remedial Project Manager, as designated on the individual contract task order.

E2 ACCEPTANCE

The performance and quality of work delivered by the contractor, including services rendered and any documentation or written material compiled shall be subject to inspection, review, and acceptance by the Government.

E3 GOVERNMENT QUALITY ASSURANCE

In accordance with FAR 52.246-5 "INSPECTION OF SERVICES-COST REIMBURSEMENT (APR 1984)" clause, paragraph (c), each phase of the services rendered under this contract is subject to government inspection during both the contractor's operations and after completion of the tasks. The Government's Quality Assurance Surveillance Program is not a substitute for Quality Control by the Contractor.

E4 PERFORMANCE EVALUATION MEETINGS

The Contractor shall meet with the Government at a time designated by the Government, probably at monthly intervals to discuss overall management of the contract. A mutual effort shall be made to resolve all problems identified. The written minutes of these meetings, prepared by the Contractor, shall be signed by the Government's representative and the Contractor's representative. Should the Contractor not concur with the minutes, the Contractor shall state in writing, to the Contracting Officer any areas of disagreement within 15 calendar days.

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.246-5	Inspection of Services-Cost-Reimbursement.	Apr 1984		
52.246-15	Certificate of Conformance.	Apr 1984		

Section F - Deliveries or Performance

F1 PLACE OF PERFORMANCE

The work to be ordered under this contract will be performed at various locations within the Naval Facilities Engineering Systems Command (NAVFAC) Pacific area of responsibility (NAVFAC Hawaii, NAVFAC Marianas, NAVFAC Northwest, and NAVFAC Southwest). Work may also be added and performed anywhere outside of the NAVFAC Pacific area of responsibility, as required by the Government. The exact location of the required effort will be specified in the individual Task Orders.

F2 TERM OF CONTRACT

This contract is estimated to be awarded in 2027 for a base year and four one-year options, under CLIN 0001. The base contract term shall be for a period of 12 months commencing on the date of contract award. The Government has the option to extend the term of the contract in accordance with FAR 52.217-9, OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000). The Government also has the option to extend the services up to an additional six (6) months, in accordance with FAR 52.217-8 OPTION TO EXTEND SERVICES (NOV 1999), as referenced in Section I. The entire term of the contract is a maximum of \$245 million or 66 months.

F3 DELIVERY OF DATA (TASK ORDERS)

Data shall be delivered in accordance with the schedules and destinations specified on the individual task orders issued hereunder.

Overall Contract Delivery Period

Contractor
Destination

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/Deviation	Variation Effective Date
52.242-15	Stop-Work Order. (Alternate I)	Aug 1989	Alternate I	Apr 1984

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/Deviation	Variation Effective Date
252.223-7003	Change in Place of Performance--Ammunition and Explosives.	Dec 1991		

Section G - Contract Administration Data

G1 CONTRACT ADMINISTRATION DATA

The Contracting Officer for this contract is:

BRYSON LUM

Naval Facilities Engineering Systems Command Pacific (CON76)

258 Makalapa Drive, Suite 100

Joint Base Pearl Harbor-Hickam, HI 96860-3134

The Contract will be administered by:

Naval Facilities Engineering Systems Command Pacific (CON76)

Environmental Contracts Branch

258 Makalapa Drive, Suite 100

Joint Base Pearl Harbor-Hickam, HI 96860-3134

The Contracting Officer's Representative (COR) is:

JILL UEDA

Naval Facilities Engineering Systems Command Pacific (EV4)

258 Makalapa Drive, Suite 100

Joint Base Pearl Harbor-Hickam, HI 96860-3134

Payment will be made by:

--To be determined on individual task order.

G2 CONTRACT TASK ORDERS FOR COST REIMBURSEMENT CONTRACT

Work under this contract shall be ordered by written contract task orders issued on DD Form 1155 (Order for Supplies or Services).

G3 ORDERING PROCEDURES

Each task order shall be placed in accordance with the following procedures:

(a) Request for Proposal (RFP)-The Contracting Officer shall furnish the contractor with a written request for proposal. The request shall include:

- (1) A description of the specified work required, (including a designation of whether the work is service or construction),
- (2) the desired delivery schedule,
- (3) the anticipated performance period and critical milestones,
- (4) the place and manner of inspection and acceptance, and
- (5) any other pertinent information (such as applicable wage determinations).

(b) The contractor shall, within the time specified, provide the Contracting Officer with:

(1) A detailed cost estimate showing direct and indirect costs, organized by using the Hazardous, Toxic, and Radioactive Waste (HTRW), Remedial Action Work Breakdown Structure (WBS). The cost estimate shall be summarized to the fourth level of the WBS identifying the unit of measure and unit cost. Additional backup cost data shall be provided as appropriate.

(2) Proposed schedule for completing the contract task order using the third level of the WBS.

(3) Dollar amount and type of proposed subcontract (including information required by and in accordance with FAR 52.244-2, SUBCONTRACTS (see Section I)

(4) Fixed fee (calculated in accordance with Attachment J.3 - Indirect Ceiling Rate and Fee Application).

(5) Total estimated cost plus fixed fee.

(c) Upon receipt of the estimate, the Contract Specialist and Remedial Project Manager (RPM), as needed, shall review the estimate to ensure acceptability to the Government, enter into such discussions with the contractor as may be necessary to correct and/or revise the proposed order estimate, and effect whatever internal review processes are required.

(d) Upon completion of this process, the Contracting Officer shall execute a task order issued on a DD Form 1155 and forward it to the contractor (Electronic signatures may be utilized). Only upon receipt of such an executed order, signed by the Contracting Officer, shall the contractor commence work.

(e) Each task order shall include as a minimum:

- (1) The date of the order;

(2) Contract and Order number;

(3) Performance Work Statement, including references to applicable specifications;

(4) The delivery date or period of performance;

(5) Accounting and appropriation data; and

(6) An estimated cost of performance and fixed fee. Under no circumstances shall the contractor exceed 100% of the estimated costs (excluding fixed fee) without prior written authorization by the Contracting Officer.

(7) The place and manner of inspection and acceptance;

(8) Any Government-furnished property, material, or facilities to be made available for performance of the order; and

(9) Any other information deemed necessary to the performance of the order.

(f) The contractor shall notify the Contracting Officer if any apparent difficulties with regard to performance according to the terms of the order are anticipated or any time difficulties in performance arise. Each task order shall be deemed to include the clauses LIMITATION OF COSTS (FAR 52.232-20) and LIMITATION OF FUNDS (FAR 52.232-22) which are located in Section I, and such clause shall be applicable to each task order individually. The Contractor shall notify the Contracting Officer in writing whenever it has reason to believe that the costs the contractor expects to incur under the contract task order in the next 60 days, when added to all costs previously incurred, will exceed 75% of the estimated cost of the task order. If, at any time during performance of an order, it appears that additional funds will be required to complete performance of the contract task order, the contractor shall promptly notify the Contracting Officer in writing. Such notification shall include the costs expended, an estimate of costs required to complete the order, and an explanation of why the originally negotiated estimated cost was not adequate. The Government shall have the right to require the contractor to continue performance up to the originally estimated cost level and to suspend work thereafter; to negotiate a new set of work priorities to be completed within the remaining funds; or to modify the order, increasing the estimated cost to the level appropriate for completion of the work without additional fee. Fee may be increased only if there is an increase to the original scope of the order.

G4 NOTIFICATION REQUIRED UNDER LIMITATION OF COST AND LIMITATION OF FUNDS CLAUSES

LIMITATION OF COST, FAR 52.232-20, and LIMITATION OF FUNDS, FAR 52.232-22, incorporated by reference in Section I, are applicable to each task order individually. Limitation of Cost applies if the task order is fully funded at the time of issuance. Limitation of Funds applies if the task order is incrementally funded. "Task Order" is substituted for "Schedule" wherever that word appears in the clauses. The contractor shall notify the Contracting Officer in writing whenever it has reason to believe:

(a) For LIMITATION OF COST:

(1) The costs the contractor expects to incur under the task order in the next 60 days (unless varied in the task order) when added to all costs previously incurred, will exceed 75 percent (unless varied in the task order) of the estimated cost specified in the task order;

(2) The total cost for the performance of the task order, exclusive of any fee, will be either greater or substantially less than had been previously estimated.

(b) For LIMITATION OF FUNDS:

(1) The costs the contractor expects to incur under the task order in the next 60 days (unless varied in the task order), when added to all costs previously incurred, will exceed 75 percent (unless varied in the task order) of the total amount so far allotted to the task order;

(2) Sixty (60) days (unless varied in the task order) before the end of the period specified in the task order, the contractor shall notify the Contracting Officer in writing of the estimated amount of additional funds, if any, required to continue timely performance under the task order.

NOTE: Notification requirements aspects of LIMITATION OF COST and LIMITATION OF FUNDS are restated here for emphasis. Other aspects of these clauses, incorporated by reference in Section I herein, which are not restated above remain in full force and effect as if provided in full text.

G5 DELEGATION OF AUTHORITY TO ADMINISTRATIVE CONTRACTING OFFICER (ACO)

Each CTO will designate the appropriate ACO.

G6 CONTRACTING OFFICER'S REPRESENTATIVE (COR)

The Contracting Officer will appoint the COR for this contract in writing at time of award.

A Contracting Officer's Representative (COR) is NOT a Contracting or Ordering Officer and DOES NOT have authority to take any action, either directly or indirectly, that would change the pricing, quantity, quality, place of performance, delivery schedule, or any other terms and conditions of the contract (or task order), or to direct the accomplishment of effort which goes beyond the scope of the Performance Work Statement in the contract (or task order).

The COR is technically responsible for monitoring of contractor performance and is the sole technical point of contact.

The Contracting Officer may also appoint, in writing, an alternate COR to perform the responsibilities and functions of the COR.

G7 TECHNICAL DIRECTION

(a) As provided by the contract provision, "CONTRACTING OFFICER'S REPRESENTATIVE (COR)", performance of work under this contract is subject to the written technical direction of the Contracting Officer's Representative (COR), who shall be specifically appointed by the Contracting Officer in writing. "Technical Direction" means a directive to the Contractor that approves approaches, solutions, designs, or refinements; fills in details or otherwise completes the general description of the work or documentation items; shifts emphasis among work areas or tasks; or furnishes similar instructions to the Contractor. Technical direction includes requiring studies and pursuit of certain lines of inquiry regarding matters within the general tasks and requirements in the Performance Work Statement of the task order.

(b) The COR does not have the authority to, and shall not, issue any instruction purporting to be technical direction which:

- (1) Constitutes an assignment of additional work outside the Performance Work Statement;
- (2) Constitutes a change as defined in the Changes Clause;
- (3) In any manner causes an increase or decrease in the total estimated cost, Fixed Fee, or the time required for task order performance;
- (4) Changes any of the expressed terms, conditions, or specifications of the task order;
- (5) Interferes with the Contractor's rights to perform the terms and conditions of the order, or;
- (6) Authorizes the Contractor to incur costs in excess of the estimated cost or other limitations on costs or funds set forth in this contract.

(c) All technical direction shall be issued in writing by the COR.

(d) When, in the opinion of the contractor, the COR or any other Government official other than the Contracting Officer, requests effort outside the existing scope of the contract (or task order), the contractor shall promptly notify the Contracting Officer in writing. No action shall be taken by the contractor under such direction until the Contracting Officer has issued a modification to the contract (or task order) or has otherwise resolved the issue.

G8 CONTRACT AUDIT OFFICE

The contract audits will be performed by (to be completed at time of award)

G9 SUBMISSION OF INVOICES AND REQUIREMENTS FOR APPROVAL

(a) The contractor shall submit the original and 1 copy of the public voucher SF 1034 and supporting documentation for each invoice to the cognizant Defense Contract Audit Agency Office pursuant to FAR 52.216-7 Allowable Cost and Payment.

(b) One copy of Public voucher SF 1034 (including supporting documentation) in electronic format shall be forwarded concurrently to the cognizant Contract Administrator, for the Navy review at the following address. The specific requirements regarding the supporting documentation for monthly invoices will be a matter of discussion at the Pre-Performance Conference.

(c) Under the provisions of FAR 42.603(b), the DCAA auditor is an authorized representative of the Contracting Officer for examining vouchers received directly from the contractor. Those costs claimed, which are determined by the DCAA auditor to be unallowable or suspended, will be identified on DCAA Form 1 "Notice of Contract Costs Suspended and/or Disapproved," which will be issued to the Contractor with a copy to the cognizant ACO. On such actions of suspended or disapproved costs, the contractor may appeal in writing to the cognizant ACO who will make a determination promptly. Any final decision by the Contracting Officer may be appealed thereafter in accordance with the provisions of the "disputes" clause of this contract.

(d) Invoices requesting interim payments under this cost reimbursement contract shall be submitted once a month. There shall be a lapse of no more than 90 calendar days between performance and submission of an interim payment invoice, except for adjustments to annual indirect rates, which will be ascertained at time of audit. The Contracting Officer may disallow charges older than 90 days.

(e) Incurred costs invoiced shall be in accordance with FAR 52.216-7, ALLOWABLE COST AND PAYMENT. (Team subcontractor invoices must contain the same format and level of detail specified for the prime.) The invoice shall contain a summary section for the contract as a whole and for each contract task order. Billing data shall show current and cumulative totals to date for each cost element. Detail summaries for contract task orders shall report billing data for all cost elements to the third level WBS. The following minimum detail is required at the third WBS level, at the CTO summary level, and the contract summary level unless otherwise directed by the contracting officer:

(1) Contract number and invoice number (numbered sequentially from "1").

(2) CTO Number, project title and brief description of work.

(3) Direct Labor: Provide regular and premium direct labor hours specifying labor category and labor hours used. Provide an alphabetical listing by employee including: a record of time worked showing the name of the individual, labor classification for function performed, hours worked, hourly rate paid and total paid to each individual. Current labor charges must be able to be substantiated by individual daily job time cards. Contractor's accounting system must be able to provide timely substantiation for current labor charges, e.g. by individual daily

job timesheets.

(4) Material: Charges are to be substantiated by evidence of actual payment and shall include all cash and trade discounts, rebates, allowances, credits, salvage, commissions and other benefits. This shall include a brief but specific explanation of current charges.

(5) Subcontract: Provide an information copy of each invoice and identify the period of performance. Provide a list summarized for each vendor, which shows the vendor's name, amount billed, and date paid. For cost reimbursement subcontracts, show the amount of fee separate from the cost of performance.

(6) Travel, Relocation, and Per Diem: Reimbursement of travel costs will be in accordance with the Joint Travel Regulation (JTR) as determined applicable by the Contracting Officer. Reimbursement of relocation costs will be in accordance with the contract terms, travel regulations, and FAR Subpart 31.2. Current travel amounts are to be supported with expense reports and receipts and the following data for each trip: (i) dates of travel; (ii) mode of transportation and cost; (iii) point of origin; (iv) destination; (v) name of traveler; (vi) reason for travel; and (vii) per diem rates.

(7) Other Direct Costs: Provide a list summarized per ODC category that shows the vendor's name, amount billed per vendor, and date paid. This list shall be supported by a copy of the receipt, if applicable. For inhouse efforts, show how the cost was computed.

(8) Facilities Costs.

(9) Equipment: Identify and segregate the costs by rental equipment, leased equipment (operating and capital), Contractor-acquired-Government-owned equipment, and Contractor-owned equipment (expensed using an equipment usage rate). Provide a list summarized for each vendor that shows the vendor's name, amount billed, and date paid. The list shall reflect the period of performance and shall be supported by a copy of receipts or subcontractor invoices for the charges.

(10) Transportation and Disposal Costs

(11) Indirect Costs: Identify rates, application bases, and amounts.

(12) Fixed Fee Paid: Identify the billed fixed fee separately.

G10 INVOICING PROCEDURES FOR UNCOMPENSATED OVERTIME

(a) The contractor hereby warrants that billing under this contract shall be based upon their Defense Contract Audit Agency (DCAA) approved procedures for uncompensated overtime and that it will achieve any reductions of the 40 hour work week salary rate for exempt personnel as included in its proposal. Reconciliation to the expanded average work week (and reduced average hourly rate) shall be accomplished annually. The contractor further agrees to insert in any subcontract or consultant agreement hereunder, provisions which shall conform substantially to the language of this clause.

(b) The contractor and subcontractor(s) shall provide and maintain a cost accounting system acceptable to the DCAA, which records all hours worked (including those in excess of eight hours per day and/or 40 hours per week) for all types of contracts and for all customers consistent with approved accounting standards. In addition, all hours shall be burdened and shall be in the base for allocation of overhead and general administrative expenses.

(c) Within 45 days after completion of each annual period of performance, the contractor shall submit reports showing the aggregate percentage reduction in billing rates due to the expanded work week for the performance period. In the event that such actual reduction is less than the reduction proposed, the cost attributable to that difference will be disallowed by the Contracting Officer.

(d) The contractor hereby agrees to provide the following breakdown with invoices:

A list of all individuals direct-charged, with each individual's name, contract (or subcontractor) labor category, Government labor category, current and cumulative labor hours by individual, as well as the number of regular hours (based on a 40 hour work week) and the number of hours worked in excess of a 40 hour work week.

G11 FIXED FEE DETERMINATION AND PAYMENT

Fixed fee will be proposed on individual task orders. The proposed fixed fee shall not exceed 7% of the total estimated costs for the task order.

(a) Types of Task Orders (hereafter referred to as TOs) -

The following types of task or delivery orders may be issued under this contract:

(*) A cost-plus-fixed-fee (CPFF) completion task order will be issued when the scope of work defines a definite goal or target which leads to an end product deliverable (e.g., number of acres of vegetation to clear and removal of MEC).

(*) A cost-plus-fixed-fee (CPFF) term (level of effort) task order will be issued when the scope of work is defined in general terms requiring only that the contractor devote a specified LOE for a stated time period.

Both completion and term (level-of-effort) type orders may be issued under this contract. It is anticipated that the overwhelming preponderance (estimated 95%) of task orders will be completion. The Request for proposal issued for each TO will set forth the type of order deemed appropriate by the Government. If the Contractor disagrees with the Government's assessment, the Ordering Officer and the Contractor shall attempt to resolve the matter through the negotiation process.

(b) Fixed Fee Pool - The fixed fee pool for individual task orders will consists of the total fixed fee to be paid to the prime Contractor and all cost reimbursement subcontractors. SUBCONTRACTOR FEE WILL NOT BE BILLED AS A SEPARATE DIRECT COST ON A TASK ORDER INVOICE SUBMITTED BY THE CONTRACTOR TO THE GOVERNMENT, BUT WILL BE PAID TO THE SUBCONTRACTOR BY THE PRIME CONTRACTOR FROM THE FEE BILLED FROM THE FIXED FEE POOL.

(c) Computation of Fee - The percentage of the fee applicable to orders will be accordance with the fee percentage proposed for the individual task order. Fixed fee will not be allowed on the following:

- (1) Equipment (Contractor - Acquired Property)
- (2) Travel
- (3) Facilities Capital Cost of Money (FCCOM)
- (4) Taxes
- (5) Fee on cost reimbursable subcontractor's costs at any tier.

(d) Completion Task Orders- An estimated level of effort (labor), material, equipment and all other indirect and other direct costs shall be negotiated for each completion task order. The estimated level of effort is established for the purpose of determining the estimated cost and the amount of fixed fee payable on the order and for tracking to the level of effort established in the contract, it is not construed as a performance requirement. If the task (s) required under an order is completed and the cost is less than that negotiated (under run), the contractor is entitled to full payment of the fixed fee specified in the order and the estimated cost of the task order may be reduced to recover excess funds (see exceptions provided under paragraph (d)(1) below). If the task required under a particular TO cannot be completed within the negotiated estimated cost (an overrun situation), the Government may elect to increase the estimated cost with no additional fee allocation.

(1) When it is determined that the total cost of performance of the task order is expected to be substantially less than what was originally estimated, the contractor shall notify the Contracting Officer. If this under run is due to a significant decrease in the level of effort and/or time required to perform the tasks from what was originally negotiated and expected, the Government may request continued work (additional acreage clearance, etc.) without any additional increase in fee.

(e) Term Task Orders-Level of Effort - It is understood and agreed that the number of hours and the total dollar amount for each labor category specified in any term task order issued under this contract are estimates only and shall not limit the use of hours or dollar amounts in any category which may be required and provided for under an individual task order. Accordingly, in the performance of any task order, the contractor shall be allowed to adjust the quantity of labor hours provided for within labor categories specified in the order provided that in so performing the contractor shall not in any event exceed the ceiling price restrictions of any order, including modifications thereof.

(1) In the event that less than 100% of the established level of the TO effort (or said level of effort has been previously revised upward, of the fee bearing portion of the additional hours by which the level of effort was last increased) is actually expended by the completion date of the TO, the Government shall have the option of:

(i) Requiring the Contractor to continue performance, subject to the provisions of the "Limitation of Funds" clause, as applicable, until the effort expended equals 100% of the established level of effort (or of the fee bearing portion of the last upward revision); or

(ii) Effecting a reduction in the fixed fee by the percentage by which the total expended man-hours is less than 100% of the original level of effort (or the fee-bearing portion of the last upward revision).

(2) The contractor shall not be obligated to continue performance beyond the Estimated Total Hours, except that the Ordering Officer may require the contractor to continue performance in excess of the Estimated Total Hours until the total estimated cost has been expended. The Government will not be obligated to pay fee on any hours expended in excess of the Estimated Total Hours. Any hours expended in excess of the Estimated Total Hours shall be excluded from all fee computations and adjustments.

(f) Payment of Fixed Fee - The Government will make provisional fixed fee payments to the contractor as work progresses and as billed under monthly invoices. Requests for provisional fee payments must be consistent with the information stated hereto in the Contract and as provided under individual task orders. The Government will issue completion and term task orders. Provisional fee payments for these task orders will be made as follows:

(1) Term Task Order- provisional fixed fee payments for term task orders will be calculated and paid based on a fixed rate per labor hour estimated and expended as shown in the following sample:

Task Order estimated cost \$100,000

Level of effort- 1,000 hrs.

Fixed fee percent established in the Contract- 7%

$\$100,000 \text{ times } 7\% = \$7,000$

$\$7,000 \text{ divided by } 1,000 \text{ hrs.} = \$7.00 \text{ fee/per labor hour}$

Language substantially the same as the following will be incorporated in the task order schedule for payment of fixed fee:

"The fixed fee for work performed under this contract is \$7,000 provided that approximately 1,000 hours of technical effort are employed by the contractor in performance of this task order. If substantially fewer than 1,000 hours of technical effort are employed, the fixed fee shall be equitably reduced to reflect the reduction of work. The Government shall make monthly payments of the fixed fee at the rate of \$7.00 per direct labor hour invoiced by the contractor. All payments shall be in accordance with the provisions of FAR 52.216-8, "Fixed Fee," and FAR 52.216-7, "Allowable Cost and Payment." Payments shall be subject to the withholding provisions of Paragraph (b) of FAR 52.216-8, provided that the Contracting Officer withholds a reserve not to exceed 15 percent of the total fixed fee or \$100,000, whichever is less, to protect the Government's interest. Any balance of fixed fee due the contractor shall be paid to the Contractor, and any over-payment of fixed fee shall be repaid to the Government by the Contractor, or otherwise credited to the Government at the time of final payment."

(2) Completion Task Order- Fee will be paid monthly based on a percentage of physical or financial completion of each task order. The lower percentage of physical or financial completion will be used to determine interim payment of fixed fee for each task order. The Government will review progress reports to verify that progress is commensurate with the fee requested by the contractor. Progress and fee requested will also be compared against incurred costs invoiced, to determine if there are any significant under runs or overruns. All payments shall be in accordance with the provisions of FAR 52.216-8, "Fixed Fee," and FAR 52.216-7, "Allowable Cost and Payment." Payments shall be subject to the withholding provisions of Paragraph (b) of FAR 52.216-8, provided that the total of all such monthly payment shall not exceed eighty-five (85%) percent of the fixed fee. Any balance of fixed fee due the contractor shall be paid to the Contractor, and any over-payment of fixed fee shall be repaid to the Government by the Contractor, or otherwise credited to the Government at the time of final payment."

Fixed Fee will be proposed under individual task orders. Fixed fee will not be allowed on the following:

- (1) Equipment (Contractor - Acquired Property)
- (2) Travel
- (3) Facilities Capital Cost of Money (FCCOM)
- (4) Taxes
- (5) Fee on cost reimbursable subcontractor's costs at any tier.

Additionally, no fee markup is allowed by Cost Reimbursable Subcontractors. The fixed fee will consist of the total fixed fee pool for each task order and will include the total fee to be paid to the prime Contractor and all cost reimbursement Subcontractors. Subcontractor fee will not be billed as a separate direct cost on the voucher submitted by the Contractor to the Government, but will be paid to the Subcontractor by

the Prime Contractor from the fee billed from the fixed fee pool. For clarification purposes, the following example is provided for fee calculation:

COST REIMBURSABLE SUBCONTRACTOR

Labor	\$1,000
Labor Overhead 50%	\$ 500
Subtotal	\$1,500
Material	\$1,000
Fixed Price Subcontractor	\$ 100
ODC	\$1,000
G&A 10%	\$ 360
Subtotal	\$3,960
Total Fixed Fee 0%	\$ 0
Total Subcontractor Cost	\$3,960

PRIME CONTRACTOR

Labor	\$1,000
Labor Overhead 50%	\$ 500
Subtotal	\$1,500
Material	\$1,000
Fixed Price Subcontractor	\$1,000
Cost Subcontractor	\$3,960
ODC	\$1,000
G&A 10%	\$ 846

Subtotal	\$9,306
Total Fixed Fee 7%	\$ 651*
TOTAL	\$9,957

Total Fixed Fee of \$651 will be paid directly to the Prime for allocation to any cost reimbursable team Subcontractors.

G12 STAFFING/PHASE-IN

Contract task orders may be issued on the date the contract becomes effective. The contractor is required to be fully staffed and operational 45 days after the effective date of the contract. The contractor shall provide a balanced work force as needed to accomplish work required under contract task orders issued.

G13 TRAVEL COSTS

(a) Travel Policy. Generally the Government will reimburse the Contractor for all allowable, allocable and reasonable travel costs incurred by the contractor in performance of the contract/CTO in accordance with FAR subpart 31.2 and the rules and definitions set forth for relocation, temporary duty and local travel in the Joint Travel Regulation (JTR) but not to exceed the amounts authorized in the JTR.

(b) Official Travel.

(1) Temporary Duty (Overnight Stay Required) Beyond 50 Mile Radius. If a temporary duty station to which an employee is required to travel in the performance of this contract is beyond the circular boundary created by a 50 mile radius of the employee's official point of departure, and the period of official travel is greater than two hours more than the employee's regular work day, the cost of transportation and per diem will be reimbursed. Official travel begins at the time an employee leaves his/her home, office, or other authorized point of departure and ends when the traveler returns to his/her home, office, or other authorized point at the conclusion of the trip.

(2) One Day Travel Beyond 50 Miles Radius. When the period of official travel is 24 hours or less, but greater than two hours more than the employee's regular work day, transportation and per diem costs will be reimbursed, consistent with company policy but not to exceed the amounts authorized in the JTR. If lodging is not required, the maximum allowable reimbursement will be the meals and incidental expenses (M&IE) rate, prorated as provided in the JTR. If lodging is required, the rules for travel of more than 24 hours apply.

(3) Local Travel (within 50 Miles Radius of Official Point of Departure) or at Temporary Duty Station. Cost of commercial transportation and Privately Owned Vehicles (POV mileage) used in the performance of this contract for local travel or at a temporary duty station will be reimbursed, if approved by appropriate Contractor supervisory personnel as advantageous to the Government. For local travel required in the performance of this contract, transportation costs will be reimbursed for the distance that exceeds the employee's regular commuting distance.

G14 PRE-PERFORMANCE CONFERENCE

Prior to commencing work, the contractor may be required to meet with the Contracting Officer and/or designated technical personnel at a mutually agreeable time to discuss and develop mutual understandings concerning scheduling and administering work.

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.201-7000	Contracting Officer's Representative.	Dec 1991		
252.204-7006	Billing Instructions-Cost Vouchers	May 2023		
252.231-7000	Supplemental Cost Principles	Dec 1991		
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	Dec 2018		
252.232-7008	Assignment of Claims (Overseas).	Jun 1997		

DFARS Clauses Incorporated by Full Text

252.232-7006 Wide Area WorkFlow Payment Instructions. (Jan 2023)

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

TBD

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

TBD

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

<i>Field Name in WAWF</i>	<i>Data to be entered in WAWF</i>
Pay Official DoDAAC	==
Issue By DoDAAC	==
Admin DoDAAC	==
Inspect By DoDAAC	==
Ship To Code	==
Ship From Code	==
Mark For Code	==
Service Approver (DoDAAC)	==
Service Acceptor (DoDAAC)	==
Accept at Other DoDAAC	==
LPO DoDAAC	==
DCAA Auditor DoDAAC	==

Other DoDAAC(s)	==
-----------------	----

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

TBD

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Section H - Special Contract Requirements

H1 DFARS 228.102-1 PERFORMANCE AND PAYMENT BONDS AND ALTERNATIVE PAYMENT PROTECTIONS FOR CONSTRUCTION CONTRACTS

The requirement for performance and payment bonds is waived for cost-reimbursement contracts. However, for cost-type contracts with fixed-price construction subcontracts over \$40,000, require the prime contractor to obtain from each of its construction subcontractors performance and payment protections in favor of the prime contractor as follows:

- (1) For fixed-price construction subcontracts over \$40,000, but not exceeding \$150,000, payment protection sufficient to pay labor and material costs, using any of the alternatives listed at FAR 28.102-1(b)(1).
- (2) For fixed-price construction subcontracts over \$150,000--
 - (i) A payment bond sufficient to pay labor and material costs; and
 - (ii) A performance bond in an equal amount if available at no additional cost.

H2 PROFESSIONAL LABOR RATES AND ESCALATION CEILINGS

The labor categories and labor rates identified in Attachment J.1 - Direct Labor Bid and Billing Rate Submission will become a part of the contract. The provisional/bid and ceiling rates proposed and submitted with the RFP shall be utilized for the exercise of each option year. All ceiling provisions will apply to the prime contractor as well as each cost reimbursable subcontractor.

Attachment J.1A reflects the escalation rate applied to the direct labor bid rate for each contract period. No additional escalation will be applied to the labor rates on Attachment J.1 when option periods are exercised, as escalation has already been factored into the option year rates.

The labor categories and labor rates identified in Attachment J.1 establish provisional/bid rates for negotiating baseline costs and maximum ceilings for Direct Labor throughout the contract. Contractor Task Order proposals shall be based on the accepted provisional/bid rates. Invoiced rates will be based on the actual labor rates in effect, not to exceed ceiling rates established under the contract.

Where it is determined necessary to utilize a specific individual on this contract whose actual labor rate exceeds the established ceiling, the Contractor will be required to obtain prior written approval by the Contracting Officer. In the event that such approval is not properly obtained, the Government will only be required to reimburse the Contractor at the ceiling rate.

All ceiling provisions will apply to the prime contractor, each JV member, as well as each cost reimbursable subcontractor.

H3 SERVICE CONTRACT LABOR STANDARDS AND CONSTRUCTION WAGE REQUIREMENTS CEILING

(a) Service Contract Labor Standards Wage Determinations and Construction Wage Requirements Wage Determination shall be incorporated into applicable Contract Task Orders. Any labor categories used during contract performance that are covered under the wage determination, and are not listed in the applicable wage determination, shall be subject to conformance procedures.

(b) The minimum rates as set forth in the applicable wage determinations plus the percentage proposed in Attachment J.5, Service Contract Labor Standards and Construction Wage Requirements Ceiling Labor Rates, establish maximum ceilings for construction and service direct labor rates

during the contract period of performance. The bid and bill rates for service and construction categories shall be equal to or greater than the minimum wage determination rates specified in the DOL Wage Determination incorporated in the task order, but shall not exceed the maximum percent proposed in Attachment J.5.

The contractor may use any employees whose wage rates do not exceed the ceiling rate for the particular trade. If the contractor proposes to use an employee whose salary rate exceeds the ceiling, it must justify the cost effective nature of its choice and obtain approval from the Contracting Officer. This decision will be made during negotiation of the contract task order.

H4 GUAM PREVAILING LABOR RATES, MINIMUM WAGE RATES AND OTHER LABOR STANDARDS

Offerors maintain the responsibility to comply with the Labor Certification process and current prevailing wage rates (imported labor), as applicable. Additional information may be obtained from the Department of Labor, Guam.

H5 NOTICE OF NON-ALLOWABILITY OF DIRECT CHARGES FOR GENERAL PURPOSE INFORMATION TECHNOLOGY

(a) Notwithstanding the ALLOWABLE COST AND PAYMENT clause (FAR 52.216-7) of Section I, costs for the acquisition and use of Information Technology shall not be considered as an allowable direct charge to this contract.

(b) A definition of Information Technology can be found in FAR 2.101.

(c) Contractors are expected to have the necessary facilities to perform the requirements of this solicitation/contract. This includes any Information Technology necessary to perform the requirements herein.

H6 PROPOSAL PREPARATION COSTS

The costs for preparation of cost and technical proposals applicable to all contract task orders will NOT be allowed as a direct charge under this contract.

H7 HOLIDAYS

(a) All or a portion of the effort under this contract will be performed on a Government installation. Listed below are the holidays observed by the Federal Government. The Contractor will not be allowed to work on the Government installation on these days.

<u>NAME OF HOLIDAY</u>	<u>TIME OF OBSERVANCE</u>
New Year's Day	1 January
Martin Luther King, Jr. Day	Third Monday in January
President's Day	Third Monday in February
Memorial Day	Last Monday in May
Juneteenth	19 June

Independence Day	4 July
Labor Day	First Monday in September
Indigenous Peoples' Day	Second Monday in October
Veteran's Day	11 November
Thanksgiving Day	Fourth Thursday in November
Christmas Day	25 December

(b) In the event any of the above holidays occur on a Saturday or a Sunday, then such holiday shall be observed by the Contractor in accordance with the practice as observed by the assigned Government employees at the using activity.

(c) If the contractor is prevented from performance as the result of an Executive Order or an administrative leave determination applying to the using activity, such time may be charged to the contract as direct cost provided such charges are consistent with the contractor's accounting practices.

H8 NOTICE OF CONSTRUCTIVE CHANGES

No order, statement or direction of the Contracting Officer, the authorized representative of the Contracting Officer whether or not acting within the limits of his authority, or any other representative of the Government, shall constitute a change under the "Changes" clause of this contract or entitle the Contractor to an equitable adjustment of the contract price or delivery schedule, unless such a change is issued in writing and signed by the Contracting Officer. No representative of the Contracting Officer shall be authorized to issue a written change order under the "Changes" clause of this contract. The Contractor shall be under no obligation to comply with any orders or directions not issued in writing and signed by the Contracting Officer. In accordance with FAR 52.243-7, the contractor shall promptly notify the Contracting Officer when he considers any direction he receives to be a change to the originally negotiated scope of the contract task order. When the contractor receives a technical direction he believes to be a change, he shall contact the Contracting Officer as required in FAR Clause 52.243-7, "Notification of Changes."

H9 GOVERNMENT FURNISHED/CONTRACTOR ACQUIRED PROPERTY

The Government may furnish to the contractor or direct the contractor to purchase, for use in connection with this contract, various property to be identified on the individual contract task orders. Each contract task order, as applicable, will identify the property, quantity, original or estimated acquisition value, and place of delivery. In accordance with FAR 52.245-1 (SEP 2021), Contractors shall establish and implement property management plans, systems, and procedures at the contract, program, site or entity level in order to manage Government property in its possession.

H10 SECURITY REQUIREMENTS

a. The Contractor and its subcontractors shall comply with all security requirements specified in each CTO as well as all activity security requirements. Upon request, the Contractor shall submit the name and address of all personnel hired for work on this contract, and questionnaires, and other forms as may be required for security clearances.

b. Contractor and subcontractor employees shall not disclose or cause to be disseminated any information concerning the operations of the activity which could result in or increase the likelihood of the possibility of a breach of the activity's security or interrupt the continuity of its operations.

c. Disclosure of information relating to the services hereunder to any person not entitled to receive it, or failure to safeguard any classified information that may come to the Contractor or any person under his control in connection with work under this contract, may subject the contractor, his agents or employees to criminal liability under 18 U.S.C. Sec. 793, "Gathering, Transmitting, or Losing Defense Information," 18 U.S.C. Sec. 794 "Gathering or Delivering Defense Information to Aid Foreign Government" and 18 U.S.C. Sec. 798, "Disclosure of Classified Information"

- d. All inquiries, comments or complaints arising from any matter observed, experienced, or learned as a result of or in connection with the performance of this contract, the resolution of which may require the dissemination of official information will be directed to the Contracting Officer.
- e. Deviations from or violations of any of the provisions of this contract requirement will, in addition to all other criminal and civil remedies provided by law, subject the Contractor to immediate termination for default and/or the withdrawal of the Government's acceptance and approval of employment of the individuals involved.
- f. Classified material will generally not be accessed under this contract however, much of the information is politically sensitive and shall not be released without prior written consent of the Contracting Officer. In the event the Contractor requires access to classified information during performance, procedures prescribed by FAR Subpart 40.3 for safeguarding classified information shall apply.

NOTE: The prospective contractor's attention is particularly invited to FAR 52.240-92 Alt II, entitled "Security Requirements".

H11 REQUIRED INSURANCE

(a) Within fifteen (15) days after award of this contract, the Contractor shall furnish the Contracting Officer a Certificate of Insurance as evidence of the existence of the following insurance coverage in amounts not less than the amount specified below in accordance with the FAR 52.228-5, "INSURANCE - WORK ON A GOVERNMENT INSTALLATION (JAN 1997)" clause, Section I. This insurance must be maintained during the entire performance period.

COVERAGE

Comprehensive General Liability: \$500,000

Automobile Liability: \$200,000 per person; \$500,000 per occurrence for bodily injury; \$20,000 per occurrence for property damage.

Workmen's Compensation: As required by Federal and State Workers' compensation and occupational disease statutes.

Employer's Liability Coverage: \$100,000, except in states where workers' compensation may not be written by private carriers.

Other as required by state law.

(b) Above insurance coverages are to extend to Contractor personnel operating Government owned equipment and vehicles.

(c) The Certificate of Insurance shall provide for thirty (30) days written notice to the Contracting Officer by the insurance company prior to cancellation or material change in policy coverage. Other requirements and information are contained in the aforementioned "Insurance" clause.

H12 STRIKE CONTINGENCY PLAN

Within 15 working days after award, the Contractor shall prepare and submit to the Contracting Officer or his designated representative for approval, a detailed contingency plan for performing the contract requirements in the event of a work disruption or stoppage by Contractor employees.

H13 REGULATORY REQUIREMENTS OUTSIDE UNITED STATES JURISDICTION

Remediation actions performed under the Pacific Region may not be within the jurisdiction of the United States. Such factors as environmental regulations and prevailing labor wages and other operations of law will fall under the jurisdiction of the location in which the work will be performed. It shall be the responsibility of the contractor to be in compliance with all applicable local laws and regulations as well as those of the United States.

H14 RELEASE OF INFORMATION

(a) The Contractor shall not make public release of any information relating to all or any part of this contract without prior approval of the Contracting Officer.

(b) For the purpose of this clause, "information" includes but is not limited to news releases, articles, manuscripts, brochures, advertisements, still and motion pictures, speeches, trade association meetings, symposia, published professional papers, internet web pages, etc.

(c) Two copies of any information proposed to be released must be submitted to Contracting Officer for security and policy review and clearance 45 days prior to release.

Information copies will also be sent to the Contracting Officer, Contract COR, and Contract Task Order COR.

(d) Nothing in the foregoing shall affect compliance with the requirements of the clause of this contract entitled "Security Requirements".

(e) The Contractor further agrees to include this clause in any subcontract awarded as a result of this contract.

H15 EXPERT TESTIMONY SERVICES

(a) During or subsequent to the performance period of this contract, the need may arise to provide expert testimony during hearings and/or court proceedings involving site specific activities or other matters, with regard to which personnel provided by the Contractor under this contract (including subcontractor personnel) would have gained expertise as a result of tasks performed under this contract. Such effort shall be considered within the scope of this contract if expert testimony is required during the performance period of the contract. The individual(s) selected to testify shall be fully knowledgeable of the details of the site under litigation, shall be credible, and be an expert in their field. The testimony shall normally relate to what actions the Contractor took at the site.

(b) In the event such services are required after the performance period of this contract, the Contractor agrees to make available expert testimony services in support of such future proceedings. The Contractor further agrees to enter into intent agreements as necessary with subcontractors to ensure the availability of subcontractor personnel provided under this contract to provide future expert consulting services. These future expert consulting services would be provided by a separate negotiated procurement.

H16 ANALYTICAL LABORATORIES

As required by the DoD Policy and Guidelines for Acquisitions Involving Environmental Sampling or Testing Services (November 2007 or latest version), analytical laboratories providing services in support of the contract must have an established and documented laboratory quality system that conforms to ISO/IEC 17025 as implemented by the DoD Quality Systems Manual for Environmental Laboratories (QSM) (December 2023 or latest version) and must be accredited in accordance with the DoD Environmental Laboratory Accreditation Program (ELAP). The laboratory's authorized

contract representative and the laboratory Quality Assurance Officer (however named) must declare laboratory conformance to the DoD QSM and current ELAP accreditation. The declaration form shall be included in the project-specific Sampling and Analysis Plan as an Appendix.

The Contractor shall ensure the Government is notified in writing of any change in laboratory certification or accreditation status within 30 calendar days of the change. This written notification requirement applies, but is not limited, to suspension or revocation of certification or accreditation.

H17 INDEMNIFICATION

As of the date of contract execution, the Contractor will not be indemnified for third party liability. If the Navy changes its policy to indemnify Contractors for third party liability on hazardous waste contracts of this type, such policy will apply to this contract. An equitable adjustment shall be negotiated in exchange for the inclusion of such indemnification.

H18 FABRICATION OR ACQUISITION OF NONEXPENDABLE PROPERTY

The Contractor shall not fabricate nor acquire under this contract, either directly or indirectly through a subcontract, any item of nonexpendable property without written approval from the Contracting Officer. The equipment is subject to the provisions of FAR 52.245-1, "Government Property (SEP 2021)", incorporated by reference in Section I.

H19 MUNITIONS RESPONSE

(a) Prior to commencing work involving munitions and explosives of concern (MEC) or any material or item with the potential to explode, the contractor shall develop and implement a specific plan in order to assure hazards are identified and appropriate precautions take place in order to avoid preventable mishaps. Work must be performed in a manner consistent with appropriate Department of Defense, Navy, or other guidance whether stated in this section or not.

(b) Applicable definitions are as follows:

Military Munitions. Military munitions means all ammunition products and components produced for or used by the armed forces for national defense and security, including ammunition products or components under the control of the Department of Defense, the Coast Guard, the Department of Energy, and the National Guard. The term includes confined gaseous, liquid, and solid propellants, explosives, pyrotechnics, chemical and riot control agents, smokes, and incendiaries, including bulk explosives and chemical warfare agents, chemical munitions, rockets, guided and ballistic missiles, bombs, warheads, mortar rounds, artillery ammunition, small arms ammunition, grenades, mines, torpedoes, depth charges, cluster munitions and dispensers, demolition charges, and devices and components thereof.

The term does not include wholly inert items, improvised explosive devices, and nuclear weapons, nuclear devices, and nuclear components, except that the term does include non-nuclear components of nuclear devices that are managed under the nuclear weapons program of the Department of Energy after all required sanitization operations under the Atomic Energy Act of 1954 (42 U.S.C. 2011 et seq.) have been completed. (10 U.S.C. 2710)

Munitions Constituents (MC). Any materials originating from unexploded ordnance, discarded military munitions, or other military munitions, including explosive and non-explosive materials, and emission, degradation, or breakdown elements of such ordnance or munitions. (10 U.S.C. 2710)

Munitions and Explosives of Concern (MEC). MEC are any of the following:

- (1) Unexploded Ordnance (UXO), as defined in 10 U.S.C. 2710 (e) (9);
- (2) Discarded military munitions (DMM), as defined in 10 U.S.C. 2710 (e) (2); or

- (3) Explosive munitions constituents (e.g., TNT, RDX) present in high enough concentrations to pose an explosive hazard.

Munitions Response. DoD response actions (removal or remedial) to investigate and address the explosives safety, human health, or environmental risks presented by MEC and munitions constituents (MC). (The response could be as simple as a notification to the community with an education program about the hazards posed by military munitions and how to avoid them, or as complicated as a long-term response action involving sophisticated technology, specialized expertise, and significant resources.)

Unexploded Ordnance (UXO). Military munitions that-

- (1) have been primed, fused, armed, or otherwise prepared for action;
- (2) have been fired, dropped, launched, projected, or placed in such a manner as to constitute a hazard to operations, installations, personnel, or material; and
- (3) remain unexploded either by malfunction, design, or any other cause. (10 U.S.C. 2710)

(c) Guidance and regulations for work involving MEC or any material or item with the potential to explode, may include but are not limited to the most current versions of the following:

(1) DEPARTMENT OF THE NAVY. Navy documents on explosives safety are available by contacting the Navy Ordnance Safety and Security Activity at <https://intranet.nossa.navsea.navy.mil/default.asp>. Navy Directives, including OPNAV Instructions, are available at <http://neds.nebt.daps.mil/>.

(i) NAVSEA OP 5 - Ammunition and Explosives Safety Ashore: Safety Regulations for Handling, Storage, Production, Renovation and Shipping. It is the policy of the Department of the Navy to maintain an effective and aggressive ordnance safety program throughout the Department. Adherence to the instructions and regulations contained in NAVSEA OP 5, "Ammunition and Explosives Safety Ashore" will provide a continuing, aggressive accident prevention program throughout all commands where military or civilian personnel are stationed or employed and ordnance equipment, ammunition, and explosives are used.

(ii) OPNAV INSTRUCTION 3500.39 series, Operational Risk Management (ORM). ORM is a method for identifying hazards, assessing risks and implementing controls to reduce the risk associated with any operation.

(iii) OPNAV INSTRUCTION 5090.1 series - Navy Environmental and Natural Resources Program Manual. This manual provides Navy policy, identifies key statutory and regulatory requirements, and assigns responsibility for management of Navy programs for: a) cleanup of waste disposal sites, b) compliance with current laws and regulations for the protection of the environment, natural resources, and cultural and historic resources, c) conservation of natural resources, d) pollution prevention, and e) technology.

(iv) OPNAV INSTRUCTION 5330.13 series - Department of the Navy Physical Security for Conventional Arms, Ammunition, and Explosives (AA&E). The intent of this instruction is to outline standards which will provide adequate protection against loss or theft of AA&E at DoN activities and contractor facilities.

(v) OPNAV INSTRUCTION 8020.14 series - DoN Explosives Safety Policy (latest version). All DoN commands shall establish an Explosives Safety Program as described in the enclosed DoN Explosives Safety Policy Manual.

(vi) SECNAVINST 5100.10 series - Department of the Navy Policy for Safety, Mishap, Prevention, Occupational Health and Fire Protection Programs. This provides policy for DoN safety, mishap prevention, occupational health and fire protection programs afloat and ashore.

(2) **DEPARTMENT OF DEFENSE.** Department of Defense communications and directives are available at <http://www.dtic.mil/whs/directives/>. This website also provides an explanation of the different types of directives, instructions and publications and an explanation of the purpose of each.

(i) DoD 4145.26-M, DoD Contractors' Safety Manual for Ammunition and Explosives. This Manual is issued under the authority of, and in accordance with, DoD Instruction 4145.26, "DoD Contractors' Safety Requirements for Ammunition and Explosives," April 4, 1996. The Manual provides safety standards common to DoD and private industry ammunition and explosives (A&E) operations and facilities. DoD 6055.9-STD, "DoD Ammunition and Explosives Safety Standards," October 1992, establishes these safety standards and serves as the primary source document from which this unclassified Manual is derived.

(ii) DoDI 4145.26, DoD Contractor's Safety Requirements for Ammunition and Explosives. This initiative provides uniform baseline safety standards for DoD contractors performing contractual work involving ammunition and explosives. It also authorizes the Military Departments, when contractual work is to be performed at DoD-owned facilities, to apply their own selected ammunition and explosives and other safety standards and procedures to DoD contractors by inclusion within contracts.

(iii) DoD 4160.21-M Defense Disposal Manual. This manual implements the requirements of the Federal Property Management Regulation (FPMR), and other laws and regulations as appropriate, as they apply to the disposition of excess, surplus, and foreign excess personal property.

(iv) DoD 4160.21-M-1, DoD Demilitarization Manual. All military items being disposed of must be evaluated for demilitarization requirements and subsequently demilitarized if required. This manual, authorized by DoD 4140.1-R, Department of Defense (DoD) Materiel Management Regulation, implements the requirements of the Federal Property Management Regulation (FPMR), and other laws and regulations as appropriate, as they apply to the disposition of excess, surplus, and foreign excess personal property (FEPP).

(v) DoD Directive 4715.11, Environmental and Explosives Safety Management on Department of Defense Active and Inactive Ranges Within the United States. This Directive establishes policy and assigns responsibilities under DoD Directive 4715.1, "Environmental Security", February 24, 1996 and DoD Directive 6055.9, "DoD Explosives Safety Board (DESB) and Component Explosives Safety Responsibilities," July 1996 for (1) sustainable use and management of DoD's active and inactive ranges located within the United States, and (2) the protection of DoD personnel and the public from explosives hazards on DoD's active and inactive ranges located within the United States.

(vi) DoD Directive 4715.12, Environmental and Explosives Safety Management on Department of Defense Active and Inactive Ranges Located Outside the United States. This Directive establishes policy and assigns responsibilities under DoD Instruction 60.55.14, "Unexploded Ordnance (UXO) Safety on Ranges," January 23, 1998 (hereby canceled), and DoD Directive 4715.1, "Environmental Security," February 24, 1996 for (1) sustainable use and management of DoD's active and inactive ranges located outside the United States, and (2) the protection of DoD personnel and the public from explosives hazards on DoD's active and inactive ranges located outside the United States.

(vii) DoD 5100.76-M, Physical Security of Sensitive Conventional Arms, Ammunition and Explosives. This Manual is reissued under the authority of DoD Directive 5100.76, "Physical Security Review Board," dated February 10, 1981. It provides physical security guidance for the protection of DoD sensitive conventional arms, ammunition and explosives (AA&E).

(viii) DoD 6055.9-STD - DoD Ammunition and Explosives Safety Standards. This Standard establishes uniform safety standards applicable to ammunition and explosives, to associated personnel and property, and to unrelated personnel and property exposed to the potential damaging effects of an accident involving ammunition and explosives during their development, manufacturing, testing, transportation, handling, storage, maintenance, demilitarization, and disposal.

(d) For work performed on property owned by non-Navy entities, the appropriate service-level publications should be followed. DoD level guidance must be followed for work performed on any property under this contract. If work is being performed at a property not owned by the Navy, refer to <http://locks.nfesc.navy.mil/DirGuidance.htm> for physical security guidance.

(e) Under no circumstances, should UXO be cut with a torch during demilitarization or salvage operations.

(f) All hazards associated with work involving MEC or any material or item with the potential to explode must be addressed in the work plan. This includes identifying procedures and mechanisms to assure protection of all subcontractors, site visitors, and any person potentially exposed to an explosives hazard.

(g) All personnel that handle munitions residue shall attend a stand-down conducted by the contractor to review procedures involved with the inert certification and disposal of munitions residue.

H20 SECURITY REQUIREMENTS APPLICABLE FOR PEARL HARBOR NAVAL SHIPYARD & IMF'S CONTROLLED INDUSTRIAL AREA, OTHER SENSITIVE AREAS, CONTROLLED NUCLEAR INFORMATION AREAS, AND/OR NUCLEAR WORK AREAS

All personnel requesting entrance to the CIA are required to be US citizens and must provide proof of such citizenship. All personnel will be escorted at all times by a person or persons with the proper security clearance. All requests for passes to the CIA are required to be submitted at least 45 days prior to the requested entry date. Forms to request entrance to the CIA are to be provided with each RFP for the CIA area.

H21 ORGANIZATIONAL CONFLICTS OF INTEREST

The restrictions described herein shall apply to the Contractor and its affiliates, consultants and subcontracts under this contract. If the Contractor under this contract prepares or assists in preparing a statement of work, specifications and plans, the Contractor and its affiliates shall be ineligible to bid or participate, in any capacity, in any contractual effort which is based on such statement of work or specifications and plans as a prime contractor, subcontractor, consultant or in any similar capacity. The Contractor shall not incorporate its products or services in such statement of work or specification unless so directed in writing by the Contracting Officer, in which case the restriction shall not apply. This contract shall include this clause in its subcontractor's or consultants' agreements concerning the performance of this contract.

Section I - Contract Clauses

DFARS Clauses Incorporated by Full Text

252.240-7007 Prohibitions Relating to Chinese Military Companies.

PROHIBITIONS RELATING TO CHINESE MILITARY COMPANIES (DEVIATION 2026-O0025) (JUN 2026)

(a) *Definitions.* As used in this clause--

Backhaul means intermediate links between the core network, or backbone network, and the small subnetworks at the edge of the network (e.g., connecting cell phones/towers to the core telephone network). Backhaul can be wireless (e.g., microwave) or wired (e.g., fiber optic, coaxial cable, Ethernet).

Chinese military company means any entity, regardless of geographic location, that is--

(1) An entity that is currently identified in the list published in the *Federal Register* by the Secretary pursuant to section 1260H of the NDAA for FY 2021 (Pub. L. 116-283);

(2) An entity that is currently identified in the non-specially designated Nationals (SDN) Chinese military industrial complex companies list (NS-CMIC List) published in the *Federal Register* by the Department of the Treasury or on the website of the Department of the Treasury's Office of Foreign Assets Control (OFAC);

(3) A People's Republic of China entity currently identified on the entity list published in the *Federal Register* by the Department of Commerce, which is found at Supplement No. 4 to Part 744 of the Export Administration Regulation (EAR); or

(4) An entity owned or controlled by, or affiliated with, an element of the government or armed forces of the People's Republic of China, or a subsidiary, affiliate including any parent or holding company, or any entity subject to the control of an entity described in paragraphs (1), (2), or (3) of this definition.

Commerce Control List means the Export Administration Regulations in 15 CFR part 774, supplement no. 1.

Control has the meaning given that term in 31 CFR 800.208 or any successor regulations.

Covered products and services means products and services on the munitions list of the International Traffic in Arms Regulations.

Interconnection arrangement means arrangements governing the physical connection of two or more networks to allow the use of another's network to hand off traffic where it is ultimately delivered (e.g., connection of a customer of telephone provider A to a customer of telephone company B or sharing data and other information resources).

Non-specially designated nationals (SDN) Chinese military-industrial complex company means any entity on the Non-SDN Chinese military-industrial complex companies list--

- (1) Established pursuant to Executive Order 13959 as amended; and
- (2) Maintained by the Office of Foreign Assets Control of the Department of the Treasury.

Other covered company means an entity that is owned or controlled by the government of the People's Republic of China and that the Secretary certified to the Congressional defense committees, to be a company that must be covered for national security reasons.

Roaming means cellular communications services (e.g., voice, video, data) received from a visited network when unable to connect to the facilities of the home network either because signal coverage is too weak or because traffic is too high.

(b) *Scope*. This clause implements the following:

- (1) Section 1211 of the National Defense Authorization Act (NDAA) for Fiscal Year (FY) 2006 (Pub. L. 109-163).
- (2) Section 1296 of the NDAA for FY 2017 (Pub. L. 114-328).
- (3) Section 857(b) of the NDAA for FY 2023 (Pub. L. 117-263).
- (4) Section 805 of the NDAA for FY 2024 (Pub. L. 118-31).

(c) *Prohibitions on awards with Chinese Military Companies*. (1) *Covered products or services prohibition*. The Contractor must not acquire covered products and services, through a contract or subcontract at any tier, from any--

- (i) Chinese military company;
- (ii) Non-specially designated nationals (SDN) Chinese military-industrial complex company; or
- (iii) Other covered company.

(2) *Entity prohibition*. The Contractor must not award, renew, or extend a contract (e.g., exercise an option) for the procurement of products or services with an entity that is identified as--

- (i) A Chinese military company operating in the United States; or

(ii) An entity that is subject to the control of a Chinese military company.

(3) *Exceptions.* (i) The prohibition at paragraph (c)(1) does not apply to components and parts of covered products unless the components and parts are themselves covered by the USML or the 600 series of the CCL.

(ii) The prohibition under paragraphs (c)(2) does not apply--

(A) When awarding, renewing, or extending a contract (e.g., exercising an option) for the procurement of products or services that provides a service that connects to the facilities of a third party, including backhaul, roaming, or interconnection arrangements;

(B) To contracts awarded prior to June 30, 2027, including when such contracts are modified, extended, or renewed; or

(C) To components.

(d) *Subcontracts.* The Contractor must insert the substance of this clause, including this paragraph (e), in all subcontracts.

(End of clause)

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.202-1	Definitions.	Jun 2020		
52.203-3	Gratuities.	Apr 1984		
52.203-5	Covenant Against Contingent Fees.	May 2014		
52.203-6	Restrictions on Subcontractor Sales to the Government.	Jun 2020		
52.203-7	Anti-Kickback Procedures.	Jun 2020		
52.203-8	Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity.	May 2014		
52.203-10	Price or Fee Adjustment for Illegal or Improper Activity.	May 2014		
52.203-12	Limitation on Payments to Influence Certain Federal Transactions.	Jun 2020		
52.203-13	Contractor Code of Business Ethics and Conduct.	Nov 2021		
52.203-16	Preventing Personal Conflicts of Interest.	Jun 2020		
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	Jan 2017		
52.204-9	Personal Identity Verification of Contractor Personnel.	Jan 2011		
52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards. (Deviation 2026-O0038)	Feb 2026		
52.204-13	System for Award Management-Maintenance. (Deviation 2026-O0038)	Feb 2026		
52.204-15	Service Contract Reporting Requirements for Indefinite-Delivery Contracts. (Deviation 2026-O0038)	Feb 2026		
52.204-19	Incorporation by Reference of Representations and Certifications. Protecting the Government's Interest When Subcontracting With Contractors	Dec 2014		

52.209-6	Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Deviation 2026-O0038)	Feb 2026		
52.209-9	Updates of Publicly Available Information Regarding Responsibility Matters. (Deviation 2026-O0038)	Feb 2026		
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations. (Deviation 2026-O0038)	Feb 2026		
52.210-1	Market Research. (Deviation 2026-O0038)	Feb 2026		
52.211-15	Defense Priority and Allocation Requirements.	Apr 2008		
52.215-2	Audit and Records-Negotiation. (Deviation 2026-O0038)	Feb 2026		
52.215-8	Order of Precedence-Uniform Contract Format. (Deviation 2026-O0038)	Feb 2026		
52.215-10	Price Reduction for Defective Certified Cost or Pricing Data.	Aug 2011		
52.215-12	Subcontractor Certified Cost or Pricing Data (DEVIATION 2022-O0001)	Feb 2026	Deviation 2022-O0001	Oct 2021
52.215-15	Pension Adjustments and Asset Reversions. (Deviation 2026-O0038)	Feb 2026		
52.215-17	Waiver of Facilities Capital Cost of Money.	Oct 1997		
52.215-18	Reversion or Adjustment of Plans for Postretirement Benefits (PRB) Other Than Pensions. (Deviation 2026-O0038)	Feb 2026		
52.215-19	Notification of Ownership Changes. (Deviation 2026-O0038)	Feb 2026		
52.215-21	Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data-Modifications. (Deviation 2026-O0038)	Feb 2026		
52.215-23	Limitations on Pass-Through Charges. (Deviation 2026-O0038)	Feb 2026		
52.216-8	Fixed Fee.	Jun 2011		
52.219-6	Notice of Total Small Business Set-Aside. (Deviation 2026-O0038)	Feb 2026		
52.219-8	Utilization of Small Business Concerns. (Deviation 2026-O0038)	Feb 2026		
52.219-33	Nonmanufacturer Rule. (Deviation 2026-O0038)	Feb 2026		
52.222-1	Notice to the Government of Labor Disputes. (Deviation 2026-O0038)	Feb 2026		
52.222-3	Convict Labor. (Deviation 2026-O0038)	Feb 2026		
52.222-4	Contract Work Hours and Safety Standards-Overtime Compensation. (Deviation 2026-O0038)	Feb 2026		
52.222-6	Construction Wage Rate Requirements. (Deviation 2026-O0038)	Feb 2026		
52.222-7	Withholding of Funds. (Deviation 2026-O0038)	Feb 2026		
52.222-8	Payrolls and Basic Records. (Deviation 2026-O0038)	Feb 2026		
52.222-9	Apprentices and Trainees. (DEVIATION 2025-O0003)	Feb 2026	Deviation 2025-O0003	Mar 2025
52.222-10	Compliance with Copeland Act Requirements. (Deviation 2026-O0038)	Feb 2026		
52.222-11	Subcontracts (Labor Standards). (Deviation 2026-O0038)	Feb 2026		
52.222-12	Contract Termination-Debarment.	May 2014		
52.222-13	Compliance with Construction Wage Rate Requirements and Related Regulations.	May 2014		
52.222-14	Disputes Concerning Labor Standards. (Deviation 2026-O0038)	Feb 2026		
52.222-15	Certification of Eligibility.	May 2014		
52.222-16	Approval of Wage Rates. (Deviation 2026-O0038)	Feb 2026		
52.222-30	Construction Wage Rate Requirements-Price Adjustment (None or Separately Specified Method).	Aug 2018		
52.222-35	Equal Opportunity for Veterans. (Deviation 2026-O0038)	Feb 2026		
52.222-36	Equal Opportunity for Workers with Disabilities. (Deviation 2026-O0038)	Feb 2026		
52.222-37	Employment Reports on Veterans. (Deviation 2026-O0038)	Feb 2026		
52.222-40	Notification of Employee Rights Under the National Labor Relations Act. (Deviation 2026-O0038)	Feb 2026		
52.222-41	Service Contract Labor Standards. (Deviation 2026-O0038)	Feb 2026		
52.222-50	Combating Trafficking in Persons. (Deviation 2026-O0038)	Feb 2026		
52.222-54	Employment Eligibility Verification. (Deviation 2026-O0038)	Feb 2026		
52.222-55	Minimum Wages for Contractor Workers Under Executive Order 14026. (Deviation 2026-O0038)	Feb 2026		
52.222-62	Paid Sick Leave Under Executive Order 13706. (Deviation 2026-O0038)	Feb 2026		
52.222-90	Addressing DEI Discrimination by Federal Contractors. (Deviation 2026-O0040, Revision 1)	Apr 2026		
52.223-2	Reporting of Biobased Products Under Service and Construction Contracts. (Deviation 2026-O0038)	Feb 2026		
52.223-5	Pollution Prevention and Right-to-Know Information.	May 2024		
52.223-23	Sustainable Products and Services. (DEVIATION 2025-O0004)	Feb 2026	Deviation 2025-O0004	Mar 2025
52.224-1	Privacy Act Notification.	Apr 1984		
52.224-2	Privacy Act.	Apr 1984		
52.224-3	Privacy Training.	Jan 2017		
52.226-7	Drug-Free Workplace.	May 2024		
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	May 2024		
52.227-1	Authorization and Consent.	Jun 2020		
52.227-2	Notice and Assistance Regarding Patent and Copyright Infringement.	Jun 2020		
52.228-3	Workers' Compensation Insurance (Defense Base Act).	Jul 2014		
52.228-5	Insurance-Work on a Government Installation.	Jan 1997		
52.228-7	Insurance-Liability to Third Persons.	Mar 1996		
52.232-9	Limitation on Withholding of Payments.	Apr 1984		
52.232-17	Interest.	May 2014		
52.232-18	Availability of Funds.	Apr 1984		

52.232-20	Limitation of Cost. (Deviation 2026-O0038)	Feb 2026		
52.232-22	Limitation of Funds. (Deviation 2026-O0038)	Feb 2026		
52.232-23	Assignment of Claims.	May 2014		
52.232-25	Prompt Payment.	Jan 2017		
52.232-25	Prompt Payment. (Alternate I)	Jan 2017	Alternate I	Feb 2002
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	Oct 2018		
52.232-37	Multiple Payment Arrangements.	May 1999		
52.232-39	Unenforceability of Unauthorized Obligations.	Jun 2013		
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	Mar 2023		
52.233-1	Disputes. (Deviation 2026-O0038)	Feb 2026		
52.233-3	Protest after Award. (Deviation 2026-O0038)	Feb 2026		
52.233-3	Protest after Award. (Deviation 2026-O0038) (Alternate I)	Feb 2026	Alternate I	Feb 2026
52.233-4	Applicable Law for Breach of Contract Claim. (Deviation 2026-O0038)	Feb 2026		
52.236-5	Material and Workmanship. (Deviation 2026-O0038)	Feb 2026		
52.236-18	Work Oversight in Cost-Reimbursement Construction Contracts.	Apr 1984		
52.237-2	Protection of Government Buildings, Equipment, and Vegetation.	Apr 1984		
52.240-91	Security Prohibitions and Exclusions. (Deviation 2026-O0038)	Feb 2026		
52.240-93	Basic Safeguarding of Covered Contractor Information Systems. (Deviation 2026-O0038)	Feb 2026		
52.242-1	Notice of Intent to Disallow Costs.	Apr 1984		
52.242-2	Production Progress Reports.	Apr 1991		
52.242-3	Penalties for Unallowable Costs. (Deviation 2026-O0038)	Feb 2026		
52.242-13	Bankruptcy.	Jul 1995		
52.243-2	Changes-Cost-Reimbursement. (Deviation 2026-O0038)	Feb 2026		
52.243-2	Changes-Cost-Reimbursement. (Deviation 2026-O0038) (Alternate I)	Feb 2026	Alternate I	Feb 2026
52.244-5	Competition in Subcontracting.	Aug 2024		
52.244-6	Subcontracts for Commercial Products and Commercial Services. (Deviation 2026-O0038)	Apr 2026		
52.245-1	Government Property.	Sep 2021		
52.245-9	Use and Charges.	Apr 2012		
52.246-25	Limitation of Liability-Services.	Feb 1997		
52.247-5	Familiarization with Conditions.	Apr 1984		
52.247-10	Net Weight-General Freight.	Apr 1984		
52.247-15	Contractor Responsibility for Loading and Unloading.	Apr 1984		
52.247-68	Report of Shipment (REPSHIP).	Feb 2006		
52.249-6	Termination (Cost-Reimbursement).	May 2004		
52.249-14	Excusable Delays.	Apr 1984		
52.253-1	Computer Generated Forms. (Deviation 2026-O0038)	Feb 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	Sep 2011		
252.203-7001	Prohibition on Persons Convicted of Fraud or Other Defense-Contract-Related Felonies.	Jan 2023		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	Dec 2022		
252.203-7003	Agency Office of the Inspector General.	Aug 2019		
252.203-7004	Display of Hotline Posters.	Jan 2023		
252.204-7000	Disclosure of Information.	Oct 2016		
252.204-7003	Control of Government Personnel Work Product.	Apr 1992		
252.204-7004	Antiterrorism Awareness Training for Contractors.	Jan 2023		
252.204-7009	Limitations on the Use or Disclosure of Third-Party Contractor Reported Cyber Incident Information.	Jan 2023		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting.	May 2024		
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	Jan 2023		
252.204-7023	Reporting Requirements for Contracted Services. (Alternate I)	Jul 2021	Alternate I	Jul 2021
252.205-7000	Provision of Information to Cooperative Agreement Holders.	Oct 2024		
252.209-7004	Subcontracting with Firms that are Owned or Controlled by the Government of a Country that is a State Sponsor of Terrorism.	May 2019		
252.215-7002	Cost Estimating System Requirements.	Jan 2025		
252.222-7002	Compliance with Local Labor Laws (Overseas).	Jun 1997		
252.222-7005	Prohibition on Use of Nonimmigrant Aliens--Guam.	Sep 1999		
252.222-7006	Restrictions on the Use of Mandatory Arbitration Agreements.	Jan 2023		
252.223-7002	Safety Precautions for Ammunition and Explosives.	Nov 2023		
252.223-7006	Prohibition on Storage, Treatment, and Disposal of Toxic or Hazardous Materials. (Alternate I)	Sep 2014	Alternate I	Sep 2014
252.223-7006	Prohibition on Storage, Treatment, and Disposal of Toxic or Hazardous Materials.	Sep 2014		
252.223-7008	Prohibition of Hexavalent Chromium.	Jan 2023		

252.225-7004	Report of Intended Performance Outside the United States and Canada - Submission after Award.	Jul 2024		
252.225-7006	Acquisition of the American Flag (DEVIATION 2024-O0008)	Dec 2022	Deviation 2024-O0008	Mar 2024
252.225-7007	Prohibition on Acquisition of Certain Items from Communist Chinese Military Companies.	Dec 2018		
252.225-7012	Preference for Certain Domestic Commodities.	Apr 2022		
252.225-7025	Restriction on Acquisition of Forgings.	Dec 2009		
252.225-7041	Correspondence in English.	Jun 1997		
252.225-7048	Export-Controlled Items.	Jun 2013		
252.225-7052	Restriction on the Acquisition of Certain Magnets, Tantalum, and Tungsten.	May 2024		
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	Jan 2023		
252.225-7058	Postaward Disclosure of Employment of Individuals Who Work in the People's Republic of China.	Jan 2023		
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	Jun 2023		
252.225-7061	Restriction on the Acquisition of Personal Protective Equipment and Certain Other Items from Non-Allied Foreign Nations.	Jan 2023		
252.225-7976	Contractor Personnel Performing in Japan (DEVIATION 2018-O0019)	Aug 2018	Deviation 2018-O0019	Aug 2018
252.226-7001	Utilization of Indian Organizations, Indian-Owned Economic Enterprises, and Native Hawaiian Small Business Concerns.	Jan 2023		
252.226-7003	Drug-Free Work Force.	Aug 2024		
252.227-7990	Technical Data--Commercial Products and Commercial Services. (DEVIATION 2026-O0036)	Feb 2026	Deviation 2026-O0036	Feb 2026
252.227-7991	Rights in Bid or Proposal Information. (DEVIATION 2026-O0036)	Feb 2026	Deviation 2026-O0036	Feb 2026
252.227-7995	Deferred Ordering of Technical Data or Computer Software. (DEVIATION 2026-O0036)	Feb 2026	Deviation 2026-O0036	Feb 2026
252.227-7996	Technical Data--Withholding of Payment. (DEVIATION 2026-O0036)	Feb 2026	Deviation 2026-O0036	Feb 2026
252.227-7997	Validation of Asserted Restrictions. (DEVIATION 2026-O0036)	Feb 2026	Deviation 2026-O0036	Feb 2026
252.232-7004	DoD Progress Payment Rates.	Oct 2014		
252.232-7010	Levies on Contract Payments.	Dec 2006		
252.233-7001	Choice of Law (Overseas).	Jun 1997		
252.237-7010	Prohibition on Interrogation of Detainees by Contractor Personnel.	Jan 2023		
252.240-7997	NIST SP 800-171 DoD Assessment Requirements. (DEVIATION 2026-O0025)	Feb 2026	Deviation 2026-O0025	Feb 2026
252.242-7999	Accounting System Administration. (DEVIATION 2026-O0050)	Mar 2026	Deviation 2026-O0050	Mar 2026
252.243-7002	Requests for Equitable Adjustment.	Dec 2022		
252.244-7998	Contractor Purchasing System Administration. (DEVIATION 2026-O0015)	Feb 2026	Deviation 2026-O0015	Feb 2026
252.245-7000	Government-Furnished Mapping, Charting, and Geodesy Property.	Apr 2012		
252.245-7003	Contractor Property Management System Administration	Jan 2025		
252.245-7005	Management and Reporting of Government Property.	Jan 2024		
252.247-7023	Transportation of Supplies by Sea.	Oct 2024		

FAR Clauses Incorporated by Full Text

52.216-7 Allowable Cost and Payment. (Deviation 2026-O0038) (Feb 2026)

ALLOWABLE COST AND PAYMENT (FEB 2026) (DEVIATION 2026-O0038)

(a) Invoicing.

(1) The Government will make payments to the Contractor when requested as work progresses, but (except for small business concerns) not more often than once every 2 weeks, in amounts determined to be allowable by the Contracting Officer in accordance with Federal Acquisition Regulation (FAR) subpart 31.2 in effect on the date of this contract and the terms of this contract. The Contractor may submit to an authorized representative of the Contracting Officer, in such form and reasonable detail as the representative may require, an invoice or voucher supported by a statement of the claimed allowable cost for performing this contract.

(2) Contract financing payments are not subject to the interest penalty provisions of the Prompt Payment Act. Interim payments made prior to the final payment under the contract are contract financing payments, except interim payments if this contract contains Alternate I to the clause at 52.232-25.

(3) The designated payment office will make interim payments for contract financing on the [Contracting Officer insert day as prescribed by agency head; if not prescribed, insert "30th"] day after the designated billing office receives a proper payment request. In the event that the Government requires an audit or other review of a specific payment request to ensure compliance with the terms and conditions of the contract, the designated payment office is not compelled to make payment by the specified due date.

(b) Reimbursing costs.

(1) For the purpose of reimbursing allowable costs (except as provided in paragraph (b)(2) of this clause, with respect to pension, deferred profit sharing, and employee stock ownership plan contributions), the term "costs" includes only-

(i) Those recorded costs that, at the time of the request for reimbursement, the Contractor has paid by cash, check, or other form of actual payment for items or services purchased directly for the contract;

(ii) When the Contractor is not delinquent in paying costs of contract performance in the ordinary course of business, costs incurred, but not necessarily paid, for-

(A) Supplies and services purchased directly for the contract and associated financing payments to subcontractors, provided payments determined due will be made-

(1) In accordance with the terms and conditions of a subcontract or invoice; and

(2) Ordinarily within 30 days of the submission of the Contractor's payment request to the Government;

(B) Materials issued from the Contractor's inventory and placed in the production process for use on the contract;

(C) Direct labor;

(D) Direct travel;

(E) Other direct in-house costs; and

(F) Properly allocable and allowable indirect costs, as shown in the records maintained by the Contractor for purposes of obtaining reimbursement under Government contracts; and

(iii) The amount of financing payments that have been paid by cash, check, or other forms of payment to subcontractors.

(2) Accrued costs of Contractor contributions under employee pension plans shall be excluded until actually paid unless-

(i) The Contractor's practice is to make contributions to the retirement fund quarterly or more frequently; and

(ii) The contribution does not remain unpaid 30 days after the end of the applicable quarter or shorter payment period (any contribution remaining unpaid shall be excluded from the Contractor's indirect costs for payment purposes).

(3) Notwithstanding the audit and adjustment of invoices or vouchers under paragraph (g) of this clause, allowable indirect costs under this contract shall be obtained by applying indirect cost rates established in accordance with paragraph (d) of this clause.

(4) Any statements in specifications or other documents incorporated in this contract by reference designating performance of services or furnishing of materials at the Contractor's expense or at no cost to the Government shall be disregarded for purposes of cost-reimbursement under this clause.

(c) *Small business concerns.* A small business concern may receive more frequent payments than every 2 weeks.

(d) Final indirect cost rates.

(1) Final annual indirect cost rates and the appropriate bases shall be established in accordance with subpart 42.7 of the Federal Acquisition Regulation (FAR) in effect for the period covered by the indirect cost rate proposal.

(2)

(i) The Contractor shall submit an adequate final indirect cost rate proposal to the Contracting Officer (or cognizant Federal agency official) and auditor within the 6-month period following the expiration of each of its fiscal years. Reasonable extensions, for exceptional circumstances only, may be requested in writing by the Contractor and granted in writing by the Contracting Officer. The Contractor shall support its proposal with adequate supporting data.

(ii) The proposed rates shall be based on the Contractor's actual cost experience for that period. The appropriate Government representative and the Contractor shall establish the final indirect cost rates as promptly as practical after receipt of the Contractor's proposal.

(iii) An adequate indirect cost rate proposal shall include the following data unless otherwise specified by the cognizant Federal agency official:

(A) Summary of all claimed indirect expense rates, including pool, base, and calculated indirect rate.

(B) *General and Administrative expenses (final indirect cost pool).* Schedule of claimed expenses by element of cost as identified in accounting records (Chart of Accounts).

(C) *Overhead expenses (final indirect cost pool).* Schedule of claimed expenses by element of cost as identified in accounting records (Chart of Accounts) for each final indirect cost pool.

(D) *Occupancy expenses (intermediate indirect cost pool).* Schedule of claimed expenses by element of cost as identified in accounting records (Chart of Accounts) and expense reallocation to final indirect cost pools.

(E) Claimed allocation bases, by element of cost, used to distribute indirect costs.

(F) Facilities capital cost of money factors computation.

(G) Reconciliation of books of account (*i.e.*, General Ledger) and claimed direct costs by major cost element.

(H) Schedule of direct costs by contract and subcontract and indirect expense applied at claimed rates, as well as a subsidiary schedule of Government participation percentages in each of the allocation base amounts.

(I) Schedule of cumulative direct and indirect costs claimed and billed by contract and subcontract.

(J) *Subcontract information.* Listing of subcontracts awarded to companies for which the contractor is the prime or upper-tier contractor (include prime and subcontract numbers; subcontract value and award type; amount claimed during the fiscal year; and the subcontractor name, address, and point of contact information).

(K) Summary of each time-and-materials and labor-hour contract information, including labor categories, labor rates, hours, and amounts; direct materials; other direct costs; and, indirect expense applied at claimed rates.

(L) Reconciliation of total payroll per IRS form 941 to total labor costs distribution.

(M) Listing of decisions/agreements/approvals and description of accounting/organizational changes.

(N) Certificate of final indirect costs (see 52.242-4, Certification of Final Indirect Costs).

(O) Contract closing information for contracts physically completed in this fiscal year (include contract number, period of performance, contract ceiling amounts, contract fee computations, level of effort, and indicate if the contract is ready to close).

(iv) The following supplemental information is not required to determine if a proposal is adequate, but may be required during the audit process:

(A) Comparative analysis of indirect expense pools detailed by account to prior fiscal year and budgetary data.

(B) General organizational information and limitation on allowability of compensation for certain contractor personnel. See 31.205-6(p).

(C) Identification of prime contracts under which the contractor performs as a subcontractor.

(D) Description of accounting system (excludes contractors required to submit a CAS Disclosure Statement or contractors where the description of the accounting system has not changed from the previous year's submission).

(E) Procedures for identifying and excluding unallowable costs from the costs claimed and billed (excludes contractors where the procedures have not changed from the previous year's submission).

(F) Certified financial statements and other financial data (*e.g.*, trial balance, compilation, review, *etc.*).

(G) Management letter from outside CPAs concerning any internal control weaknesses.

(H) Actions that have been and/or will be implemented to correct the weaknesses described in the management letter from subparagraph (G) of this section.

(I) List of all internal audit reports issued since the last disclosure of internal audit reports to the Government.

(J) Annual internal audit plan of scheduled audits to be performed in the fiscal year when the final indirect cost rate submission is made.

(K) Federal and State income tax returns.

(L) Securities and Exchange Commission 10-K annual report.

(M) Minutes from board of directors meetings.

(N) Listing of delay claims and termination claims submitted which contain costs relating to the subject fiscal year.

(O) Contract briefings, which generally include a synopsis of all pertinent contract provisions, such as: contract type, contract amount, product or service(s) to be provided, contract performance period, rate ceilings, advance approval requirements, pre-contract cost allowability limitations, and billing limitations.

(v) The Contractor shall update the billings on all contracts to reflect the final settled rates and update the schedule of cumulative direct and indirect costs claimed and billed, as required in paragraph (d)(2)(iii)(I) of this section, within 60 days after settlement of final indirect cost rates.

(3) The Contractor and the appropriate Government representative shall execute a written understanding setting forth the final indirect cost rates. The understanding shall specify (i) the agreed-upon final annual indirect cost rates, (ii) the bases to which the rates apply, (iii) the periods for which the rates apply, (iv) any specific indirect cost items treated as direct costs in the settlement, and (v) the affected contract and/or subcontract, identifying any with advance agreements or special terms and the applicable rates. The understanding shall not change any monetary ceiling, contract obligation, or specific cost allowance or disallowance provided for in this contract. The understanding is incorporated into this contract upon execution.

(4) Failure by the parties to agree on a final annual indirect cost rate shall be a dispute within the meaning of the Disputes clause.

(5) Within 120 days (or longer period if approved in writing by the Contracting Officer) after settlement of the final annual indirect cost rates for all years of a physically complete contract, the Contractor shall submit a completion invoice or voucher to reflect the settled amounts and rates. The completion invoice or voucher shall include settled subcontract amounts and rates. The prime contractor is responsible for settling subcontractor amounts and rates included in the completion invoice or voucher and providing status of subcontractor audits to the contracting officer upon request.

(6)

(i) If the Contractor fails to submit a completion invoice or voucher within the time specified in paragraph (d)(5) of this clause, the Contracting Officer may-

(A) Determine the amounts due to the Contractor under the contract; and

(B) Record this determination in a unilateral modification to the contract.

(ii) This determination constitutes the final decision of the Contracting Officer in accordance with the Disputes clause.

(e) *Billing rates.* Until final annual indirect cost rates are established for any period, the Government shall reimburse the Contractor at billing rates established by the Contracting Officer or by an authorized representative (the cognizant auditor), subject to adjustment when the final rates are established. These billing rates-

(1) Shall be the anticipated final rates; and

(2) May be prospectively or retroactively revised by mutual agreement, at either party's request, to prevent substantial overpayment or underpayment.

(f) *Quick-closeout procedures.* Quick-closeout procedures are applicable when the conditions in FAR 42.708(a) are satisfied.

(g) *Audit.* At any time or times before final payment, the Contracting Officer may have the Contractor's invoices or vouchers and statements of cost audited. Any payment may be-

(1) Reduced by amounts found by the Contracting Officer not to constitute allowable costs; or

(2) Adjusted for prior overpayments or underpayments.

(h) Final payment.

(1) Upon approval of a completion invoice or voucher submitted by the Contractor in accordance with paragraph (d)(5) of this clause, and upon the Contractor's compliance with all terms of this contract, the Government shall promptly pay any balance of allowable costs and that part of the fee (if any) not previously paid.

(2) The Contractor shall pay to the Government any refunds, rebates, credits, or other amounts (including interest, if any) accruing to or received by the Contractor or any assignee under this contract, to the extent that those amounts are properly allocable to costs for which the Contractor has been reimbursed by the Government. Reasonable expenses incurred by the Contractor for securing refunds, rebates, credits, or other amounts shall be allowable costs if approved by the Contracting Officer. Before final payment under this contract, the Contractor and each assignee whose assignment is in effect at the time of final payment shall execute and deliver-

(i) An assignment to the Government, in form and substance satisfactory to the Contracting Officer, of refunds, rebates, credits, or other amounts (including interest, if any) properly allocable to costs for which the Contractor has been reimbursed by the Government under this contract; and

(ii) A release discharging the Government, its officers, agents, and employees from all liabilities, obligations, and claims arising out of or under this contract, except-

(A) Specified claims stated in exact amounts, or in estimated amounts when the exact amounts are not known;

(B) Claims (including reasonable incidental expenses) based upon liabilities of the Contractor to third parties arising out of the performance of this contract; provided, that the claims are not known to the Contractor on the date of the execution of the release, and that the Contractor gives notice of the claims in writing to the Contracting Officer within 6 years following the release date or notice of final payment date, whichever is earlier; and

(C) Claims for reimbursement of costs, including reasonable incidental expenses, incurred by the Contractor under the patent clauses of this contract, excluding, however, any expenses arising from the Contractor's indemnification of the Government against patent liability.

(End of clause)

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from award through the end of the contracted ordering period.

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) A delivery order or task order is considered "issued" when-

(1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;

(2) If sent by fax, the Government transmits the order to the Contractor's fax number; or

(3) If sent electronically, the Government either-

(i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or

(ii) Distributes the delivery order or task order via email to the Contractor's email address.

(d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of clause)

52.216-19 Order Limitations.

(Oct 1995)

Order Limitations (Oct 1995)

(a) *Minimum order.* When the Government requires supplies or services covered by this contract in an amount of less than \$1,000.00, the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) *Maximum order.* The Contractor is not obligated to honor-

(1) Any order for a single item in excess of \$100,000,000.00;

(2) Any order for a combination of items in excess of \$100,000,000.00; or

(3) A series of orders from the same ordering office within five days that together call for quantities exceeding the limitation in paragraph (b)(1) or (2) of this section.

(c) If this is a requirements contract (*i.e.*, includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.

(d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within three days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of clause)

52.216-22 Indefinite Quantity. (Deviation 2026-O0038)

(Feb 2026)

Indefinite Quantity (Feb 2026) (Deviation 2026-O0038)

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the ordering period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order, which may include order options to be exercised after the ordering period of this contract but before the end of the period of performance of the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order, including options exercised, to the same extent as if the order were completed during the contract's ordering period; provided, that the Contractor shall not be required to make any deliveries under this contract after dates cited on individual task orders.

(End of clause)

52.217-8 Option to Extend Services.

(Nov 1999)

Option to Extend Services (Nov 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within the effective period of the contract.

(End of clause)

52.217-9 Option to Extend the Term of the Contract.

(Mar 2000)

Option to Extend the Term of the Contract (Mar 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within the performance period specified in the schedule; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 30 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 66 months.

(End of clause)

52.219-14 Limitations on Subcontracting. (Deviation 2026-O0038)

(Feb 2026)

Limitations on Subcontracting (Feb 2026) (Deviation 2026-O0038)

(a) This clause does not apply to the unrestricted portion of a partial set-aside.

(b) *Definition. Similarly situated entity*, as used in this clause, means a first-tier subcontractor, including an independent contractor, that-

(1) Has the same small business program status as that which qualified the prime contractor for the award (*e.g.*, for a small business set-aside contract, any small business concern, without regard to its socioeconomic status); and

(2) Is considered small for the size standard under the North American Industry Classification System (NAICS) code the prime contractor assigned to the subcontract.

(c) *Applicability*. This clause applies only to-

(1) Contracts that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(2) Part or parts of a multiple-award contract that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(3) Contracts that have been awarded on a sole-source basis in accordance with sections 19.105, 19.106, 19.107, and 19.108;

(4) Orders expected to exceed the simplified acquisition threshold and that are set aside for small business concerns under multiple-award contracts, as described in 8.4 and 16.5;

(5) Orders, regardless of dollar value, that are set aside in accordance with sections 19.105, 19.106, 19.107, and 19.108 under multiple-award contracts, as described in 8.4 and 16.5; and

(6) Contracts using the HUBZone price evaluation preference to award to a HUBZone small business concern unless the concern waived the evaluation preference.

(d) *Independent contractors*. An independent contractor shall be considered a subcontractor.

(e) By submission of an offer and execution of a contract, the Contractor agrees that in performance of a contract assigned a North American Industry Classification System (NAICS) code for-

(1) Services (except construction), it will not pay more than 50 percent of the amount paid by the Government for contract performance to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both services and supplies, the 50 percent limitation shall apply only to the service portion of the contract;

(2) Supplies (other than procurement from a nonmanufacturer of such supplies), it will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both supplies and services, the 50 percent limitation shall apply only to the supply portion of the contract;

(3) General construction, it will not pay more than 85 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 85 percent subcontract amount that cannot be exceeded; or

(4) Construction by special trade contractors, it will not pay more than 75 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 75 percent subcontract amount that cannot be exceeded.

(f) The Contractor shall comply with the limitations on subcontracting as follows:

(1) For contracts, in accordance with paragraphs (c)(1), (2), (3) and (6) of this clause-

[] By the end of the base term of the contract and then by the end of each subsequent option period; or

[X] By the end of the performance period for each order issued under the contract.

(2) For orders, in accordance with paragraphs (c)(4) and (5) of this clause, by the end of the performance period for the order.

(g) A joint venture agrees that, in the performance of the contract, the applicable percentage specified in paragraph (e) of this clause will be performed by the aggregate of the joint venture participants.

(1) In a joint venture comprised of a small business protege and its mentor approved by the Small Business Administration, the small business protege shall perform at least 40 percent of the work performed by the joint venture. Work performed by the small business protege in the joint venture must be more than administrative functions.

(2) In an 8(a) joint venture, the 8(a) participant(s) shall perform at least 40 percent of the work performed by the joint venture. Work performed by the 8(a) participants in the joint venture must be more than administrative functions.

(End of clause)

52.219-28 Postaward Small Business Program Rerepresentation. (Deviation 2026-O0038) (Feb 2026)

POSTAWARD SMALL BUSINESS PROGRAM REREPRESENTATION (FEB 2026) (DEVIATION 2026-O0038)

(a) *Definitions.* As used in this clause-

Long-term contract means a contract of more than five years in duration, including options. However, the term does not include contracts that exceed five years in duration because the period of performance has been extended for a cumulative period not to exceed six months under the clause at 52.217-8, Option to Extend Services, or other appropriate authority.

Small business concern-

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (c) of this clause.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

(b) If the Contractor represented that it was a small business concern, a small disadvantaged business concern, or a joint venture that was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (e) of this clause or, if applicable, paragraph (g) of this clause, upon occurrence of any of the following:

(1) Within 30 days after execution of a novation agreement or within 30 days after modification of the contract to include this clause, if the novation agreement was executed prior to inclusion of this clause in the contract.

(2) Within 30 days after a merger or acquisition that does not require a novation or within 30 days after modification of the contract to include this clause, if the merger or acquisition occurred prior to inclusion of this clause in the contract.

(3) For long-term contracts-

(i) Within 60 to 120 days prior to the end of the fifth year of the contract; and

(ii) Within 60 to 120 days prior to the date specified in the contract for exercising any option thereafter.

(c) The Contractor shall rerepresent its size status in accordance with the size standard in effect at the time of this rerepresentation that corresponds to the North American Industry Classification System (NAICS) code(s) assigned to this contract. The small business size standard corresponding to this NAICS code(s) can be found at <https://www.sba.gov/document/support-table-size-standards>.

(d) The small business size standard for a Contractor providing an end item that it does not manufacture, process, or produce itself, for a contract other than a construction or service contract, is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition-

(1) Was set aside for small business and has a value above the simplified acquisition threshold;

(2) Used the HUBZone price evaluation preference regardless of dollar value, unless the Contractor waived the price evaluation preference; or

(3) Was an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(e) Except as provided in paragraph (g) of this clause, the Contractor shall make the representation(s) required by paragraph (b) of this clause by validating or updating all its representations in the Representations and Certifications section of the System for Award Management (SAM) and its other data in SAM, as necessary, to ensure that they reflect the Contractor's current status. The Contractor shall notify the contracting officer in writing within the timeframes specified in paragraph (b) of this clause, that the data have been validated or updated, and provide the date of the validation or update.

(f) If the Contractor represented that it was other than a small business concern prior to award of this contract, the Contractor may, but is not required to, take the actions required by paragraphs (e) or (g) of this clause.

(g) If the Contractor does not have representations and certifications in SAM, or does not have a representation in SAM for the NAICS code applicable to this contract, the Contractor is required to complete the following rerepresentation and submit it to the contracting office, along with the contract number and the date on which the rerepresentation was completed:

(1) The Contractor represents that it ☐ is, ☐ is not a small business concern under NAICS Code assigned to ____ contract number.

(2) *[Complete only if the Contractor represented itself as a small business concern in paragraph (g)(1) of this clause.]* The Contractor represents that it ☐ is, ☐ is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) *Women-owned small business (WOSB) joint venture eligible under the WOSB Program.* The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [____ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(4) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [____ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(5) *Service-disabled veteran-owned small business (SDVOSB) joint venture eligible under the SDVOSB Program.* The Contractor represents that it ☐ is, ☐ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [____ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(6) *HUBZone joint venture eligible under the HUBZone Program.* *[Complete only if the offeror is a HUBZone small business concern.]* The offeror represents, as part of its offer, that It ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [____ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.] Each HUBZone small business concern participating in the HUBZone joint venture must be certified as a HUBZone concern. [____ Contractor to sign and date and insert authorized signer's name and title.]

(End of clause)

52.222-2 Payment for Overtime Premiums. (Deviation 2026-O0038)

(Feb 2026)

PAYMENT FOR OVERTIME PREMIUMS (FEB 2026) (DEVIATION 2026-O0038)

(a) The use of overtime is authorized under this contract if the overtime premium cost does not exceed * \$0 or the overtime premium is paid for work-

(1) Necessary to cope with emergencies such as those resulting from accidents, natural disasters, breakdowns of production equipment, or occasional production bottlenecks of a sporadic nature;

(2) By indirect-labor employees such as those performing duties in connection with administration, protection, transportation, maintenance, standby plant protection, operation of utilities, or accounting;

[illegible]

(End of clause)

52.223-3 Hazardous Material Identification and Safety Data. (Deviation 2026-O0038)

(Feb 2026)

HAZARDOUS MATERIAL IDENTIFICATION AND SAFETY DATA (FEB 2026) (DEVIATION 2026-O0038)

(a) *Hazardous material*, as used in this clause, includes any material defined as hazardous under the latest version of Federal Standard No. 313 (including revisions adopted during the term of the contract).

(b) The Offeror must list any hazardous material, as defined in paragraph (a) of this clause, to be delivered under this contract. The hazardous material shall be properly identified and include any applicable identification number, such as National Stock Number or Special Item Number. This information shall also be included on the Safety Data Sheet submitted under this contract.

Material (If none, insert <i>None</i>)	Identification No.
=====	=====
=====	=====
=====	=====

(c) This list must be updated during performance of the contract whenever the Contractor determines that any other material to be delivered under this contract is hazardous.

(d) The apparently successful offeror agrees to submit, for each item as required prior to award, a Safety Data Sheet, meeting the requirements of 29 CFR 1910.1200(g) and the latest version of Federal Standard No. 313, for all hazardous material identified in paragraph (b) of this clause. Data shall be submitted in accordance with Federal Standard No. 313, whether or not the apparently successful offeror is the actual manufacturer of these items. Failure to submit the Safety Data Sheet prior to award may result in the apparently successful offeror being considered nonresponsible and ineligible for award.

(e) If, after award, there is a change in the composition of the item(s) or a revision to Federal Standard No. 313, which renders incomplete or inaccurate the data submitted under paragraph (d) of this clause, the Contractor shall promptly notify the Contracting Officer and resubmit the data.

(f) Neither the requirements of this clause nor any act or failure to act by the Government shall relieve the Contractor of any responsibility or liability for the safety of Government, Contractor, or subcontractor personnel or property.

(g) Nothing contained in this clause shall relieve the Contractor from complying with applicable Federal, State, and local laws, codes, ordinances, and regulations (including the obtaining of licenses and permits) in connection with hazardous material.

(h) The Government's rights in data furnished under this contract with respect to hazardous material are as follows:

(1) To use, duplicate and disclose any data to which this clause is applicable. The purposes of this right are to-

(i) Apprise personnel of the hazards to which they may be exposed in using, handling, packaging, transporting, or disposing of hazardous materials;

(ii) Obtain medical treatment for those affected by the material; and

(iii) Have others use, duplicate, and disclose the data for the Government for these purposes.

(2) To use, duplicate, and disclose data furnished under this clause, in accordance with subparagraph (h)(1) of this clause, in precedence over any other clause of this contract providing for rights in data.

(3) The Government is not precluded from using similar or identical data acquired from other sources.

(End of clause)

52.223-7 Notice of Radioactive Materials. (Deviation 2026-O0038) (Feb 2026)

NOTICE OF RADIOACTIVE MATERIALS (FEB 2026) (DEVIATION 2026-O0038)

(a) The Contractor shall notify the Contracting Officer or designee, in writing, 60*days prior to the delivery of, or prior to completion of any servicing required by this contract of, items containing either (1) radioactive material requiring specific licensing under the regulations issued pursuant to the Atomic Energy Act of 1954, as amended, as set forth in title 10 of the Code of Federal Regulations, in effect on the date of this contract, or (2) other radioactive material not requiring specific licensing in which the specific activity is greater than 0.002 microcuries per gram or the activity per item equals or exceeds 0.01 microcuries. Such notice shall specify the part or parts of the items which contain radioactive materials, a description of the materials, the name and activity of the isotope, the manufacturer of the materials, and any other information known to the Contractor which will put users of the items on notice as to the hazards involved.

(b) If there has been no change affecting the quantity of activity, or the characteristics and composition of the radioactive material from deliveries under this contract or prior contracts, the Contractor may request that the Contracting Officer or designee waive the notice requirement in paragraph (a) of this clause. Any such request shall-

- (1) Be submitted in writing;
- (2) State that the quantity of activity, characteristics, and composition of the radioactive material have not changed; and
- (3) Cite the contract number on which the prior notification was submitted and the contracting office to which it was submitted.

(c) All items, parts, or subassemblies which contain radioactive materials in which the specific activity is greater than 0.002 microcuries per gram or activity per item equals or exceeds 0.01 microcuries, and all containers in which such items, parts or subassemblies are delivered to the Government shall be clearly marked and labeled as required by the latest revision of MIL-STD 129 in effect on the date of the contract.

(d) This clause, including this paragraph (d), shall be inserted in all subcontracts for radioactive materials meeting the criteria in paragraph (a) of this clause.

* The Contracting Officer shall insert the number of days required in advance of delivery of the item or completion of the servicing to assure that required licenses are obtained and appropriate personnel are notified to institute any necessary safety and health precautions.

(End of clause)

52.223-9 Estimate of Percentage of Recovered Material Content for EPA-Designated Items. (May 2008)

Estimate of Percentage of Recovered Material Content for EPA-Designated Items (May 2008)

(a) *Definitions.* As used in this clause-

Postconsumer material means a material or finished product that has served its intended use and has been discarded for disposal or recovery, having completed its life as a consumer item. Postconsumer material is a part of the broader category of "recovered material."

"Recovered material" means waste materials and by-products recovered or diverted from solid waste, but the term does not include those materials and by-products generated from, and commonly reused within, an original manufacturing process.

(b) The Contractor, on completion of this contract, shall-

- (1) Estimate the percentage of the total recovered material content for EPA-designated item(s) delivered and/or used in contract performance, including, if applicable, the percentage of post-consumer material content; and
- (2) Submit this estimate to TBD.

(End of clause)

52.223-11 Ozone-Depleting Substances. (Deviation 2026-O0038) (Feb 2026)

OZONE-DEPLETING SUBSTANCES (FEB 2026) (DEVIATION 2026-O0038)

(a) *Definition.* As used in this clause-

Ozone-depleting substance means any substance the Environmental Protection Agency designates in 40 CFR part 82 as-

- (1) Class I, including, but not limited to, chlorofluorocarbons, halons, carbon tetrachloride, and methyl chloroform; or
- (2) Class II, including, but not limited to, hydrochlorofluorocarbons.

(b) Requirement. In accordance with 40 CFR 82.84(a)(5), the Contractor shall label products that contain or are manufactured with ozone-depleting substances in the manner and to the extent required by 42 U.S.C. 7671j(b), (c), (d), and (e) and 40 CFR part 82, subpart E, as follows:

Warning: Contains (or manufactured with, if applicable) *, a substance(s) which harm(s) public health and environment by destroying ozone in the upper atmosphere.

* The Contractor shall insert the name of the substance(s).

(End of clause)

52.225-9 Buy American-Construction Materials. (Deviation 2026-O0038)

(Feb 2026)

Buy American-Construction Materials (Feb 2026) (Deviation 2026-O0038)

(a) *Definitions.* As used in this clause-

Commercially available off-the-shelf (COTS) item-

(1) Means any item of supply (including construction material) that is-

(i) A commercial product (as defined in paragraph (1) of the definition of "commercial product" at Federal Acquisition Regulation (FAR) 2.101);

(ii) Sold in substantial quantities in the commercial marketplace; and

(iii) Offered to the Government, under a contract or subcontract at any tier, without modification, in the same form in which it is sold in the commercial marketplace; and

(2) Does not include bulk cargo, as defined in 46 U.S.C. 40102(4), such as agricultural products and petroleum products.

"Construction material" means an article, material, or supply brought to the construction site by the Contractor or a subcontractor for incorporation into the building or work. The term also includes an item brought to the site preassembled from articles, materials, or supplies. However, emergency life safety systems, such as emergency lighting, fire alarm, and audio evacuation systems, that are discrete systems incorporated into a public building or work and that are produced as complete systems, are evaluated as a single and distinct construction material regardless of when or how the individual parts or components of those systems are delivered to the construction site. Materials purchased directly by the Government are supplies, not construction material.

Cost of components means-

(1) For components purchased by the Contractor, the acquisition cost, including transportation costs to the place of incorporation into the construction material (whether or not such costs are paid to a domestic firm), and any applicable duty (whether or not a duty-free entry certificate is issued); or

(2) For components manufactured by the Contractor, all costs associated with the manufacture of the component, including transportation costs as described in paragraph (1) of this definition, plus allocable overhead costs, but excluding profit. Cost of components does not include any costs associated with the manufacture of the construction material.

Critical component means a component that is mined, produced, or manufactured in the United States and deemed critical to the U.S. supply chain. The list of critical components is at FAR 25.105.

Critical item means a domestic construction material or domestic end product that is deemed critical to U.S. supply chain resiliency. The list of critical items is at FAR 25.105.

Domestic construction material means-

(1) For construction material that does not consist wholly or predominantly of iron or steel or a combination of both-

(i) An unmanufactured construction material mined or produced in the United States; or

(ii) A construction material manufactured in the United States, if-

(A) The cost of its components mined, produced, or manufactured in the United States exceeds 60 percent of the cost of all its components, except that the percentage will be 65 percent for items delivered in calendar years 2024 through 2028 and 75 percent for items delivered starting in calendar year 2029. Components of foreign origin of the same class or kind for which nonavailability determinations have been made are treated as domestic. Components of unknown origin are treated as foreign; or

(B) The construction material is a COTS item; or

(2) For construction material that consists wholly or predominantly of iron or steel or a combination of both, a construction material manufactured in the United States if the cost of foreign iron and steel constitutes less than 5 percent of the cost of all components used in such construction material. The cost of foreign iron and steel includes but is not limited to the cost of foreign iron or steel mill products (such as bar, billet, slab, wire, plate, or

sheet), castings, or forgings utilized in the manufacture of the construction material and a good faith estimate of the cost of all foreign iron or steel components excluding COTS fasteners. Iron or steel components of unknown origin are treated as foreign. If the construction material contains multiple components, the cost of all the materials used in such construction material is calculated in accordance with the definition of "cost of components".

Fastener means a hardware device that mechanically joins or affixes two or more objects together. Examples of fasteners are nuts, bolts, pins, rivets, nails, clips, and screws.

Foreign construction material means a construction material other than a domestic construction material.

Foreign iron and steel means iron or steel products not produced in the United States. Produced in the United States means that all manufacturing processes of the iron or steel must take place in the United States, from the initial melting stage through the application of coatings, except metallurgical processes involving refinement of steel additives. The origin of the elements of the iron or steel is not relevant to the determination of whether it is domestic or foreign.

Predominantly of iron or steel or a combination of both means that the cost of the iron and steel content exceeds 50 percent of the total cost of all its components. The cost of iron and steel is the cost of the iron or steel mill products (such as bar, billet, slab, wire, plate, or sheet), castings, or forgings utilized in the manufacture of the product and a good faith estimate of the cost of iron or steel components excluding COTS fasteners.

Steel means an alloy that includes at least 50 percent iron, between 0.02 and 2 percent carbon, and may include other elements.

"United States" means the 50 States, the District of Columbia, and outlying areas.

(b) Domestic preference.

(1) This clause implements 41 U.S.C. chapter 83, Buy American, by providing a preference for domestic construction material. In accordance with 41 U.S.C. 1907, the domestic content test of the Buy American statute is waived for construction material that is a COTS item, except that for construction material that consists wholly or predominantly of iron or steel or a combination of both, the domestic content test is applied only to the iron and steel content of the construction materials, excluding COTS fasteners. The Contractor shall use only domestic construction material in performing this contract, except as provided in paragraphs (b)(2) and (b)(3) of this clause.

(2) This requirement does not apply to information technology that is a commercial product or to the construction materials or components listed by the Government as follows:

TBD

(3) The Contracting Officer may add other foreign construction material to the list in paragraph (b)(2) of this clause if the Government determines that-

(i) The cost of domestic construction material would be unreasonable.

(A) *For domestic construction material that is not a critical item or does not contain critical components.*

(1) The cost of a particular domestic construction material subject to the requirements of the Buy American statute is unreasonable when the cost of such material exceeds the cost of foreign material by more than 20 percent;

(2) For construction material that is not a COTS item and does not consist wholly or predominantly of iron or steel or a combination of both, if the cost of a particular domestic construction material is determined to be unreasonable or there is no domestic offer received, and the low offer is for foreign construction material that is manufactured in the United States and does not exceed 55 percent domestic content, the Contracting Officer will treat the lowest offer of foreign construction material that exceeds 55 percent domestic content as a domestic offer and determine whether the cost of that offer is unreasonable by applying the evaluation factor listed in paragraph (b)(3)(i)(A)(1) of this clause.

(3) The procedures in paragraph (b)(3)(i)(A)(2) of this clause will no longer apply as of January 1, 2030.

(B) *For domestic construction material that is a critical item or contains critical components.*

(1) The cost of a particular domestic construction material that is a critical item or contains critical components, subject to the requirements of the Buy American statute, is unreasonable when the cost of such material exceeds the cost of foreign material by more than 20 percent plus the additional preference factor identified for the critical item or construction material containing critical components listed at FAR 25.105.

(2) For construction material that does not consist wholly or predominantly of iron or steel or a combination of both, if the cost of a particular domestic construction material is determined to be unreasonable or there is no domestic offer received, and the low offer is for foreign construction material that does not exceed 55 percent domestic content, the Contracting Officer will treat the lowest foreign offer of construction material that is manufactured in the United States and exceeds 55 percent domestic content as a domestic offer, and determine whether the cost of that offer is unreasonable by applying the evaluation factor listed in paragraph (b)(3)(i)(B)(1) of this clause.

(3) The procedures in paragraph (b)(3)(i)(B)(2) of this clause will no longer apply as of January 1, 2030.

(ii) The application of the restriction of the Buy American statute to a particular construction material would be impracticable or inconsistent with the public interest; or

(iii) The construction material is not mined, produced, or manufactured in the United States in sufficient and reasonably available commercial quantities of a satisfactory quality.

(c) Request for determination of inapplicability of the Buy American statute.

(1)

(i) Any Contractor request to use foreign construction material in accordance with paragraph (b)(3) of this clause shall include adequate information for Government evaluation of the request, including-

(A) A description of the foreign and domestic construction materials;

(B) Unit of measure;

(C) Quantity;

(D) Price;

(E) Time of delivery or availability;

(F) Location of the construction project;

(G) Name and address of the proposed supplier; and

(H) A detailed justification of the reason for use of foreign construction materials cited in accordance with paragraph (b)(3) of this clause.

(ii) A request based on unreasonable cost shall include a reasonable survey of the market and a completed price comparison table in the format in paragraph (d) of this clause.

(iii) The price of construction material shall include all delivery costs to the construction site and any applicable duty (whether or not a duty-free certificate may be issued).

(iv) Any Contractor request for a determination submitted after contract award shall explain why the Contractor could not reasonably foresee the need for such determination and could not have requested the determination before contract award. If the Contractor does not submit a satisfactory explanation, the Contracting Officer need not make a determination.

(2) If the Government determines after contract award that an exception to the Buy American statute applies and the Contracting Officer and the Contractor negotiate adequate consideration, the Contracting Officer will modify the contract to allow use of the foreign construction material. However, when the basis for the exception is the unreasonable price of a domestic construction material, adequate consideration is not less than the differential established in paragraph (b)(3)(i) of this clause.

(3) Unless the Government determines that an exception to the Buy American statute applies, use of foreign construction material is noncompliant with the Buy American statute or Balance of Payments Program.

(d) *Data.* To permit evaluation of requests under paragraph (c) of this clause based on unreasonable cost, the Contractor shall include the following information and any applicable supporting data based on the survey of suppliers:

Foreign and Domestic Construction Materials Price Comparison			
Construction material description	Unit of measure	Quantity	Price (dollars) *
Item 1:			
Foreign construction material.	==	==	==
Domestic construction material.	==	==	==

Item 2:			
Foreign construction material.		==	==
Domestic construction material.	==	==	==
<i>[* Include all delivery costs to the construction site and any applicable duty (whether or not a duty-free entry certificate is issued)].</i> <i>[List name, address, telephone number, and contact for suppliers surveyed. Attach copy of response; if oral, attach summary.]</i> <i>[Include other applicable supporting information.]</i>			

(End of clause)

52.229-8 Taxes-Foreign Cost-Reimbursement Contracts.

(Mar 1990)

Taxes-Foreign Cost-Reimbursement Contracts (Mar 1990)

(a) Any tax or duty from which the United States Government is exempt by agreement with the Government of TBD, or from which the Contractor or any subcontractor under this contract is exempt under the laws of TBD, shall not constitute an allowable cost under this contract.

(b) If the Contractor or subcontractor under this contract obtains a foreign tax credit that reduces its Federal income tax liability under the United States Internal Revenue Code (Title 26, U.S. Code) because of the payment of any tax or duty that was reimbursed under this contract, the amount of the reduction shall be paid or credited at the time of such offset to the Government of the United States as the Contracting Officer directs.

(End of clause)

52.232-16 Progress Payments. (Deviation 2026-O0038)

(Feb 2026)

Progress Payments (Feb 2026) (Deviation 2026-O0038)

The Government will make progress payments to the Contractor when requested as work progresses, but not more frequently than monthly, in amounts of \$2,500 or more approved by the Contracting Officer, under the following conditions:

(a) Computation of amounts.

(1) Unless the Contractor requests a smaller amount, the Government will compute each progress payment as 80 percent of the Contractor's total costs incurred under this contract whether or not actually paid, plus financing payments to subcontractors (see paragraph (j) of this clause), less the sum of all previous progress payments made by the Government under this contract. The Contracting Officer will consider cost of money that would be allowable under Federal Acquisition Regulation (FAR) 31.205-10 as an incurred cost for progress payment purposes.

(2) The amount of financing and other payments for supplies and services purchased directly for the contract are limited to the amounts that have been paid by cash, check, or other forms of payment, or that are determined due and will be paid to subcontractors-

(i) In accordance with the terms and conditions of a subcontract or invoice; and

(ii) Ordinarily within 30 days of the submission of the Contractor's payment request to the Government.

(3) The Government will exclude accrued costs of Contractor contributions under employee pension plans until actually paid unless-

(i) The Contractor's practice is to make contributions to the retirement fund quarterly or more frequently; and

(ii) The contribution does not remain unpaid 30 days after the end of the applicable quarter or shorter payment period (any contribution remaining unpaid shall be excluded from the Contractor's total costs for progress payments until paid).

(4) The Contractor shall not include the following in total costs for progress payment purposes in paragraph (a)(1) of this clause:

(i) Costs that are not reasonable, allocable to this contract, and consistent with sound and generally accepted accounting principles and practices.

(ii) Costs incurred by subcontractors or suppliers.

(iii) Costs ordinarily capitalized and subject to depreciation or amortization except for the properly depreciated or amortized portion of such costs.

(iv) Payments made or amounts payable to subcontractors or suppliers, except for-

(A) Completed work, including partial deliveries, to which the Contractor has acquired title; and

(B) Work under cost-reimbursement or time-and-material subcontracts to which the Contractor has acquired title.

(5) The amount of unliquidated progress payments may exceed neither (i) the progress payments made against incomplete work (including allowable unliquidated progress payments to subcontractors) nor (ii) the value, for progress payment purposes, of the incomplete work. Incomplete work shall be considered to be the supplies and services required by this contract, for which delivery and invoicing by the Contractor and acceptance by the Government are incomplete.

(6) The total amount of progress payments shall not exceed 80 percent of the total contract price.

(7) If a progress payment or the unliquidated progress payments exceed the amounts permitted by subparagraphs (a)(4) or (a)(5) of this clause, the Contractor shall repay the amount of such excess to the Government on demand.

(8) Notwithstanding any other terms of the contract, the Contractor agrees not to request progress payments in dollar amounts of less than \$2,500. The Contracting Officer may make exceptions.

(9) The costs applicable to items delivered, invoiced, and accepted shall not include costs in excess of the contract price of the items.

(b) *Liquidation.* Except as provided in the Termination for Convenience of the Government clause, all progress payments shall be liquidated by deducting from any payment under this contract, other than advance or progress payments, the unliquidated progress payments, or 80 percent of the amount invoiced, whichever is less. The Contractor shall repay to the Government any amounts required by a retroactive price reduction, after computing liquidations and payments on past invoices at the reduced prices and adjusting the unliquidated progress payments accordingly. The Government reserves the right to unilaterally change from the ordinary liquidation rate to an alternate rate when deemed appropriate for proper contract financing.

(c) *Reduction or suspension.* The Contracting Officer may reduce or suspend progress payments, increase the rate of liquidation, or take a combination of these actions, after finding on substantial evidence any of the following conditions:

(1) The Contractor failed to comply with any material requirement of this contract (which includes paragraphs (f) and (g) of this clause).

(2) Performance of this contract is endangered by the Contractor's (i) failure to make progress or (ii) unsatisfactory financial condition.

(3) Inventory allocated to this contract substantially exceeds reasonable requirements.

(4) The Contractor is delinquent in payment of the costs of performing this contract in the ordinary course of business.

(5) The fair value of the undelivered work is less than the amount of unliquidated progress payments for that work.

(6) The Contractor is realizing less profit than that reflected in the establishment of any alternate liquidation rate in paragraph (b) of this clause, and that rate is less than the progress payment rate stated in subparagraph (a)(1) of this clause.

(d) *Title.*

(1) Title to the property described in this paragraph (d) shall vest in the Government. Vestiture shall be immediately upon the date of this contract, for property acquired or produced before that date. Otherwise, vestiture shall occur when the property is or should have been allocable or properly chargeable to this contract.

(2) *Property*, as used in this clause, includes all of the below-described items acquired or produced by the Contractor that are or should be allocable or properly chargeable to this contract under sound and generally accepted accounting principles and practices.

(i) Parts, materials, inventories, and work in process;

(ii) Special tooling and special test equipment to which the Government is to acquire title;

(iii) Nondurable (i.e., noncapital) tools, jigs, dies, fixtures, molds, patterns, taps, gauges, test equipment, and other similar manufacturing aids, title to which would not be obtained as special tooling under paragraph (d)(2)(ii) of this clause; and

(iv) Drawings and technical data, to the extent the Contractor or subcontractors are required to deliver them to the Government by other clauses of this contract.

(3) Although title to property is in the Government under this clause, other applicable clauses of this contract, e.g., the termination clauses, shall determine the handling and disposition of the property.

(4) The Contractor may sell any scrap resulting from production under this contract without requesting the Contracting Officer's approval, but the proceeds shall be credited against the costs of performance.

(5) To acquire for its own use or dispose of property to which title is vested in the Government under this clause, the Contractor must obtain the Contracting Officer's advance approval of the action and the terms. The Contractor shall (i) exclude the allocable costs of the property from the costs of contract performance, and (ii) repay to the Government any amount of unliquidated progress payments allocable to the property. Repayment may be by cash or credit memorandum.

(6) When the Contractor completes all of the obligations under this contract, including liquidation of all progress payments, title shall vest in the Contractor for all property (or the proceeds thereof) not-

(i) Delivered to, and accepted by, the Government under this contract; or

(ii) Incorporated in supplies delivered to, and accepted by, the Government under this contract and to which title is vested in the Government under this clause.

(7) The terms of this contract concerning liability for Government-furnished property shall not apply to property to which the Government acquired title solely under this clause.

(e) *Risk of loss.* Before delivery to and acceptance by the Government, the Contractor shall bear the risk of loss for property, the title to which vests in the Government under this clause, except to the extent the Government expressly assumes the risk. The Contractor shall repay the Government an amount equal to the unliquidated progress payments that are based on costs allocable to property that is lost (see 45.101).

(f) *Control of costs and property.* The Contractor shall maintain an accounting system and controls adequate for the proper administration of this clause.

(g) *Reports, forms, and access to records.*

(1) The Contractor shall promptly furnish reports, certificates, financial statements, and other pertinent information (including estimates to complete) reasonably requested by the Contracting Officer for the administration of this clause. Also, the Contractor shall give the Government reasonable opportunity to examine and verify the Contractor's books, records, and accounts.

(2) The Contractor shall furnish estimates to complete that have been developed or updated within six months of the date of the progress payment request. The estimates to complete shall represent the Contractor's best estimate of total costs to complete all remaining contract work required under the contract. The estimates shall include sufficient detail to permit Government verification.

(3) Each Contractor request for progress payment shall:

(i) Be submitted on Standard Form 1443, Contractor's Request for Progress Payment, or the electronic equivalent as required by agency regulations, in accordance with the form instructions and the contract terms; and

(ii) Include any additional supporting documentation requested by the Contracting Officer.

(h) *Special terms regarding default.* If this contract is terminated under the Default clause, (i) the Contractor shall, on demand, repay to the Government the amount of unliquidated progress payments and (ii) title shall vest in the Contractor, on full liquidation of progress payments, for all property for which the Government elects not to require delivery under the Default clause. The Government shall be liable for no payment except as provided by the Default clause.

(i) *Reservations of rights.*

(1) No payment or vesting of title under this clause shall (i) excuse the Contractor from performance of obligations under this contract or (ii) constitute a waiver of any of the rights or remedies of the parties under the contract.

(2) The Government's rights and remedies under this clause (i) shall not be exclusive but rather shall be in addition to any other rights and remedies provided by law or this contract and (ii) shall not be affected by delayed, partial, or omitted exercise of any right, remedy, power, or privilege, nor shall such exercise or any single exercise preclude or impair any further exercise under this clause or the exercise of any other right, power, or privilege of the Government.

(j) *Financing payments to subcontractors.* The financing payments to subcontractors mentioned in paragraphs (a)(1) and (a)(2) of this clause shall be all financing payments to subcontractors or divisions, if the following conditions are met:

(1) The amounts included are limited to-

(i) The unliquidated remainder of financing payments made; plus

(ii) Any unpaid subcontractor requests for financing payments.

- (2) The subcontract or interdivisional order is expected to involve a minimum of approximately 6 months between the beginning of work and the first delivery; or, if the subcontractor is a small business concern, 4 months.
- (3) If the financing payments are in the form of progress payments, the terms of the subcontract or interdivisional order concerning progress payments-
- (i) Are substantially similar to the terms of this clause for any subcontractor that is a large business concern, or this clause with its *Alternate I* for any subcontractor that is a small business concern;
 - (ii) Are at least as favorable to the Government as the terms of this clause;
 - (iii) Are not more favorable to the subcontractor or division than the terms of this clause are to the Contractor;
 - (iv) Are in conformance with the requirements of FAR 32.504(e); and
 - (v) Subordinate all subcontractor rights concerning property to which the Government has title under the subcontract to the Government's right to require delivery of the property to the Government if-
- (A) The Contractor defaults; or
 - (B) The subcontractor becomes bankrupt or insolvent.
- (4) If the financing payments are in the form of performance-based payments, the terms of the subcontract or interdivisional order concerning payments-
- (i) Are substantially similar to the Performance-Based Payments clause at FAR 52.232-32 and meet the criteria for, and definition of, performance-based payments in FAR Part 32;
 - (ii) Are in conformance with the requirements of FAR 32.504(f); and
 - (iii) Subordinate all subcontractor rights concerning property to which the Government has title under the subcontract to the Government's right to require delivery of the property to the Government if-
- (A) The Contractor defaults; or
 - (B) The subcontractor becomes bankrupt or insolvent.
- (5) If the financing payments are in the form of commercial product or commercial service financing payments, the terms of the subcontract or interdivisional order concerning payments-
- (i) Are constructed in accordance with FAR 32.206(c) and included in a subcontract for a commercial product or commercial service purchase that meets the definition and standards for acquisition of commercial products and commercial services in FAR parts 2 and 12;
 - (ii) Are in conformance with the requirements of FAR 32.504(g); and
 - (iii) Subordinate all subcontractor rights concerning property to which the Government has title under the subcontract to the Government's right to require delivery of the property to the Government if-
- (A) The Contractor defaults; or
 - (B) The subcontractor becomes bankrupt or insolvent.
- (6) If financing is in the form of progress payments, the progress payment rate in the subcontract is the customary rate used by the contracting agency, depending on whether the subcontractor is or is not a small business concern.
- (7) Concerning any proceeds received by the Government for property to which title has vested in the Government under the subcontract terms, the parties agree that the proceeds shall be applied to reducing any unliquidated financing payments by the Government to the Contractor under this contract.
- (8) If no unliquidated financing payments to the Contractor remain, but there are unliquidated financing payments that the Contractor has made to any subcontractor, the Contractor shall be subrogated to all the rights the Government obtained through the terms required by this clause to be in any subcontract, as if all such rights had been assigned and transferred to the Contractor.
- (9) To facilitate small business participation in subcontracting under this contract, the Contractor shall provide financing payments to small business concerns, in conformity with the standards for customary contract financing payments stated in FAR 32.113. The Contractor shall not consider the need for such financing payments as a handicap or adverse factor in the award of subcontracts.
- (k) *Limitations on undefinitized contract actions.* Notwithstanding any other progress payment provisions in this contract, progress payments may not exceed 80 percent of costs incurred on work accomplished under undefinitized contract actions. A *contract action* is any action resulting in a contract, as defined in subpart 2.1, including contract modifications for additional supplies or services, but not including contract modifications that are within the scope and under the terms of the contract, such as contract modifications issued pursuant to the Changes clause, or funding and other

administrative changes. This limitation shall apply to the costs incurred, as computed in accordance with paragraph (a) of this clause, and shall remain in effect until the contract action is definitized. Costs incurred which are subject to this limitation shall be segregated on Contractor progress payment requests and invoices from those costs eligible for higher progress payment rates. For purposes of progress payment liquidation, as described in paragraph (b) of this clause, progress payments for undefinitized contract actions shall be liquidated at 80 percent of the amount invoiced for work performed under the undefinitized contract action as long as the contract action remains undefinitized. The amount of unliquidated progress payments for undefinitized contract actions shall not exceed 80 percent of the maximum liability of the Government under the undefinitized contract action or such lower limit specified elsewhere in the contract. Separate limits may be specified for separate actions.

(l) *Due date.* The designated payment office will make progress payments on the __TBD__ day after the designated billing office receives a proper progress payment request. In the event that the Government requires an audit or other review of a specific progress payment request to ensure compliance with the terms and conditions of the contract, the designated payment office is not compelled to make payment by the specified due date. Progress payments are considered contract financing and are not subject to the interest penalty provisions of the Prompt Payment Act.

(m) Progress payments under indefinite-delivery contracts. The Contractor shall account for and submit progress payment requests under individual orders as if the order constituted a separate contract, unless otherwise specified in this contract.

(End of clause)

52.232-19 Availability of Funds for the Next Fiscal Year.

(Apr 1984)

AVAILABILITY OF FUNDS FOR THE NEXT FISCAL YEAR (APR 1984)

Funds are not presently available for performance under this contract beyond TBD. The Government's obligation for performance of this contract beyond that date is contingent upon the availability of appropriated funds from which payment for contract purposes can be made. No legal liability on the part of the Government for any payment may arise for performance under this contract beyond TBD, until funds are made available to the Contracting Officer for performance and until the Contractor receives notice of availability, to be confirmed in writing by the Contracting Officer.

(End of clause)

52.242-4 Certification of Final Indirect Costs.

(Jan 1997)

CERTIFICATION OF FINAL INDIRECT COSTS (JAN 1997)

(a) The Contractor shall-

(1) Certify any proposal to establish or modify final indirect cost rates;

(2) Use the format in paragraph (c) of this clause to certify; and

(3) Have the certificate signed by an individual of the Contractor's organization at a level no lower than a vice president or chief financial officer of the business segment of the Contractor that submits the proposal.

(b) Failure by the Contractor to submit a signed certificate, as described in this clause, may result in final indirect costs at rates unilaterally established by the Contracting Officer.

(c) The certificate of final indirect costs shall read as follows:

Certificate of Final Indirect Costs

This is to certify that I have reviewed this proposal to establish final indirect cost rates and to the best of my knowledge and belief:

1. All costs included in this proposal (identify proposal and date) to establish final indirect cost rates for (identify period covered by rate) are allowable in accordance with the cost principles of the Federal Acquisition Regulation (FAR) and its supplements applicable to the contracts to which the final indirect cost rates will apply; and

2. This proposal does not include any costs which are expressly unallowable under applicable cost principles of the FAR or its supplements.

Firm: _____

Signature: _____

Name of Certifying Official: _____

Title: _____

Date of Execution: _____

(End of clause)

52.244-2 Subcontracts.

(Jun 2020)

SUBCONTRACTS (JUN 2020)

(a) *Definitions.* As used in this clause-

"Approved purchasing system" means a Contractor's purchasing system that has been reviewed and approved in accordance with part 44 of the Federal Acquisition Regulation (FAR).

"Consent to subcontract" means the Contracting Officer's written consent for the Contractor to enter into a particular subcontract.

Subcontract means any contract, as defined in FAR subpart 2.1, entered into by a subcontractor to furnish supplies or services for performance of the prime contract or a subcontract. It includes, but is not limited to, purchase orders, and changes and modifications to purchase orders.

(b) When this clause is included in a fixed-price type contract, consent to subcontract is required only on unpriced contract actions (including unpriced modifications or unpriced delivery orders), and only if required in accordance with paragraph (c) or (d) of this clause.

(c) If the Contractor does not have an approved purchasing system, consent to subcontract is required for any subcontract that-

(1) Is of the cost-reimbursement, time-and-materials, or labor-hour type; or

(2) Is fixed-price and exceeds-

(i) For a contract awarded by the Department of Defense, the Coast Guard, or the National Aeronautics and Space Administration, the greater of the simplified acquisition threshold, as defined in FAR 2.101 on the date of subcontract award, or 5 percent of the total estimated cost of the contract; or

(ii) For a contract awarded by a civilian agency other than the Coast Guard and the National Aeronautics and Space Administration, either the simplified acquisition threshold, as defined in FAR 2.101 on the date of subcontract award, or 5 percent of the total estimated cost of the contract.

(d) If the Contractor has an approved purchasing system, the Contractor nevertheless shall obtain the Contracting Officer's written consent before placing the following subcontracts:

TBD

(e)

(1) The Contractor shall notify the Contracting Officer reasonably in advance of placing any subcontract or modification thereof for which consent is required under paragraph (b), (c), or (d) of this clause, including the following information:

(i) A description of the supplies or services to be subcontracted.

(ii) Identification of the type of subcontract to be used.

(iii) Identification of the proposed subcontractor.

(iv) The proposed subcontract price.

(v) The subcontractor's current, complete, and accurate certified cost or pricing data and Certificate of Current Cost or Pricing Data, if required by other contract provisions.

(vi) The subcontractor's Disclosure Statement or Certificate relating to Cost Accounting Standards when such data are required by other provisions of this contract.

(vii) A negotiation memorandum reflecting-

(A) The principal elements of the subcontract price negotiations;

(B) The most significant considerations controlling establishment of initial or revised prices;

(C) The reason certified cost or pricing data were or were not required;

(D) The extent, if any, to which the Contractor did not rely on the subcontractor's certified cost or pricing data in determining the price objective and in negotiating the final price;

(E) The extent to which it was recognized in the negotiation that the subcontractor's certified cost or pricing data were not accurate, complete, or current; the action taken by the Contractor and the subcontractor; and the effect of any such defective data on the total price negotiated;

(F) The reasons for any significant difference between the Contractor's price objective and the price negotiated; and

(G) A complete explanation of the incentive fee or profit plan when incentives are used. The explanation shall identify each critical performance element, management decisions used to quantify each incentive element, reasons for the incentives, and a summary of all trade-off possibilities considered.

(2) The Contractor is not required to notify the Contracting Officer in advance of entering into any subcontract for which consent is not required under paragraph (b), (c), or (d) of this clause.

(f) Unless the consent or approval specifically provides otherwise, neither consent by the Contracting Officer to any subcontract nor approval of the Contractor's purchasing system shall constitute a determination-

- (1) Of the acceptability of any subcontract terms or conditions;
- (2) Of the allowability of any cost under this contract; or
- (3) To relieve the Contractor of any responsibility for performing this contract.

(g) No subcontract or modification thereof placed under this contract shall provide for payment on a cost-plus-a-percentage-of-cost basis, and any fee payable under cost-reimbursement type subcontracts shall not exceed the fee limitations in FAR 15.404-4(c)(4)(i).

(h) The Contractor shall give the Contracting Officer immediate written notice of any action or suit filed and prompt notice of any claim made against the Contractor by any subcontractor or vendor that, in the opinion of the Contractor, may result in litigation related in any way to this contract, with respect to which the Contractor may be entitled to reimbursement from the Government.

(i) The Government reserves the right to review the Contractor's purchasing system as set forth in FAR subpart 44.3.

(j) Paragraphs (c) and (e) of this clause do not apply to the following subcontracts, which were evaluated during negotiations:

TBD

(End of clause)

52.247-1 Commercial Bill of Lading Notations.

(Feb 2006)

COMMERCIAL BILL OF LADING NOTATIONS (FEB 2006)

When the Contracting Officer authorizes supplies to be shipped on a commercial bill of lading and the Contractor will be reimbursed these transportation costs as direct allowable costs, the Contractor shall ensure before shipment is made that the commercial shipping documents are annotated with either of the following notations, as appropriate:

(a) If the Government is shown as the consignor or the consignee, the annotation shall be:

Transportation is for the [name the specific agency] and the actual total transportation charges paid to the carrier(s) by the consignor or consignee are assignable to, and shall be reimbursed by, the Government.

(b) If the Government is not shown as the consignor or the consignee, the annotation shall be:

Transportation is for the [name the specific agency] and the actual total transportation charges paid to the carrier(s) by the consignor or consignee shall be reimbursed by the Government, pursuant to cost-reimbursement contract No. . This may be confirmed by contacting [Name and address of the contract administration office listed in the contract].

(End of clause)

52.247-63 Preference for U.S.-Flag Air Carriers.

(Jan 2025)

PREFERENCE FOR U.S.-FLAG AIR CARRIERS (JAN 2025)

(a) *Definitions.* As used in this clause-

"International air transportation" means transportation by air between a place in the United States and a place outside the United States or between two places both of which are outside the United States.

United States means the 50 States, the District of Columbia, and outlying areas.

U.S.-flag air carrier means an entity granted authority to provide air transportation in the form of a certificate of public convenience and necessity under 49 U.S.C. 41102.

(b) *U.S. Government-financed international air transportation.* 49 U.S.C. 40118, Government-financed air transportation (commonly referred to as the Fly America Act), requires that all Federal agencies and Government contractors and subcontractors use U.S.-flag air carriers for U.S.

Government-financed international air transportation of personnel (and their personal effects) or property, to the extent that service by those carriers is available. It requires the General Services Administration to issue regulations that, in the absence of satisfactory proof of the necessity for foreign-flag air transportation, disallow expenditures from funds, appropriated or otherwise established for the account of the United States, for international air transportation secured aboard a foreign-flag air carrier if a U.S.-flag air carrier is available to provide such services.

(c) *Use of U.S.-flag carriers for international air transportation.* If available, the Contractor, in performing work under this contract, shall use U.S.-flag carriers for international air transportation of personnel (and their personal effects) or property.

(d) *Statement of unavailability of U.S.-flag air carriers.* In the event that the Contractor selects a carrier other than a U.S.-flag air carrier for international air transportation, the Contractor shall include a statement on vouchers involving such transportation essentially as follows:

Statement of Unavailability of U.S.-Flag Air Carriers

International air transportation of persons (and their personal effects) or property by U.S.-flag air carrier was not available or it was necessary to use foreign-flag air carrier service for the following reasons (see section 47.403 of the Federal Acquisition Regulation) _____[State reasons]:

(End of statement)

(e) *Subcontracts.* The Contractor shall include the substance of this clause, including this paragraph (e), in each subcontract or purchase under this contract that may involve international air transportation.

(End of clause)

52.247-67 Submission of Transportation Documents for Audit.

(Feb 2006)

Submission of Transportation Documents for Audit (Feb 2006)

(a) The Contractor shall submit to the address identified below, for prepayment audit, transportation documents on which the United States will assume freight charges that were paid-

(1) By the Contractor under a cost-reimbursement contract; and

(2) By a first-tier subcontractor under a cost-reimbursement subcontract thereunder.

(b) Cost-reimbursement Contractors shall only submit for audit those bills of lading with freight shipment charges exceeding \$100. Bills under \$100 shall be retained on-site by the Contractor and made available for on-site audits. This exception only applies to freight shipment bills and is not intended to apply to bills and invoices for any other transportation services.

(c) Contractors shall submit the above referenced transportation documents to-

The Contract Specialist of record.

(End of clause)

52.252-2 Clauses Incorporated by Reference.

(Feb 1998)

Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

www.acquisition.gov

(End of clause)

52.252-6 Authorized Deviations in Clauses.

(Nov 2020)

Authorized Deviations in Clauses (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any Defense Federal Acquisition Regulation Supplement (48 CFR Chapter 2) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

DFARS Clauses Incorporated by Full Text

252.204-7021 Contractor Compliance with the Cybersecurity Maturity Model Certification Level Requirements. (Nov 2025)

CONTRACTOR COMPLIANCE WITH THE CYBERSECURITY MATURITY MODEL CERTIFICATION LEVEL REQUIREMENTS (NOV 2025)

(a) *Definitions.* As used in this clause-

"Controlled unclassified information" means information the Government creates or possesses, or information an entity creates or possesses for or on behalf of the Government, that a law, regulation, or Governmentwide policy requires or permits an agency to handle using safeguarding or dissemination controls (32 CFR 2002.4(h)).

"Current" means-

(1) With regard to Conditional Cybersecurity Maturity Model Certification (CMMC) Status-

(i) Not older than 180 days for Conditional Level 2 (Self) assessments and Conditional Level 2 (certified third-party assessment organization (C3PAO)) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Conditional CMMC Status date (see 32 CFR 170.16 and 170.17); and

(B) A corresponding affirmation of continuous compliance by an affirming official (see 32 CFR 170.4); and

(ii) Not older than 180 days for Conditional Level 3 (Defense Industrial Base Cybersecurity Assessment Center (DIBCAC)) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Conditional CMMC Status date (see 32 CFR 170.18); and

(B) A corresponding affirmation of continuous compliance by an affirming official;

(2) With regard to Final CMMC Status-

(i) Not older than 1 year for Final Level 1 (Self), with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.15); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official;

(ii) Not older than 3 years for Final Level 2 (Self) assessments and Final Level 2 (C3PAO) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.16 and 170.17); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official; and

(iii) Not older than 3 years for Final Level 3 (DIBCAC) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.18); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official; and

(3) With regard to affirmation of continuous compliance (32 CFR 170.22), not older than 1 year with no changes in compliance with the requirements at 32 CFR part 170.

"Cybersecurity Maturity Model Certification (CMMC) status" means the result of meeting or exceeding the minimum required score for the corresponding assessment. The potential statuses are as follows:

(1) Final Level 1 (Self).

(2) Conditional Level 2 (Self).

(3) Final Level 2 (Self).

- (4) Conditional Level 2 (C3PAO).
- (5) Final Level 2 (C3PAO).
- (6) Conditional Level 3 (DIBCAC).
- (7) Final Level 3 (DIBCAC).

"Cybersecurity Maturity Model Certification unique identifier (CMMC UID)" means 10 alpha-numeric characters assigned to each CMMC assessment and reflected in the Supplier Performance Risk System (SPRS) for each contractor information system.

"Federal contract information (FCI)" means information, not intended for public release, that is provided by or generated for the Government under a contract to develop or deliver a product or service to the Government. It does not include information provided by the Government to the public, such as on public websites, or simple transactional information, such as information necessary to process payments.

"Plan of action and milestones" means a document that identifies tasks to be accomplished. It details resources required to accomplish the elements of the plan, any milestones in meeting the tasks, and scheduled completion dates for the milestones, as defined in National Institute of Standards and Technology Special Publication 800-115 (32 CFR 170.21).

(b) *Framework.* The Cybersecurity Maturity Model Certification (CMMC) is a framework for assessing a contractor's compliance with applicable information security protections (see 32 CFR part 170).

(c) *Duplication.* The CMMC assessments will not duplicate efforts from any other comparable DoD assessment, except for rare circumstances when a reassessment may be necessary, for example, when there are indications of issues with cybersecurity and/or compliance with CMMC requirements.

(d) *Requirements.* The Contractor shall-

(1)(i) Have and maintain for the duration of the contract a current CMMC status at the following CMMC level, or higher: CMMC Level 1 (Self) for all information systems used in performance of the contract, task order, or delivery order that process, store, or transmit FCI or CUI; and

(ii) Consult 32 CFR 170.23 related to the flowdown of the CMMC requirements, and flow down the correct CMMC level to subcontracts and other contractual instruments;

(2) Only process, store, or transmit FCI or CUI on contractor information systems that have a CMMC status at the CMMC level required in paragraph (d)(1) of this clause, or higher;

(3) Complete on an annual basis, and maintain as current, an affirmation, by the affirming official (see 32 CFR 170.4), of continuous compliance with the requirements associated with the CMMC level required in paragraph (d)(1) of this clause in the Supplier Performance Risk System (SPRS) (<https://piee.eb.mil>) for each CMMC UID applicable to each of the contractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the contract;

(4) Ensure all subcontractors and suppliers complete prior to subcontract award, and maintain on an annual basis, an affirmation, by the affirming official (see 32 CFR 170.4), of continuous compliance with the requirements associated with the CMMC level required for the subcontract or other contractual instrument for each of the subcontractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the subcontract; and

(5) If the Contractor has a CMMC Status of Conditional, successfully close out a valid plan of action and milestones (32 CFR 170.21) to achieve a CMMC Status of Final.

(e) *Reporting.* The Contractor shall-

(1) Submit to the Contracting Officer-

(i) The CMMC UID(s) issued by SPRS for contractor information systems that will process, store, or transmit FCI or CUI during performance of the contract; and

(ii) Any changes in the CMMC UIDs generated in SPRS throughout the life of the contract, task order, or delivery order, if applicable;

(2) Enter into SPRS the results of a current self-assessment for each CMMC UID, not covered by a C3PAO assessment or DIBCAC assessment, applicable to each of the contractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the contract; and

(3) Complete in SPRS on an annual basis and maintain as current an affirmation of continuous compliance by the affirming official (see 32 CFR 170.4) for each self-assessment, C3PAO assessment, or DIBCAC assessment required under the contract in SPRS.

(f) *Subcontracts.* The Contractor shall-

(1) Insert the substance of this clause, including this paragraph (f) and excluding paragraph (e)(1), in subcontracts and other contractual instruments, including those for the acquisition of commercial products or commercial services, excluding commercially available off-the-shelf items, if the subcontract or other contractual instrument will contain a requirement to process, store, or transmit FCI or CUI; and

(2) Prior to awarding a subcontract or other contractual instrument, ensure that the subcontractor has a current CMMC certificate or current CMMC status at the CMMC level that is appropriate for the information that is being flowed down to the subcontractor based on the requirements at 32 CFR 170.23.

(End of clause)

252.223-7001 Hazard Warning Labels.

(Dec 1991)

HAZARD WARNING LABELS (DEC 1991)

(a) "Hazardous material," as used in this clause, is defined in the Hazardous Material Identification and Material Safety Data clause of this contract.

(b) The Contractor shall label the item package (unit container) of any hazardous material to be delivered under this contract in accordance with the Hazard Communication Standard (29 CFR 1910.1200 et seq). The Standard requires that the hazard warning label conform to the requirements of the standard unless the material is otherwise subject to the labelling requirements of one of the following statutes:

- (1) Federal Insecticide, Fungicide and Rodenticide Act;
- (2) Federal Food, Drug and Cosmetics Act;
- (3) Consumer Product Safety Act;
- (4) Federal Hazardous Substances Act; or
- (5) Federal Alcohol Administration Act.

(c) The Offeror shall list which hazardous material listed in the Hazardous Material Identification and Material Safety Data clause of this contract will be labelled in accordance with one of the Acts in paragraphs (b)(1) through (5) of this clause instead of the Hazard Communication Standard. Any hazardous material not listed will be interpreted to mean that a label is required in accordance with the Hazard Communication Standard.

MATERIAL (If None, Insert "None.")	ACT

(d) The apparently successful Offeror agrees to submit, before award, a copy of the hazard warning label for all hazardous materials not listed in paragraph (c) of this clause. The Offeror shall submit the label with the Material Safety Data Sheet being furnished under the Hazardous Material Identification and Material Safety Data clause of this contract.

(e) The Contractor shall also comply with MIL-STD-129, Marking for Shipment and Storage (including revisions adopted during the term of this contract).

(End of clause)

252.225-7045 Balance of Payments Program--Construction Material Under Trade Agreements.

(Feb 2024)

BALANCE OF PAYMENTS PROGRAM-CONSTRUCTION MATERIAL UNDER TRADE AGREEMENTS-BASIC (FEB 2024)

(a) *Definitions.* As used in this clause-

"Caribbean Basin country construction material" means a construction material that-

- (1) Is wholly the growth, product, or manufacture of a Caribbean Basin country; or

(2) In the case of a construction material that consists in whole or in part of materials from another country, has been substantially transformed in a Caribbean Basin country into a new and different construction material distinct from the materials from which it was transformed.

"Commercially available off-the-shelf (COTS) item"-

- (1) Means any item of supply (including construction material) that is-

(i) A commercial product (as defined in paragraph (1) of the definition of "commercial product" in section 2.101 of the Federal Acquisition Regulation (FAR));

(ii) Sold in substantial quantities in the commercial marketplace; and

(iii) Offered to the Government, under a contract or subcontract at any tier, without modification, in the same form in which it is sold in the commercial marketplace; and

(2) Does not include bulk cargo, as defined in section 3 of the Shipping Act of 1984 (46 U.S.C. 40102), such as agricultural products and petroleum products.

"Component" means any article, material, or supply incorporated directly into construction material.

"Construction material" means an article, material, or supply brought to the construction site by the Contractor or a subcontractor for incorporation into the building or work. The term also includes an item brought to the site preassembled from articles, materials, or supplies. However, emergency life safety systems, such as emergency lighting, fire alarm, and audio evacuation systems, that are discrete systems incorporated into a public building or work and that are produced as complete systems, are evaluated as a single and distinct construction material regardless of when or how the individual parts or components of those systems are delivered to the construction site. Materials purchased directly by the Government are supplies, not construction material.

"Cost of components" means-

(1) For components purchased by the Contractor, the acquisition cost, including transportation costs to the place of incorporation into the end product (whether or not such costs are paid to a domestic firm), and any applicable duty (whether or not a duty-free entry certificate is issued); or

(2) For components manufactured by the Contractor, all costs associated with the manufacture of the component, including transportation costs as described in paragraph (1) of this definition, plus allocable overhead costs, but excluding profit. Cost of components does not include any costs associated with the manufacture of the construction material.

"Critical component" means a component that is mined, produced, or manufactured in the United States and deemed critical to the U.S. supply chain. The list of critical components is at FAR 25.105.

"Critical item" means domestic construction material or a domestic end product that is deemed critical to the U.S. supply chain. The list of critical items is at FAR 25.105.

"Designated country" means-

(1) A World Trade Organization Government Procurement Agreement (WTO GPA) country (Armenia, Aruba, Australia, Austria, Belgium, Bulgaria, Canada, Croatia, Cyprus, Czech Republic, Denmark, Estonia, Finland, France, Germany, Greece, Hong Kong, Hungary, Iceland, Ireland, Israel, Italy, Japan, Korea (Republic of), Latvia, Liechtenstein, Lithuania, Luxembourg, Malta, Moldova, Montenegro, Netherlands, New Zealand, North Macedonia, Norway, Poland, Portugal, Romania, Singapore, Slovak Republic, Slovenia, Spain, Sweden, Switzerland, Taiwan (known in the World Trade Organization as "the Separate Customs Territory of Taiwan, Penghu, Kinmen, and Matsu" (Chinese Taipei)), Ukraine, or the United Kingdom);

(2) A Free Trade Agreement country (Australia, Bahrain, Chile, Colombia, Costa Rica, Dominican Republic, El Salvador, Guatemala, Honduras, Korea (Republic of), Mexico, Morocco, Nicaragua, Panama, Peru, or Singapore);

(3) A least developed country (Afghanistan, Angola, Bangladesh, Benin, Bhutan, Burkina Faso, Burundi, Cambodia, Central African Republic, Chad, Comoros, Democratic Republic of Congo, Djibouti, Equatorial Guinea, Eritrea, Ethiopia, Gambia, Guinea, Guinea-Bissau, Haiti, Kiribati, Laos, Lesotho, Liberia, Madagascar, Malawi, Mali, Mauritania, Mozambique, Nepal, Niger, Rwanda, Samoa, Sao Tome and Principe, Senegal, Sierra Leone, Solomon Islands, Somalia, South Sudan, Tanzania, Timor-Leste, Togo, Tuvalu, Uganda, Vanuatu, Yemen, or Zambia); or

(4) A Caribbean Basin country (Antigua and Barbuda, Aruba, Bahamas, Barbados, Belize, Bonaire, British Virgin Islands, Curacao, Dominica, Grenada, Guyana, Haiti, Jamaica, Montserrat, Saba, St. Kitts and Nevis, St. Lucia, St. Vincent and the Grenadines, Sint Eustatius, Sint Maarten, or Trinidad and Tobago).

"Designated country construction material" means a construction material that is a WTO GPA country construction material, a Free Trade Agreement country construction material, a least developed country construction material, or a Caribbean Basin country construction material.

"Domestic construction material" means-

(1) For construction material that does not consist wholly or predominantly of iron or steel or a combination of both-

(i) An unmanufactured construction material mined or produced in the United States ; or

(ii) A construction material manufactured in the United States , if-

(A) The cost of its components mined, produced, or manufactured in the United States exceeds 60 percent of the cost of all its components, except that the percentage will be 65 percent for items delivered in calendar years 2024 through 2028 and 75 percent for items delivered

starting in calendar year 2029, unless an alternate percentage is established for a contract in accordance with FAR 25.201(c). Components of foreign origin of the same class or kind for which nonavailability determinations have been made are treated as domestic. Components of unknown origin are treated as foreign; or

(B) The construction material is a COTS item; or

(2) For construction material that consists wholly or predominantly of iron or steel or a combination of both, a construction material manufactured in the United States if the cost of iron and steel not produced in the United States (excluding fasteners) as estimated in good faith by the contractor, constitutes less than 5 percent of the cost of all the components used in such construction material (produced in the United States means that all manufacturing processes of the iron or steel must take place in the United States, except metallurgical processes involving refinement of steel additives). The cost of iron and steel not produced in the United States includes but is not limited to the cost of iron or steel mill products (such as bar, billet, slab, wire, plate, or sheet), castings, or forgings, not produced in the United States, utilized in the manufacture of the construction material and a good faith estimate of the cost of all iron or steel components not produced in the United States, excluding COTS fasteners. Iron or steel components of unknown origin are treated as foreign. If the construction material contains multiple components, the cost of all the materials used in such construction material is calculated in accordance with the definition of "cost of components" in this clause.

"Free Trade Agreement country construction material" means a construction material that-

(1) Is wholly the growth, product, or manufacture of a Free Trade Agreement country; or

(2) In the case of a construction material that consists in whole or in part of materials from another country, has been substantially transformed in a Free Trade Agreement country into a new and different construction material distinct from the material from which it was transformed.

"Least developed country construction material" means a construction material that-

(1) Is wholly the growth, product, or manufacture of a least developed country; or

(2) In the case of a construction material that consists in whole or in part of materials from another country, has been substantially transformed in a least developed country into a new and different construction material distinct from the materials from which it was transformed.

"Predominantly of iron or steel or a combination of both" means that the cost of the iron and steel content exceeds 50 percent of the total cost of all its components. The cost of iron and steel is the cost of the iron or steel mill products (such as bar, billet, slab, wire, plate, or sheet), castings, or forgings utilized in the manufacture of the product and a good faith estimate of the cost of iron or steel components excluding COTS fasteners.

"Steel" means an alloy that includes at least 50 percent iron, between 0.02 and 2 percent carbon, and may include other elements.

" United States " means the 50 States, the District of Columbia , and outlying areas.

"WTO GPA country construction material" means a construction material that-

(1) Is wholly the growth, product, or manufacture of a WTO GPA country; or

(2) In the case of a construction material that consists in whole or in part of materials from another country, has been substantially transformed in a WTO GPA country into a new and different construction material distinct from the materials from which it was transformed.

(b) This clause implements the Balance of Payments Program by providing a preference for domestic construction material. In addition, the Contracting Officer has determined that the WTO GPA and Free Trade Agreements apply to this acquisition. Therefore, the Balance of Payments Program restrictions are waived for designated country construction materials.

(c) The Contractor shall use only domestic or designated country construction material in performing this contract, except for--

(1) Construction material valued at or below the simplified acquisition threshold in part 2 of the Federal Acquisition Regulation;

(2) Information technology that is a commercial product; or

(3) The construction material or components listed by the Government as follows:

[Contracting Officer to list applicable excepted materials or indicate "none"]

(End of clause)

252.225-7963 **Antiterrorism/Force Protection for Defense Contractors Outside the United States. (DEVIATION 2026-O0041)**

(Feb 2026) **Deviation 2026-O0041 (Feb 2026)**

ANTITERRORISM/FORCE PROTECTION POLICY FOR DEFENSE CONTRACTORS OUTSIDE THE UNITED STATES(DEVIATION 2026-O0041) (FEB 2026)

(a) *Definition.* "United States," as used in this clause, means, the 50 States, the District of Columbia, and outlying areas.

(b) Except as provided in paragraph (c) of this clause, the Contractor and its subcontractors, if performing or traveling outside the United States under this contract, shall--

(1) Affiliate with the Overseas Security Advisory Council, if the Contractor or subcontractor is a U.S. entity;

(2) Ensure that Contractor and subcontractor personnel who are U.S. nationals and are in-country on a non-transitory basis, register with the U. S. Embassy, and that Contractor and subcontractor personnel who are third country nationals comply with any security related requirements of the Embassy of their nationality;

(3) Provide, to Contractor and subcontractor personnel, antiterrorism/force protection awareness information commensurate with that which the Department of Defense (DoD) provides to its military and civilian personnel and their families, to the extent such information can be made available prior to travel outside the United States; and

(4) Obtain and comply with the most current antiterrorism/force protection guidance for Contractor and subcontractor personnel.

(c) The requirements of this clause do not apply to any subcontractor that is--

(1) A foreign government;

(2) A representative of a foreign government; or

(3) A foreign corporation wholly owned by a foreign government.

(d) Information and guidance pertaining to DoD antiterrorism/force protection can be obtained from *(Contracting Officer to insert applicable information cited in PGI 225.772-1)*.

(End of clause)

252.237-7023 Continuation of Essential Contractor Services.

(Oct 2010)

CONTINUATION OF ESSENTIAL CONTRACTOR SERVICES (OCT 2010)

(a) *Definitions.* As used in this clause-

(1) "Essential contractor service" means a service provided by a firm or individual under contract to DoD to support mission-essential functions, such as support of vital systems, including ships owned, leased, or operated in support of military missions or roles at sea; associated support activities, including installation, garrison, and base support services; and similar services provided to foreign military sales customers under the Security Assistance Program. Services are essential if the effectiveness of defense systems or operations has the potential to be seriously impaired by the interruption of these services, as determined by the appropriate functional commander or civilian equivalent.

(2) "Mission-essential functions" means those organizational activities that must be performed under all circumstances to achieve DoD component missions or responsibilities, as determined by the appropriate functional commander or civilian equivalent. Failure to perform or sustain these functions would significantly affect DoD's ability to provide vital services or exercise authority, direction, and control.

(b) The Government has identified all or a portion of the contractor services performed under this contract as essential contractor services in support of mission essential functions. These services are listed in attachment TBD, Mission-Essential Contractor Services, dated TBD.

(c)(1) The Mission-Essential Contractor Services Plan submitted by the Contractor, is incorporated in this contract.

(2) The Contractor shall maintain and update its plan as necessary. The Contractor shall provide all plan updates to the Contracting Officer for approval.

(3) As directed by the Contracting Officer, the Contractor shall participate in training events, exercises, and drills associated with Government efforts to test the effectiveness of continuity of operations procedures and practices.

(d)(1) Notwithstanding any other clause of this contract, the contractor shall be responsible to perform those services identified as essential contractor services during crisis situations (as directed by the Contracting Officer), in accordance with its Mission-Essential Contractor Services Plan.

(2) In the event the Contractor anticipates not being able to perform any of the essential contractor services identified in accordance with paragraph (b) of this section during a crisis situation, the Contractor shall notify the Contracting Officer or other designated representative as expeditiously as possible and use its best efforts to cooperate with the Government in the Government's efforts to maintain the continuity of operations.

(e) The Government reserves the right in such crisis situations to use Federal employees, military personnel or contract support from other contractors, or to enter into new contracts for essential contractor services.

(f) Changes. The Contractor shall segregate and separately identify all costs incurred in continuing performance of essential services in a crisis situation. The Contractor shall notify the Contracting Officer of an increase or decrease in costs within ninety days after continued performance has been directed by the Contracting Officer, or within any additional period that the Contracting Officer approves in writing, but not later than the date of final payment under the contract. The Contractor's notice shall include the Contractor's proposal for an equitable adjustment and any data supporting

the increase or decrease in the form prescribed by the Contracting Officer. The parties shall negotiate an equitable price adjustment to the contract price, delivery schedule, or both as soon as is practicable after receipt of the Contractor's proposal.

(g) The Contractor shall include the substance of this clause, including this paragraph (g), in subcontracts for the essential services.

(End of clause)

Section J - List of Attachments

J.1&J.1A	Direct Labor Bid Bill and Escalation
J.2	Identification of Uncompensated Overtime Ratios
J.3	Indirect Ceiling Rates and Fee Application
J.4	Proposed Distribution of Work
J.5	Service Contract Labor Standards and Construction Wage Rate Requirements Ceiling Labor Rates
J.6	Proposed, Historical, and Year-To-Date Indirect Rates
J.7	Cost Model
J.7A	Cost Model Summary Sheet
J.8	Specialized Recent Project/Contract Experience Information
J.9	Workload Experience Form
J.10	Offeror's Key Personnel Experience/Qualifications
J.11	Past Performance Questionnaire (PPQ)
J.12	Service Contract Labor Standards (SCA) Wage Determination 2015-5689, Revision 28, dated 05/13/2026 (Hawaii)
J.13	General Decision Number HI20260001, Modification Number 3, dated 05/27/2026 (Hawaii)
J.14	Service Contract Labor Standards (SCA) Wage Determination 2015-5693, Revision 27, dated 05/13/2026 (Guam, Northern Marianas, Wake Island)
J.15	General Decision Number GU20260001, Modification Number 1, dated 05/18/2026 (Guam)
J.16	PIEE Solicitation Module Guide

Section K - Representations, Certification, & Other Statements

DFARS Provisions Incorporated by Full Text

252.240-7995 Prohibition on Contract Awards with Entities That Contract with Lobbyists for Chinese Military Companies--Representation.

PROHIBITION ON CONTRACT AWARDS WITH ENTITIES THAT CONTRACT WITH LOBBYISTS FOR CHINESE MILITARY COMPANIES--REPRESENTATION (JUN 2026) (DEVIATION 2026-O0025)

(a) *Definitions.* As used in this provision--

Chinese military company means any entity, regardless of geographic location, that is--

(1) An entity that is currently identified in the list published in the *Federal Register* by the Secretary pursuant to section 1260H of the NDAA for FY 2021 (Pub. L. 116-283);

(2) An entity that is currently identified in the non-specially designated Nationals (SDN) Chinese military industrial complex companies list (NS-CMIC List) published in the *Federal Register* by the Department of the Treasury or on the website of the Department of the Treasury's Office of Foreign Assets Control (OFAC);

(3) A People's Republic of China entity currently identified on the entity list published in the *Federal Register* by the Department of Commerce, which is found at Supplement No. 4 to Part 744 of the Export Administration Regulation (EAR); or

(4) An entity owned or controlled by, or affiliated with, an element of the government or armed forces of the People's Republic of China, or a subsidiary, affiliate including any parent or holding company, or any entity subject to the control of an entity described in paragraphs (1), (2), or (3) of this definition.

Covered lobbyist means an entity that engages in lobbying activities for any entity determined to be a Chinese military company listed in accordance with section 1260H of the NDAA for FY 2021 (Pub. L. 116-283).

Lobbying activities (2 U.S.C. 1602(7)) means lobbying contacts (2 U.S.C. 1602(8)) and efforts in support of such contacts, including preparation and planning activities, research and other background work that is intended, at the time it is performed, for use in contacts, and coordination with the lobbying activities of others.

(b) *Representation*. The Offeror represents by submission of its offer that it is not an entity, a parent company of such entity, or a subsidiary of such entity that is a party to a contract with a covered lobbyist.

(c) *Exception*. This prohibition does not apply with respect to an entity that made reasonable inquiries regarding the lobbying activities of another entity and determined such entity was not a covered lobbyist.

(End of provision)

252.240-7996 Prohibition on Awards to Chinese Military Companies--Representation.

PROHIBITION ON CONTRACT AWARDS TO CHINESE MILITARY COMPANIES--REPRESENTATION (JUN 2026) (DEVIATION 2026-O0041)

(a) *Definitions*. As used in this provision--

Chinese military company means any entity, regardless of geographic location, that is--

(1) An entity that is currently identified in the list published in the

Federal Register by the Secretary pursuant to section 1260H of the National Defense Authorization Act for Fiscal Year 2021 (Pub. L. 116-283);

(2) An entity that is currently identified in the non-specially

designated Nationals Chinese military industrial complex companies list published in the Federal Register by the Department of the Treasury or on the website of the Department of the Treasury's Office of Foreign Assets Control;

(3) A People's Republic of China entity currently identified on the

entity list published in the Federal Register by the Department of Commerce, which is found at Supplement No. 4 to Part 744 of the Export Administration Regulation; or

(4) An entity owned or controlled by, or affiliated with, an element of the government or armed forces of the People's Republic of China, or a subsidiary, affiliate including any parent or holding company, or any entity subject to the control of an entity described in paragraphs (1), (2), or (3) of this definition.

Control has the meaning given that term in 31 CFR 800.208 or any successor regulations.

(b) *Prohibition.* In accordance with section 805 of the National Defense Authorization Act for Fiscal Year 2024 (Pub. L. 118-31), DoD must not award a contract to an entity that is--

(1) A Chinese military company operating in the United States; or

(2) An entity that is subject to the control of a Chinese military company.

(c) *Representation.* The Offeror represents by submission of its offer that it is not a Chinese military company or an entity that is subject to the control of a Chinese military company.

(End of provision)

Number	Title	Effective Date	Alternate/ Deviation	Effective Date
52.203-11	Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions.	Sep 2024		
52.223-1	Biobased Product Certification. (Deviation 2026-O0038)	Feb 2026		
52.223-4	Recovered Material Certification.	May 2008		
52.240-90	Security Prohibitions and Exclusions Representations and Certifications. (Deviation 2026-O0038)	Feb 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	Sep 2022		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	Oct 2016		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	May 2022		
252.225-7057	Preaward Disclosure of Employment of Individuals Who Work in the People's Republic of China.	Aug 2022		
252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation.	Jun 2023		

FAR Clauses Incorporated by Full Text

52.209-2 Prohibition on Contracting With Inverted Domestic Corporations-Representation. (Deviation 2026-O0038) (Feb 2026)

PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS-REPRESENTATION (FEB 2026) (DEVIATION 2026-O0038)

(a) *Definitions.* As used in this clause-

Inverted domestic corporation means a foreign incorporated entity that meets the definition of an inverted domestic corporation under 6 U.S.C. 395 (b), applied in accordance with the rules and definitions of 6 U.S.C. 395(c).

Subsidiary means an entity in which more than 50 percent of the entity is owned-

(1) Directly by a parent corporation; or

(2) Through another subsidiary of a parent corporation.

(b) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-3(b) applies or the requirement is waived in accordance with the procedures at 9.108-5.

(c) *Representation.* The Offeror represents that-

(1) It ☐ is, ☐ is not an inverted domestic corporation; and

(2) It ☐ is, ☐ is not a subsidiary of an inverted domestic corporation.

(End of provision)

52.209-5 Certification Regarding Responsibility Matters. (Deviation 2026-O0038) (Feb 2026)

CERTIFICATION REGARDING RESPONSIBILITY MATTERS (FEB 2026) (DEVIATION 2026-O0038)

(a)

(1) The Offeror certifies, to the best of its knowledge and belief, that-

(i) The Offeror and/or any of its Principals-

(A) Are ☐ are not ☐ presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(B) Have ☐ have not ☐, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a public (Federal, State, or local) contract or subcontract; violation of Federal or State antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery,

bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property (if offeror checks "have", the offeror shall also see 52.209-7, if included in this solicitation);

(C) Are ☐ are not ☐ presently indicted for, or otherwise criminally or civilly charged by a governmental entity with, commission of any of the offenses enumerated in paragraph (a)(1)(i)(B) of this provision; and

(D) Have ☐, have not ☐, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at 9.104-5(a)(2) for which the liability remains unsatisfied. Federal taxes are considered delinquent if both of the following criteria apply:

(1) *The tax liability is finally determined.* The liability is finally determined if it has been assessed. A liability is not finally determined if a pending administrative or judicial challenge remains. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(2) *The taxpayer is delinquent in making payment.* A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(ii) The Offeror has ☐ has not ☐, within a 3-year period preceding this offer, had one or more contracts terminated for default by any Federal agency.

(2) "Principal," for the purposes of this certification, means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The Offeror shall provide immediate written notice to the Contracting Officer if, at any time prior to contract award, the Offeror learns that its certification was erroneous when submitted or has become erroneous by reason of changed circumstances.

(c) A certification that any of the items in paragraph (a) of this provision exists will not necessarily result in withholding of an award under this solicitation. However, the Government will consider the certification in connection with a determination of the Offeror's responsibility. Failure of the Offeror to furnish a certification or provide such additional information as requested by the Contracting Officer may render the Offeror nonresponsible.

(d) This provision does not require establishment of a system of records in order to render, in good faith, the certification required by paragraph (a). The knowledge and information of an Offeror is not required to exceed that which is normally possessed by a prudent person in the ordinary course of business dealings.

(e) The certification in paragraph (a) of this provision is a material representation of fact upon which reliance was placed when making award. If the Government later determines that the Offeror knowingly rendered an erroneous certification, in addition to other remedies available to the Government, the Contracting Officer may terminate the contract resulting from this solicitation for default.

(End of provision)

52.209-7 Information Regarding Responsibility Matters. (Deviation 2026-O0038)

(Feb 2026)

INFORMATION REGARDING RESPONSIBILITY MATTERS (FEB 2026) (DEVIATION 2026-O0038)

(a) *Definitions.* As used in this provision-

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than \$10,000,000 means-

(1) The total value of all current, active contracts and grants, including all priced options; and

(2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror ☐ has ☐ does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

- (i) In a criminal proceeding, a conviction.
- (ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.
- (iii) In an administrative proceeding, a finding of fault and liability that results in-
 - (A) The payment of a monetary fine or penalty of \$5,000 or more; or
 - (B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.
- (iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.
- (2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.
- (d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of provision)

52.209-11 Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. (Deviation 2026-O0038) (Feb 2026)

REPRESENTATION BY CORPORATIONS REGARDING DELINQUENT TAX LIABILITY OR A FELONY CONVICTION UNDER ANY FEDERAL LAW (FEB 2026) (DEVIATION 2026-O0038)

- (a) The Government will not enter into a contract with any corporation that-
 - (1) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or
 - (2) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.
- (b) The Offeror represents that-
 - (1) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and
 - (2) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(End of provision)

52.209-13 Violation of Arms Control Treaties or Agreements-Certification. (Deviation 2026-O0038) (Feb 2026)

VIOLATION OF ARMS CONTROL TREATIES OR AGREEMENTS-CERTIFICATION (FEB 2026) (DEVIATION 2026-O0038)

(a) This provision does not apply to acquisitions at or below the simplified acquisition threshold or to acquisitions of commercial products and commercial services as defined in Federal Acquisition Regulation 2.101.

(b) *Certification. [Offeror shall check either (1) or (2).]*

☐ (1) The Offeror certifies that-

(i) It does not engage and has not engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of

the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available at <https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/>; and

(ii) No entity owned or controlled by the Offeror has engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available at <https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/>; or

☐ (2) The Offeror is providing separate information with its offer in accordance with paragraph (d)(2) of this provision.

(c) Procedures for reviewing the annual unclassified report (see paragraph (b)(1) of this provision). For clarity, references to the report in this section refer to the entirety of the annual unclassified report, including any separate reports that are incorporated by reference into the annual unclassified report.

(1) Check the table of contents of the annual unclassified report and the country section headings of the reports incorporated by reference to identify the foreign countries listed there. Determine whether the Offeror or any person owned or controlled by the Offeror may have engaged in any activity related to one or more of such foreign countries.

(2) If such activity might have occurred, review all findings in the report associated with those foreign countries to determine whether or not each such foreign country was determined to be in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or to be not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. For clarity, in the annual report an explicit certification of non-compliance is equivalent to a determination of violation. However, the following statements in the annual report are not equivalent to a determination of violation:

- (i) An inability to certify compliance.
- (ii) An inability to conclude compliance.
- (iii) A statement about compliance concerns.

(3) If so, determine whether the Offeror or any person owned or controlled by the Offeror has engaged in any activity that contributed to or is a significant factor in the determination in the report that one or more of these foreign countries is in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. Review the narrative for any such findings reflecting a determination of violation or non-adherence related to those foreign countries in the report, including the finding itself, and to the extent necessary, the conduct giving rise to the compliance or adherence concerns, the analysis of compliance or adherence concerns, and efforts to resolve compliance or adherence concerns.

(4) The Offeror may submit any questions with regard to this report by email to NDAA1290Cert@state.gov. To the extent feasible, the Department of State will respond to such email inquiries within 3 business days.

(d) Do not submit an offer unless-

- (1) A certification is provided in paragraph (b)(1) of this provision and submitted with the offer; or
- (2) In accordance with paragraph (b)(2) of this provision, the Offeror provides with its offer information that the President of the United States has
 - (i) Waived application under 22 U.S.C. 2593e(d) or (e); or
 - (ii) Determined under 22 U.S.C. 2593e(g)(2) that the entity has ceased all activities for which measures were imposed under 22 U.S.C. 2593e(b).

(e) *Remedies.* The certification in paragraph (b)(1) of this provision is a material representation of fact upon which reliance was placed when making award. If the Government later determines that the Offeror knowingly submitted a false certification, in addition to other remedies available to the Government, such as suspension or debarment, the Contracting Officer may terminate any contract resulting from the false certification.

(End of provision)

52.219-1 Small Business Program Representations. (Deviation 2026-O0038)

(Feb 2026)

Small Business Program Representations (Feb 2026) (Deviation 2026-O0038)

(a) *Definitions.* As used in this provision-

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business concern eligible under the WOSB Program.

HUBZone small business concern means a small business concern that meets the requirements described in 13 CFR 126.200, is certified by the Small Business Administration (SBA) and designated by SBA as a HUBZone small business concern in the Small Business Search (SBS) (13 CFR 126.103).

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300.

Small business concern-

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (b) of this provision.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern means a small business concern that-

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by one or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States, and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals who meet the criteria in paragraph (1) of this definition.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127) means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b)

(1) The North American Industry Classification System (NAICS) code for this acquisition is 562910.

(2) The small business size standard is \$25 million or 1,000 employees.

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce (*i.e.*, nonmanufacturer), is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition-

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(c) *Representations*.

(1) The offeror represents as part of its offer that-

(i) it ☐ is, ☐ is not a small business concern; or

(ii) It ☐ is, ☐ is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). [_____
_____The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(2) [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it ☐ is, ☐ is not a women-owned small disadvantage business concern.

(3) *Women-owned small business (WOSB) joint venture eligible under the WOSB Program*. The offeror represents as part of its offer that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [_____The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(4) *Economically disadvantaged women-owned small business (EDWOSB) joint venture*. The offeror represents as part of its offer that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [_____The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(5) *SDVOSB joint venture eligible under the SDVOSB Program*. [Complete only if the offeror is certified as a SDVOSB concern]. The offeror represents as part of its offer that it ☐ is, ☐ is not a SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [_____The offeror shall enter the name and unique entity identifier of each party to the joint venture:____.]

(6) *HUBZone joint venture eligible under the HUBZone Program.* [Complete only if the offeror is a HUBZone small business concern.] The offeror represents, as part of its offer, that it ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [_____] The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.] Each HUBZone small business concern participating in the HUBZone joint venture must be certified as a HUBZone concern.

(d) *Notice.* Under 15 U.S.C. 645(d), any person who misrepresents a firm's status as a business concern that is small, HUBZone small, small disadvantaged, service-disabled veteran-owned small, economically disadvantaged women-owned small, or women-owned small eligible under the WOSB Program in order to obtain a contract to be awarded under the preference programs established pursuant to section 8, 9, 15, 31, and 36 of the Small Business Act or any other provision of Federal law that specifically references section 8(d) for a definition of program eligibility, will be-

- (1) Punished by imposition of fine, imprisonment, or both;
 - (2) Subject to administrative remedies, including suspension and debarment; and
 - (3) Ineligible for participation in programs conducted under the authority of the Act.
- (End of provision)

52.229-11 Tax on Certain Foreign Procurements-Notice and Representation.

(Jun 2020)

TAX ON CERTAIN FOREIGN PROCUREMENTS-NOTICE AND REPRESENTATION (JUN 2020)

(a) *Definitions.* As used in this provision-

Foreign person means any person other than a United States person.

Specified Federal procurement payment means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area of the United States.

United States person as defined in 26 U.S.C. 7701(a)(30) means

- (1) A citizen or resident of the United States;
- (2) A domestic partnership;
- (3) A domestic corporation;
- (4) Any estate (other than a foreign estate, within the meaning of 26 U.S.C. 701(a)(31)); and
- (5) Any trust if-
 - (i) A court within the United States is able to exercise primary supervision over the administration of the trust; and
 - (ii) One or more United States persons have the authority to control all substantial decisions of the trust.
- (b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.
- (c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror may claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service (IRS) Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available at www.irs.gov/w14. Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.

(d) For purposes of withholding under 26 U.S.C. 5000C, the Offeror represents that

- (1) It ☐ is ☐ is not a foreign person; and
- (2) If the Offeror indicates "is" in paragraph (d)(1) of this provision, then the Offeror represents that-I am claiming on the IRS Form W-14 ☐ a full exemption, or ☐ partial or no exemption [Offeror must select one] from the excise tax.

(e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then-

- (1) The clause at FAR 52.229-12, Tax on Certain Foreign Procurements, will be included in any resulting contract; and
- (2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.

(f) If the Offeror selects "is" in paragraph (d)(1) and "partial or no exemption" in paragraph (d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR 52.229-12, Tax on Certain Foreign Procurements, in any resulting contract.

(g) A taxpayer may, for a fee, seek advice from the IRS as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to <https://www.irs.gov/help/tax-law-questions>.

(End of provision)

DFARS Clauses Incorporated by Full Text

252.204-7016 Covered Defense Telecommunications Equipment or Services-Representation. (Dec 2019)

COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (DEC 2019)

(a) *Definitions.* As used in this provision, "covered defense telecommunications equipment or services" has the meaning provided in the clause 252.204-7018, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.

(b) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered defense telecommunications equipment or services".

(c) *Representation.* The Offeror represents that it ☐ does, ☐ does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(End of provision)

252.204-7017 Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation. (May 2021)

PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) *Definitions.* "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) *Prohibition.* Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) *Representation.* If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it ☐ will ☐ will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) *Disclosures.* If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

252.204-7998 **Alternate A, Annual Representations and Certifications. (DEVIATION 2026-O0043)** (Feb 2026) **Alternate A Deviation 2026-O0043** (Feb 2026)

Alternate A, Annual Representations and Certifications (DEVIATION 2026-O0043)(FEB 2026)

Include the following paragraphs (e), (f), and (g) in the provision at FAR 52.204-7:

(e)(1) If the provision at FAR 52.204-7, System for Award Management - Registration, is included in this solicitation, paragraph (g) of this provision applies.

(2) If the provision at FAR 52.204-7, System for Award Management - Registration, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (g) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

☐ (i) Paragraph (g) applies.

☐ (ii) Paragraph (g) does not apply and the Offeror has completed the individual representations and certifications in the solicitation.

(f)(1) The following representations or certifications in the SAM database are applicable to this solicitation as indicated:

(i) 252.204-7016, Covered Defense Telecommunications Equipment or Services--Representation. Applies to all solicitations.

(ii) 252.216-7008, Economic Price Adjustment--Wage Rates or Material Prices Controlled by a Foreign Government. Applies to solicitations for fixed-price supply and service contracts when the contract is to be performed wholly or in part in a foreign country, and a foreign government controls wage rates or material prices and may during contract performance impose a mandatory change in wages or prices of materials.

(iii) 252.225-7042, Authorization to Perform. Applies to all solicitations when performance will be wholly or in part in a foreign country.

(iv) 252.225-7049, Prohibition on Acquisition of Certain Foreign Commercial Satellite Services--Representations. Applies to solicitations for the acquisition of commercial satellite services.

(v) 252.225-7050, Disclosure of Ownership or Control by the Government of a Country that is a State Sponsor of Terrorism. Applies to all solicitations expected to result in contracts of \$150,000 or more.

(vi) 252.229-7012, Tax Exemptions (Italy)--Representation. Applies to solicitations when contract performance will be in Italy.

(vii) 252.229-7013, Tax Exemptions (Spain)--Representation. Applies to solicitations when contract performance will be in Spain.

(2) The following representations or certifications in SAM are applicable to this solicitation as indicated by the Contracting Officer: [Contracting Officer check as appropriate.]

☐ (i) 252.209-7002, Disclosure of Ownership or Control by a Foreign Government.

☐ (ii) 252.225-7000, Buy American--Balance of Payments Program Certificate.

☐ (iii) 252.225-7020, Trade Agreements Certificate.

☐ Use with Alternate I.

☐ (iv) 252.225-7031, Secondary Arab Boycott of Israel.

☐ (v) 252.225-7035, Buy American--Free Trade Agreements--Balance of Payments Program Certificate.

☐ Use with Alternate I.

☐ Use with Alternate II.

☐ Use with Alternate III.

☐ Use with Alternate IV.

☐ Use with Alternate V.

☐ (vi) 252.226-7002, Representation for Demonstration Project for Contractors Employing Persons with Disabilities.

☐ (vii) 252.232-7015, Performance-Based Payments--Representation.

(g) The Offeror has completed the annual representations and certifications electronically via the SAM website at <https://www.sam.gov>. After reviewing the SAM database information, the Offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in FAR 52.204-7 and paragraph (f) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer, and are incorporated in this offer by reference (see FAR 4.203-1); except for the changes identified below [*Offeror to insert changes, identifying change by provision number, title, date*]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR/DFARS provision No.	Title	Date	Change
	==	==	==
==	==	==	==
==	==	==	==
==	==	==	==
==	==	==	==

Any changes provided by the Offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications located in the SAM database.

(End of provision)

252.227-7992 **Identification and Assertion of Use, Release, or Disclosure Restrictions.** (Feb 2026) **Deviation 2026-O0036** (Feb 2026)
(DEVIATION 2026-O0036)

IDENTIFICATION AND ASSERTION OF USE, RELEASE, OR DISCLOSURE RESTRICTIONS (DEVIATION 2026-O0036) (FEB 2026)

(a) *Definitions.* As used in this provision--

"Computer software" is defined in--

(1) The 252.227-7989, Rights in Technical Data, Computer Software, and Computer Software Documentation--Other Than Commercial Products and Commercial Services; or

(2) If this solicitation contemplates a contract under the Small Business Innovation Research Program or Small Business Technology Transfer Program, the 252.227-7993, Rights in Other Than Commercial Technical Data and Computer Software--Small Business Innovation Research Program and Small Business Technology Transfer Program, clause of this solicitation.

"SBIR/STTR data" is defined in the 252.227-7993, Rights in Other Than Commercial Technical Data and Computer Software--Small Business Innovation Research Program and Small Business Technology Transfer Program, clause of this solicitation.

"Technical data" is defined in--

(1) The 252.227-7989, Rights in Technical Data, Computer Software, and Computer Software Documentation--Other Than Commercial Products and Commercial Services, clause of this solicitation; or

(2) If this solicitation contemplates a contract under the Small Business Innovation Research Program or Small Business Technology Transfer Program, the 252.227-7993, Rights in Other Than Commercial Technical Data and Computer Software--Small Business Innovation Research Program and Small Business Technology Transfer Program, clause of this solicitation.

(b) The identification and assertion requirements in this provision apply only to technical data, including computer software documentation, or computer software the Contractor must deliver with other than unlimited rights. For contracts to be awarded under the Small Business Innovation Research (SBIR) Program or Small Business Technology Transfer Program (STTR) Program, these requirements apply to SBIR/STTR data that will be generated under the resulting contract and will be delivered with SBIR/STTR data rights and to any other data that will be delivered with other than unlimited rights. Notification and identification are not required for restrictions based solely on copyright.

(c) Offers submitted in response to this solicitation shall identify, to the extent known at the time an offer is submitted to the Government, the technical data or computer software that the Offeror, its subcontractors or suppliers, or potential subcontractors or suppliers, assert should be furnished to the Government with restrictions on use, release, or disclosure.

(d) The Offeror's assertions, including the assertions of its subcontractors or suppliers or potential subcontractors or suppliers, shall be submitted as an attachment to its offer in the following format, dated and signed by an official authorized to contractually obligate the Offeror:

Identification and Assertion of Restrictions on the Government's Use, Release, or Disclosure of Technical Data or Computer Software			
The Offeror asserts for itself, or the persons identified below, that the Government's rights to use, release, or disclose the following technical data or computer software should be restricted:			
Technical data or computer software to be delivered with restrictions ¹	Basis for assertion ²	Asserted rights category ³	Name of person asserting restrictions ⁴
(LIST) ⁵	(LIST)	(LIST)	(LIST)
	_____	_____	_____
¹ For technical data (other than computer software documentation) related to items, components, or processes developed at private expense, identify both the deliverable technical data and each such items, component, or process. For computer software or computer software documentation identify the software or documentation.			

² Generally, development at private expense, either exclusively or partially, is the only basis for asserting restrictions. For technical data, other than computer software documentation, development refers to development of the item, component, or process to which the data relate. The Government's rights in computer software documentation generally may not be restricted. For computer software, development refers to the software. Indicate whether development was accomplished exclusively or partially at private expense. If development was not accomplished at private expense, or for computer software documentation, enter the specific basis for asserting restrictions.

³ Enter asserted rights category (e.g., government purpose license rights from a prior contract, rights in SBIR/STTR data generated under a contract resulting from this solicitation or under another contract, limited, restricted, or government purpose rights under a contract resulting from this solicitation or under a prior contract, or specially negotiated licenses).

⁴ Corporation, individual, or other person, as appropriate.

⁵ Enter "none" when all data or software will be submitted without restrictions.

Date _____

Printed Name and Title _____

Signature _____

(End of identification and assertion)

(e) An offeror's failure to submit, complete, or sign the notification and identification required by paragraph (d) of this provision with its offer may render the offer ineligible for award.

(f) If the Offeror is awarded a contract, the assertions identified in paragraph (d) of this provision shall be listed in an attachment to that contract. Upon request by the Contracting Officer, the Offeror shall provide sufficient information to enable the Contracting Officer to evaluate any listed assertion.

(End of provision)

Section L - Instructions, Conditions, & Notices to Offerors or Quoters

L1 NUMBER OF COPIES/CONTENT/TIME OF RECEIPT FOR PROPOSALS

1. The Cost Proposal (Volume I) and Non-Cost Proposal (Volume II) shall be submitted in separate binders, tabbed appropriately, and must include a cover page with the name of the prime contractor, addresses, phone and fax numbers, email addresses, solicitation number, and point of contact.

2. **VOLUME I - COST PROPOSAL:** An original plus one (1) paper copy and one (1) electronic copy (CDROM) of the cost proposal shall be submitted no later than the date and time provided in Block 9 of the Standard Form 33, "Solicitation, Offer, and Award", in a sealed envelope and marked in the bottom right corner "COST PROPOSAL SUBMITTED UNDER RFP N62742-26-R-1801- DO NOT OPEN IN MAILROOM." Identify the original proposal as "Original" on the cover of the proposal. The cost proposal shall be submitted in a three-ring binder with a table of contents and shall be tabbed. The proposal shall be typewritten, using 11 point font size. **There is no page limitation for Volume I.**

Electronic submission of proposals is authorized for proposal revisions only, if specifically requested by the Government in accordance with FAR 4.002.

a. Organization of Cost Proposal

SECTION I - STANDARD FORM 33

Tab 1 - Signed and completed Standard Form (SF) 33 (Solicitation, Offer and Award) and Amendments (if applicable)

Tab 2 - Joint Venture (JV), Limited Liability Companies (LLC), Limited Partnerships (LTD) (if applicable)

Tab 3 - Representations and Certifications (Section K)

SECTION II - COST AND RELATED INFORMATION

Tab 1 - Cost Proposal with supporting documentation

Tab 2 - Cost model information

Tab 3 - Cost pool, financial/accounting system and audit information

SECTION III - APPENDICES

Appendix A - Direct Labor and Indirect Rate Forward Pricing Agreements

Appendix B - Uncompensated Overtime

Appendix D - Pre-award Survey Information

b. Cost Proposal Submittal Requirements:

SECTION I - STANDARD FORM 33

Tab 1 - Signed and completed Standard Form (SF) 33 (Solicitation, Offer and Award). Complete Blocks 12 through 18. Period of validity of the Offeror's proposal in Block 12 shall be at least 150 calendar days. Amendment acknowledgements shall be included (if applicable).

Tab 2 - Joint Venture (JV), Limited Liability Companies (LLC), Limited Partnerships (LTD) (if applicable). JVs, and LLCs and LTDs shall submit the following additional documentation regarding their business entities:

- a. A copy of the executed Teaming, JV, LLC and/or LTD agreements.
- b. A detailed statement signed by the appropriate individual(s) of each firm outlining the following in terms of percentages where appropriate:
 1. The relationship of the team/partners/parties in terms of business ownership, capital contribution, profit distribution or loss sharing. Clearly identify the expected relationship, role and responsibility between the firms or of the subcontractor or other entity (type and proportion of work to be performed) (including an explanation of the meaningful involvement that the entity will have in performance of this contract).
 2. The management approach in terms of who will conduct, direct, supervise, and control; and the controlling partner's authority to obligate the entity.
 3. The structure and decision-making responsibilities of the partners/parties in terms of who will control the manner and method of performance of work.
 4. Identify (by name and title) the personnel having the authority to legally bind the partners/parties (including authority to execute the contract documents and bonds).
 5. Set forth procedures to be followed in the event the entity is dissolved due to unforeseen circumstances such as the bankruptcy of a member.
- c. A list of partners/parties, to include company name, Unique Entity Identifier (UEI) and CAGE Numbers, Address, Point of Contact, Email address, phone number and facsimile number.

Tab 3 - Representations and Certifications (See Section K).

SECTION II - COST AND RELATED INFORMATION

The Cost submission shall include the following attachments provided in the Section J:

- | | |
|----------|---|
| J.1&J.1A | Direct Labor Bid Bill and Escalation |
| J.2 | Identification of Uncompensated Overtime Ratios |
| J.3 | Indirect Ceiling Rates and Fee Application |

J.4	Distribution of Work Form
J.5	Service Contract Labor Standards and Construction Wage Rate Requirements Ceiling Labor Rates
J.6	Proposed, Historical, and Year-to-Date Indirect Rates
J.7	Cost Model Work Sheet
J.7A	Cost Model Summary Sheet

Notes:

(1) **A separate rate sheet for all J-Attachments shall be submitted by the prime, each JV member, and each cost reimbursable subcontractor.** If the Offeror is a JV and the JV members are proposing separate rates, separate rate sheets must be provided by each member. One submittal may be submitted for the JV entity only if the JV has an established separate cost center for the JV entity with an adequate accounting system for a cost reimbursement contract.

(2) Provide a description of the efforts to be subcontracted and the type, fixed price or cost reimbursable. Offerors shall submit cost reimbursable Subcontractor information in the same level of detail as provided by the Offeror. Subcontractor information may be submitted separately for proposal purposes. However, it is noted that Attachment J.1 (Direct Labor Bid Bill and Escalation), Attachment J.2 (Identification of Uncompensated Overtime Ratios), Attachment J.3 (Indirect Ceiling Rates and Fee Application), and Attachment J.5 (Service Contract Labor Standards and Construction Wage Rate Requirements Ceiling Labor Rates) for each cost reimbursable Subcontractor will be incorporated into any resulting Contract.

(3) The Cost Summary worksheets (Section J) illustrate a sample format of the type of cost breakdown detail requested. Offerors shall submit the supporting cost data in the same format for the base year, all option years, and the service extension. The offeror is responsible for the accuracy and completeness of the Cost Summary worksheets, including formulas. Offerors shall not deviate from the basic format of the forms identified in this solicitation. However, Offerors may adjust columns, rows and cost elements under J Attachments to be consistent with their cost accounting systems. Provide supporting worksheets and narrative explanations to fully explain the basis and rationale for the proposed amounts.

NOTE: SCA - Service Contract Labor Standards

DBA - Construction Wage Rate Requirements

Tab 1 - COST PROPOSAL WITH SUPPORTING DOCUMENTATION

a. DIRECT COSTS

Attachment J.1/J.1A - Direct Labor Bid Bill and Escalation. Offerors shall provide Company Equivalent Labor Category and Source information, and propose labor rates for all positions listed on Attachment J.1/J.1A. If a listed position is not currently employed, a market rate shall be provided. Offerors shall not edit (add/delete) the contract labor categories indicated. If it is determined that a specific labor category is required in performance of a task order, it may be negotiated by the Contracting Officer separately and incorporated into the basic contract. Labor categories listed are for exempt employees, supervisory, and specialty UXO personnel. Service Contract Labor Standards (SCA) or Construction Wage Rate Requirements (DBA) labor categories are not included. See Section J, Attachment J.5 - Service Contract Labor Standards and Construction Wage Rate Requirements Ceiling Labor Rates.

Attachment J.1 - Labor Bid and Billing Rate Submission. Offerors shall propose provisional bid and ceiling rates for use in negotiating baseline costs and maximum ceilings for Direct Labor for each contract period. **Ceiling rates shall not exceed 15% above the proposed provisional rate for each contract period.** See Section H for additional information. The provisional rates will be used for negotiating task orders, and rates billed against specific task orders will be based on the actual labor rates in effect, not to exceed the ceiling rates established under Attachment J.1 of the contract. The provisional bid and ceiling rates proposed and submitted with the RFP shall be utilized for each corresponding contract period.

Offerors shall provide the basis for proposed labor rate ceilings, such as whether the base rates were based on actual individual rates for key personnel, average or weighted rates for current employees, forward pricing rates, market sources such as Bureau of Labor Statistics or salary.com, or the Offeror's estimate, etc. If a composite labor rate is utilized or a labor rate is prorated over fiscal years, provide the specific details/calculations used to determine the rate. If forward pricing rates apply, provide a copy in Appendix A. Any deviation from forward pricing rates, current actual rates for individuals, etc. shall be clearly documented. Note the percent markup used on the base rates to arrive at the proposed ceiling rate for each labor category. Complete Attachment J.1 showing the base rate for each labor category, percentage markup for each labor category and ceiling rate for each contract period.

Where it is determined necessary to utilize a specific individual on this contract whose actual labor rate exceeds the established ceiling, the Contractor will be required to obtain prior written approval by the Contracting Officer. In the event that such approval is not properly obtained, the Government will only be required to reimburse the Contractor at the ceiling rate.

Shown below is a sample entry for Attachment J.1, Labor Bid and Billing Rate Submission:

Contract Labor Category	Company Equivalent Labor Category	Source	Base Year Individual or Average Bid Level Rate	Percent Mark-Up for Direct Labor Ceiling Rate	Base Year Maximum Ceiling Rate for Billing Purposes
Project Manager	Program Manager I,	Individual Rate (Jane Doe)	\$000	0%	\$000
Sr Project Engineer	Engineer IV	2012 Avg. Rate	\$000	0%	\$000
Word Processor	Word Processor	Market Rate	\$000	0%	\$000

Attachment J.1A - Direct Labor Rate Escalation Submission. Attachment J.1A reflects the escalation rate applied to the direct labor bid rate for each contract period. No additional escalation will be applied to the provisional rates when option years are exercised; therefore, Offerors should factor escalation into their provisional rates for all contract periods. Offerors shall provide the basis and supporting documentation (i.e. escalation forecasts) for any proposed/projected escalation and the assumptions used: forecast source (such as Global Insight), index used (index number and title), calculations (index values used: base and projected values), and dates used (month and year of applicable index numbers).

Shown below is a sample entry for Attachment J.1A, Direct Labor Rate Escalation Submission:

Contract Labor Category	Company Equivalent Labor Category	Source	Base Year Individual or Average Bid Level Rate	Escalation Factor Applied to Option Year 1	Option Year 1 Individual /Average Bid Level Rate

Project Manager	Program Manager I	Individual Rate (Jane Doe)	\$000	0%	\$000
Sr Project Engineer	Engineer IV	2012 Avg. Rate	\$000	0%	\$000
Word Processor	Word Processor	Market Rate	\$000	0%	\$000

Attachment J.2 - Identification of Uncompensated Overtime Ratios. If proposing uncompensated overtime for employees listed in Attachment J.1/J.1A, Offerors shall complete Attachment J.2 for affected employees. See below Section III - Appendices, Appendix C - Compensation Plan for Professional Employees for additional proposal requirements.

Attachment J.5 - Service Contract Labor Standards and Construction Wage Rate Requirements Ceiling Labor Rates. Offerors shall propose ceiling rates for Service Contract Labor Standards and Construction Wage Rate Requirements on Attachment J.5. As applicable, SCA and DBA wage determinations will be included in individual task orders. The proposed bid and bill rates for SCA and DBA labor shall be equal to or greater than the minimum wage determination rates specified in the Department of Labor (DOL) Wage Determination incorporated in the task order, but shall not exceed the maximum percent proposed/accepted in Attachment J.5.

b. INDIRECT COSTS (FRINGE BENEFITS, OVERHEAD, GENERAL & ADMINISTRATIVE (G&A), etc.)

Attachment J.3 - Indirect Ceiling Rates and Fee Application. Offerors shall show base indirect rates utilized to comprise proposed indirect rate ceilings. The indirect ceiling rates proposed will be the maximum allowable rates that can be proposed or billed under task orders issued during the ordering period. Indirect rates proposed for individual task orders may be less and should be in accordance with the Offeror's disclosed estimating system practices and, if applicable, forward pricing rate agreements. Additionally, should actual rates experienced during performance of the contract be lower than the ceiling rates shown, actual rates will be billed. The indirect rate ceilings will be incorporated into the awarded contract as stated under Section H.

(1) Offerors are to provide the following: (i) Detailed narrative explanation of the indirect pool and application base that each indirect rate is applied to; (ii) copies of any Forward Pricing Rate Agreements (FPRA), Forward Pricing Rate Recommendation (FPRR), etc. with the Government; or (iii) Historical information pertaining to the latest three (3) complete Fiscal Years (FY) indirect rates to include: indirect pool and base account descriptions, dollar amounts, and computed rates. If the proposed rates are significantly different than the past three years of historical rates, provide the estimating rationale or reasons for the differences. State whether the proposed rates include the impact of this contract.

(2) Indirect Ceiling Rates: Offerors shall provide ceiling rates for each indirect rate proposed and submit the basis and rationale as to how these ceiling rates were derived.

(3) For Joint Venture arrangements with no historical data, describe the nature of the indirect/support costs anticipated and the basis for estimate. For cost control, the Government is seeking to establish maximum or ceiling rates for each separate indirect rate category. For Joint Ventures, the Government is seeking to establish maximum, or ceiling rates, for the **Joint Venture entity, as well as the individual members comprising the Joint Venture.** Provide the basis and supporting documentation for each rate.

(4) Offerors shall propose indirect rates, expense pools, and bases consistent with the structure of their established accounting practices. Pool expenses shall not include unallowable costs identified in FAR Part 31. The Government will not accept discounted indirect rates as it may pose a risk that the Offeror will be unable to provide the services for the proposed costs. Indirect rates will be analyzed to ensure compliance with cost realism.

(5) The Fixed Fee Percentage (%) shall reconcile to Attachment J.3 (Indirect Rate Ceilings and Fee Application). Fixed Fee shall not be allowed on Equipment (Contractor - Acquired Property), Travel, Facilities Capital Cost of Money (FCCOM), Taxes, and Fee on cost reimbursable subcontractor's costs at any tier. The Fixed Fee Percentage (%) shall remain constant and shall not fluctuate from period to period, and shall not exceed 7.0%.

Attachment J.4 - Distribution of Work Form. Offerors shall provide the percentage of work expected to be performed by the prime, each Joint Venture member, and/or any cost reimbursable subcontractor. NOTE: Proposed percentages shall reconcile to Attachment J.7A Cost Model Summary Sheet.

Attachment J.6 - Proposed, Historical, and Year-to-Date Indirect Rates. For Offerors unable to provide the information required under Attachment J.3 above, Offerors shall complete Attachment J.6, which illustrates a sample format that may be edited to be in accordance with their established accounting practices. Attachment J.6 should correspond to rates proposed in Attachment J.3 (Indirect Ceiling Rates and Fee Application). Offerors shall provide the following: (i) latest complete three (3) years indirect rates; (ii) current year to date indirect rates; and (iii) explain any appreciable changes in business volume, which materially affect the proposed burden rate(s). State whether the proposed rates include the effect of this contract.

Tab 2 - COST MODEL INFORMATION ATTACHMENTS J.7 & J.7A

Attachment J.7 - Cost Model Work Sheet. Offerors shall complete Attachment J.7 in its entirety (all labor categories) and shall not edit (add/delete) the contract labor categories indicated. A separate Attachment J.7 shall be completed by the prime, each JV member, and each cost reimbursable subcontractor in its entirety for each contract period. Additionally, if multiple cost centers will be used in the performance of this contract, a completed cost model shall be submitted for each cost center. (Note: If a JV has an established separate cost center for the JV entity with an adequate accounting system for a cost reimbursement contract (FAR 16.301-3), one form may be submitted for the JV entity).

(1) Offerors shall not edit the Government-mandated costs associated with Other Direct Costs (ODC), Travel, and Fixed Price Subcontracts. Offerors may adjust proposed indirect costs to be in accordance with their established accounting practices. Proposed Fair Labor Standards Act exempt employee labor rates should reconcile to Attachment J.1 (Direct Labor Bid Bill) direct labor ceiling rates for each corresponding contract period.

(2) The proposed rates for SCA labor shall be equal to or greater than the wage determination base rates provided in WD 2015-5693, Revision No. 28, dated 05/13/2026 (Attachment J.12). Do not include hazard pay for the SCA labor categories.

(3) The proposed rates for DBA labor shall be equal to or greater than the wage determination base rates provided in General Decision Number HI20260001, Modification No. 3 dated 05/27/2026 (Attachment J.13).

(4) For SCA and DBA labor, if it is the Offeror's normal accounting practice to charge health and welfare/fringe benefits as a direct charge, then the Offeror shall explain the basis of the base rate, including calculation in Microsoft Excel format on a CD to clearly show the base rate and markups applied. For example, showing the SCA rate plus SCA health and welfare or DBA plus WD fringe and any other direct charges added to the direct labor rate such as FUTA, SUTA and FICA. The Offeror shall use their indirect ceiling rates on Attachment J.3 (Indirect Ceiling Rate and Fee Application) in any offset or differential calculations to account for the payment of health and welfare/fringes in the base labor rate.

(5) Offerors shall utilize the Attachment J.3 (Indirect Ceiling Rates and Fee Application) proposed indirect rate ceilings for each corresponding contract period when completing Attachment J.7 (Cost Model Work Sheet). If Offeror (i.e. Prime, JV, cost reimbursable subcontractor) is proposing multiple mark-up rates (i.e. OH, G&A) for Other Direct Costs (ODC) and Subcontracts, Offerors shall ensure the highest mark-up rate is utilized.

(6) Offerors shall utilize the Attachment J.4 (Distribution of Work Form) proposed distribution of work percentages for each corresponding contract period when completing Attachment J.7A (Cost Model Summary Sheet).

(7) Offerors shall add any direct costs applied to the labor base (e.g. health and safety charge), if applicable, to be in accordance with their accounting system. In accordance with Section H5 (Notice of Non-Allowability of Direct Charges for General Purpose Information Technology), costs for the acquisition and use of Information Technology shall not be considered as an allowable direct charge to this contract.

(8) Fixed Fee. The proposed Fixed Fee percentage (%) shall reconcile to Attachment J.3 (Indirect Ceiling Rate and Fee Application) for each corresponding contract period. Fixed Fee shall not be applied on Equipment (Contractor-Acquired Property), Travel, Facilities Capital Cost of Money (FCCOM), Taxes, and Fee on cost reimbursable subcontractors' cost at any tier. The Fixed Fee Percentage (%) shall remain constant and shall not fluctuate from period to period, and shall not exceed 7.0%.

Attachment J.7A - Cost Model Summary Sheet. The prime contractor shall complete Attachment J.7A. In the event the Offeror (i.e. Prime, JV member or cost reimbursable subcontractor) utilized multiple cost centers, Attachment J.7 (Cost Model Work Sheet) shall be completed for each cost center; the highest "Total" cost from Attachment J.7 (Cost Model Work Sheet) shall be utilized to complete Attachment J.7A (Cost Model Summary Sheet). For evaluation purposes, Offerors shall utilize the Attachment J.4 (Proposed Distribution of Work) percentages. The Offeror's (i.e. Prime Contractor, JV) cost reimbursable subcontractor indirect ceiling rate mark-up proposed on Attachment J.3 (Indirect Rate Ceilings and Fee Application) shall be applied and added to the total cost. If the prime contractor is a JV, the rate for the JV member with the highest cost reimbursable indirect ceiling rate mark-up shall be utilized. **Note: In addition to a hard copy, the summary form shall be submitted in Microsoft Excel format on a CD.**

Shown below is a sample entry for Attachment J.7A - Cost Model Summary Sheet:

Offeror	Total Cost Model Value	% of work (See Att J.4)	Total Value based on % of Work
Prime/JV member	\$490,000	30.00%	\$147,000
Prime/JV member	\$505,000	25.00%	\$126,250
Cost Reimbursable Contractor	\$479,000	20.00%	\$95,800
Cost Reimbursable Contractor	\$515,000	25.00%	\$128,750
	TOTAL	100.00%	\$497,800
	Cost Reimbursable Subcontractor Total	% Mark-up	Cost Reimbursable Subcontractor Mark-up \$
Prime/JV indirect ceiling rate mark-up on Cost Reimbursable Subcontractors, i.e. G&A, as provided on Att J.3	\$224,550	7.5%	\$16,841
TOTAL VALUE OF COST MODEL			\$514,641

Note: The Prime's percent mark-up applied to the total cost for the cost reimbursement subcontractors is based on the indirect ceiling rate for JV member #1, whose rate was higher than JV member #2. The rate was applied to the total subcontract cost (\$95,800 + \$128,750) shown under Total Cost Model Value based on percentage (%) of Work column.

Tab 3 - CONTRACTOR BUSINESS SYSTEMS AND COST ACCOUNTING STANDARDS (CAS)

The Offeror should identify its cognizant Defense Contract Audit Agency (DCAA) office, Defense Contract Management Agency (DCMA) office, and if applicable, Cognizant Federal Agency Official (CFAO). The point of contact, address, phone number, and e-mail address for each of the cognizant agencies identified must be included. If an offeror does not have such contact(s) with DCAA or a Government audit office, it shall so indicate and explain the reason.

CONTRACTOR BUSINESS SYSTEMS. Offerors shall submit the date, results, and the reporting Government office for the most recent reviews performed of the following: (i) Accounting; (ii) Estimating; (iii) Purchasing; (iv) Material Management (if applicable); and (v) Government Property Systems (if applicable). Note that Earned Value Management Systems (EVMS) is not applicable. Offerors shall include a copy of the most recent Cognizant Federal Agency Official (CFAO) Determination Letter for each contractor business system that has been reviewed within the past three (3) years. Provide a listing of information to support the Government's determination of the degree to which the offerors' Contractor Business Systems are adequate and compliant with Government regulations and standards. The information shall be provided for each related entity that has direct or indirect costs or indirect cost allocations included in the Offeror's Cost Proposal, to include: (i) Corporate/Parent; (ii) Interdivisional; (iii) Business Unit; (iv) Joint Ventures; and (v) any other such related entities. The Offeror shall provide a narrative explanation and responsibility matrix showing the proposed business system participation of all entities included within the Offeror's Cost Proposal. For Joint Venture Offerors, the Contractor Business System responsibility shall be consistent with the Offeror's executed Teaming, JV, LLC or Mentor-Protege Agreement. Proposals shall not include a description of each system, but shall include supporting information that will allow the Government to determine the status of these systems, in accordance with DFARS 252.242-7005.

All the Contractor Business System information requested above shall also be provided for any cost reimbursable subcontractors, to include any applicable related entities, which are included in the Offeror's Cost Proposal. Cost-reimbursement subcontracts shall not be proposed without Contracting Officer consent and shall be proposed in accordance with FAR 52.244-2 Subcontracts, which requires the Prime Contractor to have an approved Purchasing System in advance of entering into any cost type subcontracts.

ACCOUNTING SYSTEM. Offerors (to include all Joint Venture members) are required to have a Cost Accounting System that has been reviewed by DCAA within the past three (3) years. If the Accounting System has not been reviewed within the past three (3) years, the request for a DCAA audit of a Contractor's Accounting System (as needed) will be initiated by the Contracting Officer or by his/her representative. DFARS 252.242-7005 requires the establishment and maintenance of an acceptable Accounting System. The acceptability of the Accounting System is determined based on compliance with the system criteria of DFARS 252.242-7006. SF-1408 Preaward Survey of Prospective Contractor (ACCOUNTING SYSTEM) contains the criteria requirements for an Accounting System to be acceptable for a Cost Accounting System that is not currently in full operation. Acceptable Cost Accounting Systems for all offerors (to include each Joint Venture Member) are required prior to award of the Basic Contract. It is not in the Government's interest to delay award of the contract if it is determined other Offeror(s) in the competitive range can reasonably provide the services being acquired under the contract and also have an acceptable Cost Accounting System. An Offeror's Cost Proposal may be rejected for lack of Government approved Cost Accounting System(s) prior to award.

PURCHASING SYSTEM. Offerors are required to have an approved Purchasing System that has been reviewed and approved in accordance with FAR part 44 by a Cognizant Federal Agency Official (CFAO). DFARS 252.242-7005 requires the establishment and maintenance of an acceptable Purchasing System. The acceptability of the Purchasing System is determined based on compliance with the system criteria of DFARS 252.244-7001. Acceptable Purchasing Systems for all offerors are required prior to award of the Basic Contract. It is not in the Government's interest to delay award of the contract if it is determined other Offeror(s) in the competitive range can reasonably provide the services being acquired under the contract and also have an acceptable Purchasing System. An Offeror's Cost Proposal may be rejected for lack of Government approved Purchasing System(s) prior to award.

As required under Section I, Tab II Teaming/JV/Mentor-Protege Agreements, Offerors are to clearly define the structure, roles and responsibilities, and percentage participation of the team/members/partners/parties in terms of who will implement and control the DFARS 252.242-7005 Contractor Business Systems - Purchasing System. In the case of Teaming/JV/

Mentor-Protege Agreements, the member responsible for implementing and controlling the Purchasing System is required to have an approved Purchasing System.

Cost-reimbursement subcontracts shall not be proposed without contracting officer consent and shall be proposed in accordance with FAR 52.244-2 Subcontracts, which requires the Prime Contractor to have an approved Purchasing System in advance of entering into any cost type subcontracts.

SECTION III - APPENDICES

Appendix A - Direct Labor and Indirect Rate Forward Pricing Agreements

- 1) The Offeror shall provide any approved direct labor and indirect rate forward pricing rate agreements.
- 2) If facilities capital cost of money is proposed, Form CASB-CMF must be provided with the proposal for each performance period.

Appendix B - Uncompensated Overtime

Attachment J.2 - Identification of Uncompensated Overtime Ratios. If proposing uncompensated overtime to calculate individual and average labor rates for Fair Labor Standards Act exempt employees (see Attachment J.1 - Direct Labor Bid Bill and Escalation), complete Attachment J.2 for each affected labor category. Additionally, Appendix B shall provide the following: (1) Required information per provision FAR 52.237-10 Identification of Uncompensated Overtime (Mar 2015); (2) historical number of hours in excess of 40 hours per week for each labor category; and (3) evidence of DCAA/DCMA approval of the corporate policy addressing uncompensated effort.

Appendix C - Compensation Plan for Professional Employees

- 1) Provide a comprehensive Compensation Plan for Professional Employees outlining salaries and fringe benefits proposed for the professional employees who will work under the contract for the Offeror and each cost reimbursable subcontractor. The plan shall show the necessary staff, citing data sources (e.g. regional salary surveys) used to develop the plan, and demonstrate how the proposed compensation is sufficient to recruit and retain qualified professional personnel to ensure uninterrupted, high-quality performance. Professional compensation that is unrealistically low or not in reasonable relationship to the various job categories may be viewed as evidence of failure to comprehend the complexity of the contract requirements.
- 2) Offerors shall provide the following additional information: (i) Specify if proposing distinct compensation plans for various skill levels, and provide a detailed description of each; (ii) required information per provision FAR 52.237-10 Identification of Uncompensated Overtime (March 2015); (iii) historical number of hours in excess of 40 hours per week for each labor category; and (iv) evidence of the Defense Contract Audit Agency or Defense Contract Management Agency approval of the corporate policy addressing uncompensated effort.

Appendix D - Pre-Award Survey Information

A Pre-award Survey may be conducted on all firms submitting a proposal, to include key cost reimbursable subcontractors indicating firm commitments to this acquisition. **The following information shall be submitted in a separate envelope marked "Pre-Award Survey"**. Offerors shall provide evidence of financial capability. Offerors shall provide the following:

In accordance with FAR 9.104-1 responsibility determination, a contractor must have adequate financial resources to perform the contract. Offerors shall submit the company's Unique Entity Identifier (UEI) and provide the latest complete three (3) years fiscal year financial statements (to include Balance Sheet, Income Statement, Statement of Cash Flow) for the Prime Contractor, certified by an independent accounting firm, if practicable, or at least by an authorized officer of the organization. In addition to the above, submit evidence of availability of working/operating capital (i.e. bank line of credit), which will be used for the performance of the resultant contract.

Any Offeror that intends to rely on the financial backing of its parent corporation must submit separate financial statements for both the partially-owned or wholly owned subsidiary and the parent corporation. If a partially-owned or wholly-owned subsidiary relying on the financial backing of a parent corporation cannot submit its own financial statements, provide a detailed explanation why. If a partially-owned or wholly-owned subsidiary which will be performing the contract is relying on a parent corporation for financial backing, a financial guarantee letter must also be submitted.

For Joint Venture arrangements, discuss the financial responsibilities amongst the companies. If the Joint Venture has been in existence for less than three (3) years, also provide the latest complete three years fiscal year financial statements for each member of the Joint Venture. Each Joint Venture/LLC member or partner may submit the aforementioned proprietary financial information separately in accordance with L.1 (a). Financial Statements may be printed double sided, and on 8-1/2" x 11" paper.

The Government may request additional information if needed in order to determine responsibility.

3. VOLUME II - NON-COST PROPOSAL (TECHNICAL AND PAST PERFORMANCE): An original plus five (5) paper copies and two (2) electronic copies (CD-ROM) of the Non-Cost Proposal shall be submitted no later than the date and time provided in Block 9 of the Standard Form 33, "Solicitation, Offer, and Award", in a sealed envelope and marked in the bottom right corner "NON-COST PROPOSAL SUBMITTED UNDER RFP N62742-26-R-1801- DO NOT OPEN IN MAILROOM." Identify the original proposal as "Original" on the cover of the proposal. The Non-Cost proposal shall be submitted in a three-ring binder with a table of contents and shall be tabbed appropriately. The proposal shall be typewritten, using 11 point font. **(Refer to Section M, for non-cost factors submittal requirements).**

- a. A graphic representation no more than 1 page in length, up to 11"x17" in size, identifying the firms/companies that are part of the Offeror's team and the Offeror's proposed key personnel, and clarifies which companies are the prime, JV members, and subcontractors.
- b. All information required by Factor 1 - Corporate and Key Personnel Experience
- c. All information required by Factor 2- Safety
- d. All information required by Factor 3- Past Performance

The Government is not liable for any proposal preparation expenses incurred in response to this solicitation nor any proposal preparation expenses incurred for individual task orders issued under the resultant contract.

4. TIME for receipt of proposals

- a. Volume I (Cost Proposal) and Volume II (Non-Cost Proposal) shall be submitted in two formats. (1) paper (mailed, delivered, or hand-carried) and (2) electronically via Procurement Integrated Enterprise Environment (PIEE). Proposals shall be received no later than Wednesday, 09 September 2026 @ 2:00 p.m., Hawaii Standard Time (HST).
- b. Paper proposals shall be in sealed envelopes/boxes marked in the bottom right corner "RFP N62742-26-R-1801, DO NOT OPEN IN MAILROOM."

Paper proposals can be **mailed, delivered, or hand-carried.**

IF SENT VIA UNITED STATES POSTAL SERVICE:

NAVFAC FACILITIES ENGINEERING SYSTEMS COMMAND PACIFIC

EV3 CONTRACTS BRANCH, BUILDING 346 BASEMENT

CODE CON76: Amber Mori (N62742-26-R-1801)

258 Makalapa Drive, Suite 100

Pearl Harbor, HI 96860-3134

IF HAND-CARRIED/ OR VIA COURIER SERVICES:

NAVFAC FACILITIES ENGINEERING SYSTEMS COMMAND, PACIFIC

EV3 CONTRACTS BRANCH

CODE CON76: Amber Mori (N62742-26-R-1801)

4256 Radford Drive, Building 62*

Honolulu, HI 96818-3296

****If facing the building, office is on the right. DO NOT drop off at the Navy Federal Credit Union.***

Offerors shall contact Amber Mori at amber.i.mori.civ@us.navy.mil to schedule a date and time for in-person proposal delivery to 4256 Radford Drive, Building 62, Honolulu, HI 96818-3296.

c. Electronic submittals

- 1) The Contractor shall submit all volumes of its proposal electronically using Procurement Integrated Enterprise Environment (PIEE) Solicitation Module at <https://piee.eb.mil/>.
- 2) Register at PIEE using the PIEE Vendor Registration Guide, provided in Attachment J.16.
- 3) Follow the PIEE Proposal Manager, Posting Offer, and Proposal Manager Functions Guides, Attachment J.16.

d. Proposals not received at the above address on or before the hour and date set forth for receipt of proposals shall be subject to the provisions of FAR 52.215-1(c), "Submission, modification, revision, and withdrawal of proposals". Government will provide notification to offeror upon proposal receipt during business hours.

L2 INSTRUCTIONS FOR SUBMITTING QUESTIONS REGARDING SOLICITATION

Questions regarding the solicitation shall be submitted in **writing** via electronic mail to amber.i.mori.civ@us.navy.mil. Electronic mail must be received no later than 2:00 p.m. HST 09 September 2026. Verbal queries will not be entertained. Responses to the questions will be provided in the form of a Notice and posted to the website PIEE Solicitation Module. The Government may not respond to questions submitted less than 21 calendar days before the proposal receipt due date.

L3 AMENDMENTS AND NOTICES TO THE SOLICITATION

Amendments and notices will be posted to the PIEE Solicitation Module. It is the Offeror's responsibility to check the web site periodically for any amendments to the solicitation. Changes to the solicitation will only be made by issuance of Amendments. Notices are for information purposes only and will not change the solicitation.

L4 MULTIPLE AWARDS

Multiple awards will NOT be made. The Government intends to issue one contract resulting from this solicitation.

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation.	Jan 2017		
52.204-7	System for Award Management-Registration. (Deviation 2026-O0038)	Feb 2026		
52.215-1	Instructions to Offerors-Competitive Acquisition. (Deviation 2026-O0038)	Feb 2026		
52.215-16	Facilities Capital Cost of Money.	Jun 2003		
52.215-20	Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data. (Deviation 2026-O0038)	Feb 2026		
52.215-20	Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data. (Alternate II)	Feb 2026	Alternate II	Oct 1997
52.215-22	Limitations on Pass-Through Charges-Identification of Subcontract Effort. (Deviation 2026-O0038)	Feb 2026		
52.222-5	Construction Wage Rate Requirements-Secondary Site of the Work. (Deviation 2026-O0038)	Feb 2026		
52.222-56	Certification Regarding Trafficking in Persons Compliance Plan. (Deviation 2026-O0038)	Feb 2026		
52.233-2	Service of Protest. (Deviation 2026-O0038)	Feb 2026		
52.237-1	Site Visit.	Apr 1984		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	Mar 2023		
252.215-7011	Requirements for Submission of Proposals to the Administrative Contracting Officer and Contract Auditor.	Jan 2018		
252.215-7013	Supplies and Services Provided by Nontraditional Defense Contractors.	Jan 2023		
252.215-7994	Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data. (DEVIATION 2026-O0048)	Mar 2026	Deviation 2026-O0048	Mar 2026
252.215-7996	Notification to Offerors-Postaward Debriefings. (DEVIATION 2026-O0048)	Mar 2026	Deviation 2026-O0048	Mar 2026
252.225-7003	Report of Intended Performance Outside the United States	Oct 2025		

FAR Clauses Incorporated by Full Text

52.211-14	Notice of Priority Rating for National Defense, Emergency Preparedness, and Energy Program Use.	(Apr 2008)
-----------	--	-------------------

Notice of Priority Rating for National Defense, Emergency Preparedness, and Energy Program Use (Apr 2008)

Any contract awarded as a result of this solicitation will be [] DX rated order; [X] DO rated order certified for national defense, emergency preparedness, and energy program use under the Defense Priorities and Allocations System (DPAS) (15 CFR700), and the Contractor will be required to follow all of the requirements of this regulation.

(End of provision)

52.215-20 Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data. (Alternate III) (Feb 2026) Alternate III (Oct 1997)

Alternate III (OCT 1997). As prescribed in 15.110(t)(3), add the following paragraph (c) to the basic provision (if Alternate II is also used, redesignate the following paragraph as paragraph (d)).

(c) Submit the cost portion of the proposal via the following electronic media: [Insert media format, e.g., electronic spreadsheet format, electronic mail, etc.]

52.216-1 Type of Contract. (Deviation 2026-O0038) (Feb 2026)

Type of Contract (Feb 2026) (Deviation 2026-O0038)

The Government contemplates award of a Cost-Plus-Fixed-Fee contract resulting from this solicitation.

(End of provision)

52.219-4 Notice of Price Evaluation Preference for HUBZone Small Business Concerns. (Deviation 2026-O0038) (Feb 2026)

NOTICE OF PRICE EVALUATION PREFERENCE FOR HUBZONE SMALL BUSINESS CONCERNS (FEB 2026) (DEVIATION 2026-O0038)

(a) Evaluation preference.

(1) Offers will be evaluated by adding a factor of 10 percent to the price of all offers, except-

(i) Offers from HUBZone small business concerns that have not waived the evaluation preference; and

(ii) Otherwise successful offers from small business concerns.

(b) *Waiver of evaluation preference.* A HUBZone small business concern may choose to waive the evaluation preference. If the concern waives the preference, the factor will be added to its offer for evaluation purposes.

☐ Offeror chooses to waive the evaluation preference.

(c) *Joint venture.* A HUBZone joint venture agrees that, in the performance of the contract, at least 40 percent of the aggregate work performed by the joint venture shall be completed by the HUBZone small business parties to the joint venture. Work performed by the HUBZone small business parties to the joint venture must be more than administrative functions.

(End of provision)

52.252-1 Solicitation Provisions Incorporated by Reference. (Feb 1998)

Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

www.acquisition.gov

(End of provision)

52.252-5 Authorized Deviations in Provisions. (Nov 2020)

Authorized Deviations in Provisions (Nov 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any Defense Federal Acquisition Regulation Supplement (48 CFR Chapter 2) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

DFARS Clauses Incorporated by Full Text

252.204-7025 Notice of Cybersecurity Maturity Model Certification Level Requirements.

(Nov 2025)

NOTICE OF CYBERSECURITY MATURITY MODEL CERTIFICATION LEVEL REQUIREMENTS (NOV 2025)

(a) *Definitions.* As used in this provision, "controlled unclassified information (CUI)," "current," "Cybersecurity Maturity Model Certification (CMMC) status," "Cybersecurity Maturity Model Certification unique identifier (CMMC UID)," "Federal contract information (FCI)", and "plan of action and milestones" have the meaning given in the Defense Federal Acquisition Regulation Supplement 252.204-7021, Contractor Compliance With the Cybersecurity Maturity Model Certification Level Requirements, clause of this solicitation.

(b)(1) *Cybersecurity Maturity Model Certification (CMMC) level.* The CMMC level required by this solicitation is: CMMC Level 1 (Self). This CMMC level, or higher (see 32 CFR part 170), is required prior to award for each contractor information system that will process, store, or transmit Federal contract information (FCI) or controlled unclassified information (CUI) during performance of the contract.

(2) The Offeror will not be eligible for award of a contract, task order, or delivery order resulting from this solicitation if the Offeror does not have, for each of the contractor information systems that will process, store, or transmit FCI or CUI and that will be used in performance of a contract resulting from this solicitation-

(i) The current CMMC status entered in the Supplier Performance Risk System (SPRS) (<https://piee.eb.mil>) at the CMMC level required by paragraph (b)(1) of this provision; and

(ii) A current affirmation of continuous compliance with the security requirements identified at 32 CFR part 170 in SPRS.

(c) *Plan of action and milestones.* If the Offeror has a CMMC Status of Conditional, the Offeror shall successfully close out a valid plan of action and milestones (32 CFR 170.21) to achieve a CMMC Status of Final.

(d) *CMMC unique identifiers.* The Offeror shall provide, in the proposal, the CMMC unique identifier(s) (CMMC UIDs) issued by SPRS for each contractor information system that will process, store, or transmit FCI or CUI during performance of a contract, task order, or delivery order resulting from this solicitation. The Offeror also shall update the list when new CMMC UIDs are generated in SPRS. The CMMC UIDs are provided in SPRS after the Offeror enters the results of self-assessment(s) for each such information system.

(End of provision)

252.215-7012 Requirements for Submission of Proposals via Electronic Media.

(Jan 2018)

REQUIREMENTS FOR SUBMISSION OF PROPOSALS VIA ELECTRONIC MEDIA (JAN 2018)

The Offeror shall submit the cost portion of the proposal via the following electronic media: electronic mail, file transfer, or compact disc.

(End of provision)

252.215-7992 Only One Offer. (DEVIATION 2026-O0048)

(Mar 2026) Deviation 2026-O0048 (Mar 2026)

ONLY ONE OFFER (DEVIATION 2026-O0048) (MAR 2026)

(a) *Cost or pricing data requirements.* After initial submission of offers, if the Contracting Officer notifies the Offeror that only one offer was received, the Offeror agrees to--

(1) Submit any additional cost or pricing data that is required in order to determine whether the price is fair and reasonable (10 U.S.C. 3705) or to comply with the statutory requirement for certified cost or pricing data (10 U.S.C. 3702); and

(2) Except as provided in paragraph (b) of this provision, if the acquisition exceeds the certified cost or pricing data threshold and an exception to the requirement for certified cost or pricing data at FAR 15.403-2(b)(2) through (5) does not apply, certify all cost or pricing data in accordance with paragraph (c) of DFARS provision 252.215-7994, Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data, of this solicitation.

(b) *Canadian Commercial Corporation.* If the Offeror is the Canadian Commercial Corporation, certified cost or pricing data are not required. If the Contracting Officer notifies the Canadian Commercial Corporation that additional data other than certified cost or pricing data are required in accordance with DFARS 225.870-4(c), the Canadian Commercial Corporation shall obtain and provide the following:

(1) Profit rate or fee (as applicable).

(2) Analysis provided by Public Works and Government Services Canada to the Canadian Commercial Corporation to determine a fair and reasonable price (comparable to the analysis required at 15.404).

(3) Data other than certified cost or pricing data necessary to permit a determination by the U.S. Contracting Officer that the proposed price is fair and reasonable.

TBD

(4) As specified in FAR 15.403-1(d), an offeror who does not comply with a requirement to submit data that the U.S. Contracting Officer has deemed necessary to determine price reasonableness or cost realism is ineligible for award unless the head of the contracting activity determines that it is in the best interest of the Government to make the award to that offeror.

(c) *Subcontracts*. Unless the Offeror is the Canadian Commercial Corporation, the Offeror shall insert the substance of this provision, including this paragraph (c), in all subcontracts exceeding the simplified acquisition threshold defined in FAR part 2.

(End of provision)

252.215-7993 Proposal Adequacy Checklist. (DEVIATION 2026-O0048)

(Mar 2026) Deviation 2026-O0048 (Mar 2026)

PROPOSAL ADEQUACY CHECKLIST (DEVIATION 2026-O0048) (MAR 2026)

The offeror shall complete the following checklist, providing location of requested information, or an explanation of why the requested information is not provided. In preparation of the offeror's checklist, offerors may elect to have their prospective subcontractors use the same or similar checklist as appropriate.

PROPOSAL ADEQUACY CHECKLIST

<u>REFERENCES</u>	<u>SUBMISSIONITEM</u>	<u>PROPOSAL PAGE No.</u>	<u>If not provided EXPLAIN (may use continuation pages)</u>
<u>GENERAL INSTRUCTIONS</u>			
1. FAR 15.408-2, Table 15-1, Section I Paragraph A	Is there a properly completed first page of the proposal per FAR 15.408-2 Table 15-1 I.A or as specified in the solicitation?	==	==
2. FAR 15.408-2, Table 15-1, Section I Paragraph A(7)	Does the proposal identify the need for Government-furnished material /tooling/test equipment? Include the accountable contract number and contracting officer contact information if known.	==	==
3. FAR 15.408-2, Table 15-1, Section I Paragraph A(8)	Does the proposal identify and explain notifications of noncompliance with Cost Accounting Standards Board or Cost Accounting Standards (CAS); any proposal inconsistencies with your disclosed practices or applicable CAS; and inconsistencies with your established estimating and accounting principles and procedures?	==	==

4. FAR 15.408-2, Table 15-1, Section I, Paragraph C(1) FAR 2.101, "Cost or pricing data"	Does the proposal disclose any other known activity that could materially impact the costs? This may include, but is not limited to, such factors as-- (1) Vendor quotations; (2) Nonrecurring costs; (3) Information on changes in production methods and in production or purchasing volume; (4) Data supporting projections of business prospects and objectives and related operations costs; (5) Unit-cost trends such as those associated with labor efficiency; (6) Make-or-buy decisions; (7) Estimated resources to attain business goals; and (8) Information on management decisions that could have a significant bearing on costs.	==	==
5. FAR 15.408-2, Table 15-1, Section I Paragraph B	Is an Index of all certified cost or pricing data and information accompanying or identified in the proposal provided and appropriately referenced?	==	==
6. FAR 15.403-2(b)	Are there any exceptions to submission of certified cost or pricing data pursuant to FAR 15.403-2(b)? If so, is supporting documentation included in the proposal? (Note questions 18-20.)	==	==
7. FAR 15.408-2, Table 15-1, Section I Paragraph C(2) (i)	Does the proposal disclose the judgmental factors applied and the mathematical or other methods used in the estimate, including those used in projecting from known data?	==	==
8. FAR 15.408-2, Table 15-1, Section I Paragraph C(2) (ii)	Does the proposal disclose the nature and amount of any contingencies included in the proposed price?	==	==
9. FAR 15.408-2, Table 15-1, Section II, Paragraph A or B	Does the proposal explain the basis of all cost estimating relationships (labor hours or material) proposed on other than a discrete basis?	==	==

10. FAR 15.408-2, Table 15-1, Section I Paragraphs D and E	Is there a summary of total cost by element of cost and are the elements of cost cross-referenced to the supporting cost or pricing data? (Breakdowns for each cost element must be consistent with your cost accounting system, including breakdown by year.)	==	==
11. FAR 15.408-2, Table 15-1, Section I Paragraphs D and E	If more than one Contract Line Item Number (CLIN) or sub Contract Line Item Number (sub-CLIN) is proposed as required by the RFP, are there summary total amounts covering all line items for each element of cost and is it cross-referenced to the supporting cost or pricing data?	==	==
12. FAR 15.408-2, Table 15-1, Section I Paragraph F	Does the proposal identify any incurred costs for work performed before the submission of the proposal?	==	==
13. FAR 15.408-2, Table 15-1, Section I Paragraph G	Is there a Government forward pricing rate agreement (FPRA)? If so, the offeror shall identify the official submittal of such rate and factor data. If not, does the proposal include all rates and factors by year that are utilized in the development of the proposal and the basis for those rates and factors?	==	==
<u>COST ELEMENTS</u>			
MATERIALS AND SERVICES			
14. FAR 15.408-2, Table 15-1, Section II Paragraph A	Does the proposal include a consolidated summary of individual material and services, frequently referred to as a Consolidated Bill of Material (CBOM), to include the basis for pricing? The offeror's consolidated summary shall include raw materials, parts, components, assemblies, subcontracts and services to be produced or performed by others, identifying as a minimum the item, source, quantity, and price.	==	==
SUBCONTRACTS (Purchased materials or services)			

15. DFARS 215.404-8	Has the offeror identified in the proposal those subcontractor proposals, for which the contracting officer has initiated or may need to request field pricing analysis?	==	==
16. FAR 15.404-8(b) FAR 52.244-2	Per the thresholds of FAR 15.404-8(b), Subcontract Pricing Considerations, does the proposal include a copy of the applicable subcontractor's certified cost or pricing data?	==	==
17. FAR 15.408-2, Table 15-1, Note 1; Section II Paragraph A	Is there a price/cost analysis establishing the reasonableness of each of the proposed subcontracts included with the proposal? If the offeror's price/cost analyses are not provided with the proposal, does the proposal include a matrix identifying dates for receipt of subcontractor proposal, completion of fact finding for purposes of price/cost analysis, and submission of the price/cost analysis?	==	==
<u>EXCEPTIONS TO CERTIFIED COST OR PRICING DATA</u>			
18. FAR 52.215-20, FAR 2.101, "commercial product" or "commercial service"	Has the offeror submitted an exception to the submission of certified cost or pricing data for commercial products or commercial services proposed either at the prime or subcontractor level, in accordance with provision 52.215-20? a. Has the offeror specifically identified the type of commercial product or commercial service claim (FAR 2.101 "commercial product" or "commercial service" definition), and the basis on which the commercial product or commercial service meets the definition? b. For modified commercial products (FAR 2.101 "commercial product" definition); did the offeror classify the modification(s) as either-- i. A modification of a type customarily available in the commercial marketplace (paragraph (3)(i)); or ii. A minor modification (paragraph (3)(ii)) of a type not customarily available in the commercial marketplace made to meet Federal Government requirements not exceeding the thresholds in FAR 15.403-2(c)(3)(iii)(B)? c. For proposed commercial products "of a type", or "evolved" or modified (FAR 2.101 "commercial product" definition), did the contractor provide a technical description of the differences between the proposed item and the comparison item(s)?	==	==
19.	[Reserved]		
20. FAR 15.408-2,	Does the proposal support the degree of competition and the basis for establishing the source and reasonableness of price for each subcontract or	==	==

Table 15-1, Section II Paragraph A(1)	purchase order priced on a competitive basis exceeding the threshold for certified cost or pricing data?		
INTERORGANIZATIONAL TRANSFERS			
21. FAR 15.408-2, Table 15-1, Section II Paragraph A. (2)	For inter-organizational transfers proposed at cost, does the proposal include a complete cost proposal in compliance with Table 15-1?	==	==
22. FAR 15.408-2, Table 15-1, Section II Paragraph A(1)	For inter-organizational transfers proposed at price in accordance with FAR 31.205-26(e), does the proposal provide an analysis by the prime that supports the exception from certified cost or pricing data in accordance with FAR15.403-2?	==	==
DIRECT LABOR			
23. FAR 15.408-2, Table 15-1, Section II Paragraph B	Does the proposal include a time phased (i.e.; monthly, quarterly) breakdown of labor hours, rates and costs by category or skill level? If labor is the allocation base for indirect costs, the labor cost must be summarized in order that the applicable overhead rate can be applied.	==	==
24. FAR 15.408-2, Table 15-1, Section II Paragraph B	For labor Basis of Estimates (BOEs), does the proposal include labor categories, labor hours, and task descriptions, (e.g.; Statement of Work reference, applicable CLIN, Work Breakdown Structure, rationale for estimate, applicable history, and time-phasing)?	==	==
25. FAR subpart 22.10	If covered by the Service Contract Labor Standards statute (41 U.S.C. chapter 67), are the rates in the proposal in compliance with the minimum rates specified in the statute?	==	==
<u>INDIRECT COSTS</u>			

26. FAR 15.408-2, Table 15-1, Section II Paragraph C	Does the proposal indicate the basis of estimate for proposed indirect costs and how they are applied? (Support for the indirect rates could consist of cost breakdowns, trends, and budgetary data.)	==	==
<u>OTHER COSTS</u>			
27. FAR 15.408-2, Table 15-1, Section II Paragraph D	Does the proposal include other direct costs and the basis for pricing? If travel is included does the proposal include number of trips, number of people, number of days per trip, locations, and rates (e.g. airfare, per diem, hotel, car rental, etc)?	==	==
28. FAR 15.408-2, Table 15-1, Section II Paragraph E	If royalties exceed \$1,500 does the proposal provide the information/data identified by Table 15-1?	==	==
29. FAR 15.408-2, Table 15-1, Section II Paragraph F	When facilities capital cost of money is proposed, does the proposal include submission of Form CASB-CMF or reference to an FPRA/FPRP and show the calculation of the proposed amount?	==	==
<u>FORMATS FOR SUBMISSION OF LINE ITEM SUMMARIES</u>			
30. FAR 15.408-2, Table 15-1, Section III	Are all cost element breakdowns provided using the applicable format prescribed in FAR 15.408-2, Table 15-1 III? (or alternative format if specified in the request for proposal)	==	==
31. FAR 15.408-2, Table 15-1, Section III Paragraph B	If the proposal is for a modification or change order, have cost of work deleted (credits) and cost of work added (debits) been provided in the format described in FAR 15.408-2, Table 15-1.III.B?	==	==

32. FAR 15.408-2, Table 15-1, Section III Paragraph C	For price revisions/redeterminations, does the proposal follow the format in FAR 15.408-2, Table 15-1.III.C?	==	==
<u>OTHER</u>			
33. FAR 16.4	If an incentive contract type, does the proposal include offeror proposed target cost, target profit or fee, share ratio, and, when applicable, minimum /maximum fee, ceiling price?	==	==
34. FAR 16.203-4 and FAR 15.408-2, Table 15-1, Section II, Paragraphs A, B, C, and D	If Economic Price Adjustments are being proposed, does the proposal show the rationale and application for the economic price adjustment?	==	==
35. FAR 52.232-28	If the offeror is proposing Performance-Based Payments did the offeror comply with FAR 52.232-28?	==	==
36. FAR 15.110(v) FAR 52.215-22 FAR 52.215-23	Excessive Pass-through Charges- Identification of Subcontract Effort: If the offeror intends to subcontract more than 70% of the total cost of work to be performed, does the proposal identify: (i) the amount of the offeror's indirect costs and profit applicable to the work to be performed by the proposed subcontractor(s); and (ii) a description of the added value provided by the offeror as related to the work to be performed by the proposed subcontractor(s)?	==	==

(End of provision)

252.237-7024 Notice of Continuation of Essential Contractor Services.

(Oct 2010)

NOTICE OF CONTINUATION OF ESSENTIAL CONTRACTOR SERVICES (OCT 2010)

(a) *Definitions.* "Essential contractor service" and "mission-essential functions" have the meanings given in the clause at 252.237-7023, Continuation of Essential Contractor Services, in this solicitation.

(b) The offeror shall provide with its offer a written plan describing how it will continue to perform the essential contractor services listed in attachment TBD, Mission Essential Contractor Services, dated TBD, during periods of crisis. The offeror shall-

(1) Identify provisions made for the acquisition of essential personnel and resources, if necessary, for continuity of operations for up to 30 days or until normal operations can be resumed;

(2) Address in the plan, at a minimum-

- (i) Challenges associated with maintaining essential contractor services during an extended event, such as a pandemic that occurs in repeated waves;
- (ii) The time lapse associated with the initiation of the acquisition of essential personnel and resources and their actual availability on site;
- (iii) The components, processes, and requirements for the identification, training, and preparedness of personnel who are capable of relocating to alternate facilities or performing work from home;
- (iv) Any established alert and notification procedures for mobilizing identified "essential contractor service" personnel; and
- (v) The approach for communicating expectations to contractor employees regarding their roles and responsibilities during a crisis.

(End of provision)

Section M - Evaluation Factors for Award

M1 COMPETITIVE RANGE:

The Government intends to evaluate all proposals received and award a contract without negotiations. Therefore, the Offeror's initial proposal should contain the Offeror's best terms from a cost/price and technical standpoint. However, if negotiations are deemed necessary, to maximize the Government's ability to obtain the best value, negotiations will be held with those Offerors within the competitive range. The Government may limit the number of proposals in the competitive range to the greatest number that will permit an efficient competition among the most highly qualified proposals, considering cost and technical factors.

M2 ORAL PRESENTATIONS:

If negotiations are deemed necessary, the Government reserves the right to request oral presentations with Offerors within the competitive range. The oral presentation will be to augment the Offeror's written proposal.

M3. ENFORCEABILITY OF PROPOSAL:

The proposal must set forth full, accurate and complete information as required by this solicitation. The Government will rely on such information in the award of a contract. By submission of the offer, the Offeror agrees that all items proposed (e.g., key personnel, subcontractors, approach, etc.) will be utilized for the duration of the contract and any substitutions will require prior Contracting Officer's approval.

M4 BASIS OF AWARD

The contract resulting from this solicitation will be awarded to the responsible Offeror whose offer, conforming to the solicitation, is determined to be the most advantageous to the Government considering Cost and Non-Cost evaluation factors. Award may be made to other than the lowest cost Offeror or other than the highest Non-Cost rated Offeror. Business judgment and tradeoffs will be used to determine the proposal offering the best value to the Government. In determining the best value to the Government, the Government need not quantify the tradeoffs that led to the best value decision.

M5 EVALUATION FACTORS

(1) The evaluation factors are as follows:

I. Non-Cost Evaluation Factors:

FACTOR 1, CORPORATE AND KEY PERSONNEL EXPERIENCE

FACTOR 2, SAFETY

FACTOR 3, PAST PERFORMANCE

II. Cost

(2) The relative order of importance of the non-cost/price evaluation factors is the technical factors, Factor (1) Corporate and Key Personnel Experience and Factor (2) Safety, are of equal importance to each other and, when combined, are equal in importance to the past performance evaluation/performance confidence assessment factor, Factor (3) Past Performance. When the proposal is evaluated as a whole, the technical factors and past performance/performance confidence assessment factor combined (i.e., the non-cost/price evaluation factors) are significantly more important than cost.

(3) NON-COST EVALUATION FACTORS (FACTORS 1, 2, AND 3)

a. NOTES applicable to Factor 1, Corporate and Key Personnel Experience and Factor 3, Past Performance on Recent, Relevant Projects:

(1) Definition of "recent relevant project" is as follows:

A. In general, relevant project means projects whose scopes of work were similar to the types of projects that may be ordered against this contract that require the performance of one or more of the Specific Tasks described in Section C, paragraph 1.2. A relevant project must be either a standalone contract or task order under an Indefinite Delivery/Indefinite Quantity (IDIQ) Contract. The submission of information or the description of the scope of a Basic IDIQ contract will not be considered a relevant project, except in Section M, paragraph M5.(3).b.(2)c and Attachment J.10, Key Personnel Experience/Qualifications. Information may be provided on Basic IDIQ contracts on Attachment J.10 for the Program Manager, Senior Project Manager, Contract Administration Manager, Quality Assurance Manager, and Health and Safety Manager.

B. A relevant project shall also be for an amount of at least \$200,000 in dollar value and shall be at least 85% financially executed as of the issuance date of this solicitation. A relevant project shall involve performance of remedial action services.

C. Recent is defined as five (5) years from the issuance date of this solicitation, except in regards to Key Personnel in which recent is defined as within the last ten (10) years from the issuance date of this solicitation.

(2) The distinction between Corporate and Key Personnel Experience and Past Performance is that Corporate and Key Personnel Experience pertains to the types of work and volume of work completed by a contractor that are comparable to the types of work covered by this requirement, in terms of size, scope, and complexity. Past Performance pertains to both the relevance of recent efforts and how well a contractor has performed on the contracts.

(3) Definition: "Offeror" typically refers to a single corporation or business entity submitting the proposal as a prime contractor. An "Offeror" can also be comprised of other entities that submit the proposal as a prime contractor, such as: Joint Ventures (JV), Limited Partnerships (LTD), or a Limited Liability Company (LLC). In its evaluation of past performance and experience, the Government's evaluation will generally focus on the entity submitting the proposal (single corporation, individual JV partners, or the LTD or LLC identified on the SF33). Entities may not submit as Prime on more than one offer. Failure to comply with this may result in disqualification of the Offeror for contract award.

(4) If the Offeror is utilizing experience or past performance of an **entity other than (1) the Offeror; (2) if the Offeror is a JV, its JV partners jointly and severally liable for the contract; or (3) a firm that has been acquired**

by the Offeror and is now part of the Offeror, the Offeror shall provide in its proposal a fully-executed teaming agreement or other contractual agreement. The teaming agreement or other contractual agreement shall, at a minimum, (1) be signed by the Offeror and other entity, (2) specifically reference this solicitation/contract, and (3) specify the work to be performed by the other entity such that it is clear that the other entity will be meaningfully involved in this contract **in a role that is consistent with that entity's role in the project submitted**. For item (3), clearly state the specific commitments of resources of the other entity in terms of the work it will specifically perform or manage in the performance of the contract at the worksite. Note that generalized statements concerning commitment of resources are not sufficient to demonstrate that an entity will be meaningfully involved in the performance of the contract. Examples of "generalized statements" include a commitment of resources merely based on an entity's "access" to resources and other generalized statements such as entity will "provide support and expertise on the project." The Government will only consider information provided in the teaming agreement for the purpose of determining whether the Offeror has clearly demonstrated that any entity (other than the Offeror and, if the Offeror is a JV, it's JV partners jointly and severally liable for the contract) will have meaningful involvement in the performance of the contract. For experience and past performance information of a firm that has been acquired and is no longer a separate legal entity, provide an explanation of the acquisition sufficient to demonstrate 1) that the predecessor firm is now part of the entity identified in the SF33, and 2) that the entity currently possesses assets and personnel from the predecessor firm sufficient for the predecessor firm's experience and past performance to be reasonably predictive of the entity's performance on this contract.

(5) A subcontractor's experience and past performance will not be given the same level of consideration as that of either a prime contractor or a joint venture partner because there is no direct legal relationship between the Government and a subcontractor. The Government reserves the right to consider the experience or past performance of a subcontractor where the prime contractor provides, in its proposal, evidence of a binding teaming agreement or other contractual agreement which creates legal responsibility on the part of the subcontractor for this solicitation. If the Government chooses to do so, the subcontractor's experience and past performance will not be given the same level of consideration as either the prime contractor or a JV partner.

(6) Prime contractor and prime contractor-subcontractor teams/JVs/LLCs/LTDs with a demonstrated history of working successfully together on prior projects may be considered more favorably than those without such history.

(7) If the Offeror is a JV, relevant project experience should be submitted for projects completed by the JV entity, if available. If the JV does not have shared experience, projects may be submitted for any of the JV members. Projects completed by the JV that are relevant may be considered more favorably than projects submitted by the individual JV members. Offerors who submit experience for all JV partners may be considered more favorably. Offerors are still limited to a total of eight (8) projects combined for Attachment J.8 Specialized Recent Project/Contract Experience Information.

(8) If an Offeror is relying on the experience performed under a previous JV, the Offeror shall demonstrate what portion of the work was performed by the entity offering on this contract under the prior JV and shall not include work performed by the JV as a whole unless all members of the prior JV are being proposed under this solicitation.

b. EVALUATION FACTOR 1 - **CORPORATE AND KEY PERSONNEL EXPERIENCE**

(1) The Offeror will demonstrate its technical experience and expertise in performing the requirements of this solicitation and their ability to recruit and employ qualified Key Personnel. This technical factor will be used to evaluate the probability of successful accomplishment of the work contemplated under this contract.

(2) Solicitation Submittal Requirements:

Offerors shall:

- a. Use Attachment J.8 Specialized Recent Project/Contract Experience Information to describe experience on no more than eight (8) recent, relevant projects completed that individually or collectively are similar in scope, complexity, and size to the work described in Section C. The Offeror shall not submit more than two (2) pages single-sided per project. If more than two (2) single-sided pages are submitted, the agency will not consider the information on the additional pages.
- b. Use Attachment J.9 Workload Experience Form to describe capability and capacity to deliver products similar to the type and complexity of the tasks described in Section C of this solicitation assuming a workload of at least ten (10) recent, relevant projects totaling a minimum of \$10 million at a minimum of two (2) locations within the NAVFAC Pacific area of responsibility, as described in Section C subparagraph 1.1, occurring concurrently. The combined submittal for Attachment J.9 shall not exceed ten (10) single-sided pages. If more than ten (10) single-sided pages are submitted, the agency will not consider the information on the additional pages.
- c. Use Attachment J.10 Offeror's Key Personnel Experience/Qualifications to detail experience for each person who will be assigned as Key Personnel to work on this contract. Key Personnel are the Program Manager, Senior Project Manager, Contract Administration Manager, Quality Assurance (QA) Manager, and Health and Safety Manager. The Offeror shall not submit more than four (4) single-sided pages per person submitted as Key Personnel. The Offeror shall provide information on a maximum of four (4) recent, relevant projects that were completed by each Key Personnel that would demonstrate their project experience. Experience that is not related to the work described in Section C of this solicitation should not be included in Attachment J.10. Letters of commitment shall be submitted for all Key Personnel including prime contractor-subcontractor teams/JV/LLCs /LTDs key personnel that do not currently work for the Offeror. Letters of commitment shall be limited to two (2) single-sided pages and submitted with Attachment J.10. Letters of commitment page limit does not apply toward the overall page limit of Attachment J.10. Offerors shall not submit Attachment J.10 for personnel who will not be assigned as Key Personnel under this contract. Key Personnel experience may include experience gained while not employed by the Offeror.

Contractors are required to use the Attachments noted above to document experience. Experience that is provided outside the furnished attachments will not be considered.

(3) Basis of Evaluation:

The Government will evaluate the extent to which the proposal demonstrates recent, relevant Corporate and Key Personnel experience by the Offeror (including an evaluation of the applicable credentials such as training, education, and experience of Key Personnel) in performing the depth, breadth, and volume of work in Section C of this solicitation. Experience will be evaluated on the (1) complexity, (2) scope, (3) contract volume/project size and (4) location of the work performed as compared to the requirements contemplated under this solicitation and described in Section C.

- a. Minimum Required Experience: To be considered for this contract, the Offeror must demonstrate experience (in Corporate AND Key Personnel experience) in the following tasks described in Section C of this solicitation:
 - Removal actions at sites regulated under CERCLA
 - Soil and/or sediment remediation of various contaminants at sites regulated under CERCLA

- Expedited response actions
 - Munitions response actions and closures
 - Management as the prime contractor on a cost IDIQ contract
- b. Corporate and Key Personnel experience in the following areas may be evaluated more favorably:
- Sediment removal and/or remediation
 - Per- and polyfluoroalkyl substances (PFAS) response actions
 - Experience working for the Navy/Marine Corps
 - Experience working in the majority of the following locations (Guam, Hawaii, California, Washington, and the Northern Marianas Islands)
 - Experience performing a substantial amount of projects concurrently:
 - Totaling significantly in excess of \$10 million in value
 - Overlapping for a substantial amount of time
 - With remediation of various media
- c. Minimum Key Personnel Requirements: Key Personnel must meet the education, training, and experience qualifications described in Section C, paragraph 1.3.3 to be considered for this contract.
- d. Failure to use, completely fill out or provide the required information in the templates referenced above will result in the proposals being considered deficient for this Factor 1 - Corporate and Key Personnel Experience.

c. EVALUATION FACTOR 2 - **SAFETY**

Solicitation Submittal Requirements:

The Offeror shall submit the following information: The Days Away from Work, Restricted Duty, or Job Transfer (DART) Rate; and Total Case Rate (TCR) for the specified five (5) Calendar Years (CY), as well as a safety narrative, as described further below. For a partnership or JV, the Offeror shall submit separate DART rates and TCR for the specified five (5) CY for each contractor who is part of the partnership/JV; however, only one safety narrative is required. Any fatalities experienced within this 5-year timeframe must be explained in detail, to include root cause and corrective actions.

NOTE: DART and TCR shall not be submitted for subcontractors

1. DART Rate: Submit five (5) previous complete calendar years' [CY2021, CY2022, CY2023, CY2024, and CY2025] worth of data (not an overall average). If the Offeror has no DART rate, for any year, affirmatively state so and explain why. Should a negative trend occur above moderate risk levels, an acceptable/detailed explanation is required that includes any corrective actions taken for improvement.

a. DART cases include injuries or illnesses resulting in death, days away from work, and/or restricted work or transfer to another job days beyond the day of injury/illness.

b. Calculation of DART rate: Multiply the total number of DART cases by 200,000, and then divide by the number of employee labor hours worked.

$$\text{DART RATE} = \frac{\text{Number of DART Incidents} \times 200,000}{\text{Total Number of Employee Labor Hours Worked}}$$

2. TCR Rate: Submit five (5) previous complete calendar years' [CY2021, 2022, 2023, 2024, and 2025] worth of data (not an overall average). If the Offeror has no TCR rate, for any year, affirmatively state so and explain why. Should a negative trend occur above moderate risk levels, an acceptable/detailed explanation is required that includes any corrective actions taken for improvement.

a. TCR cases include injuries or illnesses resulting in death, days away from work, restricted work or transfer to another job days beyond the day of injury/illness, medical treatment beyond first aid, or loss of consciousness.

b. Calculation of TCR rate: Multiply the total number of TCR incidents by 200,000, and then divide by the number of employee labor hours worked.

$$\text{TCR RATE} = \frac{\text{Number of TCR Incidents} \times 200,000}{\text{Total Number of Employee Labor Hours Worked}}$$

3. Technical Approach to Safety: Submit a narrative that addresses the following:

a. Describe the Offeror's approach to implementing and executing a Safety Management System (SMS) including Management/Leadership involvement, Employee involvement, Hazard prevention, Hazard control, Worksite analysis, and Safety and health training, to include the standard(s) used to benchmark the SMS.

- b. Describe the evaluation process used to select potential subcontractors.
 - c. Describe the processes of how the Offeror will oversee safety compliance of subcontractors at all levels throughout performance of the contract (to include the Offeror's own in-house workforce).
 - d. The Technical Approach to Safety narrative shall be limited to two (2) single-sided pages.
4. The Government reserves the right to review other available sources (public/Government internal) of information. These may include but are not limited to OSHA data, NAVFAC's Contractor Incident Reporting System (CIRS), Contractor Performance Assessment Reporting System (CPARS), Electronic Contract Management System (eCMS), etc.

Basis of Evaluation:

The Government is seeking to determine that the Offeror has consistently demonstrated a commitment to safety and that the Offeror plans to properly manage and implement safety procedures for itself and its subcontractors. The evaluation will collectively consider the DART rate, TCR, and Technical Approach to Safety, and other sources of information available to the Government as part of such collective evaluation. The board will evaluate the DART rates and TCR to determine if the Offeror has demonstrated a history of safe work practices taking into account any negative trends and extenuating circumstances that impact the rating.

1. DART Rate: The board will evaluate trends over the last five years, considering changes that take it from one risk level (or more) to the next up or down. Negative trends occurring above moderate risk levels require the Offeror to provide a detailed explanation that includes any corrective actions taken for improvement.
- a. Missing data without an explanation is considered a deficiency.
 - b. Declining trends that push the risk levels from Moderate Risk (MR) or higher to Low Risk (LR) or Very Low Risk (VLR) would indicate a strength.
 - c. An increasing DART rate trend could be considered a weakness (i.e. MR or better to High Risk (HR) or Extremely High Risk (EHR)) if an acceptable explanation is not provided for any trends that rise above Moderate.
 - d. This chart correlates the DART rate to the level of risk:

<u>Risk</u>	<u>DART Rate</u>
Very Low Risk	Less Than 1.0
Low Risk	From 1.0 to 1.99
Moderate Risk	From 2.0 to 2.99
High Risk	From 3.0 to 4.0
Extremely High Risk	Greater than 4.0

2. TCR Rate: The board will evaluate trends over the last five years, considering changes that take it from one risk level (or more) to the next up or down. Negative trends occurring above moderate risk levels require the Offeror to provide a detailed explanation that includes any corrective actions taken for improvement.

- a. Missing data without an explanation is considered a deficiency.
- b. Declining trends that push the risk levels from Moderate Risk (MR) or higher to Low Risk (LR) or Very Low Risk (VLR) would indicate a strength.
- c. An increasing TCR rate trend could be considered a weakness (i.e. MR or better to High Risk (HR) or Extremely High Risk (EHR)) if an acceptable explanation is not provided for any trends that rise above Moderate.
- d. This chart correlates the TCR rate to the level of risk:

<u>Risk</u>	<u>TCR Rate</u>
Very Low Risk	Less Than 2.49
Low Risk	From 2.5 to 3.49
Moderate Risk	From 3.5 to 4.49
High Risk	From 4.5 to 5.99
Extremely High Risk	Greater than 6.0

3. The Technical Approach to Safety Narrative. To determine the degree to which the Offeror:

- a. Describes a viable SMS that addresses elements; such as Management/Leadership involvement, Employee involvement, Hazard prevention, Hazard control, Worksite analysis, and Safety and health training, to include the standard(s) used to benchmark the SMS.
- b. Describes a methodical process of evaluating subcontractor's safety performance in their selection process.
- c. Describes a logical management plan to hold themselves and their subcontractors accountable for adhering to the safety requirements of the contract.
- d. The Technical Approach to Safety narrative shall be limited to two (2) single-sided pages. Information on pages beyond this will not be considered.

4. The Government reserves the right to review other available sources (public/Government internal) of information. These may include but are not limited to OSHA data, NAVFAC's Contractor Incident Reporting System (CIRS), Contractor Performance Assessment Reporting System (CPARS), Electronic Contract Management System (eCMS), etc.

d. EVALUATION FACTOR 3 - **PAST PERFORMANCE**

(1) The Offeror's past performance evaluation will be based upon customer satisfaction in the execution of the same recent, relevant projects submitted for Factor 1 (Corporate and Key Personnel Experience), Attachment J.8 and completed projects per paragraph M.3.d.(2).d below within the last five (5) years that are similar to the tasks described in Section C. Customer satisfaction will include assessing quality control and timely performance.

(2) Solicitation Submittal Requirements:

a. IF A COMPLETED CPARS EVALUATION IS AVAILABLE, IT SHALL BE SUBMITTED WITH THE TECHNICAL PROPOSAL. IF THERE IS NOT A COMPLETED CPARS EVALUATION, the Past Performance Questionnaire (PPQ) included in the solicitation as Attachment J.11 is provided for the Offeror or its team members to submit to the client for each project the Offeror includes in its proposal for Factor 1, Corporate and Key Personnel Experience. AN OFFEROR SHALL NOT SUBMIT A PPQ WHEN A COMPLETED CPARS IS AVAILABLE.

b. IF A CPARS EVALUATION IS NOT AVAILABLE, ensure correct phone numbers and email addresses are provided for the client point of contact. Completed PPQs should be submitted with your proposal. If the Offeror is unable to obtain a completed PPQ from a client for a project(s) before proposal closing date, the Offeror should complete and submit with the proposal the first page of the PPQ (Attachment J.11), which will provide contract and client information for the respective project(s). Offerors should follow-up with clients/references to ensure timely submittal of questionnaires. If the client requests, questionnaires may be submitted directly to the Government's point of contact, Amber Mori, via email at amber.i.mori.civ@us.navy.mil prior to proposal closing date. Offerors shall not incorporate by reference into their proposal PPQs or CPARS previously submitted for other RFPs. However, this does not preclude the Government from utilizing previously submitted PPQ information in the past performance evaluation.

c. Also include performance recognition documents received within the last five (5) years for the projects submitted for Factor 1 (Corporate and Key Personnel Experience) on Attachment J.8, such as awards, award fee determinations, customer letters of commendation, and any other forms of performance recognition.

d. Sources of Past Performance Information for evaluation that may be used are as follows:

- Past performance information provided by the offeror, as solicited;
- Past performance information obtained from any other sources available to the Government, to include, but not limited to, Contractor Performance Assessment Reporting System (CPARS), Federal Awardee Performance and Integrity Information System (FAPIS), Electronic Subcontract Reporting System (eSRS), or other databases; the Defense Contract Management Agency; and interviews with Program Managers, Contracting Officers, and Fee Determining Officials using all CAGE/Entity Identifier numbers of the Offeror or any team member (partnership, joint venture, or teaming arrangement) identified in the Offeror's proposal.

e. While the Government may elect to consider data from other sources, the burden of providing detailed, current, accurate and complete past performance information rests with the Offeror.

(3) Basis of Evaluation: The degree to which past performance evaluations and all other past performance information reviewed by the Government (e.g., CPARS, Federal Awardee Performance and Integrity Information System (FAPIS), Electronic Subcontract Reporting System (eSRS), performance recognition documents, and information obtained from any other source) reflect a trend of satisfactory performance considering:

- A pattern of successful completion of tasks;
- A pattern of deliverables that are timely and of good quality;
- A pattern of cooperativeness and teamwork with the Government at all levels (task managers, contracting officers, auditors, etc.);
- Recency of tasks performed that are relevant to the task at hand; and
- A respect for stewardship of Government funds

a. Projects will be compared against the requirements of Section C for complexity, volume/size, scope, and location.

b. The Government reserves the right to consider the past performance of a subcontractor, but if the Government chooses to do so, a subcontractor's past performance will be given less consideration than a prime contractor's past performance. Prime-subcontractor or JV arrangements with a demonstrated history of working successfully together on prior projects may be considered more favorably than arrangements without such history.

c. An Offeror will not be rated favorably or unfavorably for Factor 3, Past Performance, if the Offeror does not have a record of relevant past performance or if a record of past performance is unavailable. In such a case an Offeror will receive a "Neutral Confidence" rating.

(4) COST PROPOSAL EVALUATION

a. Cost Proposal Submittal Requirement: See Section L, L1.

b. Basis of Evaluation. Cost proposals will not be assigned an adjectival rating but shall be evaluated for:

- Completeness- All information required under Section L, L1 of the solicitation.
- Price reasonableness in accordance with FAR 15.404-1.
- Cost reasonableness in accordance with FAR 15.404-2.
- Cost realism in accordance with FAR 15.404-3.

The Government will evaluate all aspects of the cost proposal for completeness, reasonableness and realism. This Cost Proposal evaluation may include an analysis of each Offeror's proposed costs to determine whether the proposed cost elements are realistic and are consistent with other cost-related information (i.e. DCAA audits, historical rates, etc.) available to the Contracting Officer.

Evaluation of options shall not obligate the Government to exercise the option(s). As part of the cost evaluation, the Government will evaluate the Option to Extend Services under FAR Clause 52.217-8. Offerors' Total Evaluated Cost (TEC) for the evaluation purposes shall be for the Base Year, Option Years 1 through 4, and the Service Extension.

Unrealistically low (or high) proposed costs or costs unbalanced between the various option years, initially or subsequently, may be grounds for eliminating a proposal from competition either on the basis that the Offeror does not understand the requirement, or has made an unrealistic proposal.

Proposed costs may be adjusted for purposes of evaluation, based on the results of the cost realism evaluation to determine probable cost of performance. Offerors are reminded that for the purpose of evaluation under this solicitation, the direct labor ceiling rates (Attachment J.1 - Direct Labor Bid and Billing Rate Submission) and indirect ceiling rates (Attachment J.3 - Indirect Ceiling Rates and Fee Application) proposed by the prime, each JV member, and cost reimbursable subcontractors shall be proposed in Attachment J.7 (Cost Model Work Sheet) for each contract period, and will be used for cost realism evaluation of the Cost Model Work Sheet. The Government may reject an offer that reflects a serious lack of cost realism.

Any variance between indirect base rates used to develop the ceiling rates and historical rates, applicable forward pricing rates, DCAA approved rates, and/or approved CAS practices will be evaluated to ensure compliance with cost realism.

The proposed indirect rate ceilings will be reviewed for reasonableness and the degree to which it accomplishes the Government's desire to control costs.

The cost proposal volume will also be evaluated to ensure the completion of the representations and certifications in Section K of the RFP and the inclusion and submission of other information required.

The Offeror will be evaluated to determine which Contractor Business Systems are sufficiently adequate and compliant with government regulations and standards. Contractor Business Systems are approved by cognizant contract administration offices such as the Defense Contract Management Agency (DCMA) or the Defense Contract Audit Agency (DCAA). The Offeror's demonstrated ability to maintain government approved systems in the following areas will be evaluated: accounting, estimating, and purchasing. Offerors that can reasonably provide the services being acquired under the contract and also have a Government approved cost accounting system and Government approved purchasing system prior to award will be evaluated more favorably by the Government.

The Offeror will be evaluated to ensure that they have the financial capability to perform the contract given the magnitude of the proposed work.

The Government will evaluate Offerors' Compensation Plans for Professional Employees to assess the likelihood of attracting and retaining qualified professional personnel to ensure uninterrupted, high-quality performance. Professional compensation that is unrealistically low or not in reasonable relationship to the various job categories may be viewed as evidence of failure to comprehend the complexity of the contract requirements.

The use of uncompensated overtime, as defined in the FAR 52.237-10 in Section L, will also be considered in the cost realism analysis and risk assessment.

The Government will not accept any assumptions in the Offeror's cost proposal.

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.217-5	Evaluation of Options. (Deviation 2026-O0038)	Feb 2026		
52.225-10	Notice of Buy American Requirement-Construction Materials.	May 2014		